United States
of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE 118th CONGRESS, FIRST SESSION

Vol. 169 WASHINGTON, TUESDAY, JUNE 13, 2023 *No. 103*

House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mrs. HOUCHIN).

DESIGNATION OF THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
June 13, 2023.

I hereby appoint the Honorable ERIN HOUCHIN to act as Speaker pro tempore on this day.

KEVIN MCCARTHY,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 9, 2023, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with time equally allocated between the parties and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

CELEBRATING 300TH ANNIVERSARY OF SOUTH KINGSTOWN

The SPEAKER pro tempore. The Chair recognizes the gentleman from Rhode Island (Mr. MAGAZINER) for 5 minutes.

Mr. MAGAZINER. Madam Speaker, I rise today to celebrate the 300th anniversary of the town of South Kingstown, Rhode Island, home to some of our State's most iconic, historic, economic, and cultural treasures.

Formally established in 1723, South Kingstown's origins can be traced back to the Pettaquamscutt Purchase of 1658, where the founder of our State, Roger Williams, and Narragansett sachems signed a document establishing the settlement of Kingstown Village, which became one of the five original State capitals of Rhode Island.

With the coming of the industrial revolution, the villages of Peace Dale and Wakefield in South Kingstown became economic engines, employing thousands and defining life for many South Kingstown residents well into the 20th century.

Some of these old South Kingstown mills are still standing today, including Kenyon's Grist Mill, the oldest continuing manufacturing business in Rhode Island, dating back to 1696.

South Kingstown is also home to the University of Rhode Island, founded in 1892, our State's flagship public land-grant university, that today is leading research and innovation in the blue economy, with disciplines ranging from engineering to oceanography, entrepreneurship, healthcare, and so much more.

The town has grown and evolved but has never lost its rural character, beautiful seascapes, and hardworking roots. Whether it was the farmers who tilled the land, the millworkers who built the middle class, or the university researchers on the cutting edge of innovation, everyone in South Kingstown, from Wakefield to Matunuck, Peace Dale, and Usquepaug, has contributed to the town's success in one way or another.

The people of South Kingstown built a strong and vibrant community over the past 300 years, and may South Kingstown continue to thrive for generations to come.

CONGRESS' CONSTITUTIONAL ROLE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Louisiana (Mr. JOHNSON) for 5 minutes.

Mr. JOHNSON of Louisiana. Madam Speaker, this week, Congress is going to take up one of the most consequential pieces of legislation that this body has considered in years.

Despite the lack of fanfare from the national media, the REINS Act is a very important piece of legislation and has the potential to overhaul the Federal bureaucracy, overhaul what many of us and many of my constituents back in Louisiana refer to as part of the deep state. It also has the potential to restore Congress' constitutional role as the chief rulemaking body in America.

However, to understand the necessity of this bill, it is important that we take a step back for just a moment and examine how Congress has ceded our lawmaking authority to nameless, faceless bureaucrats that aren't accountable to anyone: not to voters and really, largely, not even to those of us in Congress.

Article I, Section 1 of the Constitution itself declares that: ''All legislative powers herein granted shall be vested in a Congress of the United States. . . . '' All. All legislative powers.

The Founders intended that governments derive their powers from the consent of the governed, of course—a radical idea that suggests that laws are unjust unless they come from the people. The way that is done in our system, in our unmatched constitutional Republic, is that it comes from the people through their duly elected Representatives in Congress. This idea, of course, was espoused originally by principles originated in the Nation's birth certificate, the Declaration of Independence.

The Founders, having signaled their intent to break free from the world's most powerful nation were fearful of the undue power and influence of an absolute monarch, but of course, tyranny in any of its forms is an evil.

Printed on recycled paper.

Therefore, they created this system, this system that we have, with separation of powers, checks and balances, one that provides elected Representatives with the authority to make the laws, an executive to implement them, and a judiciary to call the balls and strikes about disputes over that.

However, through the decades of congressional disinterest in lawmaking and an ever-growing Federal bureaucracy, the executive branch has usurped Congress' role as the rulemaking authority in America.

It is important to note that this development has been somewhat of a slow creep, and it is not a sinister plan to upend Congress' authority. You can mostly blame the Congress itself for this having happened.

Here is what has occurred: For decades, Congress has really willfully delegated its authority to Federal agencies, through passage of a patchwork of spending bills and the ''vote now, read later'' mindset. It also allows some of the duly elected Representatives of the people to evade their responsibilities because they don't have to take tough votes. If you can just make bureaucrats do it, it is a lot easier.

However, think of the results of this. Just consider this one statistic: In 2021 alone, Congress here passed 143 laws, that is bills that passed both Chambers and were signed into law by the President. In that same year, by comparison, Federal agencies enacted 3,257 rules. That is 23 times the number of laws actually duly passed by the Congress.

Unfortunately, these rules often serve the interests of liberal and progressive causes. That is the effect of it. They cater to the desires of environmental groups, unions, LGBTQ activists, and those who want to abolish the Second Amendment. We have example after example after example.

Progressives have realized that congressional inaction has opened a window to usher in this agenda outside of the legislative or electoral framework. Their ideas aren't popular at the ballot box, so they entrust Federal agencies to do all that bidding behind closed doors. It is not American.

Frankly, my concerns with the growth of the administrative state are viewpoint neutral. I don't somehow quietly hope for a similarly sized Federal Government that serves conservative political interests. No, we are intellectually consistent in this.

Reining in the administrative state is not about retribution. It is about restoration; restoration of our founding principles, the things that made our great Nation in the first place. That is why passing the REINS Act is a critical first step in achieving these goals.

This bill would reassert the Article I legislative authority of Congress and prevent excessive overreach by the executive branch in the Federal rulemaking process. What it means is that every new major rule proposed by Federal agencies would be subject to congressional scrutiny before going into effect. We define ''major rule'' as any regulation with an annual effect on the economy of over $100 million, any major increase in cost or prices for consumers, or any significant adverse impact on competition, employment, investment, or productivity of U.S.-based enterprises.

By quick way of example, if Congress would have passed this bill in the last session, President Biden's student loan bailout, his ban on oil and gas lease sales, his plan to allow retirement funds to consider ESG, and even the mandated climate risk disclosures would all have been subject to an up-or-down vote by the people's duly elected Representatives in this body.

Instead, in President Biden's first year, he finalized 69 regulations that carried over a $100 million price tag or significantly impacted the economy. Those regulations add up to more than $200 billion—billion with a b—in regulatory costs, and Congress wasn't even consulted to approve one dime of it.

The REINS Act represents a long overdue first step in restoring accountability and reducing government overreach. I am really grateful that House Republicans have prioritized this bill this week. We will pass it off this floor. We will send it to the Senate, and hopefully we can rein in the bloated government that is controlling all of our lives.

ACCOUNTABILITY FOR CHARTER SCHOOLS

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Michigan (Ms. TLAIB) for 5 minutes.

Ms. TLAIB. Madam Speaker, for far too long for-profit charter schools have operated without accountability. Without the necessary oversight for charter schools, our children will continue to suffer while taxpayers bankroll charter school fraud, waste, and abuse.

I know our children deserve better, and this is why this week I am introducing the Charter Oversight, Accountability, and Transparency Act, which we call the COAT Act. I am doing this with Representative BOWMAN and Representative WILSON to help strengthen our country's public education system by promoting the same type of accountability from charter schools nationwide that the law requires of our public school systems.

Charter schools are publicly funded, Madam Speaker, but are managed by private charter management organizations. This bill would require these management organizations to file financial disclosures to the Department of Education in order to receive Federal Elementary and Secondary Education Act funds.

Michigan's experiment with charters has led to a system of poor-run schools for for-profit companies, failing thousands of our students. The COAT Act is commonsense legislation that will increase transparency and accountability to ensure that charter schools provide necessary information to local, State, and Federal agencies to detect and prevent fraud and abuse.

ENDING AUTO INSURANCE DISCRIMINATION

Ms. TLAIB. Mr. Speaker, I don't know what our education level, marital status, or credit scores have to do with how much our auto insurance rates should be. The Prohibit Auto Insurance Discrimination Act, PAID Act, that I introduced with Congresswoman WATSON COLEMAN, who has led this effort, as well as Congressman TAKANO, would end insurance discrimination.

It would prohibit auto insurance companies from using our education levels, occupation, employment status, credit scores, previous insurer information, ZIP Code, census tracts, or homeownership status in insurance rating or underwriting decisions.

Auto insurance discrimination continues to keep our residents in the cycle of poverty, Mr. Speaker.

Your education level, ZIP Code, and marital status don't determine whether or not you are a good driver; neither does your credit score. Yet our neighbors, especially in Detroit, regularly face higher auto insurance rates than other folks.

Someone with a perfect driving record—no tickets, crashes, or claims—who has poor credit can pay hundreds of thousands of dollars more for auto insurance, sometimes twice as much. I read somewhere that somebody with a DUI, drinking under the influence, with a higher credit score was paying three times less than someone with a lower credit score but no DUI violation.

We must stop the predatory discrimination practices by auto insurance companies. This is why I urge my colleagues to support the PAID Act to help level the playing field and eliminate factors, proxies to discriminate, that contribute to our growing inequality.

HONORING RUTH ELLIS

Ms. TLAIB. Mr. Speaker, during Pride Month, I honor a trailblazer in our community, Mother Ruth Ellis, a former Detroit resident who was the oldest surviving open lesbian and an LGBTQ+ rights activist.

She was born in 1899, living until the age of 101. She came out as a lesbian around 1915. She took in unhoused LGBTQ+ youth, and her home became known as a refuge for LGBTQ+ young people. We now lovingly call it the Ruth Ellis Center.

Not only did she give shelter to our young people but provided books, food, even assistance with college education. Around 40 percent of our unhoused youth today are LGBTQ+.

My team and I were proud to secure $1 million in Federal funding for the Ruth Ellis Center in our community to honor Mother Ruth Ellis and her life-saving work. Mr. Speaker, the center

provides safe, affordable, identity-affirming housing for those in need, especially, again, our LGBTQ+ young people.

This month, as we celebrate Pride Month, we recognize and honor the legacy of Ruth Ellis and the incredible advocacy of the Ruth Ellis Center and their team.

CELEBRATING 75 YEARS OF KOVENER'S KORNER

The SPEAKER pro tempore (Mr. JOHNSON of Louisiana). The Chair recognizes the gentlewoman from Indiana (Mrs. HOUCHIN) for 5 minutes.

Mrs. HOUCHIN. Mr. Speaker, Kovener's Korner Ice Cream has been a summertime staple in Seymour, Indiana, for decades. In fact, Kovener's Korner opened in 1949 as one of Seymour's very first drive-in restaurants, serving up sweet treats and their famous chocolate malt-flavored ice cream.

During its 75 years in business, this family-owned brick store on 2nd Street has employed hundreds of Hoosiers, with the majority being young adults in high school or college.

As we celebrate their 75th season, I am bringing well-deserved appreciation all the way from the House floor. I thank them for not only their delicious ice cream, but their commitment to the community and a summertime tradition for generations of families in Seymour.

We are proud to have so many special small businesses in southern Indiana, and Kovener's Korner is an exceptional example.

□ 1015

REMEMBERING THE VICTIMS OF EMANUEL AME CHURCH MASSACRE

The SPEAKER pro tempore. The Chair recognizes the gentleman from South Carolina (Mr. CLYBURN) for 5 minutes.

Mr. CLYBURN. Mr. Speaker, I rise today to announce that I have just filed a discharge petition on the resolution providing for the consideration of H.R. 2403, the Enhanced Background Checks Act of 2023.

Saturday, June 17, will mark 8 years since the massacre at one of the country's most historic churches, Emanuel AME Church in Charleston, South Carolina.

That racially motivated attack took nine parishioners' lives and injured three others as they participated in a Bible study. It also exposed a loophole in our firearm background check system known as the ''Charleston loophole,'' that allows individuals to purchase firearms prior to an approval of their background check.

Tragically, that very loophole enabled the gunman, who I might add was not eligible to purchase a firearm, to acquire a firearm and commit that horrendous act.

The Brady Act mandates criminal background checks for all gun sales at licensed firearm dealers through the National Instant Criminal Background Check System, NICS. Though most checks process within minutes, and 97 percent are completed within 3 business days, if NICS has not completed its background check in 3 days, regardless of the reason, the dealer can proceed with the firearm sale.

In Charleston, just because a gunman's background check had not been completed within the 3 days, the shop had already sold the gun before he was deemed to be ineligible.

Every year, thousands of weapons are purchased through this loophole that otherwise should be prohibited due to criminal records or other factors—more than 5,200 in 2021 alone. Though this problem was discovered too late for the 12 victims at the Emanuel AME Church, we must narrow this loophole to prevent future tragedies.

Since 2015, I have introduced the Enhanced Background Checks Act, and it passed the House in the 116th and 117th Congresses. This bill provides the FBI with crucial additional time to complete the background check on a potential firearms purchaser before a licensed dealer can transfer a gun.

If a background check has not been completed after 10 business days, a purchaser may request an expedited review by the FBI. This request for an expedited review will trigger a more intensive FBI investigation, designed to resolve the case within an additional 10-business-day period.

If the additional 10 business days elapse without a response from the NICS system, only then may the dealer sell or transfer the gun to the purchaser. Transactions for prospective purchasers who do not request an expedited review cannot proceed until their background check is resolved.

While I would hope that House Republican leadership would recognize the harm caused by the Charleston loophole and would bring this bill to the floor for a vote, this discharge petition would make that happen even if they remain unwilling. With strong support in the Democratic Caucus, we just need a handful of Republican colleagues willing to put partisanship aside and do the right thing for the American people.

I would respectfully ask that they reflect upon the nine parishioners who lost their lives at Emanuel AME Church 8 years ago. I hope they will conclude that to prevent lives from being needlessly lost in the future, they must ensure that the Enhanced Background Check Act of 2023 be enacted into law to finally close the Charleston loophole. That starts with signing this discharge petition.

Madam Speaker, I close my comments by indicating that on Saturday, while I will be pausing in the morning to say a prayer for the families of these nine souls, I will go to Bethel AME Church in Columbia to celebrate the homegoing of Ms. Elise Martin, who when she lived in Charleston and came into my life, often worshipped at Emanuel AME Church.

Fortunately, the good Lord allowed her to live for 108 years. The pastor of Emanuel AME Church lost his life.

HONORING THE LIFE OF JOSEPH COSTNER

The SPEAKER pro tempore (Mrs. HOUCHIN). The Chair recognizes the gentleman from South Carolina (Mr. NORMAN) for 5 minutes.

Mr. NORMAN. Madam Speaker, I rise today to honor the life and the dedicated service of Joseph Costner who entered eternal rest on March 26, 2023.

Throughout the duration of his life, Mr. Costner unfailingly answered the call to serve his country and his community. He was raised in Lawndale, North Carolina, and he joined the Army at the age of 18 where he dedicated the remainder of his life to fighting for the country he loved proudly and profoundly.

First, serving in the Korean war, Mr. Costner later completed two terms in Vietnam, where his unwavering courage resulted in numerous medals of honor, including the Presidential Unit Citation and the Bronze Star.

He eventually retired after 26 years with the rank of chief warrant officer 4 specializing in Army intelligence.

Following his retirement from the Army, Mr. Costner continued to serve his country for the next 17 years with the Defense Investigative Service where he rose to regional director in Roanoke, Virginia.

His dedication to serving his country and his people was perpetual, and he spent the last 27 years of his life with the Volunteer Income Tax Assistance Program in Rock Hill, South Carolina, where he prepared taxes free of charge for low-income, disabled, and elderly citizens of his community.

Within Rock Hill, South Carolina, and the greater community, Mr. Costner was widely referred to as a hero, a role model, and most of all, a friend.

He was greatly loved and cherished by his wife of 60 years, Helen; his three children; five grandchildren; great-grandson; and countless friends.

Mr. Costner set the gold standard for over 70 years of service dedicated and committed to his country for which he will long be remembered. For all that, we join in saying good-bye to a hero.

IN MEMORY OF CHIEF LUTHER REYNOLDS OF CHARLESTON, SOUTH CAROLINA

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from South Carolina (Ms. MACE) for 5 minutes.

Ms. MACE. Madam Speaker, I rise today to recognize Chief Luther Reynolds, the city of Charleston's police chief who died recently to cancer. He

was an exceptional leader and dedicated public servant who served the Charleston community and beyond.

His legacy will leave a testament of courage, service, and love, and I offer my deepest condolences to Chief Reynolds' family, his wife, his children, his friends, and the Charleston Police Department. We mourn his untimely passing and honor his unyielding spirit.

I have very fond memories of Chief Reynolds. In fact, he was the guy that called me when my house got spray-painted at 7:30 in the morning, making sure that I was aware and that it was safe and sound and would be protected.

There are so many instances of threats that I have had on my life and my family's life where Chief Reynolds was there for us each and every day. He was a neighbor, he was a friend, and he was a protector of the city of Charleston.

We remember his dedicated service and his commitment to our community.

REMEMBERING THE VICTIMS OF EMANUEL AME CHURCH MASSACRE

Ms. MACE. Madam Speaker, I rise to recognize some of the comments made by my colleagues today.

Four days from now will be the anniversary of Mother Emanuel, a day that was a very dark day in South Carolina's history where nine Black church members of Mother Emanuel were murdered in cold blood by a white supremacist, by a young man who wanted to commit evil atrocities on our State and our Nation.

I recognize those individuals: Clementa Pinckney, who was a pastor and State senator; Cynthia Graham Hurd; Susie Jackson; Ethel Lee Lance; DePayne Middleton-Doctor; Tywanza Sanders; Daniel Simmons; Sharonda Coleman-Singleton; and Myra Thompson.

As a State lawmaker, I believe that we need to strengthen our background checks, because in the State of South Carolina, the reason that the killer was able to purchase that gun, though he was ineligible, was because of our weakened background systems. We have dozens of databases across the State that don't talk to one other about the criminal information of bad guys who are trying to purchase a gun. It is an issue that I worked on as a State lawmaker, and it is something I am advocating for today in Congress.

I hope that we can find a way to strengthen our background checks so that bad guys who are breaking the law and shouldn't be able to buy a gun, don't have the ability to commit such atrocities as those committed at Mother Emanuel.

We stand South Carolina strong and Charleston strong, and I recognize our heroes from that day.

RECOGNIZING BERKELEY COUNTY ADULT EDUCATION GRADUATES

Ms. MACE. Madam Speaker, I rise today to recognize the Berkeley County Adult Education graduates.

As a high school dropout, as someone who understands how challenging it can be to finish education, I congratulate the adult education graduates.

From my home county and Berkeley County, I offer a heartfelt congratulations to this graduating class. They have demonstrated exceptional persistence and have overcome so many hurdles that life has thrown their way.

They are an aspiring example of learning at any age and under any circumstances. Their perseverance prevails, their determination reaps rewards, and their learning is lifelong—something that everyone can commend today.

Madam Speaker, I extend my best wishes for their future endeavors in everything that they do.

SOUTH CAROLINA'S AQUARIUM TURTLE RELEASES

Ms. MACE. Madam Speaker, I rise today to recognize South Carolina's aquarium releases of their turtles. We are celebrating the release of two loggerhead turtles, named Bea and Pluto, by South Carolina Aquarium's Sea Turtle Care Center in Charleston.

The turtles were found in distress, each missing a flipper, and underwent extensive rehabilitation to recover.

Despite their physical challenges, the turtles displayed remarkable resilience and this is something that the Coast of South Carolina certainly is proud of.

Madam Speaker, I offer gratitude to the Sea Turtle Care Center team led by Melissa Ranly.

NEW SUMMERVILLE FIRE CHIEF

Ms. MACE. Madam Speaker, I rise today to recognize the new Deputy Chief Brent Melcher taking over the fire chief for Summerville from Richard Waring on June 23.

We thank Chief Waring for his 30 years of service to Summerville and Dorchester County. We also recognize that Chief Melcher wants to continue the strong family atmosphere in the department and expansion into Nexton.

Melcher has served Summerville since the year 2000. I recently was able to connect and meet with him and was very proud of his achievements of Summerville's new fire chief.

SPECIAL BOND FORMED AT MUSC SHAWN JENKINS CHILDREN'S HOSPITAL

Ms. MACE. Madam Speaker, I rise today to recognize the special bond formed at MUSC Shawn Jenkins Children's Hospital.

A story of resilience and friendship among three young boys: Bennett, Jackson, and Marcelino formed a strong bond at Shawn Jenkins Children's Hospital as they awaited their heart transplants.

Despite their medical challenges, they have supported and comforted one another. Their friendship demonstrates the power of human connection during difficult times.

RECOGNIZING ISABELLA HEINBAUGH-McCROSKEY, MEDINA COUNTY VETERAN ADVOCATE OF THE YEAR

The SPEAKER pro tempore. The Chair recognizes the gentleman from Ohio (Mr. MILLER) for 5 minutes.

Mr. MILLER of Ohio. Madam Speaker, I rise to recognize Brunswick, Ohio, resident Isabella Heinbaugh-McCroskey.

In 2016, Isabella began placing wreaths at the Ohio Western Reserve National Cemetery.

In 2019, having noticed that local veterans were not being recognized properly, Isabella walked the West View Cemetery grounds, at which point she located 185 unmarked veteran graves. Isabella then solicited donations and gathered volunteers to place the wreaths on the graves of each veteran.

To educate the public, Isabella coordinated a Wreaths Across America mobile trailer visit where the public learned more about the program. She welcomed home and honored more than 25 Vietnam veterans at this event.

Now, as just a freshman in high school, Isabella continues to work with Brunswick VFW to coordinate flag retirements and Veterans Day ceremonies, and she is a clear example of how women lead us.

We thank Isabella for her incredible devotion to our veterans and congratulate her on being recognized as the 2023 Medina County Veteran Advocate of the Year.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 10 o'clock and 29 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker at noon.

PRAYER

The Chaplain, the Reverend Margaret Grun Kibben, offered the following prayer:

The heavens tell of Your glory, O God. The firmament proclaims Your handiwork. Each day announces Your benevolence and every night provides wisdom gleaned from the day.

Holy God, Your creation speaks of Your goodness, Your kindness, and Your mercy. Would that our voices be so pure. Would that our speech reflect Your concern for the world. Would that our words—the very thing creation does not have—prove as illustrative of Your steadfast love and patience.

Every word that comes from Your mouth, O God, is pure and powerful.

Your voice provides a shield for us, protecting us against both enemies and our own self-destruction.

Lord, may we choose to take refuge in Your word. Then may the words of our mouths and all that we consider within our thoughts and the meditations of our hearts be acceptable to You this day here where we are called to serve You.

In Your most merciful name we pray.

Amen.

THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House the approval thereof.

Pursuant to clause 1 of rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentleman from New Hampshire (Mr. PAPPAS) come forward and lead the House in the Pledge of Allegiance.

Mr. PAPPAS led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER

The SPEAKER. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

NATIONAL DAIRY MONTH

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, as someone who comes from a long line of dairy farmers, it is my honor to rise and recognize National Dairy Month.

I am proud to come from the State with the second most dairy farms and to represent more than 1,000 dairy farms in my district.

In Pennsylvania, the dairy industry is a major driver of economic growth, supporting more than 47,000 jobs and bringing in more than $11 billion in revenue, but Pennsylvania dairy producers are struggling.

The total number of dairy farms and the dairy cows in Pennsylvania are decreasing. One way to revitalize the dairy industry across the country is by passing my bill, the Whole Milk for Healthy Kids Act.

This bill will allow whole milk to once again be served in school cafeterias, giving children access to vital nutrients they often do not consume enough of. Not only is this bill a win for children and parents across the country who have been begging for more options in school cafeterias, it is a win for dairy farms.

I believe there is no better way to celebrate National Dairy Month than by passing the Whole Milk for Healthy Kids Act.

END HUNGER NOW

(Mr. MCGOVERN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MCGOVERN. Mr. Speaker, I have always thought it was odd that doctors could prescribe medications for heart disease and diabetes but couldn't prescribe fresh fruits and vegetables.

For a long time now, community-based organizations have been incredibly successful in using produce prescriptions to reduce hunger and diet-related disease. Recently, the Indian Health Service announced a new $2.5 million grant to make produce prescriptions available to more American Indian and Alaska Native peoples.

In Indian Country, hunger is prominent. About one in four Native people experience food insecurity, compared to one in nine Americans overall.

Last September, the Biden-Harris administration hosted the second-ever White House Conference on Hunger, Nutrition, and Health.

Within the ambitious national strategy that came out of the conference is a special focus on the challenges and opportunities in Indian Country.

That is why I am so excited about programs like the one just announced by the Indian Health Service agency to end hunger among historically underserved communities.

We can and we should end hunger now.

HONORING THE LIFE AND LEGACY OF SISTER M. LOURDES SHEEHAN

(Mr. CARTER of Georgia asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CARTER of Georgia. Mr. Speaker, I rise today to honor the life and legacy of Sister Lourdes Sheehan.

Sister Sheehan, a Savannah, Georgia, native and Sister of Mercy for nearly 70 years, helped expand Catholic education throughout the Southeast.

She earned both her master's and doctorate in education, quickly applying her knowledge and skills not just to the classroom but also to curriculum development.

Sister Sheehan oversaw religious education in Richmond, Virginia, served as the executive director of the National Association of Boards of Catholic Education, and was the first woman to ever serve as secretary of education for the U.S. Conference of Catholic Bishops throughout her career.

For her dedicated work, she received a medal from Pope Benedict XVI, and numerous other awards from universities and professional organizations alike.

We mourn the loss of Sister Sheehan and thank her and God for the thousands of lives she helped to educate.

PRIDE MONTH

(Mr. PAPPAS asked and was given permission to address the House for 1 minute.)

Mr. PAPPAS. Mr. Speaker, I rise today to mark Pride Month and to tell members of the LGBTQ community that they are seen, that they are supported, and that they deserve the same rights, responsibilities, and protections as every other American.

That shouldn't be a controversial statement but we know that many LGBTQ Americans face discrimination and are targets of an intensifying effort to deny their right to simply live as their authentic selves.

Pride is a time to celebrate our differences and the diversity that helps make our country great. It is a time to mark the progress that we have made, and it is a time to rededicate ourselves to the unfinished work to achieve freedom and equality for all.

As co-chair of the LGBTQ Equality Caucus, I am continuing to work to pass legislation that will protect benefits for veterans, that will ban the use of so-called panic defenses in Federal court, and will protect Americans from discrimination by passing the Equality Act.

No one chooses to be LGBTQ, but America can choose to continue to have an open mind and an open heart and a commitment to a future that includes everyone, regardless of who we are or whom we love.

I wish everyone a happy Pride Month.

ARTICLES OF IMPEACHMENT

(Mr. OGLES asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. OGLES. Mr. Speaker, Joe Biden has failed the American people. He has failed to uphold his oath of office to preserve and defend the Constitution from illicit family business dealings and millions of dollars in bribes and payments to himself and to his extended family.

Joe and his border czar, Kamala Harris, have allowed an invasion at our southern border, jeopardizing the lives of hundreds of thousands and killing hundreds of thousands with fentanyl.

They have directed their Border Patrol to release illegals into our country unfettered. In fact, a judge had to even intervene and stop Biden's release program.

Joe Biden has violated Article II of the Constitution to take care and respect the laws of this country.

Mr. Speaker, that is why I am introducing Articles of Impeachment against Joe Biden and Kamala Harris.

The SPEAKER pro tempore. Members are reminded to refrain from engaging in personalities toward the President or the Vice President.

VICTORY FOR VOTING RIGHTS

(Ms. ROSS asked and was given permission to address the House for 1 minute.)

Ms. ROSS. Mr. Speaker, I rise today to highlight the importance of the Supreme Court's decision in Allen v. Milligan.

In ruling that the Alabama legislature used redistricting to dilute the voices of Black voters, the Supreme Court has preserved section 2 of the Voting Rights Act and helped protect the fundamental promise of our democracy, that every vote matters.

This is a major victory for voting rights, not just in Alabama, but in States across the south. My home State of North Carolina is no stranger to racial and partisan gerrymandering.

As Republican legislatures employ gerrymandering as a tool to serve their partisan interests, this ruling sends a powerful warning to all politicians to seek to roll back minority voting rights.

CURBING BIDEN'S ABUSE OF POWER

(Mr. WILSON of South Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WILSON of South Carolina. Mr. Speaker, Biden and his administration have abused power by ignoring Congress for a failing liberal agenda.

Biden finalized regulations over $200 billion in costs in his first year and proposed more than $1 trillion in new regulations in 2022 on consumer's increasing costs.

Such abuse of power is why House Republicans are introducing the REINS Act led by Congresswoman KAT CAMMACK of Florida. This will provide for American families to avoid new costs. It requires Congressional approval for rules with an annual burden of $100 million.

Examples of Biden executive abuses evading Congress include:

Bans on oil and gas lease sales, increasing gasoline costs.

Mandated, fabricated climate disclosures.

Banning of gas stoves, affecting 40 percent of American homes.

Sadly, an abuse by Biden today is the political prosecution of Donald Trump.

In conclusion, God bless our troops, who successfully protected America for 20 years, as the global war on terrorism continues moving from the Afghanistan safe haven to America with open Biden borders.

ATF FIREARM BRACES RULE

(Mr. MOSKOWITZ asked and was given permission to address the House for 1 minute.)

Mr. MOSKOWITZ. Mr. Speaker, last week, we saw this House floor, the people's House, taken hostage by Republican Members from Republican Members.

We were sent home early. Bills were canceled. Committees were canceled because they couldn't pass the rule.

Why are we back here? Why are things functioning now? What was the one thing that brought all the Republicans together based on some of the public reports and statements that have come out? Guns.

We need to figure out in this country how we can solve this issue. The idea of more guns, more gun accessories, that is the issue that brought the Republican Conference together. That was the issue that broke the logjam of letting the people's House function again: guns potentially in the hands of people who are mentally ill, and gun accessories in the hands of people who are a danger to themselves or a danger to others. They are so lost on this issue.

CONGRATULATING BOE NANKIVEL ON HIS RETIREMENT

(Mr. LUTTRELL asked and was given permission to address the House for 1 minute.)

Mr. LUTTRELL. Mr. Speaker, I rise today to honor the retirement of Command Master Chief Boe Nankivel for over 23 years of service in the United States Navy.

Command Master Chief Nankivel is a native of Montana and a graduate of the University of Charleston, West Virginia, with a bachelor's degree in science and organizational leadership.

He attended Basic Underwater Demolition/SEAL training Class 238 and graduated in April of 2002.

Master Chief Nankivel served as leading petty officer while assigned to SEAL Team 1 supporting Operation Iraqi Freedom, platoon leading chief petty officer while assigned to SEAL Team 5 supporting Operation Enduring Freedom, and troop leading chief petty officer while assigned to SEAL Team 3 supporting CENTCOM Crisis Response Element.

He completed his operations master chief tour at SEAL Team 3 and deployed as the task force senior enlisted advisor.

He also served as command master chief while attached to SEAL Team 3 deploying to the CENTCOM and Indo-PACOM areas of responsibility.

Master Chief Nankivel's diversity tours include Naval Special Warfare Unit 2 as the country action officer; Naval Special Warfare Unit 10 as senior enlisted advisor; Naval Special Warfare Group 1 Tradet as close-quarters combat and assault senior enlisted advisor; and Naval Special Warfare Basic Training Command as first phase master chief.

He is married to Meghan, and they have three wonderful children: Asher, Duke, and their daughter, Caden.

We thank Command Master Chief Boe Nankivel for his service. We wish him fair winds and following seas.

HONORING VICTIMS OF GUN VIOLENCE

(Mr. CROW asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CROW. Mr. Speaker, I rise today in recognition of all in this country who have been impacted by gun violence.

My constituents in Colorado's Sixth District know too well the deep-rooted pain caused by gun violence. It is a fracture in a community that never fully heals. From Columbine to Aurora, STEM School, and Arapahoe High School, ours is a community that has faced immense tragedy.

Our children are afraid to go to school every day. Students in my district ask me: What are you doing to protect us?

I want to tell them that Congress is doing everything we can to protect them, but I can't. Unfortunately, many Republicans are failing them and us by refusing to pass basic, commonsense, lifesaving gun violence prevention legislation.

June is Gun Violence Awareness Month, encompassing six anniversaries of tragic mass shootings in our Nation, including the horrific, hate-filled shooting at Pulse nightclub that took 49 lives 7 years ago this week.

Mr. Speaker, I honor the lives of those that we have failed to protect, and I ask for action.

CONGRATULATING WEST HENDERSON HIGH SCHOOL BASEBALL TEAM

(Mr. EDWARDS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. EDWARDS. Mr. Speaker, I rise today to extend my heartfelt congratulations to the West Henderson High School baseball team for winning the North Carolina High School Athletic Association's 3A State championship.

This is West Henderson's first State championship baseball victory since 1992. It stands as a testament to the team's unwavering commitment, exceptional skill, and remarkable self-discipline and teamwork.

Led by their esteemed coach, Jackie Corn, the West Henderson High School baseball team's dedication and passion for the great American pastime has inspired everyone in western North Carolina.

I thank Coach Corn, along with Assistant Coaches Ryan Anderson, Anthony Lindsey, Jimmy Gash, and Chip Koontz, for leading West Henderson High to this exciting victory.

In recognizing this achievement, we also honor the parents and families who have helped these talented athletes to bring this prideful moment to western North Carolina.

As a proud graduate of West Henderson High School myself, I rise to say: Go Falcons.

CELEBRATING BLACK VOICE NEWS' 50TH ANNIVERSARY

(Mr. AGUILAR asked and was given permission to address the House for 1 minute.)

Mr. AGUILAR. Mr. Speaker, I rise today to celebrate the 50th anniversary of the Black Voice News, which has reported on seeking justice in the Inland Empire through their reporting for decades.

For the last 50 years, the Black Voice News has addressed issues such as disparities in healthcare, wealth, and education. This dedicated team of talented journalists has chronicled some of the most important stories impacting Black lives in my community and given a voice to our residents.

They have lifted up the stories of middle-class families doing their best, through joys and sorrows, to carve out a better life for themselves and their families.

The Inland Empire residents deserve to have access to local news, and Black Voice News provides that.

I am so proud of everything this publication has accomplished over the last 50 years, and I am excited to see what is to come in the next 50.

ATF PISTOL BRACE RULE OVERREACHES

(Mr. MOORE of Alabama asked and was given permission to address the House for 1 minute.)

Mr. MOORE of Alabama. Mr. Speaker, on May 31, at midnight, 29 million Americans became instant felons, thanks to Biden's weaponization of the ATF.

The ATF's overreaching new rule, created by unelected bureaucrats, reclassifies pistols as short-barreled rifles if they have a stabilizing brace attachment. Many disabled veterans and other Americans rely on these braces to be able to correctly use their firearms.

Under this new rule, which several courts have already declared unconstitutional, lawful gun owners could face up to 10 years in jail and thousands of dollars in fines if they fail to register pistols with stabilizing braces.

This is a blatant assault on our Second Amendment rights that makes 29 million Americans, including many veterans, subject to up to 10 years in prison and numerous fines. I am glad to see the courts getting involved to temporarily halt this rule, but we need more permanent solutions.

Mr. Speaker, I urge my colleagues to vote for H.J. Res. 44, led by the gentleman from Georgia (Mr. CLYDE), to block this unconstitutional rule and ensure that lawful gun owners are not considered felons.

CELEBRATING WILBUR HARRY CLINE'S 100TH BIRTHDAY

(Mr. MILLS asked and was given permission to address the House for 1 minute.)

Mr. MILLS. Mr. Speaker, I rise today to celebrate Wilbur Harry Cline's 100th birthday and honor his service as a World War II veteran.

Eighty years ago, Wilbur answered the call to defend our freedoms and this great Nation. He served our great Nation in the 133rd Regiment, 34th Division, in the United States Army during World War II.

He received the Purple Heart, Good Conduct Medal, and Campaign Medal with three bronze stars for shedding his blood to defend this great Nation. He is a true patriot who marched through liberated Rome and faced horrendous battle conditions throughout his journey.

He is such a devout man that he is even known to have recited the Lord's Prayer as the German 88 artillery shells rained down around him and wounded him in 1944.

While he does not think of himself as a hero, he is to his son, Michael; his family; and this entire Nation. It is a privilege to recognize his service to our country and celebrate his 100th birthday.

I wish Mr. CLINE many more joyful years to come with his family. I thank him, and God bless.

ELECTING A MEMBER TO A CERTAIN STANDING COMMITTEE OF THE HOUSE OF REPRESENTATIVES

Mr. AGUILAR. Mr. Speaker, by direction of the Democratic Caucus, I offer a privileged resolution and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 502

Resolved, That the following named Member be, and is hereby, elected to the following standing committee of the House of Representatives:

COMMITTEE ON THE JUDICIARY: Ms. Balint.

Mr. AGUILAR (during the reading). Mr. Speaker, I ask unanimous consent that the resolution be considered as read.

The SPEAKER pro tempore (Mr. FLOOD). Is there objection to the request of the gentleman from California?

There was no objection.

The resolution was agreed to.

A motion to reconsider was laid on the table.

NOTICE OF INTENTION TO OFFER RESOLUTION RAISING A QUESTION OF THE PRIVILEGES OF THE HOUSE

Mrs. LUNA. Mr. Speaker, pursuant to clause 2(a)(1) of rule IX, I seek recognition to give notice of my intent to raise a question of the privileges of the House.

The form of the resolution is as follows:

H. Res. 489, censuring and condemning ADAM SCHIFF, Representative of California's 30th Congressional District.

Whereas the allegation that President Donald Trump colluded with Russia to steal the 2016 Presidential election has been revealed as false by numerous in-depth investigations, including the recent report by Special Counsel John Durham, which documents how the conspiracy theory was invented, funded, and spread by President Trump's political rivals;

Whereas Representative ADAM SCHIFF, who served as ranking minority member and then chairman of the Permanent Select Committee on Intelligence of the House of Representatives, HPSCI, occupied positions of extreme trust, affording him access to sensitive intelligence unavailable to most Members of Congress;

Whereas for years Representative SCHIFF abused this trust by citing evidence of collusion that, as is clear from reports by Special Counsel Robert Mueller, Department of Justice Inspector General Michael Horowitz, and Special Counsel Durham, does not exist;

Whereas by repeatedly telling these falsehoods, Representative SCHIFF purposely deceived his committee, Congress, and the American people;

Whereas Representative SCHIFF lent credibility to the Steele dossier, a collection of debunked collusion accusations funded by President Trump's political rivals, by reading false Steele allegations into the CONGRESSIONAL RECORD at an HPSCI hearing on March 20, 2017;

Whereas once again abusing his privileged access to classified information, Representative SCHIFF composed a false memo justifying the Foreign Intelligence Surveillance Act, FISA, warrant application on Trump associate Carter Page, which Inspector General Horowitz later found was riddled with 17 major mistakes and omissions, provoking FISA court presiding Judge Rosemary Collyer to state unequivocally that the Federal Bureau of Investigation misled the FISC;

Whereas by publicly smearing Carter Page as a Russian collaborator and justifying spurious investigations of him, Representative SCHIFF contributed to the gross violation of a United States citizen's civil liberties, thereby committing the very abuses HPSCI is tasked with identifying and thwarting;

Whereas as HPSCI ranking minority member and chairman, Representative SCHIFF behaved dishonestly and dishonorably on many other occasions, including by falsely denying that his staff coordinated with a whistleblower to launch the first impeachment of President Trump;

Whereas as part of his impeachment efforts, during an HPSCI hearing on September 26, 2019, Representative SCHIFF recited a false, concocted rendition of a phone call between President Trump and Ukrainian President Volodymyr Zelenskyy;

Whereas Representative SCHIFF exploited his positions on HPSCI to encourage and excuse abusive intelligence investigations of Americans for political purposes;

Whereas Representative SCHIFF used his position and access to sensitive information to instigate a fraudulently based investigation, which he then used to amass political gain and fundraising dollars;

Whereas the American taxpayers paid $32 million to fund the investigation into collusion that was launched as a result of Representative SCHIFF's lies, misrepresentations, and abuses of sensitive information; and

Whereas if it is determined by an investigation conducted by the Committee on Ethics that Representative SCHIFF lied, made misrepresentations, and abused sensitive information, he should be fined in the amount of $16 million:

Now, therefore, be it

Resolved, that:

(1) the House of Representatives censures and condemns ADAM SCHIFF, Representative of California's 30th Congressional District, for conduct that misleads the American people in a way that is not befitting an elected Member of the House of Representatives;

(2) Representative ADAM SCHIFF will forthwith present himself in the well of the House of Representatives for the pronouncement of censure;

(3) Representative ADAM SCHIFF will be censured with the public reading of this resolution by the Speaker; and

(4) the Committee on Ethics shall conduct an investigation into Representative ADAM SCHIFF's lies, misrepresentations, and abuses of sensitive information.

The SPEAKER pro tempore. Under rule IX, a resolution offered from the floor by a Member other than the majority leader or the minority leader as a question of the privileges of the House has immediate precedence only at a time designated by the Chair within 2 legislative days after the resolution is properly noticed.

Pending that designation, the form of the resolution noticed by the gentlewoman from Florida will appear in the RECORD at this point.

The Chair will not at this point determine whether the resolution constitutes a question of privilege. That determination will be made at the time designated for consideration of the resolution.

PROVIDING FOR CONSIDERATION OF H.J. RES. 44, PROVIDING FOR CONGRESSIONAL DISAPPROVAL UNDER THE RULE SUBMITTED BY THE BUREAU OF ALCOHOL, TOBACCO, FIREARMS, AND EXPLOSIVES RELATING TO ''FACTORING CRITERIA FOR FIREARMS WITH ATTACHED 'STABILIZING BRACES' ''; PROVIDING FOR CONSIDERATION OF H.R. 277, REGULATIONS FROM THE EXECUTIVE IN NEED OF SCRUTINY ACT OF 2023; PROVIDING FOR CONSIDERATION OF H.R. 288, SEPARATION OF POWERS RESTORATION ACT OF 2023; PROVIDING FOR CONSIDERATION OF H.R. 1615, GAS STOVE PROTECTION AND FREEDOM ACT; AND PROVIDING FOR CONSIDERATION OF H.R. 1640, SAVE OUR GAS STOVES ACT

Mr. MASSIE. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 495 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 495

Resolved, That upon adoption of this resolution it shall be in order to consider in the House the joint resolution (H.J. Res. 44) providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Bureau of Alcohol, Tobacco, Firearms, and Explosives relating to ''Factoring Criteria for Firearms with Attached 'Stabilizing Braces' ''. All points of order against consideration of the joint resolution are waived. The joint resolution shall be considered as read. All points of order against provisions in the joint resolution are waived. The previous question shall be considered as ordered on the joint resolution and on any amendment thereto to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary or their respective designees; and (2) one motion to recommit.

SEC. 2. At any time after adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 277) to amend chapter 8 of title 5, United States Code, to provide that major rules of the executive branch shall have no force or effect unless a joint resolution of approval is enacted into law. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary or their respective designees. After general debate the bill shall be considered for amendment under the five-minute rule. In lieu of the amendment in the nature of a substitute recommended by the Committee on the Judiciary now printed in the bill, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 118-6 shall be considered as adopted in the House and in the Committee of the Whole. The bill, as amended, shall be considered as the original bill for the purpose of further amendment under the five-minute rule and shall be considered as read. All points of order against provisions in the bill, as amended, are waived. No further amendment to the bill, as amended, shall be in order except those printed in part A of the report of the Committee on Rules accompanying this resolution. Each such further amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole. All points of order against such further amendments are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill, as amended, to the House with such further amendments as may have been adopted. The previous question shall be considered as ordered on the bill, as amended, and on any further amendment thereto to final passage without intervening motion except one motion to recommit.

SEC. 3. Upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 288) to amend title 5, United States Code, to clarify the nature of judicial review of agency interpretations of statutory and regulatory provisions. All points of order against consideration of the bill are waived. In lieu of the amendment in the nature of a substitute recommended by the Committee on the Judiciary now printed in the bill, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 118-7 shall be considered as adopted. The bill, as amended, shall be considered as read. All points of order against provisions in the bill, as amended, are waived. The previous question shall be considered as ordered on the bill, as amended, and on any further amendment thereto, to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary or their respective designees; (2) the further amendment printed in part B of the report of the Committee on Rules accompanying this resolution, if offered by the Member designated in the report, which shall be in order without intervention of any point of order, shall be considered as read, shall be separately debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, and shall not be subject to a demand for a division of the question; and (3) one motion to recommit.

SEC. 4. At any time after adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 1615) to prohibit the use of Federal funds to ban gas stoves. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Energy and Commerce or their respective designees. After general debate the bill shall be considered for amendment under the five-minute rule. The bill shall be considered as read. All points of order against provisions in the bill are waived. No amendment to the bill shall be in order except those printed in part C of the report of the Committee on Rules accompanying this resolution. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the

time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole. All points of order against such amendments are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit.

SEC. 5. At any time after adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 1640) to prohibit the Secretary of Energy from finalizing, implementing, or enforcing the proposed rule titled ''Energy Conservation Program: Energy Conservation Standards for Consumer Conventional Cooking Products'', and for other purposes. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Energy and Commerce or their respective designees. After general debate the bill shall be considered for amendment under the five-minute rule. The bill shall be considered as read. All points of order against provisions in the bill are waived. No amendment to the bill shall be in order except those printed in part D of the report of the Committee on Rules accompanying this resolution. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole. All points of order against such amendments are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit.

SEC. 6. The ordering of the yeas and nays on the question of reconsideration of the vote on adoption of House Resolution 463 is vacated to the end that the motion to reconsider be laid on the table.

The SPEAKER pro tempore. The gentleman from Kentucky is recognized for 1 hour.

Mr. MASSIE. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentleman from Massachusetts (Mr. MCGOVERN), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

□ 1230

GENERAL LEAVE

Mr. MASSIE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Kentucky?

There was no objection.

Mr. MASSIE. Mr. Speaker, I yield myself such time as I may consume.

House Resolution 495 provides for a structured rule for consideration of H.R. 277, the Regulations from the Executive in Need of Scrutiny Act of 2023 and provides 1 hour of debate equally divided and controlled by the chair and ranking member of the Committee on the Judiciary.

House Resolution 495 further provides for a structured rule for consideration of H.R. 288, the Separation of Powers Restoration Act of 2023. It also provides 1 hour of debate equally divided and controlled by the chair and ranking member of the Committee on the Judiciary.

House Resolution 495 further provides for a structured rule for the consideration of H.R. 1615, the Gas Stove Protection and Freedom Act, and provides 1 hour of debate equally divided and controlled by the chair and ranking member of the Committee on Energy and Commerce.

This resolution further provides for a structured rule for the consideration of H.R. 1640 and provides 1 hour of debate equally divided and controlled by the chair and ranking member of the Committee on Energy and Commerce.

Furthermore, House Resolution 495 provides for a closed rule for consideration of H.J. Res. 44 and provides 1 hour of debate equally divided and controlled by the chair and ranking member of the Committee on the Judiciary.

These are five bills that may seem unrelated, but they are very related, and they have to do with the power of Congress and the fact that our power has atrophied considerably since the beginning of this country. In fact, we are almost a vestigial organ of this Republic at this point, we have ceded so much power to the executive branch, and that is how all of these bills are related.

Three of the bills seek to repeal laws or regulations that the administrative branch is unconstitutionally, I would argue, promulgating.

Two of these bills get at the heart of the matter, the problem that we have. One of them specifically is the REINS Act, which is very important. This would rein in our power to legislate.

I don't think our Founders would recognize our form of government at this point. They never intended for the administrators to be the lawmakers; yet here we are.

The Regulations from the Executive in Need of Scrutiny Act would send every major regulation that is suggested—and I say suggested—by the administration back to Congress where there would have to be a positive vote of the House and the Senate in order for that to go to the President and then, with his signature, become law, as all laws should do.

The other bill in this package that seeks to address the sort of chronic problem that we have here in Congress is the Separation of Powers Restoration Act.

It is basically a repeal of a horrible Supreme Court precedent called the Chevron deference that says, basically, any way the administration wants to construe one of our laws, they can get away with it.

The Supreme Court will give deference to the interpretation, no matter how far afield from the original interpretation the law was given from Congress.

Finally, the three bills today that deal with individual regulations, two of them deal with gas stoves. This administration has a war on gas stoves, depending on which person from the administration you listen to, a rule that is being promulgated by the Consumer Product Safety Commission and also by the Department of Energy.

There are two rules here. They would ban between 50 to 95 percent of the gas stoves on the market for arbitrary reasons. It is not clear that there would be any consumer benefit from banning these. In fact, consumers would suffer from this ban.

These are the types of rules that we need the REINS Act for. They would have a significant impact on our economy, and that is why they should be here in front of Congress, and that is why we are seeking to countermand them here today.

Finally, I think this is the most important rule that we are countermanding in legislation this week, and that is the pistol brace rule from the ATF.

We are not talking about an interpretation of a law where the EPA says, we think we should allow this much sulfur dioxide instead of that amount of sulfur dioxide and create a civil infraction where corporations could be sued or punished. We are talking about criminal penalties.

The ATF has twisted the existing statute, a law that was passed by Congress in 1934, and has magically reinterpreted it to create tens of millions of felons beginning on June 1.

We have a bad situation in this country right now where millions of people have been turned into felons, law-abiding individuals who are following the rules that were set forth by the ATF. That is why urgent action is required on the pistol brace rule repeal here today, and that is H.J. Res. 44.

Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I thank the gentleman from Kentucky for yielding me the customary 30 minutes, and I yield myself such time as I may consume.

Mr. Speaker, it is great to see you again. How are you? It has been a while. You look terrific.

We haven't had votes in what, 5 legislative days, all because some Republican Members decided to throw a temper tantrum last week on the House floor, wanting to rehash legislation that was passed the week before.

What we saw was essentially a fight between the rightwing and the extreme

rightwing. I mean, what the hell is going on here?

With each passing week, it becomes more and more obvious that the Republican Party is completely out of touch with what everyday people care about in this country.

We are bringing a new rule to the floor that incorporates the bills that we were supposed to do last week and adds an additional bill to make it easier to kill people.

I am told that the Republicans now have the votes to pass this rule. The question is: What was the deal? Better yet, what was the secret deal to convince the Republicans who were problematic last week to go along to get along this week?

Reading the press, we see that members of the Freedom Caucus are saying they have this deal on power sharing.

I am not quite sure what that means. Power sharing with the Speaker and the extreme rightwing; is that the deal?

We hear from the Speaker that there is no deal on anything. I don't know what the truth is. Maybe my friend can enlighten us at some point about what the truth is.

My Republican friends like to say that this place should be run like a business. Well, if they really believe that, then this place should be out of business because this is not the way Congress should be run. This is not the way you run a democracy. This is ridiculous.

Democrats have worked tirelessly to try to lower costs for people, bring jobs back from China, rebuild our country, fight pollution, and keep our communities safe.

Republicans? What do they stand for? Well, forgive me if I say I am not entirely sure because right now, the only thing I have seen so far since they took over is dysfunction and disarray.

Republicans began this Congress by wasting a week fighting with each other about who would be Speaker. Now we are 5 months in, and they have enacted five laws.

One a month. Boy, what an achievement. Even Democrats and President Trump were able to enact 21 laws at this point.

The far right fringe of the Republican Party, the same fringe that demanded Speaker MCCARTHY give them all of his power, has succeeded in even dictating to him what bills he can and can't bring to the House floor.

This is important. I want the American people to understand who is in charge here right now. It is not the Speaker of the House. It is not KEVIN MCCARTHY. It is the far right of the far right.

We have sitting members of the Republican Conference right now openly advocating for civil war. These are the people calling the shots. Are you kidding me?

In what world should the 11 most extreme people in the Republican Party get to dictate the entire agenda of a legislative body that represents 332 million people? What are we doing here, Mr. Speaker?

□ 1245

We have smoke from wildfires clogging up our air. Scientists are telling us we need to do more on climate change, yet we are passing messaging bills about gas stoves.

By the way, that is not even me calling them messaging bills. It is the Republicans saying that. This is a Republican: We do not need to leave D.C. early because messaging bills are not coming to the House floor. That was Congresswoman BOEBERT last week.

How about this one: When we pass things around here that are messaging bills that don't do anything, is it really a loss that we aren't passing anything?

I mean, their own Members are saying that the bills they are passing do nothing. Essentially, they are just playing a messaging game. Is this really the best we can do with all of the challenges that we face in this country and around the world?

Meanwhile, our constituents are begging us and they are pleading with us to do something about gun violence in this country. What do Republicans do? How do they respond? By bringing to the floor a bill that makes it easier for the next mass shooter to kill more people. It is sick.

Mr. Speaker, killed were: 9 people outside a bar in Dayton in 2019; 10 people, including a police officer, at a grocery store in Boulder in 2021; 5 people in an LGBTQ nightclub in Colorado Springs in 2022; and 6 people, including children, at a school in Nashville just a few months ago. What do they all have in common? They were all killed by mass shooters who used stabilizing braces.

By the way, the ATF rule that the Republicans are trying to overturn, contrary to what they say, doesn't even make stabilizing braces illegal. It doesn't ban them. All it does is it says that you need to register braces because they are used in a lot of mass shootings.

But for Republicans, any amount of commonsense gun safety regulation is too much. Why? Because the NRA says so.

Our kids are being slaughtered, for God's sake. Does anyone care? Do my Republican colleagues care at all that America's parents stay up wondering whether their kids will be the next one shot at school or at a mall or at a movie theater or at their own graduation?

People come up to me all the time and they ask me: Why can't Democrats and Republicans just work together? I tell them I wish we could. There was a time when we did.

I say to them: Go online and Google the bills that Republicans are bringing to the floor. Ask yourself why Republicans oppose background checks on a gun accessory that mass shooters use to kill people. Ask yourself if it is right that this bill was introduced by a Republican Member of Congress—and you are going to love this—who owns a gun store and makes millions of dollars by selling guns and these types of gun accessories that mass shooters use to kill people. Ask yourself if it makes sense that the only reason this bill is even on the floor is because Speaker MCCARTHY isn't even in charge of the House schedule anymore; the far, far, far right is.

The craziest thing is this rule was inspired by guidance published under the Trump administration. Let me repeat that. Even the Trump administration thought it was necessary to further regulate stabilizing braces. I can't believe I am about to say this, but I agree.

If you want to know why we can't have real action when it comes to gun safety, follow the money. In the last decade, the NRA has spent more than $100 million to help elect Republicans who will support their extreme agenda. Follow the money. It is no surprise that the far right is demanding this bill, but it is a shame.

How many more mass shootings need to happen? How many more kids need to die before my Republican colleagues pull their heads out of the sand and say the NRA's blood money is not worth the damage that is being done to our country?

I wish I was wrong, Mr. Speaker, but sadly the cowardice and moral bankruptcy on the other side of the aisle seems to know no bounds.

Between the new concept of power sharing in the House, which really just means that the Speaker is going to have to keep a tiny minority of extremist Members happy for the House to be able to function, and the fact that their party's frontrunner for the 2024 Presidential election is being indicted with very serious charges for the second time this afternoon, I am sorry to say the Republican Party is a train wreck, and it doesn't bode well for what is to come.

Mr. Speaker, I reserve the balance of my time.

Mr. MASSIE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I find it ironic that the gentleman on the other side of the aisle is demanding to know what the power-sharing structure is here in the House, when, in fact, he will spend the rest of his time arguing that we should give our power to the White House, that the administrative branch should be making law, in fact, major regulations that have more than $100 million of impact.

I would say to the gentleman on the other side of the aisle that if he is wondering about the power-sharing arrangement, then he should seek to put some power here in the House, restore the power that the Founders gave us in Article I of the Constitution.

With respect to the solution to the tragic school shootings, some States have taken it upon themselves to allow qualified teachers and staff to carry

firearms. Imagine that, the children are protected by firearms the same way we are protected here. Why do we sit here and say, oh, we have got to do something, when we sit behind protection and the children aren't?

I would encourage the other side of the aisle to cosponsor my bill to change the default setting here in this country. The default setting was set by the Gun-Free School Zone Act, which makes it illegal to even be near a school and have a firearm, which makes it harder for States to set policies that would save our children. All it does is make felons of law-abiding gun owners.

I would encourage them to look at a real solution. You can ban a pistol brace, but you are not going to stop a single mass public shooting. Most of these mass public shootings occur with a pistol, not a pistol with a brace on it or with a short-barreled rifle, as they would say, or with a rifle, an assault rifle they might call it.

They can start banning these pieces of plastic, like the Biden administration is doing, and then they can move on to banning magazines. As the ranking member of the Judiciary Committee admitted to me last night, he would like to ban all of the AR–15s. They could ban handguns. Then they will get down to shotguns. The reality is you can't stop these tragedies with a ban. You have to change the way we protect our children.

This pistol brace rule that has been promulgated by the administrative branch will cause—they just haven't been arrested—will cause and has already caused tens of millions of Americans to be felons. That happened on June 1. Time is up. You are done. You are now a felon if you own one of these braces on your firearm.

Whether you own one or not, most Americans understand what is happening here. Our system of lawmaking has been turned on its head. Even more fundamental than that, people were told it was legal by the ATF. The technical division of the ATF reviewed the prototypes of these pistol braces in 2012 when Obama was the President.

What did Obama's ATF say to Mr. Bosco, the inventor of the pistol brace? ''You are asking if the addition of this sample, a buffer tube forearm brace, would convert a firearm in a manner that would cause it to be classified as a 'rifle' and thus a 'firearm' regulated by the National Firearms Act. . . . ''

''Based on our evaluation,'' our technical department ''finds that the submitted forearm brace, when attached to a firearm, does not convert that weapon to be fired from the shoulder and would not alter the classification of a pistol or other firearm.'' ''. . . Such a firearm would not be subject to NFA controls.''

This is a letter on ATF letterhead, in fact, the Department of Justice letterhead, dated November 26, 2012, that millions of Americans relied on, that many entrepreneurs relied on.

Now what happens? The rug is getting pulled out from under them, but not by the legislative branch. By the way, we could have repealed this. The Democrats controlled both chambers. They could have passed a legislative ban on these braces. They didn't do it. Why didn't they do it? Maybe it is because they are accountable. They are accountable to the people, unlike these bureaucrats. Nobody is going to lose an election at the ATF for promulgating this rule.

The people here are scared. The people here in this Chamber are scared to do their jobs, and the people in the Senate are scared to do their jobs, so they would much prefer the administration do our jobs.

What have they done? What is the penalty for owning this piece of plastic on a firearm that is connected to a pistol? I asked the ranking member of Judiciary Committee last night in the Rules Committee meeting. He did not know. It turns out it is a quarter of a million dollars and 10 years in prison. Is that the appropriate sentence for somebody who followed the law for 10 years, followed ATF guidance that was given during the Obama administration and now doesn't even know they are violating the law? Is 10 years and a quarter million dollars appropriate? I don't think so. They relied on this letter.

Now, to another part of the pistol brace rule. The ranking member of the Judiciary Committee and the ATF Director Dettelbach have both testified incorrectly that you can comply with this pistol brace rule from the ATF by merely separating the firearm from the brace. That is wrong. That is not what the ATF rule says.

Why did they say this in testimony? Why did the ranking member of the Judiciary Committee say this? Why did the ATF Director say this? Because they wanted to sound reasonable. That may seem like a reasonable solution, but it is not the solution that the ATF has put into law.

Again, this isn't a fine. This isn't like saying the EPA decided that we have too much sulfur dioxide in the atmosphere so we are going to reduce emissions and set the sulfur dioxide emissions at a different level and you can be fined if you don't comply and you are a corporation.

This is not a civil infraction. This is a criminal infraction that will put millions of Americans in jeopardy of going to jail. For what, a piece of plastic? Does it make the firearm more dangerous? No. Does it make the firearm more concealable? No. Does it make the firearm more deadly? No.

Then I hear from the other side of the aisle: Oh, well, we are not banning them. Oh, we wouldn't ban them. Really? You are telling people in the United States you have to register them as short-barreled rifles. Guess what? That is illegal in 13 States. Thirty-six percent of Americans live in those 13 States where you can't even comply. You cannot legally comply with the ATF directive to register that pistol with that brace on it as a short-barreled rifle. Compliance is impossible if you want to keep that accessory. It is a ban. It is a de facto ban, especially on people in those 13 States.

Here is what it is really about. They can't ban guns. They would love to, but they can't ban them. They can't do it legislatively. The President came into office and looked at all of the regulations and how could he ban some guns. Well, he found this one here. How can he get more guns registered.

By the way, it is illegal for the administrative branch to create a registry of firearms that are in common circulation here in the United States. That is illegal. They are not allowed to do it in the administrative branch. What have they done with this pistol brace rule over there that we seek to countermand? They are going to create a registry of millions of Americans who own pistols who happen to have this brace.

I would argue this wasn't just a way to ban guns with certain accessories. It was a way to do something else that is not legal, not authorized by Congress, and that is to require millions of Americans to register.

To close out this pistol brace rule, I thank Mr. CLYDE for introducing this resolution. It is absolutely necessary. It is very timely. I wish we had gotten it done before June 1 because now we have got millions of felons in the United States just waiting to be arrested; don't even know they are not in compliance. This ATF rule will do nothing to increase safety.

Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, let me say a couple of things. First of all, nobody is talking about banning anything here. What we are saying is that an accessory that has been used in a number of mass shootings be registered. That is it.

By the way, the gentleman said the administration should not be making laws. The administration is not making laws. They are administrating and enforcing the laws that we have passed, and they do that through regulation and rulemaking. I am not sure what the gentleman is talking about.

Let me also say that he keeps on saying that this bill will turn gun owners into automatic felons, that by owning or buying one of these stabilizing braces, American gun owners will become felons. That is just not true.

By the way, I should tell the gentleman, someone has to be convicted of a crime in a court to become a felon. Let me give him an example, one that he might be able to relate to. Despite being charged with 37 counts for mishandling classified documents, former President Trump is not a felon. He only becomes a felon if he is found guilty of the crimes that he was charged with and is sentenced to a year or more in prison, which may very likely happen.

□ 1300

Mr. Speaker, I ask unanimous consent to include in the RECORD an article from the Washington Post titled: ''Here are the 37 charges against Trump and what they mean.''

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Massachusetts?

There was no objection.

[From the Washington Post, June 9, 2023]

HERE ARE THE 37 CHARGES AGAINST TRUMP AND WHAT THEY MEAN

(By Rachel Weiner)

A court on Friday unsealed the federal indictment against Donald Trump and an aide over classified documents found at his Mar-a-Lago home and the men's alleged efforts to keep the government from finding the materials. Here's what we know about the charges against the former president, brought by special counsel Jack Smith.

HOW MANY CHARGES DOES TRUMP FACE?

Trump is accused of violating seven federal laws but faces 37 separate charges. That is because each classified document he is accused of holding on to illegally is charged in a separate count, and his alleged efforts to hide classified information from federal investigators is charged in several ways. His longtime aide Walt Nauta faces six charges, five of which are also lodged against Trump.

WHAT ARE THE CHARGES AGAINST TRUMP?

Espionage Act/unauthorized retention of national defense information: Trump is charged with 31 counts of violating a part of the Espionage Act that bars willful retention of national defense information by someone not authorized to have it. Such information is defined as ''any document, writing, code book, signal book, sketch, photograph, photographic negative, blueprint, plan, map, model, instrument, appliance, or note relating to the national defense, or information relating to the national defense which information the possessor has reason to believe could be used to the injury of the United States or to the advantage of any foreign nation.'' Technically, that information does not have to be classified, but in practice the law is almost exclusively used to prosecute retention of classified material. In Trump's case, prosecutors say that all but one of the 31 documents he is charged with illegally retaining were marked as classified at the ''secret'' or ''top secret'' level. The unmarked document concerned ''military contingency planning,'' according to the indictment.

A conviction does not require any evidence of a desire to disseminate the classified information; having it in an unauthorized location is enough. But the crime requires a ''willful'' mishandling of material ''the possessor has reason to believe could be used to the injury of the United States or to the advantage of any foreign nation.'' Charges are generally not brought without some aggravating factor making clear the retention was not accidental—such as evidence of intent to share the information, signs of disloyalty to the U.S. government, or simply the volume of documents taken.

Unlike other government employees, the president does not go through a security clearance process that includes a pledge to follow classification rules. But Trump received requests from the National Archives and Records Administration (NARA) and subpoenas from the Justice Department indicating that the documents in question were classified and needed to be returned to the U.S. government. Prosecutors say he instead sought to hide them from federal investigators. And while the president can declassify most information, there is a process for doing so. According to the indictment, Trump twice showed classified information to others, once while saying that the document was still classified and lamenting that he no longer had the power to declassify it.

Conspiracy to obstruct justice: Trump is charged with one count of conspiring with Nauta to hide classified material from federal investigators, by lying to the FBI about what was found at Mar-a-Lago and moving boxes of documents out of a storage room before agents searched the home. Trump specifically is accused of suggesting that one of his attorneys lie to the FBI and help hide or destroy documents.

Tampering with grand jury evidence: Trump and Nauta face two counts of trying to keep evidence out of grand jurors' hands: one count of withholding the classified documents and one of corruptly concealing them. As part of those charges, Trump is accused of trying to persuade one of his attorneys to help conceal the documents, while Nauta is accused of hiding the evidence by moving the boxes of classified documents.

Concealing evidence in a federal investigation: For the same alleged conduct of hiding the classified information at Mar-a-Lago, Trump and Nauta separately face one count of concealing evidence with the intent to obstruct an FBI investigation.

False statements: Both Trump and Nauta together face one count of scheming to making false statements for allegedly hiding from the FBI and the grand jury that the former president still had classified documents in his possession. Trump faces a separate count for causing his attorney to falsely claim in June 2022 that all classified documents in the former president's possession had been handed over in response to a subpoena, according to the indictment. Nauta alone is accused of lying to the FBI by falsely claiming that he had nothing to do with moving any boxes.

WHAT POSSIBLE PENALTIES DOES TRUMP FACE?

The maximum punishment for each count of unlawful retention of national defense information is 10 years in prison. Conspiracy to obstruct justice, tampering with grand jury evidence, and concealing evidence in a federal investigation all carry punishments of up to 20 years. Each false statement charge is punishable by up to five years in prison.

If Trump was convicted on all charges, the sentences could run consecutively, amounting to hundreds of years in prison. But federal defendants are rarely given the maximum possible punishment. He does not face any mandatory minimum sentences.

Sentences in unlawful retention cases vary widely, depending in part on how sensitive the material is, how much of it there is, how long the person held on to it and his or her cooperation with investigators. A Defense Department employee in Manila who took home a small amount of secret-level information to work on a classified thesis project served only three months behind bars. Kenneth Wayne Ford Jr., who was found guilty at trial of bringing home national defense information after leaving the National Security Agency and lying about the case, received a six-year sentence. A former NSA contractor who over two decades amassed a huge trove of highly sensitive material, including hacking tools and details of overseas operations, was sentenced to nine years in prison. A Navy sailor who took pictures of classified areas of a nuclear-powered submarine and then destroyed the evidence was sentenced to a year in prison for retention and obstruction; Trump later pardoned him.

Retired Gen. David H. Petraeus was given probation after pleading guilty to sharing classified information with his biographer. At the time, the crime of mishandling classified information—as opposed to national defense information—was a misdemeanor with a maximum punishment of a year behind bars. It became a felony during Trump's presidency.

WHAT OTHER CRIMINAL CHARGES DOES TRUMP FACE?

Trump is charged in New York State Court with unrelated crimes for conduct that predates his presidency. He is accused of falsifying business records to hide payments during the 2016 campaign made to an adult-film star to keep her from saying publicly that she had an affair with Trump.

Trump is also under investigation by a state prosecutor in Georgia, who is looking at his efforts to overturn President Biden's 2020 victory in that state. Smith is also investigating Trump's attempts to stay in office after losing the presidential election, including his pressure on officials in battleground states and fundraising off false claims of election fraud.

HAS TRUMP RESPONDED TO THE CHARGES?

The former president described himself as ''an innocent man'' being treated unfairly in comparison with Biden. Classified documents from the Obama administration were discovered in Biden's Delaware home late last year by lawyers cleaning out his home office. Biden's attorneys turned those documents over to NARA, and the president gave the Justice Department permission to search the home, as well as his beach house and think tank office. The White House has said that only ''a small number'' of documents from Biden's vice-presidential tenure were found. A special counsel has been appointed to oversee that investigation.

Mr. MCGOVERN. Mr. Speaker, before I yield to my next speaker, I have to say, we heard a lot of words from the gentleman and from other Republicans who speak on these issues. Do you know what we don't hear? We don't hear any empathy for the families who have lost loved ones to gun violence.

I began my opening remarks by citing examples of how this accessory was used in mass shootings. Children, mothers, fathers, grandmothers, and grandfathers lost their lives. They were murdered. Police were murdered. There is not even any empathy. There is no acknowledgment that this is a terrible tragedy.

All we hear about is: Don't take away my toys. Don't interfere with my hobby. You can't register any of these things.

I think people are so sick and tired of where our priorities are. People are sick and tired of having the National Rifle Association and all of their money dictate what our policies should be on guns. They don't care about all the people who have died and have been murdered in this country.

By the way, other countries have similar challenges and problems that we do, but they don't have the level of gun violence. They don't have massacres on a regular basis. This is what we get. Enough.

Mr. Speaker, I yield 2 minutes to the gentlewoman from Georgia (Mrs. MCBATH).

Mrs. MCBATH. Mr. Speaker, I rise in opposition to the underlying resolution and the rule.

Mr. Speaker, I speak today not just as a Member of Congress but as a mother, a mother whose son was taken from her by gun violence, the very thing that we are talking about again today, and a mother who has fought every day since then to make sure that no other mother, no other family, no other community feels that pain or feels that loss.

Arm braces have become the attachment of choice for mass shooters in this country, the attachment of choice for the King Soopers shooter in Boulder who took the lives of 10 people, including a law enforcement officer; the attachment of choice for the shooter who murdered five individuals at Club Q, an LGBTQ nightclub; and the attachment of choice for the Nashville shooter who slaughtered three innocent babies in an elementary school.

We cannot continue to allow weapons of war in our communities, in our meeting centers, and in our schools.

What I just cannot understand is: What are our Republican colleagues afraid of? You swore an oath to protect and serve your constituents. What are you afraid of?

My Democratic colleagues are doing their job. We bring forth policy after policy after policy: Federal background checks for all gun sales, so a law-abiding gun owner can still own guns; the assault weapons ban, keeping those weapons of mass destruction, weapons of war, out of the hands of people who shouldn't have them; closing the Charleston loophole. These are just commonsense solutions that the American people are crying out for.

As a mother who has lost her child, I spend all of my time talking to survivors, day in and day out.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. MCGOVERN. Mr. Speaker, I yield an additional 30 seconds to the gentlewoman from Georgia.

Mrs. MCBATH. Mr. Speaker, I spend all of my time, day in and day out, with survivors and families. What are you afraid of?

We have to do the right thing and preserve human life. That is why we were sent here. I implore you, and I am sure I will do it again and again and again, to do what is right, to respond to that oath to protect and serve the people who are waiting and crying out for us to keep them safe.

The SPEAKER pro tempore. Members are reminded to direct their remarks to the Chair.

Mr. MASSIE. Mr. Speaker, as a father and a grandfather, my heart breaks when I see the victims of these deranged killers at schools and elsewhere. We need serious solutions.

I think it is an insult to the victims and families that banning a piece of plastic is going to save a life—it won't—or telling them that putting up a sign that says gun-free zone will save a life. It won't. It will cost lives.

When one of my former staffers was married for less than a year, she and her husband had a karaoke business, and she had a stalker who followed them to each of their events. She got a concealed carry license in Tennessee and carried her gun to protect herself from the stalker. This was Nikki who worked for me.

One night, they set up their business in a bar, and the sign said ''No Guns Inside'' because they served alcohol. Nikki left her firearm to protect herself in the car, but her stalker did not leave his.

He came into the bar and shot her husband viciously in front of her. She has to live with that. That is why she wants serious solutions. She knows that gun-free zones are unserious. She knows that banning pieces of plastic is not serious. She knows that children deserve the protection that we have here.

We all know, if you are willing to look at the data, that in every school that has allowed qualified teachers and staff to carry a firearm, there has never been a school shooting. It is a fact.

We need to work on serious solutions, not unserious solutions like banning a piece of plastic.

Mr. Speaker, going to the stove ban, which is also unserious, it is going to cost consumers. It is going to make the products less safe, not more safe. It is going to make them less available. It is not about safety or efficiency or consumer benefit. It is about banning fossil fuels. That is why this administration has declared a war on gas stoves.

Two of the bills in this package would repeal those rules from this administration.

Natural gas, when it is used in appliances, is 3.4 times more affordable than electricity. Why is that? Let's think about where that electricity comes from. A natural gas plant can burn electricity, spin a turbine, create electricity at maybe 50 percent efficiency and then put it on wires that are hundreds of miles long to go to a household. Those wires may be 70 percent, 80 percent efficient.

When it gets to the household, what do you do with that energy that came from the natural gas that is now electricity? You turn it back into heat if you have an electric stove, which is how this administration would want you to live.

Guess what? That is less than half as efficient. It costs 3.4 times more to do it that way than to create electricity with natural gas and then use the electricity at your house than if you just brought the natural gas to the household. In fact, consumers who use natural gas in their house save over $1,000 a year.

This is a war on the middle class and the poor. The war on gas stoves is a war on affordable heating and cooking.

When the electricity goes out in natural disasters, whose stoves work? The ones who have gas stoves.

Who can boil water to drink when the water is unsafe because of a natural disaster? Those who have gas stoves.

This administration should quit gaslighting consumers by telling them they are acting in their best interest. The Federal Interagency Committee on Indoor Air Quality has never identified gas stoves as contributing to asthma or respiratory illness. The Consumer Product Safety Commission and the Environmental Protection Agency have never identified gas stoves as a significant contributor to adverse air quality or as a health hazard.

Why are they doing this? It is a war on gas stoves. These two bills would seek to reverse that. It is just common sense.

In fact, the other side of the aisle said these are messaging bills. Guess what? Some Democrats liked the message because they voted for these bills in the Energy and Commerce Committee. It must be a great message. It must be a message the American people want to hear. It must be a message that they like to hear because they know if we had the Senate and the White House, this kind of ridiculousness would not go on. That is why it is important to pass these two bills to protect our gas stoves.

Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, we didn't call them messaging bills. Members of the Republican Conference called them messaging bills, I would remind the gentleman.

The gentleman says that we need serious solutions to gun violence in this country. I think I heard the gentleman correctly, that he is suggesting it is okay for people to carry guns into bars when they are drunk. I don't think that is very serious.

The idea that we can shoot our way into gun safety is insane. We already have more guns than people in this country. We are the only country in the world that has massacres that occur on a regular basis.

The gentleman is saying that people should be able to carry guns into bars when they are drunk, that we ought to give teachers more guns, and that everybody ought to have more guns and everybody will be safe. This is insane. It doesn't make any sense.

At some point, people are going to have to have the courage to stand up to the gun lobby and say no to the NRA's money and actually do what is in the best interest of the American people, do what will protect the people of this country. To hear this nonsense—this place is crazier than usual.

Mr. Speaker, I yield 2 minutes to the gentleman from Texas (Mr. DOGGETT).

Mr. DOGGETT. Mr. Speaker, the GOP has become, sadly, the ''Guns Over People'' party. Their answer to the desperate pleas of families from all across America who want to stop the slaughter of schoolchildren and other innocents—their answer is to do absolutely nothing.

Today, during this National Gun Violence Awareness Month, what do they do?

They go a step further. This is the only opportunity this year that Speaker MCCARTHY has permitted us to consider any gun violence legislation. What do they do about gun violence?

They enable a little more of it. More pistol braces in the hands of killers will cause us to brace for more death.

Republicans want to stop an ATF rule that will require background checks in certain narrow instances when a brace turns a handgun into a rifle. Background checks are exactly what we need for all gun purchases so that those who go through the gun shop loophole and don't get a check when they buy it at a gun show or on the internet have to have the same standard as if they bought it in a gun shop.

They will not even permit us to respond to the desperate pleas of the people of Uvalde to ban weapons of war from the hands of teenagers who couldn't on their own go out and buy a beer.

There is an orgy of violence going on, and they are obstructing those of us who want to respond to the police from doing anything about it, from banning weapons of war, from requiring background checks to ensure we know what kind of person is getting a gun and, if they have a problem, they ought to be denied that access.

The gun industry is marketing these so-called ''stabilizing braces'' to convert heavy pistols into short-barreled rifles that are more concealable.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. MCGOVERN. Mr. Speaker, I yield an additional 30 seconds to the gentleman from Texas.

Mr. DOGGETT. Mr. Speaker, the guns are already the number one killer of children in our country. This year, there have been 291 mass shootings. We can count the numbers, but we can't count the pain of an empty chair where there was once a vibrant parent or a wonderful little child who was murdered in a mass shooting. This Congress could do something about it if we could end the obstruction. We need to move toward reducing gun violence, not enabling it.

□ 1315

Mr. MASSIE. Mr. Speaker, I wonder, since we are proposing that children would be saved by banning a piece of plastic, has anyone on the other side of the aisle proposed that Congressmen are safer now that this piece of plastic is banned?

I don't think so.

Has anyone proposed that gun-free zone signs would keep us safe?

I don't think so.

What I see surrounding me here and right outside the door are people with firearms protecting us. Our children deserve the same respect and the same serious solutions.

Mr. Speaker, I yield 4 minutes to the gentleman from Texas (Mr. ROY), who is my good friend and colleague on the Rules Committee, to speak in favor of the rule as he did in the committee.

Mr. ROY. Mr. Speaker, I appreciate the gentleman from Kentucky for yielding me time.

Mr. Speaker, here we are engaging in the theater of the absurd, yet again, from our colleagues on the other side of the aisle just blatantly denying the power grab being carried out by the executive branch yet again. They don't seem to care so long as it suits their ends in terms of policy.

Everybody who follows this understands that the court is almost certain to strike this down. We have already seen it happen in the Fifth Circuit. We are pretty clear about the extent to which this is an abuse of the Administrative Procedures Act, the extent to which this is an unconstitutional violation of our Second Amendment rights, and the court, no doubt, like the Fifth Circuit, will follow suit.

That is just the simple truth, just like we expect the court to most likely rule that the President's power grab to extend a bailout for student loans will also be struck down. That is almost certainly true.

However, what is also true is that it is incumbent upon the United States Congress—the House of Representatives in particular—to stand up in defense of the Constitution, in defense not just as might seem most apparent here, a defense of the Second Amendment which this most certainly is, but, in fact, a defense of separation of powers, that, in fact, it is not the executive branch that makes law.

When the Speaker of the House actually says that the President doesn't have power to do something and then refuses, as the previous Speaker, Speaker PELOSI, did to do anything about what the President is doing to exercise that authority unconstitutionally—as was the case with the student loan—then it begs the question: Do any of my colleagues on the other side of the aisle give a whit about separation of powers or about the fact that it is a clear abuse of the power of the executive branch?

The answer is no. That is the clear truth. They don't give a whit about that, nor do they give a whit about it here because they like the outcome of the policy: the banning of a piece of plastic. That is the truth.

However, it is not really about the pistol braces, is it? Because really that was, in fact, something created by marine and Army veteran Alex Bosco inventing the pistol stabilizing brace to help his friend, a disabled combat veteran, at the shooting range.

At the time, the ATF—President Obama's ATF—advised Mr. Bosco that a stabilizing brace did not convert a pistol into a short-barreled rifle. He relied upon that.

Now, here we are a decade later, and the Biden ATF wants to reverse that by executive fiat, not through the congressional powers, not by legislation, as was possible last summer when my colleagues had the House, the Senate, and the White House. No. No. They prefer to go ahead and use the unaccountable and unelected bureaucrat at the ATF to make policy.

We are here to say that that is a bad idea. It is a bad idea for the Republic, it is a bad idea for freedom, and it is a bad idea with respect to our fundamental rights.

The reality here is my colleagues on the other side of the aisle know full well what they want to do. It is not just to ban an accessory. They want to ban firearms. They want to ban firearms from top to bottom, and this is a step to do it. I have always been taught that if your opponents say something, you should believe them. That is the reality.

I hope my colleagues on this side of the aisle will stand up to the CRA and send it over to the Senate where it most assuredly might end up being a message amendment because the President of the United States will almost assuredly veto it because he doesn't care about separation of powers either.

Mr. MCGOVERN. Mr. Speaker, I yield myself such time as I may consume. This is strange what we hear on the House floor today. My friends keep on talking about veterans and people with disabilities, but I don't see any major veterans organization or disability organization that has endorsed this bill. The gentleman talks about the fact that we have security here. Yes, the Capitol Police who protect us all have had background checks and have all had training.

It is interesting that we have a rule when my friends are in charge where you can't bring weapons on the House floor. I feel good about that after I have listened to some of my colleagues here today.

I also remind the gentleman that there were police officers at Uvalde. We hear from police officers and organizations all across the country all the time how they don't want to have to get into situations where they are battling with somebody who has an AR–15.

People are dying in this country on a regular basis. Massacres are happening on a regular basis, and we are on the floor to basically make it easier for people to have access to an accessory that can make a gun more deadly and more accurate that can kill more people. I mean, it doesn't make any sense. All I can think of is the fact that some of my friends are afraid to take on the gun lobby. They are afraid to lose their money. $100 million in NRA money went into campaigns in the last 10 years—$100 million. We have to get our priorities straight here in this Congress. We have to put people ahead of guns. Mr. Speaker, I am going to urge that we defeat the previous question, and if we do, then I will offer an amendment to the rule to provide for consideration of a resolution which states that it is the House's duty to protect and preserve Social Security

and Medicare for our future generations and reject any cuts to these essential programs.

Mr. Speaker, I ask unanimous consent to insert the text of the amendment in the RECORD, along with extraneous material, immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Massachusetts?

There was no objection.

Mr. MCGOVERN. Mr. Speaker, I yield 2 minutes to the gentleman from Texas (Mr. CASAR), to discuss our proposal.

Mr. CASAR. Mr. Speaker, I was here alongside all of you during the State of the Union when my Republican colleagues stood up and started jeering, booing, yelling, and complaining saying that indeed, they weren't interested in cutting Social Security or Medicare. However, in the weeks since, it has become clear to me that was all talk and no votes, or as we say in Texas, all hat and no cattle.

In fact, this week the Republican head of appropriations just said that she wants to see even deeper cuts to critical Federal programs. That means bigger classroom sizes for our students and our struggling teachers and longer wait times for our veterans seeking healthcare, all to finance bigger tax cuts for billionaires and multinational corporations.

Social Security and Medicare are not safe until we step up and vote to make sure they are safe. That is why I urge my colleagues to defeat the previous question so that we can vote for H.R. 178, which would put our money where our mouth is.

I urge my Republican colleagues to prove me wrong because what we are planning on voting on this week are things like a ludicrous gas stove bill of rights.

Are they kidding me?

What we are talking about voting on this week is deregulating gun accessories that have been used in mass shootings across the country.

Really?

It is disrespectful, it is dangerous, and it is a distortion of our oath and our job that we have committed to doing here today.

So instead of bowing to the gun lobby, we are passing these ludicrous messaging bills. Let's work on solving real problems, or, at a minimum, let's stop these attacks on Social Security and Medicare.

Mr. MASSIE. Mr. Speaker, may I inquire as to how much time each side has remaining.

The SPEAKER pro tempore. The gentleman from Kentucky has 6 minutes remaining. The gentleman from Massachusetts has 8 minutes remaining.

Mr. MASSIE. Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I yield 2 minutes to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. Mr. Speaker, I thank the gentleman for yielding time.

This really is about saving lives. Eight children a day die from gun violence. In addition, 40,000 Americans die from gun violence throughout the year.

I thank Congressman THOMPSON of California for making clear what we are saying here today. A veteran can buy a brace any day of the year.

We love, respect, and admire our veterans. However, at the same time, we respect our first responders, police officers, firefighters, and others who are on the front line or former combat officers who say that we don't need automatic weapons in the hands of civilians. There is no hunting purpose. There is no purpose.

You haven't lived until you see a shoot-out in your district between a criminal with a ghost gun against police officers. That is what we are trying to prevent. I don't want to see that in Houston, Texas, ever again.

A person can buy the brace without a background check. When it becomes a dangerous weapon, when that brace changes the gun's legal status and makes it, in essence, the same that caused a mass shooting at a Boulder, Colorado, supermarket, then the stabilizing brace and a shorter barrel made a pistol under Federal gun regulations.

Saving lives is why I am standing here on the floor. Protecting police officers and protecting firefighters is why I am on the floor. The highest calling that I have on the floor is protecting children and stopping Uvalde, Sandy Hook, Parkland, Santa Fe, and the list goes on.

A brace can be bought without a background check, and the rule that is being overturned simply says the ATF is doing the right thing.

Mr. Speaker, vote for the underlying bill.

Mr. Speaker, I am here today to speak in opposition to the proposed legislation, H.R. 1615—the Gas Stove Protection Freedom Act and H.R. 1640—the Save our Gas Stoves Act.

The Consumer Product Safety Commission (CPSC) is responsible for protecting children and other consumers from unreasonable risk of injury or death from consumer products.

The CPSC carries out its mission by investigating allegations that consumer products pose an unreasonable safety risk, working with industry to develop voluntary product safety standards, issuing, and enforcing mandatory standards on hazardous consumer products, and recalling unsafe consumer products or arranging for their repair.

The CPSC has a history of protecting children and adults from safety risks across a wide range of products, including removing hazardous infant sleep products from the market, adopting corded window coverings standards to prevent strangulation of children, and working with industry to reduce the risk of fires from micro mobility devices like hoverboards and e-scooters.

Republicans are deliberately misleading the American public with this legislation, which is designed to scare consumers and, unfortunately, Republicans are ignoring the reasonable steps the CPSC has taken to study and address the hazards posed to our children by gas stove emissions.

Legitimate concerns have been raised about the health impact, particularly on children, of the nitrogen dioxide emitted by gas stoves.

Observational studies have found that children living in households that use gas stoves are 42 percent more likely to have asthma.

In December 2022, CPSC issued a recall on a specific gas stove product that was found to be a serious risk of injury or death from carbon monoxide poisoning.

H.R. 1615 would prohibit CPSC from using its rulemaking authority to ban all such hazardous products to protect to Americans.

As the Chairman of the CPSC explained earlier this year, the Commission does not have a proceeding to ban gas stoves but is researching gas stoves and exploring ways to address health risks.

The Republicans' bill peddles the lie that the Biden Administration is attempting to ban gas stoves, but the facts simply are not on their side.

H.R. 1615 will stifle scientific investigation into health hazards and create bad precedent when it comes to protecting our children from health and safety hazards.

Protecting and improving the health and well-being of our children should not be a partisan issue.

On a bipartisan basis, we should be encouraging the CPSC to explore all allegations that appliances or other consumer products put our children's health at risk and give the CPSC more, not fewer, tools for eliminating or mitigating safety risks they uncover.

It is unconscionable to limit the CPSC's options for addressing the potential risks of gas stoves—a product found in homes across America—before the CPSC has fully explored the risks posed by gas stoves and potential solutions.

Efficiency standards are not bans.

Republicans are deliberately misleading the American public to prevent the Department of Energy (DOE) from fulfilling its statutory obligations and finalizing an efficiency standard that will save consumers money.

H.R. 1640 prohibits the Secretary of Energy from finalizing or enforcing a February 2023 proposed rule that would improve the efficiency of electric and gas stoves, ultimately saving families money on their energy bills.

The Republicans' bill simply peddles the lie that the Biden Administration is attempting to ban gas stoves, but the facts simply are not on their side.

DOE cannot ban gas stoves. DOE is simply proceeding with a Congressionally mandated efficiency standard.

The proposed efficiency standard will save Americans money through lower energy bills while cutting harmful indoor air pollution that disproportionately impacts children's health.

DOE's proposed rule is one of their statutorily required standards—and it follows years of inaction and missed statutorily mandated standards deadlines by the Trump Administration.

In the Fall of 2020, multiple organizations and states filed lawsuits asserting Trump's DOE was in violation of deadlines for the review of 25 of its energy conservation standards.

This Republican bill doubles down on that legacy by obstructing DOE from doing what Congress and a court settlement have required it to do.

Republicans' fearmongering over gas stoves is nothing more than a cheap political stunt

designed to scare consumers and protect their fossil fuel friends.

H.R. 1640 prioritizes profits for Big Oil and Gas over the health and economic well-being of everyday Americans.

Efficiency standards save Americans money, while the Republicans' bill will only increase energy costs for Americans and pad the pockets of their fossil fuel friends.

Republicans' scare tactics include pushing a false narrative about how ''96 percent of gas stoves on the market don't meet the proposed standard.''

This is simply not true.

This deliberate fearmongering is the result of Republicans purposefully misrepresenting DOE data to serve their own political goals.

The statistic Republicans are referencing comes from a DOE test of high-end models that they anticipated would not meet the standard. The test, by design, was not representative of the entire market.

The truth is, nearly half of products on the market today are already in compliance with the proposed rule, including all entry level models.

In a testament to just how far Republicans are willing to go to prop up their polluter friends, H.R. 1640 goes beyond an amendment offered by Rep. PALMER (R–AL) that was added to H.R. 1 by significantly limiting future DOE rulemaking.

This bill does not include a sunset clause—it could forever limit DOE from taking substantive action to improve the energy efficiency of Americans' cooktops.

While the Palmer Amendment would prevent DOE from moving forward with one standard related to cooktop efficiency, H.R. 1640 goes even further by amending the Energy Policy and Conservation Act to restrict DOE from taking similar action in the future.

This bill sets a bad precedent that polluters could seek to exploit.

DOE is already prohibited from banning products based on their fuel source, but H.R. 1640 adds yet another hurdle: it requires DOE to prove that a conservation standard is not likely to result in the unavailability of a product based on the fuel it consumes.

This added condition could significantly weaken and slow down DOE's ability to issue future energy conservation standards.

DOE's proposed energy efficiency standard for gas and electric stoves is smart, commonsense policy that would cut pollution, improve Americans' health, and lower energy bills. And it can be achieved using readily available design changes.

DOE's commonsense proposal will benefit Americans' health and pocketbooks.

DOE estimates the proposal will: Save consumers as much as $1.71 billion and slash nearly 22 million metric tons of carbon dioxide and 245 thousand tons of methane.

These benefits would come without imposing any undue burdens on manufacturers.

DOE's proposed rule gives manufacturers three years after the date of the rule's publication to comply.

Nearly half of products on the market today are already in compliance with the proposed rule, and there are readily available design changes available for those that don't.

Energy efficiency standards are popular: three out of five Americans support stricter energy efficiency standards for appliances and buildings.

It is time we stop the negativity and counterproductive efforts that are ripping apart our country, and to instead focus on coming together to work towards sensible and effective solutions that can work for the betterment and growth of our country.

Mr. Speaker, I rise today to reassert my opposition to H.R. 277, the ''Regulation from the Executive in Need of Scrutiny (REINS) Act'' and H.R. 288, ''The Separation of Powers Restoration Act of 2023.''

First in addressing, H.R. 277, the REINS Act, is a measure that has been offered by Republicans dating back to 2012, is and has always been a problematic bill that would restrict agency rulemaking procedures and undermine public health and safety.

Because it would require both houses of Congress to pass, and the President to sign, a joint resolution of approval for any major rule before they can take effect, this bill would effectively act as a chokehold on Federal agency rulemaking.

I along with my colleagues have attempted to address many of the ills these bills purport by offering common sense amendments that Republicans have continued to refuse any meaningful consideration.

My amendment to H.R. 277, listed on the Rules Committee roster as Amendment #30 would have exempted from the bill the congressional approval requirement for any proposed rule that is made to ensure the safety of products used or consumed by children under the age of 2.

Without such an amendment, the RAINS act cripples the Federal government's ability to protect our children and prioritize their safety.

As it stands, this bill has no exceptions or flexibility when it comes to pressing issues of public health and safety.

It is deeply troubling that REINS Act will delay the implementation of integral new public health and safety safeguards, putting our children at risk.

As such, the REINS Act will ultimately fail to protect the public as it places an expertise-based process into the hands of the government, allowing the political games we have seen in the House this Congress to continue.

Because of the special vulnerability of young children and the distinct threat that the implementation of the REINS poses to the current regulatory process, I urge my colleagues to join me in opposition to H.R. 277.

Second in addressing H.R. 288, ''The Separation of Powers Restoration Act of 2023'' which purports to address constitutional and statutory deficiencies in the judicial review of agency rulemaking.

Yet, this bill is a long-repeated effort to shift the scope and authority of judicial review of agency actions away from federal agencies by amending Section 706 of the Administrative Procedures Act (APA) to ''require that courts decide all relevant questions of law, including all questions of the interpretation of constitutional, statutory, and regulatory provisions, on a de novo basis without deference to the agency that promulgated the final rule, unless otherwise expressly provided by statute.

Effectively, H.R. 288 would abolish judicial deference to agencies' statutory interpretations in federal rulemaking and create harmful and costly burdens to the administrative process.

Mr. Speaker, I am concerned about the ability for agencies to act in times of imminent need to protect citizens.

In particular, H.R. 288 would make sweeping and dangerous changes that would jeopardize the ability of the Department of Homeland Secuirty to protect our nation in times of urgent and imminent need.

My amendment to H.R. 288, listed on the Rules Committee roster as Amendment #3 would have been a simple but necessary revision that would remedy this concern by excluding from the bill cases with rules made by the Secretary of Homeland Security and pertaining to any matter of national security.

As a Senior Member of the Homeland Security Committee, I understand the many challenges the Department of the Homeland Security (DHS) already faces and its critically important role in preventing terror threats and keeping Americans safe.

The Department is the first line of defense in protecting the nation and leading recovery efforts from all-hazards and threats which include everything from weapons of mass destruction to natural disasters.

We do not need to be reminded of the heightened state of security are nation is in and the ever-increasing demands imposed upon our government agencies tasked with keeping our borders and citizens safe.

Now is not the time to undermine or slow the ability of DHS and its ability to address growing threats and active acts of terrorism.

The overall mission of DHS is too critical and its functions indispensably essential, such that it would be impugned to do anything that will slow down the process that allows DHS to do its job.

Given the absence of my essential amendment and the fact that H.R. 288 would cripple Federal agency's ability to act in times of imminent need, I urge opposition to H.R. 288.

Mr. MASSIE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I thank the other side of the aisle for pointing out that all the ATF rule does is change the legal status, that you can still get the brace and you can still get the pistol.

The last thing that is on a criminally deranged person's mind is: What is the legal status of my firearm? Is this a pistol? Is this a rifle? Is it a short-barreled rifle? How much time will I get when I go on this suicide mission for doing this because of the legal status?

However, what changing legal status does is it creates millions of felons out of legal firearm owners who presumed they were operating legally.

Mr. Speaker, I yield 30 seconds to the gentleman from Texas (Mr. ROY).

Mr. ROY. Mr. Speaker, I appreciate my friend from Kentucky for yielding.

The gentleman from Massachusetts was questioning why he hasn't heard from any veteran groups in support of this.

Mr. Speaker, I ask unanimous consent to include in the RECORD an article titled: ''Wisconsin veterans sue ATF over new rule for stabilizing braces.''

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

[From the Capital Times, January 31, 2023]

WISCONSIN VETERANS SUE ATF OVER NEW RULE FOR STABILIZING BRACES

(By Jessie Opoien)

A conservative Wisconsin law firm filed a lawsuit on Tuesday challenging a new federal firearm registry rule it says would curb the Second Amendment rights of disabled military veterans.

The Wisconsin Institute for Law & Liberty is representing two Wisconsin veterans and one from Texas in the suit, which was filed in the Northern District of Texas. It's the first legal challenge to the Bureau of Alcohol, Tobacco, Firearms and Explosives rule, and the sixth WILL has filed against the Biden administration.

Under the rule, pistols with stabilizing braces must be treated as short-barreled rifles, which have been subject to heightened regulations including stricter registration requirements since the 1930s. Those regulations include mandatory background checks for all transfers (sales), including private transfers.

Stabilizing braces were invented to help disabled shooters fire guns safely—but they have also been used in recent mass shootings in Colorado and Ohio.

''In the days of Al Capone, Congress said back then that short-barreled rifles and sawed-off shotguns should be subjected to greater legal requirements than most other guns. The reason for that is that short-barreled rifles have the greater capability of long guns, yet are easier to conceal, like a pistol,'' said ATF director Steven Dettelbach in a statement. ''But certain so-called stabilizing braces are designed to just attach to pistols, essentially converting them into short-barreled rifles to be fired from the shoulder. Therefore, they must be treated in the same way under the statute.''

The plaintiffs in the case are Gabriel A. Tauscher, of Oconomowoc; Shawn M. Kroll, of Hartland; and Darren A. Britto, of Amarillo, Texas. All three are Marine veterans who own pistols with barrels less than 16 inches and use stabilizing braces. They use their weapons for personal protection, recreational shooting and hunting. Under the ATF rule, they would be required to register their firearms as short-barreled rifles.

A stabilizing brace is attached to the shooter's forearm to assist with accuracy, comfort and safety. The lawsuit argues that stabilizing braces are not designed and intended for a pistol to be fired from the shoulder, unlike a rifle.

''These military veterans defended our country overseas, and now they are defending our rights here at home,'' said WILL deputy counsel Dan Lennington in a statement. ''WILL is proud to represent these patriots. The Biden administration has no power to re-classify pistols as rifles, and we will vigorously defend the Second Amendment in federal court.''

WILL's complaint argues the rule violates the Second Amendment and the separation of powers.

The rule implements a 120-day period for manufacturers, dealers and individuals to register affected weapons tax-free. People can also comply with the rule by removing stabilizing braces or surrendering guns covered by it to the ATF. Those who don't comply could face fines or imprisonment.

WILL's lawsuit asks the court to block the rule.

Mr. ROY. Mr. Speaker, there are others. The fact of the matter is there are many veterans groups—that is one; we will get you some more—who are supportive of this bill and who are supportive of this effort to protect their Second Amendment rights.

That is a fact because my colleagues on the other side of the aisle want registration because they want to take guns from the American people because they know that liberty rests with the people.

Mr. MCGOVERN. Mr. Speaker, I won't hold my breath waiting for the other names.

It is astounding to me that my friends on the other side of the aisle don't want any gun laws. Basically, they lack empathy for the murders and deaths in this country that happen on a regular basis. I mean, at some point, we have to say enough is enough. They have to put people ahead of the gun lobby, and my friends are incapable of doing that.

Mr. Speaker, I yield 3 minutes to the gentlewoman from New Mexico (Ms. LEGER FERNANDEZ), who is a distinguished member of the Rules Committee.

Ms. LEGER FERNANDEZ. Mr. Speaker, last month, there were two mass shootings in my district, one in Farmington and another in Red River.

On Friday, I met with police officers, victims, and neighbors who were terrified and wounded. An 18-year-old used an assault rifle and several other guns to kill three beautiful souls and injure six, including two police officers.

I sat with the victims and listened to their stories of horror and pain. There were 144 bullets fired before the shooter even left his front yard. One neighbor held my shoulders as he shared, from a place of unbearable pain, what it sounds like when a powerful weapon discharges and you see your neighbor bleeding to death on the street.

We know that the trauma of gun violence extends beyond those killed or injured. That is why my constituents and Americans are pleading with Congress to do what we can to prevent gun violence.

What happens, though? What do we come back to? Instead of addressing gun violence, Republicans stand with the gun lobby to make it easier to evade gun safety laws.

When it became obvious that gun manufacturers were selling powerful pistols and then selling shoulder braces to turn them into rifles, the Trump administration began work on a regulation to treat these constructed rifles as the powerful weapons they are. The Biden administration finished the job.

□ 1330

Gun manufacturers and sellers are using a loophole to avoid public safety protections. This is how gun salesmen are describing the loophole: ''It might look and function like a rifle, but thanks to the fact that AR–15 pistols don't come built with a stock, they're legally classified as pistols, giving them a full pardon from inconvenient NFA restrictions.''

Listen, if it looks like a rifle, shoots like a rifle, and kills like a rifle, we should treat it like a rifle. That is common sense, but sometimes common sense isn't that common in the House these days.

Mr. Speaker, I urge my colleagues to stand with the victims, to stand with the people, and put people over the profits of the gun lobby.

Mr. MASSIE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, 6,000 veterans signed a petition opposing the ATF rule, so I hope that is enough to convince the other side.

However, I now switch to two other bills that are in this rules package because this is Groundhog Day. We will be here again. The administration does something which has the effect of law, and then we are feckless to change it.

There have been over 90,000 rules promulgated since the Congressional Review Act was put into place. Only 20 rules have ever been countermanded because it is such a high bar to get a majority of the House and a majority of the Senate and the President to sign something to undo a law.

How did it become law? Just because the administrative branch willed it into existence.

Our Constitution says: ''All legislative powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and a House of Representatives.''

Does it say, and also an ATF or also an EPA? No, it does not. It says House and Senate.

Does it say, some legislative powers? No. It says, all legislative powers are vested in Congress.

The REINS Act would do quite a bit to restore our power. Not enough, though, because the Chevron deference still exists.

The other bill in this package is the Separation of Powers Restoration Act, which is a legislative repeal of the tragic Chevron deference that has plagued this country for so many years, where the Supreme Court gives full latitude, broad authority to the administrative branch to twist and contort the laws that we make in creating new laws.

I urge people to vote for this rule because it includes these two packages, which put our Republic back into a structure that our Founding Fathers envisioned, where the legislators make the laws, and the administration enforces the laws.

Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, may I inquire of the gentleman how many additional speakers he has?

Mr. MASSIE. Mr. Speaker, I have no further speakers, and I am prepared to close.

Mr. MCGOVERN. Mr. Speaker, I yield myself the balance of my time to close.

Mr. Speaker, we have real problems in this country. I mean, the Northern Hemisphere was on fire. You couldn't walk outside last week without a mask in Washington, D.C., New York City, or a number of major cities and communities all across the Northeast. Our

planet has a fever. I mean, we have a real issue here with climate change, but we don't talk about those things.

There are a zillion issues that we need to deal with, but instead we come to the floor with—this is what the Republicans have said—messaging bills. Those are their words, not mine. These messaging bills promote their culture war against gas stoves, and these messaging bills, I guess, make the NRA even happier.

The gentleman talks about veterans who want this. There are 16 million veterans in this country. If this were a priority of our veterans, these major organizations would be supporting this bill, but they are not.

The bottom line is, we are here talking about stuff that will not help anybody. In fact, this gun bill just makes it easier for people to kill people.

Why are we doing this? This makes absolutely no sense.

Last week, my Republican friends fought with each other, and nothing got done. This week, we are bringing bills to the floor that Republican Members are calling nothing more than messaging bills.

Congress was created to help solve problems, to help people. My Republican friends think that that is a foreign idea. This is helping nobody. It is a joke that we are here today bringing this horrific bill to the floor basically so that the NRA can be happy and justify another $100 million into their campaigns.

People are dying every single day in this country, and we hardly hear a word about it from the other side of the aisle. In fact, during this debate, very little was even acknowledged in terms of the people who are dying in this country. We can do so much better.

I used to have a history teacher who used to say the world will not get better on its own. I didn't really know what he was talking about when I took the course, but I do now. Nothing good happens unless good people come together and make change.

There have to be some reasonable people on the Republican side who understand that gun violence is out of control. We have more guns in this country than people. We can't shoot our way out of this problem, and yet that is what my Republican friends are suggesting.

Enough is enough. We need to get back to doing the people's business.

Mr. Speaker, I urge my colleagues to vote ''no'' on the previous question, vote ''no'' on the rule, and vote ''no'' on all this garbage messaging legislation that will follow. We are here to solve problems, to make people's lives better. Let's do something that actually makes the American people proud of this Congress. This is embarrassing.

Mr. Speaker, I yield back the balance of my time.

Mr. MASSIE. Mr. Speaker, I ask unanimous consent to submit for the RECORD a letter to Speaker MCCARTHY, Ranking Member HAKEEM JEFFRIES, and others signed by 11 veterans and military organizations in support of H.J. Res. 44.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Kentucky?

There was no objection.

JUNE 7, 2023.

Hon. KEVIN MCCARTHY,
Speaker of the House
Hon. MITCH MCCONNELL,
Minority Leader of the Senate
Hon. STEVE SCALISE,
Majority Leader of the House
Hon. CHUCK SCHUMER,
Majority Leader of the Senate
Hon. HAKEEM JEFFRIES,
Minority Leader of the House

DEAR SPEAKER MCCARTHY, LEADERS SCHUMER AND MCCONNELL, AND LEADERS JEFFRIES AND SCALISE: We, the undersigned veteran and military serving organizations, endorse immediate passage of House Joint Resolution 44 (H.J. Res. 44) and Senate Joint Resolution 20 (S.J. Res. 20). Congress must execute its oversight powers under the Congressional Review Act to rein in this unconstitutional and discriminatory overreach of Executive Branch powers by the Bureau of Alcohol, Tobacco, Firearms, and Explosives (ATF) to wrongfully limit the use of ''pistol braces,'' and should follow up such Resolutions with more permanent legislation to reclaim this unconstitutional delegation of legislative powers by Congress to the Executive Branch and limit the ability of Executive Branch to engage in such Administrative assumption of Congress' enumerated legislative powers.

ATF is exercising extreme Executive Branch powers overreach in unilaterally declaring pistol braces as the equivalent of short-barreled rifles. They are not. Instead, pistol braces are compensatory accommodation devices for disabled U.S. citizens to exercise their fundamental natural ''right to keep and bear arms'' safely and securely by stabilizing the use of a handgun where they would not otherwise have full use of both hands.

The inventor of the first stabilizing brace for pistols was Alex Bosco of SB Tactical, who designed and intended his device to accommodate a friend and wounded veteran. Bosco testified to the House Judiciary and Oversight and Accountability Committees: One day at the range, an over-eager range officer told one of my range buddies, a wounded veteran, that he was not carefully firing his weapon. The range officer said that because (in his opinion) my friend was firing erratically, he had to bench his pistol from the seated position. Because of the wounds my friend had received in service of his country, the range officer's suggestion made me angry, first because I did not agree that my friend was shooting in a dangerous manner, and second, because I thought it unconscionable that he or anyone like him should be denied the opportunity to safely use a firearm due to wounds received in service of the United States. This experience led to the invention of the pistol stabilizing brace.

The first pistol brace design was approved by ATF in 2012, and so SB Tactical began marketing them to other disabled veterans. In the years following, millions of stabilizing brace-equipped pistols were sold legally across the country. That interpretive guidance stood for almost 10 years and was first made when now President Biden was Vice President of the United States. But then, with less than four months of legal sanctuary for the millions of disabled firearm owners who relied on that decade of regulatory precedent, The ATF implemented its draconian, unnecessary, poorly developed, and unconstitutional gun-grab making millions of these law-abiding citizens, including hundreds of thousands of military service veterans disabled in the service of their country to defend exactly these rights, criminals as of May 31st, 2023.

Now is the time for Congress to act to preserve these fundamental rights and stop this unconstitutional assumption of legislative powers by the Executive Branch. Because, despite that incredibly short legal grace period, if a disabled veteran brings such a pistol brace to a legally operating gun range as of June 1st, 2023, and is acting in a legal manner in all other respects, they are subject to arrest by the ATF, a criminal fine of $250,000, and incarceration in federal prison for 10 years—all because they wished to more safely and securely exercise their inalienable rights to keep and bear arms.

And while ATF lamely claims there are adequate safeguards for ''legitimate'' use of pistol braces, those safeguards contained in ATF's Final Rule ATF 2021 R–08F, are wholly inadequate and barely conceal ATF's apparent underlying desire simply to outlaw pistol braces without so blatantly doing so. In fact, those ''accommodations'' only apply if a veteran has not turned their pistol over to the ATF, registered their firearm with the federal government, destroyed their lawfully acquired pistol, or rebuilt their firearm such that it is no longer handicap accessible.

Instead of complying with this rule, many gun owners and organizations opted to fight for the right to have these handicap-accessible firearms. Now, veterans who did not comply with ATF's rule and who are current members of the organization who sued the federal government in State of Texas and Gun Owners of America v. Garland, Mock v. Garland, SAF v. ATF, or Britto v. ATF are protected from this Rule because four federal courts ruled that these plaintiffs are likely to succeed in their lawsuits and have enjoined the ATF from punishing the plaintiffs for not rebuilding, registering, destroying, or turning in their pistols.

Still, other veterans who have sued the federal government in different lawsuits have not been granted an injunction yet. Rick Cicero, who ''lost two limbs while serving his country in Afghanistan'' and ''cannot fire certain pistols without a stabilizing brace'' has yet to receive a ruling from the Eighth Circuit as to whether he is protected from the Biden Administration's new rule. No one should have to join an organization or file a lawsuit to have their firearm ownership rights protected from a federal overreach, and so therefore now is the time for Congress to act to restore these protections to all Americans.

Indeed ATF's actions disproportionately impact disabled veterans, as 27 percent of those veterans, and 41 percent of post-9/11 veterans, suffer under at least one service-connected disability. And with almost half of the country's 19 million veterans owning firearms (as compared to 30 percent gun ownership by the general population), the ATF's action disproportionately and discriminatorily impacts disabled veterans, which ATF did not adequately investigate nor consider in its Final Rule. Fortunately, Congress has the power to reclaim its Constitutionally enumerated legislative powers from this Executive Branch overreach.

And while such proscriptive restriction of ATF is supported by the federal courts, those courts do not have sufficient power to prevent Executive Branch overreach. Yes, the Supreme Court did decide in District of Columbia v. Heller the individual right to have a pistol at home. And, a Seventh Circuit Court affirmed that banning pistols equipped with stabilizing braces violates the Constitutional protections against undue restrictions

of that individual right to keep and bear arms because: braces are needed by certain individuals with disabilities to operate a firearm. Thus, arm braces are an integral part of the meaningful exercise of Second Amendment rights for such individuals and can also be considered an ''arm.'' . . . [because i]t is uncontroverted that law-abiding members of society, including the elderly, infirmed, and disabled, have the constitutional right to arm themselves for self-defense.''

But those Court decisions are insufficient to protect these gun rights for disabled veterans because they still allow ATF to exercise arbitrary and capricious Executive Branch power to define the specifics of a crime (which is clearly a Legislative power), prosecute it on their own recognizance based upon those non-legislatively defined crimes, and then, effectively adjudicate what constitutes a deprivation of fundamental liberties and property without due process by a judicial court. Only Congress can restrain this unconstitutional Executive Branch power grab, and that is why the immediate passage of Congressional Review Act resolutions to strike down these impertinent actions is needed.

We stand ready to assist you in its House and Senate passage and to engage the Biden Administration as to why this is not the time to veto a resolution which so clearly protects disabled veterans' rights.

Very Respectfully,

National Defense Committee, The Ranger Leadership and Policy Center, Arizona Veterans, US Army Ranger Association, Naval Enlisted Reserve Association, Worldwide Army Rangers, Sea Service Family, Foundation, The 75th Ranger Regiment Association, The Gallant Few, American GI Forum, and Three Rangers Foundation.

Mr. MASSIE. Mr. Speaker, I yield myself the balance of my time to close.

The REINS Act, which I would argue is the most important part of these five bills, is here, and we are debating it today because my constituent, Lloyd Rogers—who grew up in an orphanage in Kentucky, where he met his future wife in that same orphanage—sent this idea for this bill to his Congressman who preceded me.

Lloyd Rogers served in the Army during the Korean war. Then he came home, and he served as a county judge executive. He was shocked when he was trying to serve the people in his community at how many of the rules and regulations that tied his hands were never passed by Congress. He wrote this bill, and he sent it to his Congressman.

By the way, he and his wife were married for 65 years, and Lloyd turned 90 on Saturday. He is watching this debate.

This is how our Republic is supposed to work. Laws aren't supposed to come from unelected bureaucrats with no accountability. They are supposed to be ideas that people in our communities have that would make their lives better, and then we are accountable to them, so when they talk to us, we have to listen. They can throw us out every 2 years. Maybe they should throw more of us out every 2 years.

Lloyd came to his Congressman and said, please, put this bill on the floor. It went to legislative counsel. The Congressman introduced this bill, and it has been very popular. It is one of the most popular bills among the American people because they know the structure of our government intended by our Founding Fathers was for us to write the laws and for the administrative branch to execute the laws, not to write them themselves.

Mr. Speaker, I urge adoption of this rule, which contains five bills that I urge the passage of.

The material previously referred to by Mr. MCGOVERN is as follows:

AN AMENDMENT TO H. RES. 495 OFFERED BY MR. MCGOVERN OF MASSACHUSETTS

At the end of the resolution, add the following:

SEC. 7. Immediately upon adoption of this resolution, the House shall proceed to the consideration in the House of the resolution (H. Res. 178) affirming the House of Representatives' commitment to protect and strengthen Social Security and Medicare. The resolution shall be considered as read. The previous question shall be considered as ordered on the resolution and preamble to adoption without intervening motion or demand for division of the question except one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Ways and Means or their respective designees.

SEC. 8. Clause 1(c) of rule XIX shall not apply to the consideration of H. Res. 178.

Mr. MASSIE. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. MCGOVERN. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 9 of rule XX, this 15-minute vote on ordering the previous question will be followed by 5-minute votes on the adoption of the resolution, if ordered, and the motion to suspend the rules and pass H.R. 3099.

The vote was taken by electronic device, and there were—yeas 216, nays 209, not voting 8, as follows:

[Roll No. 249]

YEAS—216

Aderholt
Alford
Allen
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bean (FL)
Bentz
Bergman
Bice
Biggs
Bilirakis
Bishop (NC)
Boebert
Brecheen
Buchanan
Buck
Bucshon
Burchett
Burgess
Burlison
Calvert
Cammack
Carey
Carl
Carter (GA)
Chavez-DeRemer
Ciscomani
Cline
Cloud
Clyde
Cole
Collins
Comer
Crane
Crawford
Crenshaw
Curtis
Davidson
De La Cruz
DesJarlais
Diaz-Balart
Donalds
Duarte
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Ezell
Fallon
Feenstra
Ferguson
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Flood
Foxx
Franklin, C. Scott
Fry
Fulcher
Gaetz
Gallagher
Garbarino
Garcia, Mike
Gimenez
Gonzales, Tony
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Hill
Hinson
Houchin
Hudson
Huizenga
Hunt
Issa
Jackson (TX)
James
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kean (NJ)
Kelly (MS)
Kelly (PA)
Kiggans (VA)
Kiley
Kim (CA)
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Langworthy
Latta
LaTurner
Lawler
Lee (FL)
Lesko
Letlow
Loudermilk
Lucas
Luetkemeyer
Luna
Luttrell
Mace
Malliotakis
Mann
Massie
Mast
McCaul
McClain
McClintock
McCormick
McHenry
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moran
Murphy
Nehls
Newhouse
Norman
Nunn (IA)
Obernolte
Ogles
Owens
Palmer
Pence
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Rosendale
Rouzer
Roy
Rutherford
Salazar
Santos
Scalise
Schweikert
Scott, Austin
Self
Sessions
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spartz
Stauber
Steel
Stefanik
Steil
Steube
Stewart
Strong
Tenney
Thompson (PA)
Tiffany
Timmons
Valadao
Van Drew
Van Duyne
Van Orden
Wagner
Walberg
Waltz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams (NY)
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NAYS—209

Adams
Aguilar
Allred
Auchincloss
Balint
Barragán
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Budzinski
Bush
Caraveo
Carbajal
Cárdenas
Carson
Carter (LA)
Cartwright
Casar
Case
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Connolly
Correa
Costa
Courtney
Craig
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Davis (NC)
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Dingell
Doggett
Escobar
Eshoo
Espaillat
Evans
Fletcher
Foster
Foushee
Frankel, Lois
Frost
Gallego
Garamendi
Garcia (IL)
Garcia (TX)
Garcia, Robert
Golden (ME)
Goldman (NY)
Gomez
Gonzalez, Vicente
Green, Al (TX)
Grijalva
Harder (CA)
Hayes
Higgins (NY)
Himes
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Ivey
Jackson (IL)
Jackson (NC)
Jackson Lee
Jacobs
Jayapal
Jeffries
Johnson (GA)
Kamlager-Dove
Kaptur
Keating
Kelly (IL)
Khanna
Kildee
Kilmer
Kim (NJ)
Krishnamoorthi
Kuster
Landsman
Larsen (WA)
Larson (CT)
Lee (CA)
Lee (NV)
Lee (PA)
Leger Fernandez
Levin
Lieu
Lofgren
Lynch
Magaziner
Manning
Matsui
McBath
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Mfume
Moore (WI)
Morelle
Moskowitz
Moulton
Mrvan
Mullin
Nadler
Napolitano
Neal
Neguse
Nickel
Norcross
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Pelosi

Peltola
Perez
Peters
Pettersen
Phillips
Pingree
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Ross
Ruiz
Ruppersberger
Ryan
Salinas
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, David
Sherman
Sherrill
Slotkin
Smith (WA)
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stevens
Strickland
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Underwood
Vargas
Vasquez
Veasey
Velázquez
Wasserman Schultz
Waters
Watson Coleman
Wexton
Wild
Williams (GA)
Wilson (FL)

NOT VOTING—8

Bost
Carter (TX)
Casten
D'Esposito
Finstad
Gottheimer
Sewell
Turner

□ 1406

Mr. PAPPAS and Ms. HOULAHAN changed their vote from ''yea'' to ''nay.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. MCGOVERN. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 218, noes 209, not voting 6, as follows:

[Roll No. 250]

AYES—218

Aderholt
Alford
Allen
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bean (FL)
Bentz
Bergman
Bice
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brecheen
Buchanan
Buck
Bucshon
Burchett
Burgess
Burlison
Calvert
Cammack
Carey
Carl
Carter (GA)
Carter (TX)
Chavez-DeRemer
Ciscomani
Cline
Cloud
Clyde
Cole
Collins
Comer
Crane
Crawford
Crenshaw
Curtis
Davidson
De La Cruz
DesJarlais
Diaz-Balart
Donalds
Duarte
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Ezell
Fallon
Feenstra
Ferguson
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Flood
Foxx
Franklin, C. Scott
Fry
Fulcher
Gaetz
Gallagher
Garbarino
Garcia, Mike
Gimenez
Gonzales, Tony
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Hill
Hinson
Houchin
Hudson
Huizenga
Hunt
Issa
Jackson (TX)
James
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kean (NJ)
Kelly (MS)
Kelly (PA)
Kiggans (VA)
Kiley
Kim (CA)
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Langworthy
Latta
LaTurner
Lawler
Lee (FL)
Lesko
Letlow
Loudermilk
Lucas
Luetkemeyer
Luna
Luttrell
Mace
Malliotakis
Mann
Massie
Mast
McCaul
McClain
McClintock
McCormick
McHenry
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moran
Murphy
Nehls
Newhouse
Norman
Nunn (IA)
Obernolte
Ogles
Owens
Palmer
Pence
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Rosendale
Rouzer
Roy
Rutherford
Salazar
Santos
Scalise
Schweikert
Scott, Austin
Self
Sessions
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spartz
Stauber
Steel
Stefanik
Steil
Steube
Stewart
Strong
Tenney
Thompson (PA)
Tiffany
Timmons
Valadao
Van Drew
Van Duyne
Van Orden
Wagner
Walberg
Waltz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams (NY)
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NOES—209

Adams
Aguilar
Allred
Auchincloss
Balint
Barragán
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Budzinski
Bush
Caraveo
Carbajal
Cárdenas
Carson
Carter (LA)
Cartwright
Casar
Case
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Connolly
Correa
Costa
Courtney
Craig
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Davis (NC)
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Dingell
Doggett
Escobar
Eshoo
Espaillat
Evans
Fletcher
Foster
Foushee
Frankel, Lois
Frost
Gallego
Garamendi
García (IL)
Garcia (TX)
Garcia, Robert
Golden (ME)
Goldman (NY)
Gomez
Gonzalez, Vicente
Grijalva
Harder (CA)
Hayes
Higgins (NY)
Himes
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Ivey
Jackson (IL)
Jackson (NC)
Jackson Lee
Jacobs
Jayapal
Jeffries
Johnson (GA)
Kamlager-Dove
Kaptur
Keating
Kelly (IL)
Khanna
Kildee
Kilmer
Kim (NJ)
Krishnamoorthi
Kuster
Landsman
Larsen (WA)
Larson (CT)
Lee (CA)
Lee (NV)
Lee (PA)
Leger Fernandez
Levin
Lieu
Lofgren
Lynch
Magaziner
Manning
Matsui
McBath
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Mfume
Moore (WI)
Morelle
Moskowitz
Moulton
Mrvan
Mullin
Nadler
Napolitano
Neal
Neguse
Nickel
Norcross
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Pelosi
Peltola
Perez
Peters
Pettersen
Phillips
Pingree
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Ross
Ruiz
Ruppersberger
Ryan
Salinas
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Slotkin
Smith (WA)
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stevens
Strickland
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Underwood
Vargas
Vasquez
Veasey
Velázquez
Wasserman Schultz
Waters
Watson Coleman
Wexton
Wild
Williams (GA)
Wilson (FL)

NOT VOTING—6

Casten
D'Esposito
Finstad
Gottheimer
Green, Al (TX)
Turner

□ 1416

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated against:

Mr. GREEN of Texas. Mr. Speaker, had I been present, I would have voted ''no'' on rollcall No. 250.

SPECIAL ENVOY FOR THE ABRAHAM ACCORDS ACT

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 3099) to establish in the Department of State the position of Special Envoy for the Abraham Accords, and for other purposes, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. MCCAUL) that the House suspend the rules and pass the bill, as amended.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 413, nays 13, not voting 7, as follows:

[Roll No. 251]

YEAS—413

Adams
Aderholt
Aguilar
Alford
Allen
Allred
Amodei
Armstrong
Arrington
Auchincloss
Babin
Bacon
Baird
Balderson
Balint
Banks
Barr
Barragán
Bean (FL)
Beatty
Bentz
Bera
Bergman
Beyer
Bice
Biggs
Bilirakis
Bishop (GA)
Bishop (NC)
Blumenauer
Blunt Rochester
Boebert
Bonamici
Bost
Boyle (PA)
Brecheen
Brown
Brownley
Buchanan
Buck
Bucshon
Budzinski
Burchett
Burgess
Burlison
Calvert
Cammack
Caraveo
Carbajal
Cárdenas
Carey
Carl
Carson
Carter (GA)
Carter (LA)
Carter (TX)
Cartwright
Casar
Case
Castor (FL)
Castro (TX)
Chavez-DeRemer
Cherfilus-McCormick
Chu
Ciscomani
Clark (MA)
Clarke (NY)
Cleaver
Cline
Cloud
Clyburn
Clyde
Cohen
Cole
Collins
Comer
Connolly
Correa
Costa
Courtney
Craig
Crane
Crawford
Crenshaw
Crockett
Crow
Cuellar
Curtis
Davids (KS)
Davidson
Davis (IL)
Davis (NC)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
DesJarlais
Diaz-Balart
Dingell
Doggett
Donalds
Duarte
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Escobar
Eshoo
Espaillat
Estes
Evans
Ezell
Fallon
Feenstra
Ferguson
Fischbach
Fitzgerald
Fitzpatrick

Fleischmann	Landsman	Ross
Fletcher	Langworthy	Rouzer
Flood	Larsen (WA)	Roy
Foster	Larson (CT)	Ruiz
Foushee	Latta	Ruppersberger
Foxx	LaTurner	Rutherford
Frankel, Lois	Lawler	Ryan
Franklin, C. Scott	Lee (FL)	Salazar
Frost	Lee (NV)	Salinas
Fry	Leger Fernandez	Sánchez
Fulcher	Lesko	Santos
Gaetz	Letlow	Sarbanes
Gallagher	Levin	Scalise
Gallego	Lieu	Scanlon
Garamendi	Lofgren	Schakowsky
Garbarino	Loudermilk	Schiff
Garcia (TX)	Lucas	Schneider
Garcia, Mike	Luetkemeyer	Scholten
Garcia, Robert	Luna	Schrier
Gimenez	Luttrell	Schweikert
Golden (ME)	Lynch	Scott (VA)
Goldman (NY)	Mace	Scott, Austin
Gomez	Magaziner	Scott, David
Gonzales, Tony	Malliotakis	Self
Gonzalez, Vicente	Mann	Sessions
Good (VA)	Manning	Sewell
Gooden (TX)	Mast	Sherman
Gosar	Matsui	Sherrill
Granger	McBath	Simpson
Graves (LA)	McCaul	Slotkin
Graves (MO)	McClain	Smith (MO)
Green (TN)	McClellan	Smith (NE)
Green, Al (TX)	McClintock	Smith (NJ)
Greene (GA)	McGarvey	Smith (WA)
Griffith	McGovern	Smucker
Grijalva	McHenry	Sorensen
Grothman	Meeks	Soto
Guest	Menendez	Spanberger
Guthrie	Meng	Spartz
Hageman	Meuser	Stansbury
Harder (CA)	Mfume	Stanton
Harris	Miller (IL)	Stauber
Harshbarger	Miller (OH)	Steel
Hayes	Miller (WV)	Stefanik
Hern	Miller-Meeks	Steil
Higgins (LA)	Mills	Steube
Higgins (NY)	Molinaro	Stevens
Hill	Moolenaar	Stewart
Himes	Mooney	Strickland
Hinson	Moore (AL)	Strong
Horsford	Moore (UT)	Swalwell
Houchin	Moore (WI)	Sykes
Houlahan	Moran	Takano
Hoyer	Morelle	Tenney
Hoyle (OR)	Moskowitz	Thanedar
Hudson	Moulton	Thompson (CA)
Huffman	Mrvan	Thompson (MS)
Huizenga	Mullin	Thompson (PA)
Hunt	Murphy	Tiffany
Issa	Nadler	Timmons
Ivey	Napolitano	Titus
Jackson (IL)	Neal	Tokuda
Jackson (NC)	Neguse	Tonko
Jackson (TX)	Nehls	Torres (CA)
Jackson Lee	Newhouse	Torres (NY)
Jacobs	Nickel	Trahan
James	Norcross	Trone
Jayapal	Norman	Underwood
Jeffries	Nunn (IA)	Valadao
Johnson (GA)	Obernolte	Van Drew
Johnson (LA)	Ogles	Van Duyne
Johnson (OH)	Owens	Van Orden
Johnson (SD)	Pallone	Vargas
Joyce (OH)	Palmer	Vasquez
Joyce (PA)	Panetta	Veasey
Kamlager-Dove	Pappas	Velázquez
Kaptur	Pascrell	Wagner
Kean (NJ)	Payne	Walberg
Keating	Pelosi	Waltz
Kelly (IL)	Peltola	Wasserman Schultz
Kelly (MS)	Pence	Waters
Kelly (PA)	Perez	Watson Coleman
Khanna	Perry	Weber (TX)
Kiggans (VA)	Peters	Webster (FL)
Kildee	Pettersen	Wenstrup
Kiley	Pfluger	Westerman
Kilmer	Phillips	Wexton
Kim (CA)	Pingree	Wild
Kim (NJ)	Pocan	Williams (GA)
Krishnamoorthi	Porter	Williams (NY)
Kuster	Posey	Williams (TX)
Kustoff	Quigley	Wilson (FL)
LaHood	Raskin	Wilson (SC)
LaLota	Reschenthaler	Wittman
LaMalfa	Rogers (AL)	Womack
Lamborn	Rogers (KY)	Yakym
	Rose	Zinke
	Rosendale	

NAYS—13

Bowman	Massie	Pressley
Bush	McCollum	Ramirez
Garcia (IL)	McCormick	Tlaib
Lee (CA)	Ocasio-Cortez	
Lee (PA)	Omar	

NOT VOTING—7

Casten	Gottheimer	Turner
D'Esposito	Jordan	
Finstad	Rodgers (WA)	

□ 1426

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Ms. LEE of California. Mr. Speaker, on roll-call No. 251, I mistakenly voted "nay" when I intended to vote "yea."

PROVIDING FOR CONGRESSIONAL DISAPPROVAL UNDER THE RULE SUBMITTED BY THE BUREAU OF ALCOHOL, TOBACCO, FIREARMS, AND EXPLOSIVES RELATING TO ''FACTORING CRITERIA FOR FIREARMS WITH ATTACHED 'STABILIZING BRACES'''

Mr. HUNT. Mr. Speaker, pursuant to House Resolution 495, I call up the joint resolution (H.J. Res. 44) providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Bureau of Alcohol, Tobacco, Firearms, and Explosives relating to ''Factoring Criteria for Firearms with Attached 'Stabilizing Braces''', and ask for its immediate consideration in the House.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore (Mr. LAMBORN). Pursuant to House Resolution 495, the joint resolution is considered read.

The text of the joint resolution is as follows:

H.J. RES. 44

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That Congress disapproves the rule submitted by the Bureau of Alcohol, Tobacco, Firearms, and Explosives relating to ''Factoring Criteria for Firearms with Attached 'Stabilizing Braces'' (ATF final rule 2021R–08F), and such rule shall have no force or effect.

The SPEAKER pro tempore. The joint resolution shall be debatable for 1 hour equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary or their respective designees.

The gentleman from Texas (Mr. HUNT) and the gentleman from New York (Mr. NADLER) each will control 30 minutes.

The Chair recognizes the gentleman from Texas (Mr. HUNT).

GENERAL LEAVE

Mr. HUNT. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to insert extraneous material on H.J. Res. 44.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. HUNT. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, H.J. Res. 44 provides for congressional disapproval for the rule submitted by the Biden ATF relating to factoring criteria for firearms with attached stabilizing braces.

On January 31, 2023, the ATF issued a final rule that effectively bans pistol stabilizing braces nationwide. The ATF's rule redefined a firearm with an attached stabilizing brace as a short-barreled rifle subject to regulation under the Gun Control Act of 1968 and the National Firearms Act of 1934.

Let's be clear about what is happening here today. With one stroke of a pen, unelected bureaucrats in Biden's ATF changed regulatory definitions that will turn millions of law-abiding citizens into felons overnight. That is a fact.

If the owners of the roughly 40 million stabilizing braces in circulation today do not obtain a special registration, surrender, destroy their brace, or turn their brace in to the ATF by May 31, 2023, they could now face criminal penalties up to 10 years in Federal prison, with fines of up to $250,000.

This isn't happening because Congress passed a law or because a judge issued a ruling. This is an example of the executive branch making law. This is a Federal agency usurping the legislative authority that Congress has under the Constitution.

Congressional Democrats couldn't pass a bill that outlawed pistol stabilizing braces, so the Biden administration has utilized executive fiat to achieve the desired outcome.

To make matters worse, the rule directly contradicts a prior 2012 determination made by the Obama ATF. President Obama's ATF said that a firearm equipped with a stabilizing brace would not be subject to the National Firearms Act controls. The ATF says one thing for a decade and then does another which will then turn millions of law-abiding citizens into felons literally overnight.

Now, American citizens who own these pistol stabilizing braces and relied on the statements made by the ATF are in violation of Federal law and are subject to serious criminal penalties.

The Second Amendment is imbued in the Bill of Rights for a reason. It preserves the First Amendment and all other unalienable rights afforded to the American people. We don't need to reimagine the Second Amendment. We don't need to curtail it. We most certainly won't be repealing it with a 28th amendment.

This ATF rule is an affront against the rights of the American citizen and an assault on the Second Amendment, and it must be defeated.

This resolution will nullify the ATF rule and further protect one of our most basic rights and reclaim Congress' lawmaking authority given to us by our Constitution.

Mr. Speaker, I urge my colleagues to support the resolution, and I reserve the balance of my time.

Mr. NADLER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in strong opposition to this resolution, which would ignore the considered judgment of the Bureau of Alcohol, Tobacco, Firearms, and Explosives and make stabilizing braces, a favorite tool of mass shooters, widely available without a background check.

Today is one of those clarifying moments when the priorities of the Republican majority are on clear display. Instead of taking up legislation to reduce gun violence in America, we are advancing a bill to ensure that more deadly weapons are in the hands of mass shooters in this country. What a disgrace.

Mr. Speaker, gun violence continues to take the lives of more than 100 Americans every day. It changes how safe we feel in our schools and in our houses of worship. It reduces vibrant cities to somber headlines. It takes our loved ones, old and young, and leaves us with another anniversary of lives cut short and a community forever changed.

Today, rather than stand up against gun violence, the majority plans to pass this bill so that they can yet again stand with the gun industry.

Rather than support the law enforcement officers who are on the front lines of protecting our communities, the majority is attempting to weaken law enforcement by rolling back a rule created by the ATF meant to protect us from dangerous weapons. The ATF is the law enforcement agency tasked with keeping guns out of the wrong hands and keeping our gun laws in line with congressional intent through rulemaking.

In 1934, Congress passed the National Firearms Act, creating additional requirements to own certain especially dangerous firearms, like short-barreled rifles, which were widely used by violent criminals. Congress included short-barreled rifles because they combine the firepower of a rifle with the concealability of a smaller gun.

In recent years, the gun industry discovered a way to circumvent the restrictions of the National Firearms Act by selling stabilizing braces, an accessory that allows a pistol to be fired from the shoulder, turning it into a deadly yet concealable short-barreled rifle.

In 2020, under the Trump administration, the ATF concluded that stabilizing braces were being widely used to create short-barreled rifles and published guidance regarding their use. House Republicans cried foul. Just 4 days after the guidance was published, 90 House Republicans sent a letter to the ATF and the DOJ expressing their opposition, and just a few days later, the guidance was withdrawn.

A few months later, under the Biden administration, the ATF revived its efforts to regulate stabilizing braces and published the final rule in January to ensure that our laws stay in line with the intent of Congress, dating all the way back to 1934, when Congress decided that deadly, concealable short-barreled rifles should be subject to heightened regulation.

Republicans will stop at nothing to block the ATF from taking this simple lifesaving measure, even though they know that blocking this rule could have deadly consequences.

Mass shooters used guns with stabilizing braces to kill 9 people outside a bar in Dayton in 2019; to kill 10 people, including a responding officer, in a grocery store in Boulder in 2021; to kill 5 people in an LGBTQ nightclub in Colorado Springs last year; and just this past March, to kill 6 people, including 3 children, in a school in Nashville, the nineteenth school shooting this year.

The Nashville shooting occurred the day before the Judiciary Committee initially planned to mark up this resolution, so the majority, apparently sensitive to the optics, if not the substance, of marking up this resolution, postponed the markup.

Three weeks later, they decided that enough time had passed since three more families woke up without the child they had taken to school, and they were ready to advance a bill to enable more mass shooters to inflict death and destruction in our communities. I guess they thought that we had forgotten the lives lost in that terrible tragedy. We will never forget them or the countless others who lose their lives to gun violence every day.

Now, today, the majority seeks to pass this bill on the House floor, despite the deadly consequences. How many more lives will be lost because Republicans refuse to acknowledge that these weapons are a favorite of mass shooters for their ability to make a gun both deadly and concealable? How many more people have to die before Republicans will value the lives of our children over the profits of the gun industry?

During the last Congress, Democrats put forth a range of solutions to prevent gun violence, to support law enforcement, and to solve violent crimes, but our colleagues across the aisle continue to push for unfettered access to every firearm and accessory imaginable.

□ 1445

As Republicans continue to seek freedom from gun regulation, we will continue to seek communities free from gun violence.

Mr. Speaker, I urge my colleagues to oppose this dangerous legislation, and I reserve the balance of my time.

Mr. HUNT. Mr. Speaker, I include in the RECORD a cost estimate for H.J. Res. 44 prepared by the Congressional Budget Office.

H.J. RES. 44, A JOINT RESOLUTION PROVIDING FOR CONGRESSIONAL DISAPPROVAL UNDER CHAPTER 8 OF TITLE 5, UNITED STATES CODE, OF THE RULE SUBMITTED BY THE BUREAU OF ALCOHOL, TOBACCO, FIREARMS, AND EXPLOSIVES RELATING TO ''FACTORING CRITERIA FOR FIREARMS WITH ATTACHED 'STABILIZING BRACES' '', AS REPORTED BY THE HOUSE COMMITTEE ON THE JUDICIARY ON MAY 17, 2023

	By fiscal year, millions of dollars—		
	2023	2023–2028	2023–2033
Direct Spending (Outlays)	0	0	0
Revenues	−14	−243	−506
Increase or Decrease (−) in the Deficit	14	243	506
Spending Subject to Appropriation (Outlays)	*	*	**

* = between zero and $500,000.
** = not estimated.

Increases *net direct spending* in any of the four consecutive 10-year periods beginning in 2034? No. Statutory pay-as-you-go procedures apply? Yes.

Increases *on-budget deficits* in any of the four consecutive 10-year periods beginning in 2034? <$5 billion.

Mandate Effects:

Contains intergovernmental mandate? No.

Contains private-sector mandate? No.

H.J. Res. 44 would disapprove the final rule ''Factoring Criteria for Firearms With Attached 'Stabilizing Braces,' '' which was submitted by the Department of Justice and took effect on January 31, 2023, the day it was published in the *Federal Register*. The resolution would invoke a legislative process established by the Congressional Review Act to repeal the final rule and prohibit the department from issuing the same or a similar rule in the future.

The Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF) regulates firearms under the National Firearms Act of 1934 (NFA) and the Gun Control Act of 1968 (GCA). The NFA requires certain guns, including short-barreled rifles, to be licensed and registered with the ATF and subjects them to various taxes, including a $200 tax on the transfer of those weapons and on the production by anyone other than a qualified manufacturer. The final rule reclassifies certain firearms equipped with a stabilizing brace that allows the user to fire from their shoulder as short-barreled rifles. Thus, the owners and manufacturers of those weapons are subject to taxation under the NFA. Disapproval of the final rule would return those firearms to regulation under the GCA, which does not require registration or transfer and production taxes.

The staff of the Joint Committee on Taxation estimates that by disapproving the rule, H.J. Res. 44 would reduce revenues by $506 million over the 2023–2033 period (see Table 1).

TABLE 1.—ESTIMATED REVENUE EFFECTS OF H.J. RES. 44

	By fiscal year, millions of dollars—												
	2023	2024	2025	2026	2027	2028	2029	2030	2031	2032	2033	2023–2028	2023–2033
	Decreases in revenues												
Estimated Revenues	−14	−44	−45	−45	−46	−48	−49	−51	−53	−54	−56	−243	−506

Source: Staff of the Joint Committee on Taxation.
Components may not sum to totals because of rounding.

The Department of Justice would incur administrative costs to undo the rule and revert to the previous regulations. Based on the costs of similar activities, CBO estimates that it would cost less than $500,000 over the 2023–2028 period to implement H.J. Res. 44; any spending would be subject to the availability of appropriated funds.

The CBO staff contacts for this estimate are Jeremy Crimm and Margot Berman. The estimate was reviewed by H. Samuel Papenfuss, Deputy Director of Budget Analysis.

PHILLIP L. SWAGEL,
Director, Congressional Budget Office.

Mr. HUNT. Mr. Speaker, I yield 5 minutes to the gentleman from Georgia (Mr. CLYDE).

Mr. CLYDE. Mr. Speaker, I am grateful that today we are considering my Congressional Review Act joint resolution of disapproval, H.J. Res. 44, co-led with Congressman RICHARD HUDSON, which would strike down the ATF's unconstitutional pistol stabilizing brace rule.

Back in January, the ATF finalized this unlawful measure pertaining to firearms with stabilizing braces. Under the ATF's new rule, any pistol braced firearm would be considered an unregistered short-barreled rifle, subjecting these firearms to the draconian regulations of the National Firearms Act of 1934.

The ATF informed law-abiding gun owners possessing pistols housing these stabilizing braces that they would have only 120 days to register these firearms or risk harsh NFA violations, including hefty fines of up to $250,000 and up to 10 years in prison. This 120-day amnesty registration window recently ended at midnight on May 31.

We all know the end result of gun registration. It will inevitably lead to gun confiscation.

For the stabilizer brace owners who do not wish to register their firearms, the ATF provides a few very heavy-handed alternatives. Gun owners can turn in, destroy, convert, or dismantle their pistol braced firearms. That means, basically, that ATF says you can't have it anymore.

Again, if law-abiding owners refuse to comply with these ridiculous regulations, they face severe punishment. They face 10 years in prison and up to a $250,000 fine for simply attaching a piece of plastic to their firearm. They then become a felon for life.

The regulatory saga surrounding the pistol brace is enough to make even the most seasoned lawmaker's head spin. It is so ridiculously Big Government that no American can be expected to keep up with this irrational rulemaking.

Back in 2012, under the Obama administration, pistol braces were determined to be legal and fully unrestricted. This decision was then reversed 3 years later in 2015, claiming stabilizing braces were illegal to shoulder, turning pistol braced firearms into unregistered short-barreled rifles. This changed again in 2017 when stabilizing braces were once more determined to be legal to shoulder as long as they were designed as a pistol brace.

Now here we are in 2023, as the ATF is yet again vilifying pistol stabilizing braces and turning their owners into felons. Americans, including disabled veterans, are at risk of losing their right to keep and bear arms because of this ATF rule that many Americans likely do not even know exists.

Mr. Speaker, I have heard many fear-inducing lies from my Democrat colleagues that these braces make firearms more dangerous and deadly. That is simply not true. Stabilizing braces were originally designed to help service-disabled veterans to not just enjoy the sport of shooting but to assist these wounded heroes in practicing their constitutional right to keep and bear arms.

The brace attaches to the rear of a firearm in order to anchor the gun to the shooter's arm, allowing them to shoot one-handed. That is exactly what you are supposed to be able to do with a pistol, shoot one-handed. That is the definition.

Millions of veterans, including service-disabled veterans, rely on these braces every day to exercise their Second Amendment freedoms and right to self-defense. Yet, the Biden ATF rule criminalizes these beneficial stabilizing braces—again, turning millions of these law-abiding gun owners into criminals overnight.

It is no secret that with this measure, and many other forms of backdoor gun control, the left's ultimate goal is an unarmed America. That is what this is all about, slowly chipping away at Americans' constitutional right to keep and bear arms. Not on my watch.

This rule doesn't just infringe upon Americans' Second Amendment liberties. It represents a dangerous government overreach by the Biden administration. Congress maintains sole legislative authority, not government agencies and not the executive branch. Congress writes laws, not unelected, anti-gun bureaucrats at the ATF.

This is nothing more than governing by executive fiat to advance the left's desire to disarm our Nation and destroy Americans' Second Amendment rights.

Today, the people's House can take a stand against this unlawful overreach. I am proud to lead the fight against this unconstitutional pistol brace rule with this critical legislation, H.J. Res. 44. I am proud to have my friend, Congressman HUDSON, join me in co-leading this vital effort, as well as over 180 original House Republican cosponsors.

The House must act now to save law-abiding gun owners from being unwittingly criminalized by the ATF. We must act now to defend service-disabled veterans' and all Americans' Second Amendment freedoms. We must act now to stop the Biden administration's executive overreach and tyranny in its tracks.

Mr. Speaker, I urge all of my colleagues, Republican and Democrat, to support H.J. Res. 44. If they fail to do so, I hope they are prepared to go home and explain to their constituents that they support the ATF's unconstitutional rule to strip service-disabled veterans of their Second Amendment rights.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. HUNT. Mr. Speaker, I yield an additional 1 minute to the gentleman from Georgia.

Mr. CLYDE. Mr. Speaker, I hope they are prepared to go home and explain why they refused to take a stand against this brazen government overreach.

Mr. Speaker, I trust that they will instead choose to join me in voting ''yes'' on H.J. Res. 44. I implore my colleagues to join me because, by passing this legislation, we will send a resounding message to both the judicial system and the Nation that we firmly reject the ATF's unconstitutional rule and executive overreach, that we unapologetically defend service-disabled veterans' unalienable right to keep and bear arms, and that we will never back down in the fight to protect all Americans' Second Amendment liberties.

Mr. NADLER. Mr. Speaker, we will certainly go home and explain to the people why we support the ATF's absolutely necessary actions to defend the safety of the American people.

Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. THOMPSON).

Mr. THOMPSON of California. Mr. Speaker, I rise in strong opposition to this bill. Armed braces are used to convert assault pistols into short-barreled assault rifles that are more accurate, easier to conceal, and can fire rounds capable of penetrating body armor.

Unregistered arm-brace-equipped firearms have been used in a number of high-profile mass shootings: Dayton, Ohio, 9 killed and 17 injured outside of a bar; Boulder, Colorado, 10 killed at a

grocery store; Colorado Springs, 5 killed, 19 injured at a club; Nashville, Tennessee, 6 killed, including 3 9-year-old children at an elementary school.

The ATF final rule closes the loophole that helps arm-brace-equipped pistols circumvent firearm regulations, including the National Firearms Act, which has regulated short-barreled rifles under heightened scrutiny since 1934.

The resolution before us today will take an already menacing and lethal weapon and turn it into a more accurate killing machine. This is misguided and callous, and it will only lead to more death.

Mr. Speaker, I urge my colleagues to vote ''no.''

Mr. HUNT. Mr. Speaker, I yield 5 minutes to the gentleman from North Carolina (Mr. HUDSON).

Mr. HUDSON. Mr. Speaker, I rise today in support of the resolution.

Our Nation's veterans have served our Nation honorably. They and their families have sacrificed for our freedoms. Today, they are calling on us to support their Second Amendment right to keep and bear arms and to ensure that they can protect themselves and their families. Will you answer the call?

Mr. Speaker, everyone in this Chamber, both Republicans and Democrats, say that we support our Nation's veterans. Now is the chance to prove it.

Today, we can block an overreaching regulation by ATF on pistol braces. We can defend the rights of our veterans. We can defend the rights of all law-abiding gun owners.

A new regulation by President Biden's ATF on pistol braces has turned millions of combat-wounded veterans and law-abiding citizens into felons overnight. Before my colleagues cast a vote today, I want you to know the story of how the pistol brace was developed.

Several years ago, a combat-wounded veteran went to a local gun range with his buddy. However, he was asked to leave due to his lack of control over the pistol because of his combat wounds.

After leaving the range, his buddy went home and created the first pistol brace concept so that his friend and other combat-wounded veterans could exercise their constitutional right to protect themselves, their families, and their homes and could participate in shooting sports again, even on pistol platforms that were otherwise too cumbersome for a disabled shooter to use.

Two years ago, I held a press conference outside of this U.S. Capitol with a group of combat-wounded veterans from around the country, including Army veteran Rick Cicero. They came to share how devastating a new regulation from President Joe Biden's ATF would be on veterans.

Cicero lost his right leg and right arm due to an IED explosion while serving our country in Afghanistan. As a son of a firearms instructor and long-time shooter, he didn't want to give up his Second Amendment rights.

In Rick's own words that day: ''The most important thing to me about this brace [is it] is another avenue of getting injured veterans out of the house. . . . And it helps to maintain a bit of confidence that you are still able to do something.''

Veterans like Rick Cicero served our country and put their bodies literally on the line for us and for our families. Starting this month, the ATF has taken away their God-given rights protected by our Constitution. It is outrageous.

Since the creation of the brace, the ATF has repeatedly approved stabilizing brace designs. As recently as July 2018, the ATF said a brace used ''to assist shooters in stabilizing a handgun while shooting with a single hand . . . is not considered a shoulder stock and therefore may be attached to a handgun without making an NFA firearm.''

As a result of those former decisions, tens of millions of Americans already legally owned pistols with stabilizing braces.

Yet, the ATF's new rule requires owners of the device to either remove or destroy them or register the braced firearms with the ATF as short-barreled rifles.

For those combat-wounded veterans in New York and Connecticut, which don't allow short-barreled rifles, you have no option. You can't register that brace.

This registration process involves submitting fingerprints and identifying information as well as photographs of the owner and the firearm. Additionally, the registration will require a $200 tax stamp.

The 120-day grace period is well short of previous grace periods where a gun was reclassified under the NFA. In fact, back in 1994, the last time a weapon was reclassified, they had over 6 years to reregister that weapon.

This has led to less compliance and leads me to speculate whether the ATF instituted a short timeline by design. Either way, these regulations are especially difficult for servicemembers deployed overseas, like so many in my district. If they are overseas when the deadline hit the end of last month, they are unable to register their firearms. They are now felons. Think about that. They are serving us overseas, and we have now labeled them a felon.

This travesty illustrates the dangers of an unchecked Federal agency that is willing to go around Congress and the millions of constituents we represent.

Our constituents are fed up. They are sick and tired of unelected bureaucrats making up new laws and calling them regulations. I say enough is enough.

Mr. Speaker, I thank my friend, the gentleman from Georgia (Mr. CLYDE), for partnering with me on this important resolution, and I urge my colleagues to support it.

Mr. NADLER. Mr. Speaker, I yield 3 minutes to the gentlewoman from Texas (Ms. JACKSON LEE).

□ 1500

Ms. JACKSON LEE. Mr. Speaker, I thank the distinguished ranking member and certainly the distinguished Member who is managing, my friend from Texas.

Let me be very clear. I support a stabilizing brace for disabled Americans and veterans.

Could anybody stand here and disagree with that?

They were wounded in combat, and they are fighters for our freedom. It is my honor to have represented the Houston National Cemetery in Texas over a number of years.

Let me be very clear on what we are debating here today. Might I say that there are veterans in the ATF, men and women who served in the United States military who have come home to serve again. Their desire is not to violate the Second Amendment, neither is their desire to take innocent Americans in.

You can get a brace for those disabled veterans, and it is a legal process. This provision specifically is to deal with when you make it a lethal weapon to be used like an assault weapon to kill people.

I don't know why we can't be clear. Let me tell you why it is very clear. It is because we started out with this bill so many days and weeks ago, but in the midst of it, someone used the exact same brace to go into the Covenant School in Nashville and murder three 9-year-olds and three staff members. That is what the ATF is against. Eight children are dying every day and 40,000 Americans are dying throughout the year through gun violence, not your Second Amendment.

Mr. Speaker, who would even think that you could tamper with the Second Amendment?

It is in the Bill of Rights.

However, we do believe that when you have this weapon being created to be the kind of dangerous and lethal weapon to kill, Americans will stand up and say: It is not about the Second Amendment, it is about saving lives.

In Dayton 2019, 9 killed, 17 injured; Boulder 2021, 10 killed; Colorado Springs 2022, 5 killed and 19 injured; Nashville 2023, 6 killed, and children are amongst them.

This is the procedure that is used, not at a shooting range where our veterans may go, but for criminal acts that kill people.

Mr. Speaker, let's hear from the person who actually designed it. It was the creator of the SB tactical stabilizing brace who acknowledged in a 2017 interview with the editor of The Firearm Blog that many who bought the braces did so to avoid National Firearms Registration. They were going to do bad, not those good veterans.

He also said during our joint hearing last month—in answer to a question where I asked him to discuss the ATF

order—that the stabilizing brace was originally designed to allow a disabled veteran to shoot a pistol more accurately and safely.

The SPEAKER pro tempore (Mr. VALADAO). The time of the gentlewoman has expired.

Mr. NADLER. Mr. Speaker, I yield an additional 30 seconds to the gentlewoman from Texas.

Ms. JACKSON LEE. Under this regulation, they will still be allowed to do so.

Let me be very clear. It is for veterans, and under the regulation of ATF, who is full of combat veterans themselves doing their duty to this Nation, who looked at this and said they cannot stand for more children being murdered by someone taking a brace—not disabled at all—but to make a steady aim to kill and take innocent lives.

I commend the ATF for its fortitude. I will tell you, Mr. Speaker, that the work we need to be doing right now, passing the Kimberly Vaughn Firearm Safe Storage Act, extreme risk protection laws, and an assault weapons ban that more than 200 persons voted against but the right people voted for, this is not an injury to our veterans. It is saving lives.

Who would stand up here against a veteran?

Nobody. However, I am going to stand up here against the killing of children.

Mr. Chairman, I rise in Opposition to H.J. Res. 44, which opposes regulation of stabilizing braces—one of the modifications the shooter used to blast their way into Covenant School in Nashville and murder three nine-year olds and three staff members.

After this shooting occurred, the Judiciary Committee postponed the markup of this resolution of disapproval, which was originally scheduled to take place the day after the shooting.

For some reason, which I do not claim to know, Republicans didn't want to talk about stabilizing braces then. But less than a month after more Americans learned that children would never again come home or go to school, Republicans decided that the time was right to hold a markup of this resolution.

It took just twenty-two days for Republicans to move on from the tragic loss of life—of children—and get back to the business of supporting and protecting the gun lobby.

Now here we are today—while the wounds of that tragic day are still fresh—not to vote on a bill to make sure this deadly modification never ends up in the wrong hands again but to make it easier to purchase and possess them.

Instead of offering legislation to address the problem of gun violence or to tackle public safety issues, Republicans are here today to shake their disapproving fingers at the ATF for doing its job and to uplift the very modification used to slaughter nine people and injure 17 in downtown Dayton, Ohio; to massacre ten people, including a police officer, at a supermarket in Boulder, Colorado; to murder five people and injure 19 at a club in Colorado Springs; and as I said—most recently—in Nashville, to kill children and the people who cared for them.

Had the rule on stabilizing braces been in place at the time, these murderers might have been deterred—and lives saved—by the National Firearms Act registration requirements, which include an enhanced background check.

Although my Republican colleagues see fit to abolish or defund ATF or "zero out their salaries"—when it became obvious that stabilizing braces had become a workaround against the short barreled rifle rules, the subject-matter experts at ATF exercised their statutory authority—granted by Congress—as a regulatory agency—to implement, clarify, and interpret the terms and requirements within its jurisdiction, including application of the National Firearms Act.

I should point out that it was under the previous administration that ATF first concluded that stabilizing braces were being designed to avoid NFA requirements.

And it was the creator of the SB Tactical stabilizing brace who acknowledged in a 2017 interview with the editor of The Firearm Blog, that many who bought the braces did so to avoid NFA registration. He also said during our joint hearing last month to discuss the ATF—that the stabilizing brace was "originally designed to allow a disabled veteran" shoot a pistol more accurately and safely. Under this regulation, they will still be allowed to do so.

I commend the ATF for having the fortitude to press forward despite the unfair attacks and bullying by House Republicans—including their December 2020 letter to then Attorney General Barr and ATF Acting Director Lombardo—to provide guidance to prevent the harm created by certain stabilizing braces that convert firearms into concealable, killing machines.

And let me be clear. We all know that this resolution is not particularly about the ATF, disabled veterans, or even stabilizing braces. This resolution is about allowing more guns on the street and in our communities.

Our divisions could not be clearer—as Republicans continue to put more guns, that are more dangerous, in more hands.

They want unfettered access to more guns—to be used against women; more guns to be used against children in their homes and in their schools; more guns to be used against law enforcement—against people shopping in grocery stores—and against people enjoying a night out with friends.

Democrats, on the other hand, will continue to support the ATF in its efforts to address gun violence and to promote commonsense laws that keep Americans safe—like the Kimberly Vaughan Firearm Safe Storage Act, Extreme Risk Protection laws, and an Assault Weapons ban that more than 200 Republicans voted against and could have yielded a much different result in mass shootings that have become an American way of life.

That is why I urge my colleagues to vote no to this dangerous resolution.

Mr. HUNT. Mr. Speaker, I yield 3 minutes to the gentleman from Florida (Mr. RUTHERFORD).

Mr. RUTHERFORD. Mr. Speaker, I thank my good friend from Texas for yielding.

Mr. Speaker, the Second Amendment, which undergirds all the other amendments, is the only amendment in the U.S. Constitution to include the following four words: "shall not be infringed."

As a lifetime law enforcement officer and former sheriff, I have seen firsthand how law-abiding citizens using legal firearms protect themselves, their families, their neighbors, and other innocent persons from those who would do them harm. Mr. Speaker, any crime I have ever seen, I have never seen a stabilizing brace used.

While we are prioritizing safe gun ownership and work to keep firearms out of the hands of criminals and those with mental illness, the Federal Government shall not infringe on the rights of legal gun owners.

That means that the executive branch must not use this administrative rulemaking to rewrite the bounds of the Second Amendment—all without even a vote from Congress.

That, Mr. Speaker, is exactly what the Biden administration is trying to do. They legislate by fiat, through rulemaking.

Earlier this year, the ATF finalized a rule that redefines these pistols with attached stabilizing braces as a short-barreled rifle. After decades, they changed the interpretation.

Mr. Speaker, this insidious rule would turn millions of law-abiding gun owners—including many disabled veterans, as we have heard—who rely on these stabilizing braces into criminals simply for possessing firearms with a legal accessory.

Mr. Speaker, I am proud to cosponsor this important resolution, and I urge my colleagues to support its passage.

Mr. NADLER. Mr. Speaker, I yield 1 minute to the distinguished gentlewoman from Nevada (Ms. TITUS).

Ms. TITUS. Mr. Speaker, my colleagues across the aisle are shamelessly trying to make this into a veterans' issue. It is an NRA bill plain and simple, and they are just trying to put lipstick on a pig. If they cared so much about veterans, then they would have voted for the PACT Act, but they didn't seem to worry that much at that point.

Over the years we have seen the gun industry circumvent existing laws by developing new and advanced accessories to increase the power and lethal capabilities of certain firearms.

From bump stocks to auto sears to pistol braces, these unnecessary accessories serve the primary purpose of making guns more deadly.

Unfortunately, we have seen this play out in events so tragic that we just have to refer to them by their first name and people know what we mean: Pulse nightclub, Sandy Hook, Nashville, the October 1 shooting in my district, and others; every time every precious life was taken with the help of one of these accessories.

Time and time again, we have reminded our Republican colleagues of these facts, yet they offer nothing but thoughts and prayers and then proceed to try and expand access to guns and conversion devices.

Mr. Speaker, vote "no" on this.

Mr. HUNT. Mr. Speaker, I yield 3 minutes to the gentleman from Missouri (Mr. BURLISON).

Mr. BURLISON. Mr. Speaker, I thank the gentleman for yielding.

Mr. Speaker, I rise today in support of H.J. Res. 44, which will nullify the ATF's overreaching and unconstitutional rule to regulate firearms that happen to have stabilizing braces such as short-barreled rifles.

Make no mistake, Mr. Speaker, the ATF's rule is nothing short of an assault on our Second Amendment rights. Our Constitution does not grant the ATF the authority to unilaterally redefine what laws constitute a firearm because lawmaking power rests with the elected Representatives of the American people.

If pistol brace owners fail to register their firearms with the ATF, then they will be deemed felons, face up to 10 years of prison, and be fined thousands. This reclassification is arbitrary, it bucks a decade of the ATF's own precedent, it is an assault on our Second Amendment, and it threatens to turn millions—tens of millions—of law-abiding Americans into criminals overnight.

Mr. Speaker, I urge a vote in favor of H.J. Res. 44 to reassert the power of the American people, protect the rights of law-abiding gun owners, and stop this retroactive gun grab.

Mr. NADLER. Mr. Speaker, I yield 2 minutes to the distinguished gentlewoman from Michigan (Ms. TLAIB).

Ms. TLAIB. Mr. Speaker, I don't think my colleagues on the other side are aware that it is Gun Violence Awareness Month, which should actually be every month.

We have already had over 290 mass shootings this year. That is more mass shootings than days in the year.

It is time for us to come together to try to address the horrific gun crisis. It is tearing our communities apart, Mr. Speaker, by our legislative inaction every single day.

So how do we start Gun Violence Awareness Month?

They are pushing a bill that would make mass shootings even more deadly. You heard that right, Mr. Speaker. The plan is for them to raise awareness around gun violence in our country, to make it more horrific and more deadly, and to ensure it impacts more American families than ever before by making it easier to access stabilizing braces that have been misused and that have been used for mass shootings.

It is not just mass shootings, Mr. Speaker. It is everyday violence that doesn't even make the news anymore.

It is a travesty that campaign cash from the NRA, gun manufacturers, and the pro-death lobby have blocked the major reforms we need to keep our communities safe.

Our communities need an assault weapons ban. We need reforms on handguns and bold initiatives to reduce the number of firearms in our communities. Most of all, Mr. Speaker, we need accountability for the people who are causing this violence because the gun violence crisis is enabling more people in power unwilling to do anything to stop the mass murder of countless Americans, especially our children.

I look forward to supporting future legislation that truly does fight the crisis with the urgency it deserves instead of pouring more fuel on the fire like this disgusting Republican bill.

Mr. HUNT. Mr. Speaker, I am a Texan, I am a veteran, and I am a gun owner. I am a gun owner of multiple AR–15s, primarily for hunting, and, of course, to protect my three little kids at home, a 4-year-old, a 2-year-old, and a 5-month-old. No one is going to walk into my house and harm my children or my wife—my family. That, I can assure you.

Mr. Speaker, 6 percent of all gun homicides are at the hands of an AR–15 and weapons that are outfitted with a pistol brace—6 percent, and 60 percent are at the hands of a handgun, and the rest are weapons designated not as the two that I just mentioned—6 percent.

This is clearly an attempt to diminish our Second Amendment rights because if you just take away 6 percent of the gun homicides, it leaves you with 94, and I can assure you, Mr. Speaker, that a homicidal maniac who wants to arbitrarily murder people will find another weapon of choice.

I hear the words weapon of war oftentimes, as well. I am an A–64 Delta Apache pilot. I flew 55 combat air missions in Baghdad. That is a weapon of war. A civilian-made AR–15 is nothing that I would ever take to battle.

Now, I also recognize that we do have a mass shooting problem in this country, and my colleagues on the left want to, of course, blame the AR–15. However, Mr. Speaker, I stand before you to blame the homicidal maniac.

I walk in these Halls every single day, and I am surrounded by brave men and women who carry AR–15s and weapons every single day. I have to walk through a metal detector just to get in this building every single day. Just because I wear this pin does not make me more important than my children.

So what I offer is that instead of trying to erode our Second Amendment rights, I would offer let's protect our kids. Let's ensure that they have the same protection that we have in the Halls of Congress.

There are over 400 million guns currently in circulation. By the way, the overwhelming majority of the people who don't use weapons are law-abiding citizens like myself. I refuse to allow the erosion of our Second Amendment rights to further disarm our population, making us less safe as a further push toward communism, because that is what happens.

When you disarm your population, then the government runs amok. We, especially down in Texas, are not going to allow that to happen.

Mr. Speaker, I certainly encourage my colleagues to support this resolution, and I reserve the balance of my time.

Mr. NADLER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, the gentleman says that the cause of gun violence in this country is homicidal maniacs. We have 78 times as much gun violence per unit of population than any other country in the world.

Does the gentleman think that we are 78 times as mentally ill and that we have 78 times as many gun maniacs in this country as anywhere else per unit of population?

That is a slander on the American people.

The obvious cause is we have guns run amok.

□ 1515

Mr. Speaker, Republicans have claimed this rule affects forearm braces. It does not. If a disabled veteran needs a forearm brace to shoot a pistol, he or she can still get one without registering it.

The only firearms affected by this rule are those that have a brace that is ''designed, made, and intended to be fired from the shoulder.'' If a veteran or anyone else wants a covered brace, all they have to do is register it. It was even free to do so until June 1. The ATF waived the fee to encourage compliance.

All this rule does is close a loophole so that all short-barreled rifles are subjected to the commonsense requirements of the National Firearms Act: Registration and a background check.

Mr. Speaker, I reserve the balance of my time.

Mr. HUNT. Mr. Speaker, I reserve the balance of my time.

Mr. NADLER. Mr. Speaker, I yield 2 minutes to the gentleman from Maryland (Mr. RASKIN).

Mr. RASKIN. Mr. Speaker, I thank the chairman kindly for his courtesy in granting me this time.

Today is June 13. We have had 164 days in the year 2023, and we have had 291 mass shootings. We are having, on average, 1½ mass shootings every single day in America.

Of course, our colleagues would prefer not to talk about it because they say it is impolite to talk about a mass shooting on the day it happens. With that theory, we would never talk about it, and we would continue ad infinitum into the carnage and the bloodshed that this unlimited, open-arms policy is giving America today.

A number of my colleagues have invoked the Second Amendment. They only quote half of it. They say: '' . . . the right of the people to keep and bear arms, shall not be infringed.''

What about the first half of it? ''A well regulated militia, being necessary to the security of a free State, the right of the people to keep and bear arms, shall not be infringed.''

They say we want to repeal the Second Amendment. Mr. Speaker, we don't want them to repeal the Second Amendment. We want them to read the Second Amendment because the Second Amendment would ask us why we

are allowing people to go into elementary schools, Walmarts, supermarkets, churches, and synagogues all over America with AR–15s enabled sometimes with a stabilizing brace—as in Dayton, Ohio; Boulder, Colorado; Colorado Springs; Nashville, Tennessee—and assassinate our people.

If a foreign government were doing it, we would declare war on them, but since we are just allowing the gun industry to spread these weapons of mass destruction around the country, they want to allow it.

They say that the Second Amendment must be respected in this strange and distorted way because they believe the Second Amendment gives people the right to overthrow the government. This insurrectionist theory of the Second Amendment means that the people must have an arsenal equal to that of the government.

Well, it is very hard to explain the rest of the Constitution, then. The Second Amendment doesn't mention anything about rebellion or insurrection.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. NADLER. Mr. Speaker, I yield an additional 1 minute to the gentleman from Maryland.

Mr. RASKIN. Article I, Section 8, Clause 15 says Congress has the power to call forth the militias from the States in order to ''suppress insurrections.''

Does that sound like a pro-insurrection document to you?

How about the Republican Guarantee Clause?

Congress shall guarantee to the people of the States a republican form of government and assist them in putting down domestic violence.

How about the treason clause, which says that treason shall consist of levying arms against the Union?

I could give you six more examples like that, but why don't we pause on Section 3 of the 14th Amendment, which says that anybody who has sworn an oath to uphold and defend the Constitution of the United States and violates that oath by engaging in insurrection or rebellion shall never be allowed to hold Federal or State office again.

That is not the meaning of our Constitution.

The regulation the administration has adopted is perfectly constitutional, so if you want more bloodshed, just stand for that. It has got nothing to do with the Second Amendment. It is perfectly constitutional for us to engage in reasonable gun safety regulation. Check out Heller v. The District of Columbia. Justice Scalia wrote that opinion.

Mr. HUNT. Mr. Speaker, I yield 3 minutes to the gentleman from Florida (Mr. DONALDS).

Mr. DONALDS. Mr. Speaker, I actually want to welcome the people who are here in the gallery. I am glad they are here to see this. What they are witnessing is actually something functional that Congress should be doing.

We have a Federal agency called the ATF that has unilaterally decided that they want to make illegal a piece of equipment that they legalized more than a decade ago. The ATF said that the pistol brace is a functional and legal piece that can be added to—and I stress ''added to''—a firearm, and they allowed it to be sold in the United States for more than a decade.

Now, why do I say, ''added to''? The question for the people in the gallery and the people watching on C–SPAN across the country is: Have you ever seen a pistol brace? It is mostly plastic and/or carbon fiber. It wraps around your forearm, and it has a little pole that sticks out to the midpoint of your hand. The purpose of said brace is for people who actually had an arm injury but still wanted to take advantage of their Second Amendment rights, and the ATF more than a decade ago allowed that brace to be sold in the United States.

We now have the same ATF who is deciding unilaterally to go back and say that that brace now needs to be registered, and if you don't register it, you are a felon in the United States. If that is not a gross violation of separation of powers, I don't know what is. Congress never gave the ATF that authority to criminalize American citizens after they were allowed to buy a piece of equipment.

If an agency says that they think a piece of equipment is a detriment to public safety, then it is the requirement of the agency and the executive branch to come to this body and ask for legal permission to say so. They did not.

They don't just get to act on their own accord. They don't just get to define terms for themselves unless Congress gives them that ability.

Mr. Speaker, one of the fundamental problems we are having here at the national level is that we have too many agencies who are taking too much latitude with the liberties of the American people. Instead of going to their Representatives for clarification, they decide that they want to make them felons through the back door. That is abhorrent.

That is a violation of separation of powers. It is a violation of the very Constitution, and it is a violation of the liberties of the American people that we are all here to represent.

Regardless of how you feel about guns, and regardless of how you may feel about a pistol brace, none of us should be supportive of an agency using their authorities or not using any of their authorities to criminalize the American people.

This is a good CRA. We should be voting up on this CRA.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. HUNT. Mr. Speaker, I yield an additional 1 minute to the gentleman from Florida.

Mr. DONALDS. Mr. Speaker, I appreciate my colleague from Texas yielding me additional time, but I don't think I will need another minute.

Mr. Speaker, we should be voting for this measure. This is a measure to stop a Federal agency from stepping over its bounds and turning law-abiding American citizens into felons. A ''no'' vote on this measure is a vote to allow the Federal agencies to run amok, unobstructed over the will of the people. Our Members should be supporting it. Frankly, every Member in this Chamber should be supporting this resolution today.

Mr. NADLER. Mr. Speaker, I yield 1 minute to the distinguished gentlewoman from Pennsylvania (Ms. LEE).

Ms. LEE of Pennsylvania. Mr. Speaker, I rise today in honor of the millions of victims of gun violence whose voices have been silenced.

We need to acknowledge what it means to be an American today. It means checking where the exits are in a grocery store or being afraid to drop your child off at an elementary school or always wondering when and where the next shooting will happen.

What are we doing?

This bill is a slap in the face to the victims of mass shootings. It ignores the realities of gun violence in our country, and it demonstrates how Republicans choose the gun lobby over children and families over and over again.

In fact, they planned to mark up this bill on March 28. They postponed it after a shooter used a stabilizing brace to murder six people at the Covenant School in Nashville, Tennessee.

Instead, they choose the seventh anniversary of the Pulse nightclub shooting.

All the while, in my district, the Tree of Life families are in court fighting for justice, facing the gunman who killed their loved ones. Mass shootings have become so commonplace that it would be hard to schedule this on a day that is not a terrible anniversary.

This bill today is shameful. To my Republican colleagues, if you are not with us, at least get out of the way. You owe it to the American people.

Mr. HUNT. Mr. Speaker, I have no further speakers, and I am prepared to close.

Mr. NADLER. Mr. Speaker, I yield myself the balance of my time to close.

We have heard the majority claim over and over that this rule is going to come as a surprise to the gun industry and to those who have purchased stabilizing braces. This is simply not true.

There are dozens of videos online of people promoting the use of braces to create short-barreled rifles that circumvent the National Firearms Act. One brace promoter even said the resulting short-barreled rifle could easily fit into a briefcase or a backpack.

Let's be clear. The majority is defending the widespread availability without a background check of a brace that allows more rifles to easily fit into a backpack. The majority has seen these promotional videos. We watched

them in our hearing and in our markup, yet they continue to seek to invalidate this rule and claim it will come as a surprise.

The fact is that those who profit from the sale of these braces have long known that they were circumventing the law. The ATF wrote to one brace manufacturer multiple times over the last 10 years. In 2018, 5 years ago, the ATF, under President Trump, told the brace manufacturer that it was engaging in false advertising by claiming devices were ATF approved, when in fact the ATF had not even evaluated those devices.

Mr. Speaker, I include in the RECORD a July 18, 2018, letter from the ATF to SB Tactical, a brace manufacturer, stating that they must cease the false advertisement of products as ATF approved when they had not even been evaluated, much less approved by ATF.

U.S. DEPARTMENT OF JUSTICE,
BUREAU OF ALCOHOL, TOBACCO,
FIREARMS, AND EXPLOSIVES,
Martinsburg, WV.

SB TACTICAL,
Saint Petersburg, FL.

DEAR SB TACTICAL: This letter is to inform SB Tactical that certain products currently marketed and sold by SB Tactical have not been evaluated nor approved by the Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF), Firearms Technology Industry Services Branch (FTISB). It has come to the attention of FTISB that all of SB Tactical ''braces'' are being marketed as evaluated and approved by ATF as ''pistol stabilizing braces,'' although, in most cases no evaluations or classification have ever occurred.

FTISB has found the following statement on the boxes of unevaluated SB Tactical models:

ATF Compliant—ATF has reviewed this product and determined that attaching a Pistol Stabilizing Brace to a firearm does not alter the classification of the firearm or subject the firearm to NFA control.

To date, FTISB has evaluated only two SB15 Tactical submissions: the SB15 brace and the MPX PSB brace. FTISB approved both of these models for use as ''stabilizing braces,'' and classified them as not designed or intended to be used as shouldering devices. However, these classifications were based on the samples as submitted. Any change in the submitted design could change FTISB's classification.

Currently, SB Tactical markets more than 20 different designs of ''pistol stabilizing braces.'' While some of these new models are similar to the original evaluated models, several are advertised as being based off shoulder stock designs. FTISB does not approve ''stabilizing braces'' which are similar or based off shoulder stock designs.

These are the submitted SB Tactical braces approved by ATF:

SB15 (Original submission)

MPX PSB

SB Tactical braces not submitted nor approved by ATF:

SBA3, SBPDW, SB-MINI, SBL, SBM4, SOB, SBX-K, SBV, SBM47, SOB47, SBT5, SBT5A.

SBT5KA, SBTEVO, SBT805, SBT, SBTI, VECTOR PSB, UZI PSB, TAC14-SBM4, 590-SBM4, TAC14-SBL, 590-SBL.

SB Tactical must cease false advertisement of products as ATF approved which have not been evaluated nor approved. If SB Tactical would like to get an official determination for these products, they may be submitted to FTISB for evaluation and classification.

In order for FTISB to evaluate these products and make an official determination, please submit the samples to: Chief, FTISB.

In order for FTISB to perform an evaluation, any submission must be on a complete firearm, with the ''stabilizing brace'' installed.

Please contact us if you have any additional questions regarding this matter.

Sincerely yours,

MICHAEL R. CURTIS,
Chief, Firearms Technology Industry Services Branch.

Mr. NADLER. Mr. Speaker, the ATF, the agency specifically tasked with regulating dangerous weapons and keeping them out of the wrong hands, underwent a careful review process that began under the Trump administration.

The agency determined that gun owners were exploiting a loophole that allowed stabilizing braces to be used to assemble a short-barreled rifle without being subjected to the existing regulations for such highly dangerous weapons. The ATF then issued a rule, using the standard administrative process, to close this loophole and to protect our communities.

There should be nothing controversial about this rule, but Republicans want to overturn this sensible regulation and put more stabilizing braces on the streets and in the hands of more mass shooters.

I remind Members that mass shooters have already used stabilizing braces to kill 9 people outside a bar in Dayton in 2019; to kill 10 people, including a responding police officer, at a grocery store in Boulder in 2021; to kill 5 people in an LGBTQ nightclub in Colorado Springs last year; and just a few months ago to kill 6 people, including 3 children, at a school in Nashville.

Once again, Republicans are putting the interests of the gun industry over the safety of their communities.

I urge all Members to oppose this dangerous legislation, and I yield back the balance of my time.

Mr. HUNT. Mr. Speaker, I urge all Members to support this resolution, and I yield back the balance of my time.

Ms. MCCOLLUM. Mr. Speaker, I rise in opposition to H.J. Res. 44.

This resolution seeks to repeal reasonable restrictions on deadly weapons, at a time when gun violence is the leading cause of death for children and youth in the United States.

H.J. Res. 44 would nullify the Biden-Harris administration's stabilizing arm brace rule, which keeps dangerous firearms out of dangerous hands by requiring that guns equipped with stabilizing arm braces are subject to the same requirements as weapons with the same fire power. This rule makes it harder for individuals intending to inflict carnage and take lives to obtain these weapons, and it should remain in place in order to save more lives.

With this resolution, extreme Republicans continue their unpopular and unconscionable quest to oppose any and all restrictions on firearms, abolish the Bureau of Alcohol, Tobacco, Firearms, and Explosives (ATF), and prioritize the gun industry over the safety of our communities and the law enforcement officers who serve them.

House Democrats are determined to defend the sensible and effective policies in place to protect Americans, and we will continue to work to pass additional safeguards to end America's gun violence.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 495, the previous question is ordered on the joint resolution.

The question is on the engrossment and third reading of the joint resolution.

The joint resolution was ordered to be engrossed and read a third time, and was read the third time.

The SPEAKER pro tempore. The question is on passage of the joint resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. NADLER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

□ 1530

DISAPPROVING THE ACTION OF THE DISTRICT OF COLUMBIA COUNCIL IN APPROVING THE COMPREHENSIVE POLICING AND JUSTICE REFORM AMENDMENT ACT OF 2022

The SPEAKER pro tempore. Pursuant to the order of the House of May 26, 2023, the unfinished business is the further consideration of the veto message of the President on the joint resolution (H.J. Res. 42) disapproving the action of the District of Columbia Council in approving the Comprehensive Policing and Justice Reform Amendment Act of 2022.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. The question is, Will the House, on reconsideration pass the joint resolution, the objections of the President to the contrary notwithstanding?

(For veto message, see proceedings of the House of May 26, 2023, at page H2645.)

The SPEAKER pro tempore. The gentleman from Kentucky (Mr. COMER) is recognized for 1 hour.

Mr. COMER. Mr. Speaker, for purposes of debate only, I yield the customary 30 minutes to the gentleman from Maryland (Mr. RASKIN), the ranking member of the House Committee on Oversight and Accountability, pending which I yield myself such time as I may consume.

GENERAL LEAVE

Mr. COMER. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Kentucky?

There was no objection.

Mr. COMER. Mr. Speaker, I reserve the balance of my time.

Mr. RASKIN. Mr. Speaker, I yield such time as she may consume to the distinguished gentlewoman from the District of Columbia (Ms. NORTON).

Ms. NORTON. Mr. Speaker, I thank my good friend for yielding.

Mr. Speaker, I urge my colleagues to vote ''no'' on overriding the veto.

H.J. Res. 42 is a profoundly undemocratic, paternalistic resolution. Congress, in which the nearly 700,000 District of Columbia residents have no voting representation, is attempting to nullify legislation passed by D.C.'s locally elected legislature.

While it is true that Congress has the constitutional authority to legislate on local D.C. matters, it is false that Congress has a constitutional obligation to do so. It is a choice.

D.C. residents, a majority of whom are Black and Brown, are capable and worthy of governing themselves.

Democracy, according to the dictionary, is ''a government in which the supreme power is vested in the people and exercised by them directly or indirectly through a system of representation usually involving periodically held free elections.''

D.C.'s lack of voting representation in Congress and Congress' plenary authority over D.C. are the antithesis of democracy.

The legislative history and merits of D.C.'s Comprehensive Policing and Justice Reform Amendment Act of 2022, which is the subject of H.J. Res. 42, should be irrelevant, since there is never justification for Congress nullifying legislation enacted by D.C., but I would like to briefly discuss them.

D.C.'s Comprehensive Policing and Justice Reform Amendment Act of 2022 is consistent with House Democrats' George Floyd Justice in Policing Act, President Biden's executive order on policing and police accountability, and transparency legislation enacted by dozens of States, both red and blue, to improve public safety and public trust after the murder of George Floyd.

As President Biden said in his veto message, H.J. Res. 42, ''would overturn commonsense police reforms.''

D.C.'s Comprehensive Justice and Reform Amendment Act of 2022 would, among other things, make it easier to fire officers for misconduct, prohibit the hiring of officers with prior misconduct, strengthen civilian oversight of police, and prohibit chokeholds.

Congress requires D.C.'s local legislature, the D.C. Council, to pass legislation twice, separated by at least 13 days.

The Council passed the Comprehensive Policing and Justice Reform Amendment Act of 2022 by votes 11–0 and 13–0. While the legislation was enacted without the D.C.'s Mayor's signature, the Mayor has urged Congress to oppose H.J. Res. 42.

The D.C. Council has 13 members. The members are elected by D.C. residents. If D.C. residents do not like how the members vote, they can vote them out of office.

Congress has 535 voting Members. The Members are elected by residents of States. None are elected by D.C. residents. If D.C. residents do not like how the Members vote, they cannot vote them out of office.

The Revolutionary War was fought to give consent to the governed and to end taxation without representation. Yet, D.C. residents cannot consent to any action taken by Congress, whether on national or local D.C. matters, though they pay full Federal taxes. Indeed, D.C. pays more Federal taxes per capita than any State and more total Federal taxes than 19 States while being denied voting representation in Congress.

In closing, I would set the record straight on the legal effect of H.J. Res. 42. While Congress can legislate on any D.C. matter at any time, the process for a disapproval resolution is set forth in the D.C. Home Rule Act.

Under the Home Rule Act, a disapproval resolution only has legal effect if Congress passes it before the expiration of the review period for the legislation that is the subject of the disapproval resolution.

In the case of the Comprehensive Policing and Justice Reform Amendment Act of 2022, the review period expired before the Senate passed H.J. Res. 42. Therefore, H.J. Res. 42 would have no legal effect even if the veto were overridden.

Nevertheless, I urge my colleagues to vote ''no'' on overriding the veto, and I say to every Member of Congress: Keep your hands off D.C.

Mr. COMER. Mr. Speaker, I yield 3 minutes to the gentleman from New York (Mr. GARBARINO).

Mr. GARBARINO. Mr. Speaker, I rise in support of overriding the Presidential veto of H.J. Res. 42, disapproving the action of the District of Columbia Council and approving the Comprehensive Policing and Justice Reform Amendment Act of 2022.

Democrat politicians in cities like New York and D.C. have continuously fed antipolice sentiment that endangers our officers and makes it harder for them to do their jobs.

Policies like those in D.C.'s deeply misguided police reform law only empower criminals at the expense of our men and women in blue. In fact, since these policies were enacted, more than 1,000 officers have left the D.C.'s police force.

Dedicated public servants are resigning in record numbers due to the current policing environment with very few willing to take their place. That means fewer officers to combat rising crime. This has become a public safety crisis.

I was proud to join with Congressman CLYDE to offer our joint resolution to disapprove the D.C. law, which went on to gain a majority of support in both the House and Senate—bipartisan majorities in both the House and Senate.

Congress sent a clear message that enough is enough. We will not stand by while our law enforcement officers are vilified and handcuffed by pro-criminal/anti-cop legislation.

With this veto, President Biden showed his disregard not only for law enforcement but also for the American people whose duly elected Representatives voted to block this harmful D.C. legislation.

Mr. Speaker, I urge my colleagues on both sides of the aisle to vote in favor of the override to show our brave men and women in law enforcement that we have their backs and to reject the President's attempt to undermine the will of Congress and the people we represent.

Mr. RASKIN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I speak in opposition to this effort to overturn President Biden's veto of H.J. Res. 42, legislation that was introduced by Georgia Representative CLYDE to strike down the people of Washington, D.C.'s local police reform law.

If it rings a bell, it is no wonder. The House and Senate have already voted on H.J. Res. 42. The overwhelming majority of Democrats voted to oppose it when Republicans brought it to the floor in April. When it reached President Biden's desk in May, he vetoed Mr. CLYDE's resolution, as he promised that he would.

Although the resolution narrowly passed the House and Senate, in neither Chamber did it assemble anywhere close to the two-thirds majority required in both Chambers in order to override a veto.

Mr. Speaker, today's vote is an exercise in time-wasting and vainglorious futility. The Republican majority doesn't have the votes to override the veto, and it doesn't deserve to.

H.J. Res. 42 would nullify a law passed unanimously by the Council of the District of Columbia representing more than 700,000 residents to promote accountability for police officers who use excessive force or abuse their power, a goal that the vast majority of Americans share.

The D.C. law bans the use of chokeholds and other dangerous neck restraints and sets reasonable standards for the use of deadly force.

It requires public release of body-worn camera footage and creates a police officer misconduct database, but only for officers who have been either convicted of a crime or for whom allegations of abuse have been civilly or administratively sustained.

The law prohibits D.C. from hiring police officers who have engaged in prior criminal or official misconduct.

Most importantly, the new law empowers the chief of police to fire or discipline officers who break the law by removing police disciplinary matters from the collective bargaining table.

Now, Mr. Speaker, you may recall that this is the position that galvanized the opposition to D.C.'s law. This provision is why Republicans want the Congress of the United States to behave like a 535–Member nationally elected super-city council with the power to overturn the work of the 13-member Council of the District of Columbia elected locally by the actual residents of Washington, D.C.

So what is so important about this provision? Well, the local police union doesn't like it, and they have been the chief lobbyists against it. They sued when this reform legislation was first passed in D.C., asserting that the provision removing police discipline from the collective bargaining table violated the U.S. Constitution, but they lost their case in the U.S. District Court for D.C. and the U.S. Court of Appeals for D.C., and the Supreme Court failed to grant cert.

Now, in their haste to kick around the people of Washington and not to support D.C. police officers who, after all, came to our defense on January 6, many of whom were wounded by the insurrectionists and ended up with broken fingers and arms and legs, and so on, our GOP colleagues are suddenly embracing the extreme position on police disciplinary matters which has already been rejected by the courts in which jurisdictions across America are debating and doing away with.

Now, why is the ending of discipline of police officers a subject for collective bargaining such a big deal? Well, Washington itself is a good example.

The D.C. Metropolitan Police Department has been forced by labor arbitrators to rehire a significant number of officers who had been fired for engaging in serious criminal misconduct, including criminal assault, including sexual assault.

Every D.C. police chief for at least the last 25 years have expressed outrage about having to hire bad cops after they have been fired for engaging in serious misconduct. Forcing police chiefs to reinstate bad cops fired for breaking the law is bad for public safety, bad for community trust, and bad for morale among the vast majority of good police officers who are doing their jobs, like the ones who came to defend us on January 6, 2021, against the violent mob insurrection incited by the former President.

This should not be a partisan point. This is a matter for local decisionmaking in Washington, D.C., as it is in every other jurisdiction in the country.

Mr. Speaker, 700,000 tax-paying American citizens have decided through their locally elected representatives that the chief of police who is appointed by the Mayor should be able to discipline bad actors within the police department. Reversing the D.C. government on this local matter is outrageous interference by Congress to impose a bad public policy on the Capital City.

The D.C. police accountability law makes reasonable, commonsense reforms that will make the D.C. police more accountable to the community of people they serve, increase public trust, and strengthen public safety.

In fact, multiple provisions constituting the D.C. police reform law are mainstream reforms that enjoy strong public support and are congruent with the George Floyd Justice in Policing Act, which passed the House in the 117th Congress, and with police accountability laws enacted by dozens of States and localities in recent years in the wake of notorious episodes of brutality, like the unconscionable murder of George Floyd.

For example, since May of 2020, at least 24 States have enacted legislation to limit the use of dangerous neck restraints against citizens; 39 States have passed reforms related to officer education and training.

□ 1545

Twenty-six States have enacted laws to improve data collection and increase transparency. At least seven States, including Arizona, Colorado, and Wisconsin, have passed legislation requiring the publication of police databases or use-of-force information. Twenty States since 2020 have enacted laws that address State-level use-of-force standards.

This is a matter for States and localities to decide themselves. Reversing D.C. on this local matter is an outrageous effort to impose bad public policy on the people of D.C.

Voting to override the veto of this GOP resolution is yet another attack on local decisionmaking, federalism, and the policies of meaningful oversight and accountability that the majority of Americans want. A vote to override the veto today is a vote against political democracy and local self-government in America. A ''yes'' vote today is a vote against commonsense oversight and accountability over policing in Washington, D.C.

Mr. Speaker, I urge my colleagues on both sides of the aisle to stand up for democracy, stand up for political self-determination, and vote ''no'' on this attempt to override the President's veto.

Mr. Speaker, I reserve the balance of my time.

Mr. COMER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I continue to support this bipartisan resolution as a majority of my colleagues in the House did 2 months ago. Not much has changed since we last passed this resolution of disapproval.

Since Congress sent this resolution to President Biden, we have continued to see rampant crime in the District of Columbia. D.C. residents and visitors are still unsafe in their Capital City.

The Metropolitan Police Department continues to face retention and recruitment challenges.

Crime levels are still higher in 2023 compared to the same time in 2022. Total crime is up 27 percent. Violent crime is up 16 percent. Homicide is up 19 percent. Motor vehicle theft is up a staggering 118 percent. This is unacceptable.

Most notably, as of June 7, D.C. hit a concerning marker. There have been 100 murders in D.C. this year. According to the D.C. Police Union, this is the earliest point in the calendar year that the city has reached this marker since 2003.

However, in the Committee on Oversight and Accountability's March 29 hearing, D.C. Council Chairman Phil Mendelson claimed that there is no crime crisis in D.C.

In another Oversight and Accountability Committee hearing on May 16, U.S. Attorney Matthew Graves refused to take accountability for his office's failure to prosecute 67 percent of cases last year.

The D.C. Council and the U.S. Attorney for the District of Columbia have failed the residents of D.C.

Congress has a duty to oversee the Nation's Capital and ensure its safety for all residents and visitors. It is time for this body to stand up to the criminals. I call on my colleagues to vote in favor of this resolution.

The President's veto of H.J. Res. 42 serves no purpose other than to continue to allow crime to spread and hinder our local police from fulfilling their duties to protect the D.C. community and the Nation's Capital City.

Mr. Speaker, I urge my colleagues to uphold what we and the Senate have done over the last 2 months by voting in favor of this resolution.

Mr. Speaker, I yield back the balance of my time.

Mr. RASKIN. Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. Without objection, the previous question is ordered.

There was no objection.

The SPEAKER pro tempore. The question is, Will the House, on reconsideration, pass the joint resolution, the objections of the President to the contrary notwithstanding?

Under the Constitution, the vote must be by the yeas and nays.

Pursuant to clause 8 of rule XX, further proceedings will be postponed.

GAS STOVE PROTECTION AND FREEDOM ACT

GENERAL LEAVE

Mr. BILIRAKIS. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks on the legislation and to include extraneous material in the RECORD on H.R. 1615.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Florida?

There was no objection.

The SPEAKER pro tempore. Pursuant to House Resolution 495 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the consideration of the bill, H.R. 1615.

The Chair appoints the gentleman from Georgia (Mr. MCCORMICK) to preside over the Committee of the Whole.

□ 1552

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the consideration of the bill (H.R. 1615) to prohibit the use of Federal funds to ban gas stoves, with Mr. MCCORMICK in the chair.

The Clerk read the title of the bill.

The CHAIR. Pursuant to the rule, the bill is considered read the first time.

General debate shall be confined to the bill and shall not exceed 1 hour equally divided and controlled by the chair and ranking minority member of the Committee on Energy and Commerce, or their respective designees.

The gentleman from Florida (Mr. BILIRAKIS) and the gentleman from New Jersey (Mr. PALLONE) each will control 30 minutes.

The Chair recognizes the gentleman from Florida (Mr. BILIRAKIS).

Mr. BILIRAKIS. Mr. Chair, I yield myself such time as I may consume.

I rise today in strong support of H.R. 1615, the Gas Stove Protection and Freedom Act. I thank my friend and fellow Energy and Commerce Committee member, Representative KELLY ARMSTRONG, for his leadership and continued work on this initiative.

As I said in our full committee markup last month, the American people have had enough of Washington bureaucrats and Biden administration officials, or Big Brother, dictating every aspect of their lives, from the type of car you drive to what appliance you can use in the kitchen.

Back in January, we heard disturbing reports from one of the Commissioners at the Consumer Product Safety Commission that a nationwide, universal ban on gas stoves was on the table. This type of government overreach would be an assault on Americans' individual consumer freedoms to decide what works best for their own households and budgets.

Republicans stand with the American people, who overwhelmingly agree that banning gas stoves altogether is an egregious overreach and government-knows-best ideology at its worst.

The Gas Stove Protection and Freedom Act will prohibit the CPSC from using Federal dollars to regulate or issue enforcement regulations on gas stoves as a banned product and prevent regulations that prohibit the sale or substantially increase the price of gas stoves while still allowing CPSC to protect consumers in the way that Congress envisioned.

Sadly, the Biden administration's Green New Deal agenda has fueled the flames of radical left State and local governments, and many have already enacted their own complete gas stove bans, such as New York and some cities in California. In fact, many of these cities are facing their own battles, such as in Berkeley, California, the first city to enact a ban in 2019, where the law was recently struck down by the Ninth Circuit Court of Appeals, and in Palo Alto, California, where they enacted a ban but admitted to issuing an exemption for celebrity chef Jose Andreas, who argued traditional gas appliances were necessary to achieve their signature complex flavors. This carve-out from the far left is plain hypocrisy.

Meanwhile, down in my State of Florida, we just entered hurricane season, and households that are struggling after a natural disaster takes out their electricity would find it even harder to cook their food without gas stoves.

All of these reasons clearly demonstrate why this legislation is needed to prevent government overreach.

Mr. Chairman, I urge my colleagues to support H.R. 1615. Let's pass this commonsense, bipartisan legislation that supports American consumer choice and freedom for households to decide what works best for their own lives. It makes sense.

Mr. Chairman, I reserve the balance of my time.

Mr. PALLONE. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, I rise to speak in strong opposition to H.R. 1615. This bill is an attempt to deliberately mislead the American people into thinking that they are at risk of losing their gas stoves.

Let me be emphatically clear. The Consumer Product Safety Commission is not banning gas stoves. The idea that anyone is coming into American homes to remove gas stoves is ridiculous. They are not banning gas stoves.

These facts have not stopped supporters of this bill from touting this false narrative to scare consumers and proposing legislation, like this bill, that will have detrimental impacts on our constituents' health and safety.

By limiting the tools that the CPSC can use to protect consumers, H.R. 1615 puts politics over people and consumer safety. It puts slogans over science-based policy decisionmaking.

The CPSC is an independent Federal agency with a long history of identifying and protecting children and adults from a wide range of products that are hazardous or that pose a risk of serious injury or death. The CPSC carries out its mission in numerous ways. It investigates safety allegations and recalls dangerous products to keep them off the market. It also works with industry to develop voluntary product safety standards. It issues and enforces standards for hazardous products so that it can ensure that these products are not dangerous for consumers.

In recent years, the CPSC has removed hazardous infant sleeping products. It has adapted corded window coverings to protect children from strangulation. It has worked with industry to reduce the risk of fires from hoverboards and scooters.

The CPSC's work saves life by protecting consumers—in many instances, children—from dangerous products, but H.R. 1615 will prevent the CPSC from doing its job.

Last December, the agency issued a recall of a gas stove product that was found to be a serious risk of injury or death from carbon monoxide poisoning. The agency was doing its job in recalling a dangerous product, but H.R. 1615 would prohibit the agency from using its rulemaking authority to ban such hazardous products, which could endanger the lives of any American who has that dangerous product in their home.

If you think about this, what you are basically saying is that this agency that protects our safety and health is just basically going to be emasculated and can't do its job. What possible help is that? Why would you do such a thing?

Each and every American benefits from the work done by the CPSC, and it would be unconscionable to weaken the Commission's authority.

This bill sets, in my opinion, a dangerous precedent, Mr. Chair, of stifling scientific investigation into health hazards and limiting the agency's authority to keep our children safe. Instead of taking actions to limit the agency's authority, we should encourage their work to explore allegations that consumer products put our children's health and safety at risk.

We should give the agency all the tools that they need, not eliminate the tools they currently have, to address health and safety risks as they arise.

Mr. Chair, I urge my colleagues to vote ''no'' on H.R. 1615. We must protect the Consumer Product Safety Commission, the authority to protect the health and safety of all Americans, but particularly our children.

Mr. Chair, I reserve the balance of my time.

□ 1600

Mr. BILIRAKIS. Mr. Chairman, I yield 3 minutes to the distinguished gentlewoman from Washington (Mrs. RODGERS), our chairperson.

Mrs. RODGERS of Washington. Mr. Chair, I thank the gentleman for yielding.

Mr. Chair, I rise in support of H.R. 1615. The Gas Stove Protection and Freedom Act is led by my friend Congressman KELLY ARMSTRONG from North Dakota. It has bipartisan support here in the House, and it is a companion to Senators CRUZ' and MANCHIN's bipartisan legislation in the Senate.

It will stop efforts by the Consumer Product Safety Commission that could result in an outright ban or substantial price increase in the cost of gas stoves while also allowing the Commission to

continue its important safety work for these appliances.

Commissioner Trumka suggested that the CPSC should consider a ban on gas stoves. He said, everything is on the table.

As FOX News reported last week, his efforts go back even further than previously reported and include the Biden administration coordinating last summer with an environmental activist on the legal rationale to ban stoves.

To justify a ban, Mr. Trumka has also cited a study by Rocky Mountain Institute, which has partnered with the Chinese Government and is pushing America away from reliable and affordable energy. We must stop this agenda and make sure people have access to affordable appliances like gas stoves.

We aren't alone in raising the alarm that this effort to ban stoves goes too far. In fact, in California, a celebrity chef was recently given an exemption by local Democrats so he wouldn't have to comply with Palo Alto's natural gas stove ban in his new restaurant.

Surely, we can all agree today to allow every hardworking person in this country, regardless of their income or celebrity status, to have the same freedom to decide for themselves what stove is in their kitchen.

Again, H.R. 1615 allows the CPSC to continue their important safety work, but it stops the administration from implementing a political agenda, completely divorced from reality, to ban an appliance that is preferred by 40 percent of American households.

Mr. Chairman, I thank Congressman ARMSTRONG for his leadership, and I urge strong bipartisan support on H.R. 1615.

Mr. PALLONE. Mr. Chair, I yield such time as she may consume to the gentlewoman from Illinois (Ms. SCHAKOWSKY), the ranking member of our Innovation, Data, and Commerce Subcommittee.

Ms. SCHAKOWSKY. Mr. Chairman, I thank the gentleman for yielding.

Mr. Chairman, I say to Congressman BILIRAKIS and Congresswoman CATHY RODGERS that I consider them friends of mine, but I just don't quite understand the energy and hysteria about gas stoves.

No one is taking away your gas stove. I want to make that very clear. That is not the intention of this legislation.

I am the owner of a gas stove. I decided a long time ago that I really preferred gas stoves. I have a fairly new gas stove, but that doesn't mean that I don't want the very agency of government that I have worked with—and Congressman PALLONE talked about its successes—of saving people from hazards or reminding people or alerting people about hazards. That is all.

I own a new car. It is actually a Chevy Bolt. It is all electric, but like all the other cars that I have bought, I want to know about its safety history, all the things I could know. The other thing about a car, if something goes wrong, I think there is going to be a recall, so I will have an opportunity to deal with this.

The Consumer Product Safety Commission wants to take a look at what may be a hazard and if there are threats to our children's health, to our families, if it could cause real problems. Why don't we want to know about those? I think this legislation takes away the opportunity for us to find out about what may, in fact, be a hazard. It may require some changes in gas stoves and the way they are manufactured. Why wouldn't we want to know that rather than subject our families, our children, our communities to something that could harm them?

This prevents information. I say to my colleagues across the aisle: Get your head out of the gas stove and let's let the facts be told so that we can make decisions as smart adults to decide whether or not we want to buy them and whether or not we need to see some changes.

Mr. BILIRAKIS. Mr. Chairman, I yield 4 minutes to the gentleman from North Dakota (Mr. ARMSTRONG), the vice chairman of the Energy and Commerce Committee.

Mr. ARMSTRONG. Mr. Chairman, H.R. 1615, the Gas Stove Protection and Freedom Act, would prohibit funding to the Consumer Product Safety Commission for only two purposes: first, to regulate gas stoves as a banned hazardous product; and second, to impose any consumer product safety standard on gas stoves that would result in a prohibition on the use or sale of the appliances, or otherwise substantially increase the average price.

Simply put, this bill prevents the Commission from banning the entire product category of gas stoves. This bill does not prevent the Commission from its statutory mission to address specific models of gas stoves or any other product that may pose an actual safety hazard.

We are debating this bill because Commissioner Richard Trumka has made repeated statements that the Commission would consider substantial regulatory actions on gas stoves categorically.

His comments include a December 2022 statement advocating for a ban on gas stoves. The chair of the Commission has walked back Commissioner Trumka's impulsive statements by declaring: '' . . . I am not looking to ban gas stoves. . . . ''

However, despite the chairman's cleanup statement, the Commission has since issued a March 1 request for information that included repeated mentions of toxic emissions and chronic hazards regarding gas stoves.

We all agree that consumer product safety is important. Yet, it is apparent that the underlying motivation behind this veiled consumer safety plan is a green climate agenda with the goal to further restrict natural gas.

Mr. Chairman, 20 congressional Democrats sent a letter to the Commission in December 2022 that first mentioned the equivalent climate impact of regulating gas stoves before addressing the merits of any health concerns.

Let's discuss the alleged health concerns. First, multiple studies claiming that gas stoves create harmful indoor emission levels have been criticized for inaccurate conclusions and testing that failed to simulate real-world conditions.

Some of those studies measured indoor emissions in an area enclosed in a plastic tarp without any ventilation.

There are no studies establishing a causal relationship between cooking with gas stoves and asthma. Studies of actual homes under real-life conditions found that nitrogen dioxide levels were below the standard the EPA considers harmful to health.

Further, other cooking-related and non-cooking-related emissions factors have a meaningful effect on indoor emissions.

These are factors such as the chemical makeup of food and oils, cooking temperature, cooking methods, food surface-to-mass index, the use of exhaust and ventilation, and burning of tobacco, candles, and incense.

Again, all of this is secondary because we know the motivation of the CPSC, and throughout the entire administration, is a green climate push.

The goal is to dictate how you live every aspect of your life; how you save and invest for the future by pushing ESG; how you drive by banning gas-powered cars. Now the goal is to control how you cook and, literally, breathe inside your home.

I am confident in stating that the vast majority of North Dakotans don't want the Federal Government telling them how to live their life, particularly in their own home.

To my Democratic colleagues: If you agree with the chair of the Commission and don't want to ban gas stoves for over 187 million Americans, vote for the bill.

If you agree with Commissioner Trumka that the Federal Government should take away every gas stove in the country, oppose the bill.

Yet, before you oppose the bill, make sure you have a good answer for why your constituents can't cook the way they want, and be prepared to defend it.

I urge everyone to vote in favor of H.R. 1615 so we at least can end the Commission's misguided foray into the kitchens of every American.

Mr. PALLONE. Mr. Chairman, I yield myself such time as I may consume.

I listened to my colleague from North Dakota, who I respect a great deal, but he specifically said, and I wrote it down, that this legislation would prohibit the Consumer Product Safety Commission from regulating gas stoves as a hazardous product.

Now, you listened to my colleague from Illinois, Ms. SCHAKOWSKY, who said that from a practical point of view, how does that make sense?

This is the agency that is charged with basically looking at these products to see if they are hazardous, if they are unsafe for kids, if they are going to cause serious injury or death.

Now, one person, one commissioner has made some statements suggesting that he might be interested in banning gas stoves. I don't know all the details, but I understand that there is one commissioner that keeps being quoted.

First of all, this Commission has five members. There is one vacancy. Because one commissioner says that and doesn't have the power to effectuate it because he is only one person, you are then going to tell me that we should now take this sort of hatchet approach or severe approach of saying, well, then, because one commissioner thinks that, therefore, we should say that this commission cannot regulate gas stoves as a hazardous product?

Frankly, that is like cutting off your leg because you decide that there is some threat or something. It makes no sense to me.

We have the chairman of the Commission who actually used to work for the Energy and Commerce Committee; Chairman Hoehn-Saric.

He has been crystal clear and has stated publicly that the Consumer Product Safety Commission is not conducting a rulemaking to ban gas stoves.

Now, I use the analogy as a Member of Congress. I am one out of what, 435? I don't have the authority to say that because I want something done that that is what is going to happen—or even if there were 10 or 20 of us that said that; right?

As a single Member of Congress, I don't have the unilateral authority to decide what action the House of Representatives is going to take.

By the same token, one single member of the CPSC does not get to decide what action that body will take, and suggesting otherwise is just not accurate.

Even if he said that—and I believe he said that he might want to ban them—why would you then say, now we are going to put a pox on the whole Commission and say that they don't have the authority to look at hazards and tell me whether or not certain stoves would be dangerous?

I just think it is really contrary to protection of people's health and safety to take this kind of action just because one member of the Commission suggested it, but that is what you do.

Again, I would urge that we be practical about this, and let's not just take a hatchet to this Commission and this agency that over the years has protected us in so many ways from faulty products.

Mr. Chairman, I reserve the balance of my time.

Mr. BILIRAKIS. Mr. Chairman, I yield 3 minutes to the gentleman from Ohio (Mr. JOHNSON), my good friend.

□ 1615

Mr. JOHNSON of Ohio. Mr. Chair, I rise in strong support of H.R. 1615.

Mr. Chair, I will include in the RECORD an article entitled ''California city gives celebrity chef Jose Andres an exemption for his restaurant to use gas stoves.''

Mr. JOHNSON of Ohio. Mr. Chair, of course they did. Let's look at how this happened.

It was reported that while the progressive city of Palo Alto, California, has a natural gas ban for all new buildings and renovations, a policy that Democrats are trying to enact all over the country, we find that the ban actually doesn't apply to everybody.

Mr. Andres' lawyers, in front of the city council, argued that he could not possibly cook with the efficiency and precision he desires if forced to use electric stoves. The city council agreed and gave him a one-off, only-for-him exemption to the rule, not for small, family-owned restaurants or working-class residents. No one else, just him.

Now, for those of you who aren't familiar with Mr. Andres, he is a wealthy, well-connected celebrity chef, very popular here inside the Washington Beltway, not only for great restaurants, but also for his leftwing activism for the border, climate change, and other liberal causes. I think you all get the picture here.

To be fair, I actually totally agree with Mr. Andres. It is true that gas stoves are not only more efficient but also perform in a way that many Americans and restaurant owners prefer.

All that we ask, and what this legislation before us would do, is give the American people that same economic freedom and choice, the choice to use appliances that they actually want and can afford.

If we don't act, if we don't pass legislation like this, the Biden administration will continue on its path to take this onerous policy prescription nationwide.

To add insult to injury, this celebrity chef and his wealthy, powerful, national Democratic friends, who aren't giving up their gas stoves, their fossil-fuel-fired stoves, are the same exact people lecturing my constituents about climate change.

They say that it is Appalachian Ohioans and working-class families all over the country who need to give up their cars, their stoves, and their furnaces to avert the climate crisis. This is madness. It is hypocrisy.

Mr. Chair, any American, regardless of whether or not they are a wealthy, politically connected coastal elites, should be able to cook on a gas stove if they choose to.

Mr. Chair, I urge my colleagues to support this measure.

Mr. PALLONE. Mr. Chair, I yield myself such time as I may consume.

I don't know about these celebrity stoves and Hollywood. You can bring up all of this if you want, but the bottom line is, this legislation doesn't guarantee that anybody gets to use their gas stove.

If a town in California or a State wants to prohibit it, they are still free to do so. Let's not give the impression that somehow this legislation is going to prohibit towns or States or any kind of municipality from prohibiting gas stoves if they want to do so.

What this legislation says is that an agency that is basically told by Congress to protect us from hazardous utilities, hazardous equipment, and hazardous activity is going to be hamstrung so they can't protect us. That is all you are doing here.

Let's be honest. You are not doing anything else. I think it is outrageous to say that if this agency finds out that there is something that is going to kill kids or cause them to be poisoned, that they can't do their job.

Mr. Chair, I reserve the balance of my time.

Mr. BILIRAKIS. Mr. Chair, I yield 2 minutes to the gentleman from Pennsylvania (Mr. JOYCE), a very effective member of the Committee on Energy and Commerce.

Mr. JOYCE of Pennsylvania. Mr. Chair, I thank the gentleman for yielding.

Mr. Chair, at a time when rolling blackouts have become more common and as it has become clear that green energy tools, like wind turbines and solar panels, cannot meet our energy needs, the Biden administration has taken yet another step to limit the ability of Americans to use natural gas in their homes.

The weaponization of government against our energy industry only serves to make our energy future less secure.

This legislation is about ensuring that American families have access to the products and the energy resources that they need and that they want.

Currently, natural gas stoves are the preferred cooktop appliance of nearly 40 percent of American homes. We know that natural gas is safe, it is reliable, it is affordable energy, and it is a source for millions of Americans.

The Gas Stove Protection and Freedom Act is a step toward getting the Federal regulations out of homes and out of businesses. Any attempt to say that the Biden administration's actions are based in public safety is not supported by the data that we have at hand.

According to the National Fire Protection Association, electric ranges were 2½ times more likely to cause a home fire than gas stoves. Let me repeat that. Electric ranges were 2½ times more likely to cause a fire than gas stoves.

We know that gas stoves are safe, and we cannot allow the Biden administration to strip away consumer choice simply to fulfill its green energy agenda.

Mr. Chair, I urge all my colleagues to support H.R. 1615.

Mr. PALLONE. Mr. Chair, I reserve the balance of my time.

Mr. BILIRAKIS. Mr. Chair, I yield 2 minutes to the gentleman from New York (Mr. LAWLER).

Mr. LAWLER. Mr. Chair, I rise today in strong support of H.R. 1615, the Gas Stove Protection and Freedom Act. This bipartisan legislation is pragmatic policymaking, one that safeguards the availability, use, and affordability of gas stoves.

By placing restrictions on the actions of the Consumer Product Safety Commission, an important Federal regulatory agency, this act will help preserve access to traditional gas stoves for all Americans.

Why is this important? Because the government should not be in the habit of restricting consumer choice or access to appliances that are integral to our everyday lives.

My colleagues on the other side of the aisle will stand here and say till they are blue in the face that they don't want to ban gas stoves and that it is ridiculous that anyone would dare claim that it is happening. The fact is, they are already doing it.

In New York State, most new construction starting in 2026 will ban gas stoves. That was put in the State budget just 2 months ago. According to the U.S. Energy Information Administration, nearly 62 percent of households in New York State have a natural gas cooking appliance. A potential efficiency standard can be financially detrimental to millions of New Yorkers.

If you look at the sign, it is talking about 23 hours more that Americans will have to use per year boiling water under this potential regulation. Guess what? Seventy percent of electricity is generated by natural gas. You will be using more natural gas, not less. Over the past two decades, natural gas has reduced carbon emissions 60 percent more than renewables.

In California, they tried the same thing and had it summarily thrown out of court due to the absolute absurdity of this effort.

We can and should build a diverse energy grid. We agree with that. It has got to be based on science and facts, not pie-in-the-sky ideas. We simply cannot outright ban sources of energy and appliances that millions of Americans rely on.

In short, the Gas Stove Protection and Freedom Act is prudent legislation, one that values consumer choice and maintains the availability of essential household appliances.

Mr. Chair, I urge all my colleagues to join me in supporting this significant and sensible bipartisan effort.

Mr. PALLONE. Mr. Chair, I yield myself such time as I may consume.

The gentleman keeps saying that this administration is banning gas stoves. That is simply not the case. Plus, he is talking about efficiency standards. This legislation is not about efficiency standards. This legislation is about saying that the Consumer Product Safety Commission cannot research and make decisions about hazards and whether a particular gas stove is hazardous to people's health or might explode. It is not about efficiency standards.

Certainly we are not talking about saying that you have to move toward an electric stove as opposed to a gas stove. It just bothers me, Mr. Chair, that the other side continues to talk about banning gas stoves, about moving toward electric stoves, about efficiency standards. This is not what this bill is about. This is not what the Consumer Product Safety Commission is about.

Mr. Chair, again, I would urge opposition because the gentleman is not talking about this legislation.

Mr. Chair, I reserve the balance of my time.

Mr. BILIRAKIS. Mr. Chair, I yield 2 minutes to the gentleman from Texas (Mr. PFLUGER), a good friend of mine and a very effective member of the Energy and Commerce Committee.

Mr. PFLUGER. Mr. Chair, I thank my friend from Florida for yielding. Mr. Chair, it is almost hard to believe that we are actually having to have this discussion. At a time when Americans are struggling to afford groceries, the Biden administration is trying to implement new rules to dictate what you have in your house, what kind of appliances you have in your home.

As my friend from New York just stood up and said that this is not just a Texas issue. This is not localized to one part of our country. This spans the entire country.

We have seen the EPA overreach in every single aspect of energy, every single aspect, whether it is with endangered species, the threat of nonattainment in the Permian Basin, where I represent, they are overreaching.

Their de facto ban on gas stoves would eliminate more than half of the gas cooktops on the market today while forcing 187 million Americans who use affordable, reliable natural gas to switch to expensive, less desirable alternatives.

If this administration was serious about limiting pollution and protecting our climate, they would unleash the energy that we produce in my district in the Permian Basin, they would put Midland over Moscow, and they would make it easier to produce clean energy, 40 percent cleaner natural gas in the U.S. compared to Russia. In fact, homes with natural gas appliances emit 22 percent less CO_2 than all-electric homes.

House Republicans are not just standing by idly. We are going to do something. We are doing something. We are going to prevent this overreach from happening.

Mr. President, unleash American energy. Don't make it harder to produce natural gas here. Don't limit the types of stoves and appliances we have in our homes. Quit overreaching.

Mr. Chair, allow Americans the freedoms that our Constitution protects and pass this bill. Our bill will prevent the administration from banning gas stoves or cooktops or imposing any standards that make gas stoves unaffordable.

I appreciate the leadership throughout this House from the Speaker and everyone else to bring this bill to bear. I urge a ''yes'' vote.

The CHAIR. Members are reminded to direct their remarks to the Chair.

Mr. PALLONE. Mr. Chair, I yield myself such time as I may consume.

Again, I have to speak out against the misinformation that is being promulgated on the other side. It is simply wrong to argue, as the previous speaker did, that genuine concerns about the health effects of gas stove emissions are in any way tied to President Biden's clean energy agenda.

The Consumer Product Safety Commission is an independent Federal agency that is tasked solely with protecting consumers, and especially children, from consumer products that pose an unreasonable risk of injury or death.

The work of the Consumer Product Safety Commission has nothing to do with the Biden administration's clean energy policies, whether you agree with his policies or not, and we shouldn't let Republicans' fear of protecting our environment baselessly restrict CPSC's tools to protect America's children and their families' health and safety.

I could just read the bill that Mr. ARMSTRONG, the gentleman from North Dakota, said before, this bill says that the Commission cannot regulate gas stoves as a hazardous product or to impose or enforce any consumer product safety net standard on gas stoves. It has nothing to do with the environment. It is all about safety, so why do you talk about these other things?

Mr. Chair, I reserve the balance of my time.

Mr. BILIRAKIS. Mr. Chair, I yield 2 minutes to the gentleman from Florida (Mr. MAST), a great American hero and my fellow Floridian.

Mr. MAST. Mr. Chair, I thank my friend for yielding me the time. I am not going to need 2 minutes. You can calculate for that right now.

I am just going give a quick warning. With this administration, it is always an example of getting the camel's nose under the tent.

We are dealing with gas stoves today, and here is my prediction today: Give it a couple months, and they are going to be coming after everybody's backyard grills. They are going to be coming after your Fourth of July. They are going to be coming after you saying: Well, this is what it does if you go out there and you put burgers and dogs on your gas grill in your backyard on Memorial Day and Labor Day and Fourth of July. That is my prediction today.

Mr. Chair, that is really all the time I needed to say that this is how this administration is constantly working against the American people, and I expect this to be no different.

□ 1630

Mr. PALLONE. Mr. Chair, I reserve the balance of my time.

Mr. BILIRAKIS. Mr. Chair, I yield myself such time as I may consume.

Mr. Chair, I think that the Democratic Party has an agenda—I really do—and it is the Green New Deal. That is what this is all about. I know how many people love their gas stoves. They love their gas stoves. They switched from an electric stove to a gas stove for a reason.

As a matter of fact, we have a gas stove and have had it for years. My family is very pleased. It is true that the food tastes better, particularly the Greek food tastes a lot better, with a gas stove.

Mr. Chair, I am very much in support of this bill, and I know we are going to get bipartisan support.

Mr. Chair, I reserve the balance of my time.

Mr. PALLONE. Mr. Chair, is the gentleman closing or prepared to close? I have no additional speakers at this time. I reserve the balance of my time.

Mr. BILIRAKIS. Mr. Chair, I have one more speaker.

Mr. Chair, I yield 2 minutes to the gentleman from North Dakota (Mr. ARMSTRONG), the sponsor of the bill.

Mr. ARMSTRONG. Mr. Chair, the minority's views and committee report state that this bill restricts the Commission from protecting consumers and performing its traditional functions, such as safety research, working with industry to develop standards, and recalling unsafe products. None of those claims are true.

The bill does not prevent the Commission from engaging in any of those functions. The bill simply prohibits the Commission from banning gas stoves as an entire product category by imposing a direct ban as a hazardous product or imposing safety standards in a manner that would substantially increase the price of gas stoves.

Nothing in the bill prohibits the Commission from conducting research on gas stoves. Nothing in the bill prohibits the Commission from developing voluntary safety standards with the industry. Nothing in the bill prohibits the Commission from seeking to have a product declared an imminently hazardous consumer product, which allows the Commission to seek a public notice, recall, repair, replacement, or refund for consumers.

This bill is about ensuring Americans have continued access to the entire product category of gas stoves. It does not in any way limit the Commission's ability to address a defective or dangerous model. Any attempt to suggest otherwise is inaccurate.

Mr. Chair, I think that is the important part of what we are talking about here. The Commission can still do its function, but it has to stay in its lane.

We have plenty of different agencies in the Biden administration that want to push their Green New Deal agenda on Americans—EPA, Department of Energy, Department of Defense, FTC, the list goes on and on.

Can we at least let the Consumer Product Safety Commission stay within their lane, do their mission, deal with faulty products, deal with recalls, make sure that the product is safe, not push for an agenda that would take something away that millions and millions of Americans use every day for breakfast, lunch, and dinner?

Mr. PALLONE. Mr. Chair, I yield myself such time as I may consume.

Mr. Chair, I have to very much disagree with what the sponsor, Mr. ARMSTRONG, just said. I read section 3 to say that the Consumer Product Safety Commission would not be able to ''impose or enforce any consumer product safety standard or rule on gas stoves under [such sections] that would otherwise result in a prohibition on the use or sale of gas stoves.''

Mr. Chair, he could argue that that doesn't say that they can't adopt a safety standard, but the way this is written, it is quite clear that if they adopt a safety standard that has any possibility of leading to a ban of some type of gas stove, they wouldn't be allowed to do it.

The majority is really putting a straitjacket on the Commission by saying that if it does research or any kind of rulemaking or standard that says that this is hazardous, because that could ultimately lead to a particular type of gas stove being banned, then the Commission is not allowed to do it.

I understand what he is saying, but I disagree. I think the way this rule reads, if I were the Chair of the Commission, I would read this to say that I can't do research, can't adopt the standard, and can't adopt anything that would impose a safety standard because if I do that, then it might lead somehow to the banning of gas stoves.

Mr. Chair, he is kind of being a little cute and loose with this by suggesting that this just says they can't outright ban stoves. It says they can't adopt a safety standard.

Mr. Chair, I reserve the balance of my time.

Mr. BILIRAKIS. Mr. Chair, I yield 1 minute to the gentleman from Louisiana (Mr. SCALISE), the distinguished majority leader.

Mr. SCALISE. Mr. Chair, I thank my friend, Mr. BILIRAKIS, for yielding.

Mr. Chair, I rise in strong support of this bill.

Mr. ARMSTRONG brings forward a really important bill that follows with a number of other pieces of legislation you are seeing on the floor. Tomorrow, you will see Mrs. LESKO's bill dealing with the same issue, the same idea that the Federal Government wants to ban gas stoves.

Mr. Chairman, most Americans are looking all across the country and saying that inflation is still skyrocketing for families and that energy costs are skyrocketing for families. You are paying 50 percent more at the pump when you fill up your car.

By the way, they want to ban the combustion engine, not through a congressional act, but through unelected bureaucrat regulations to get rid of gasoline-powered cars. It is all part of this government control agenda that we are seeing from this administration.

It seems like in every single department of the Biden administration—the CFPB here, the Department of Energy over there, and EPA in another place—they are trying to tell people what they can and can't do with their lives—what kind of stove you can use in your house, for goodness' sake.

First of all, just look at the premise of what they are trying to do—to ban the gas stove, which means you have to then use an electric stove. Maybe a coal stove they would support, I don't know.

If you are choosing between a gas stove and an electric stove, we already know the gas stove is cheaper. They are targeting lower income families and raising the costs on lower income families. They are taking money out of the pockets of families who can least afford it.

Look at the energy side of this. I know this administration, more than any I have ever seen, has issued an all-out assault on American energy, not all energy. President Biden didn't cancel every pipeline. He canceled the Keystone pipeline and American pipelines. He green-lighted Russia's pipeline.

He didn't cancel all fossil fuels around the world. He said he just wants to make it harder to produce fossil fuels in the United States of America. Then, he went and begged Putin to produce more oil. He begged Saudi Arabia to produce more oil, and Venezuela. It just seems like, over and over again, it is American energy that they go after.

If you get rid of the gas stove, you are not getting rid of natural gas. Most places, a lot of places, get their electric from natural gas. You are going to ban the gas stove, and then you are going to take your electric stove—you don't plug it into a tree. You plug it into a socket that is probably fueled by natural gas, but they are probably going to try to ban that, too.

Who are the people that come up with these ideas when sitting around in a room? They are not trying to figure out how to lower inflation, not trying to figure out how to get spending under control, not trying to figure out how to secure America's border. They are trying to figure out how to take choices away from Americans, whether or not you can even buy a gas stove.

Mr. Chair, they are trying to take away the Second Amendment rights of disabled veterans on a bill we will be voting on later tonight on pistol braces. It is something that was designed for military veterans who risked their lives for our country and got so injured that their arms weren't able to use and hold a weapon like most people do. They came up with these braces to help them exercise their Second Amendment constitutional right. They want to get rid of that, too, and retroactively make felons out of millions of Americans.

Mr. Chairman, this government control is out of control. It is about time we push back. You are seeing this whole week we are bringing bills, as we have in the past, to finally start standing up for those hardworking families who are struggling and are sick and tired of attacks on their freedom and their opportunities by this Federal Government.

Today it is gas stoves. A couple of weeks ago, EPA started coming up with rules that they haven't even finalized yet to try to ban the combustion engine. They want to do these things that are major changes that will affect people's lives adversely.

I used to watch how a bill becomes law. I think most Americans watched that, too. I hope they still teach civics in school instead of hatred of America, which they seem to want to do all the time. It used to be that if you wanted to change the way something works, you file a bill and go talk to your Member of Congress. You file a bill and go to committee and explain your idea. If it is a really dumb, nutty idea, it gets voted down.

I guess they got voted down so many times that they decided: Why go run for Congress? They just got into the unelected bureaucracy where they can come up with these ideas and where there is no accountability, which, by the way, is why we are bringing the REINS Act later this week, a bill that says any kind of change from an unelected bureaucrat that affects your life—these hardworking families who are sick and tired of waking up and saying: What did the government do to me today, and how am I going to now live my life and have my freedoms when they are trying to take them away at every different angle?

The REINS Act says that if an unelected bureaucrat does that, they have to come before Congress first.

The elected people who are held accountable every 2 years were on the ballot. If it is a really good idea, present it in public view on C–SPAN.

Can anybody tell me who the person is that came up with this rule that is going to affect every American's life? No one can name who they are. Why don't you make them come? If it is a great idea, they should be proud to present it in open view like this forum is right here. They can tell everybody what it is about. If we vote it up, it becomes law. If we vote it down, the dumb idea dies.

That is not how it works, which is why we need things like the REINS Act. This unelected bureaucracy, these Big Government socialists that want to control every aspect of your life, we are sick and tired of it.

We need to pass this bill. We need to pass the pistol brace bill. Tomorrow, we need to pass Mrs. LESKO's bill. We need to pass the REINS Act and the Chevron deference bill. That is just this week.

Every single week, we are seeing this administration go after the rights of hardworking people, and they are sick and tired of it. I am glad this Republican majority is standing up for those families who are struggling and tired, too.

Mr. Chair, let's get this done. Let's pass this bill.

Mr. PALLONE. Mr. Chair, I yield myself such time as I may consume.

Mr. Chair, I keep listening to the speakers on the other side. First of all, the Consumer Product Safety Commission has not come up with any rule. Not only have they said they are not going to ban gas stoves, but this bill doesn't address any rule that they have come up with in regard to gas stoves. It simply says that they cannot regulate gas stoves by looking at potential hazards that might kill people or hurt children.

When I, as a consumer, go to the store and buy something—most people think that if they buy a gas stove, somebody locally or at the State level or in Washington has looked at that thing to see whether it is hazardous and is going to blow up and explode in my face.

What the Republicans are saying is: No, you can't do that. You can't look at this to see whether it is safe, whether it is going to explode, or whether it is going to be hazardous to my kids. You can't do that.

You are basically getting rid of what people expect. People expect, in my opinion—at least my constituents expect—that when they go buy something that could potentially be hazardous, someone has reviewed it to see if it is hazardous so it doesn't explode in their face and blow up their house.

What I am hearing from my constituents when I went home this weekend is that they are sick and tired of the Republicans coming to the House floor with misinformation and misleading ideas. They would like us to do something to help them, whatever the issue is, to actually do something that is meaningful to them.

□ 1645

This bill is nothing more than some kind of scare tactic by House Republicans to mislead the American public.

Lastly, Republicans were unable to muster enough votes to move forward and debate this bill. It is no surprise because the bill is terrible. At the time, a handful of my Republican colleagues acknowledged that this bill is just a messaging bill, and it has no chance of becoming law.

One Member of this body went so far as to say on the Republican side: Is it really a loss that we aren't passing anything? Haven't we had enough bills like this one that puts politics over policy and scare tactics over substance?

This body should be focused on passing meaningful legislation that works to protect the health and safety of children, their families, and consumers, and not undermining the work of an expert agency like the Consumer Product Safety Commission.

Don't keep coming to the floor and saying that this is about clean energy, or this is about grills or something else. It is strictly about saying that this agency, which has the job to protect people from hazardous substances, cannot do that in the case of gas stoves.

I think it is pretty outrageous that my friends are saying that there isn't going to be a Federal agency that can do that because I know that when I go to the store and when my residents and my constituents go to the store, they would like to think that somebody is looking at this stuff to see whether it is going to explode in their face, and the other side is saying: No, that is not something that they can do.

I reserve the balance of my time, Mr. Chairman.

Mr. BILIRAKIS. Mr. Chairman, I yield 2 minutes to the distinguished gentleman from Michigan (Mr. WALBERG).

Mr. WALBERG. Mr. Chairman, I thank the chair for yielding.

Mr. Chairman, I rise today in support of H.R. 1615 and in support of our gas stoves.

Across southern Michigan, people—including chefs in my district and, most importantly, my wife—are bewildered by the attacks on gas stoves, and many can't wrap their heads around it.

Here is the deal: a climate group with deep ties to the CCP published a questionable study on gas stoves. President Biden's climate czar and Energy Secretary have met with this group, and despite the group's deep ties to the CCP, American taxpayer dollars continue to be funneled to them.

Shortly after publication of the study, a Consumer Product Safety Commission member said that a gas stove ban was ''on the table.''

Let's be clear. The House is not going to stand by while the administration continues to restrict the freedoms of Americans, undermine energy security, and make life even more costly for families.

About 40 percent of Americans are utilizing gas stoves, and we are not going to restrict our own freedom because a group connected to the CCP would like us to.

Natural gas is safe, it is reliable, and it is affordable for millions of Americans. Natural gas makes America strong, resilient, provides stability, and has been the key factor in cleaning up our environment unlike other nations.

Mr. Chairman, I urge my colleagues to vote ''yes'' to support our freedom, energy security, and a prosperous future.

Mr. PALLONE. Mr. Chairman, I yield such time as she may consume to the gentlewoman from Illinois (Ms. SCHAKOWSKY.)

Ms. SCHAKOWSKY. Mr. Chairman, I will say that there were a lot of things said that are really misinformation. No one is going to lose their gas stoves. This is not a plot to take that away.

I certainly encourage everyone to vote against this so that we can protect our children, we can have the Consumer Product Safety Commission alert us to problems that may occur, and to keep all of us safer. That is the point of this bill.

Mr. PALLONE. Mr. Speaker, I yield back the balance of my time.

Mr. BILIRAKIS. Mr. Chairman, as the distinguished gentleman said, 40 percent of Americans use gas stoves. They are very comfortable with their stoves. Let's not take it away from them.

The other side says that we are not going to ban gas stoves. Let's put the American people at ease.

Now we have seniors who are on limited incomes, and they love their gas stoves.

How are they going to replace them?

Where are they going to get the money to replace these stoves?

Now, again, if we are not going to ban gas stoves, then let's put it in writing. Let's record the votes today. I tell you, Mr. Chairman, we are going to get bipartisan support for this particular bill.

Mr. Chairman, I yield back the balance of my time.

The CHAIR. All time for general debate has expired.

Pursuant to the rule, the bill shall be considered for amendment under the 5-minute rule.

The bill is considered as read.

The text of the bill is as follows:

H.R. 1615

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Gas Stove Protection and Freedom Act''.

SEC. 2. DEFINITIONS.

In this Act:

(1) COMMISSION.—The term ''Commission'' means the Consumer Product Safety Commission.

(2) GAS STOVE.—The term ''gas stove'' means any gas range, gas stove, or household cooking gas appliance that meets the standard set forth in American National Standards Institute (ANSI) Z21.1/ CSA Z21.1 or any successor standard.

(3) SUBSTANTIALLY INCREASE THE AVERAGE PRICE OF GAS STOVES.—The term ''substantially increase the average price of gas stoves'' means that the average price of a gas stove, annualized over its expected life, would likely be substantially higher than the average spending by United States homeowners on cooking stoves and ovens based on the most recent data for consumer expenditures reported by the Bureau of Labor Statistics.

SEC. 3. PROHIBITION ON CPSC BANNING GAS STOVES.

No Federal funds may be used by the Commission to regulate a gas stove as a banned hazardous product under section 8 of the Consumer Product Safety Act (15 U.S.C. 2057) or to impose or enforce any consumer product safety standard or rule on gas stoves under section 7 or 9 of such Act (15 U.S.C. 2056 or 2058) that would otherwise result in a prohibition on the use or sale of gas stoves in the United States or would otherwise substantially increase the average price of gas stoves in the United States.

The CHAIR. No amendment to the bill shall be in order except those printed in part C of House Report 118–108. Each such amendment may be offered only in the order printed in the report, by the Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question.

AMENDMENT NO. 1 OFFERED BY MRS. BOEBERT

The CHAIR. It is now in order to consider amendment No. 1 printed in part C of House Report 118–108.

Mrs. BOEBERT. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 2, line 20, insert after ''United States'' the following: '', would otherwise result in the unavailability in the United States of a type (or class) of product based on the type of fuel the product consumes,''.

The CHAIR. Pursuant to House Resolution 495, the gentlewoman from Colorado (Mrs. BOEBERT) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Colorado.

Mrs. BOEBERT. Mr. Chairman, I rise in favor of my amendment which will prohibit the administration from unilaterally implementing extremely costly regulations that would result in the unavailability in the United States of a type or class of product based on the type of fuel the product consumes.

My amendment ensures that the Consumer Product Safety Commission focuses on actual hazards with design rather than targeting fuel sources.

We have a crisis at our southern border. Americans are worried about being able to provide for their families and not pay $10 for a bag of grapes. Meanwhile, the Biden administration is focused on controlling the kind of stove Americans use in their homes.

Mr. Chair, 100 percent of the currently available freestanding gas stoves and 96 percent of gas cooktops will not meet the new standards proposed by the Biden administration's Department of Energy.

The Department of Energy estimates savings would average $1.50 per year.

Mr. Chairman, do you know how much a gas stove that is compliant under this proposed rule would cost on average?

Installation costs are anywhere between $3,600 on the high end to $2,000 on the low end. Adding that to the cost of the stove puts you out another $3,000 to $4,000, at least. Saying it will save consumers money is a flat-out lie. Forcing people to switch to expensive alternatives will only further increase costs for hardworking families in my district and across America.

This reminds me a lot of when Mayor Pete said that if you can't afford the price of gas due to the administration's anti-American energy policies, then Americans should just shell out $40,000 to $55,000 for a new electric vehicle.

This administration has proven to be completely out of touch.

Never mind the fact that Biden has also targeted dishwashers, refrigerators, water heaters, furnaces, and air conditioners. On top of families paying more for everyday costs due to Bidenflation, it is clear this administration has prioritized pandering to Green New Deal extremists rather than saving American families' hard-earned money.

I do thank my colleague, Representative KELLY Armstrong, for his leadership to ensure the CPSC cannot abuse Federal funds to regulate gas stoves.

Mr. Chairman, I urge my colleagues to vote in favor of this amendment as well as the underlying bill.

Mr. BILIRAKIS. Will the gentlewoman yield?

Mrs. BOEBERT. I yield to the gentleman from Florida.

Mr. BILIRAKIS. Mr. Chairman, this is a good amendment and will make the bill stronger by preventing product regulation based on the type of fuel it uses. I appreciate Mrs. BOEBERT for offering this particular amendment.

Mr. Chairman, I urge a ''yes'' vote.

Mrs. BOEBERT. Mr. Chairman, I reserve the balance of my time.

Ms. SCHAKOWSKY. Mr. Chairman, I claim the time in opposition to the amendment.

The CHAIR. The gentlewoman from Illinois is recognized for 5 minutes.

Ms. SCHAKOWSKY. Mr. Chairman, this proposed amendment would expand the prohibition of using Federal dollars, Federal funds, to include any action—I want to repeat that, any action that would limit the ability of gas stoves based on the kind of fuel that it uses.

So if this amendment were to be adopted, it would absolutely endanger our children and all consumers.

For example, the negative health effects of lead are very well-known, particularly how lead might affect children. That is why we were able to phase lead out of gasoline in our cars, but this could open up the gate for manufacturers to actually use leaded gas to power a gas stove.

This amendment would then prohibit and prevent the Consumer Product Safety Commission—which is made to protect us and warn us—from giving us any kind of warning and stop the use of lead in a gas stove, and that would make no sense at all.

It is dangerous to block the Consumer Product Safety Commission from protecting American children from such hazards as lead. That is just one example. We simply cannot let these unfounded Republican attacks on the CPSC to disable us from having ourselves protected and from making sure that our children are going to be safe from hazards that are legitimately going to be warned.

So I absolutely urge this amendment to fail. It goes even far beyond the ridiculousness of the suggestion that as

a result of the underlying bill we would come to homes and take away their gas stoves.

This would create a hazard. This would create a hazard, and this amendment should not be adopted.

Mr. Chairman, I reserve the balance of my time.

Mrs. BOEBERT. Mr. Chairman, may I ask how much time I have remaining.

The CHAIR. The gentlewoman from Colorado has 1½ minutes remaining.

Mrs. BOEBERT. Mr. Chairman, what makes no sense is the speech that we just heard regarding this amendment. There is so much of that that I cannot even fathom to put together.

I am hearing a lot about hazards from gas stoves that would cause harm for our children. I have four children. We have always had a gas stove, and they are doing pretty well.

I can see that the gentlewoman from Illinois has made it pretty long in her lifetime with the so-called dangers of gas products here in America.

Mr. Chairman, let me tell you what really is hazardous. What really is dangerous is the Green New Deal extremism that comes from the left because they want to suppress our good, clean energy right here in the United States of America that is cheap, that is reliable, and it is actually something that is affordable for Americans right now, unlike everything else because of the inflation that we are seeing from this administration.

What is hazardous and what is really dangerous are the tens of thousands of children who are mining for cobalt in Chinese-owned mines in the Congo with their bare hands. That is what is dangerous, and that is what this Green New Deal extremist policy encourages and pushes.

I have voted on so many bills for the Uighurs that are suppressed by the Chinese, but we never talk about the slave labor that takes place to produce the energy that the other side is trying to force on Americans with their overreach of government policy. That is what is dangerous.

□ 1700

An open border with fentanyl pouring over, that is dangerous. Families not being able to afford to feed their family, that is dangerous.

Mr. Chair, I urge the adoption of this bill that makes so much more sense than the speech that we just heard from the other side of the aisle.

Mr. Chair, I yield back the balance of my time.

Ms. SCHAKOWSKY. Mr. Chair, I don't know how the gentlewoman got to children in mines from an amendment that says that any kind of addition to manufacturing a gas stove, including lead, which the gentlewoman did not respond to, would be a danger.

I oppose this amendment. I think it is very harmful. It has nothing to do with many of the scenarios that were just illuminated or not, and I think that it is very important that we vote down this very dangerous amendment.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR (Mr. MAST). The question is on the amendment offered by the gentlewoman from Colorado (Mrs. BOEBERT).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Ms. SCHAKOWSKY. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentlewoman from Colorado will be postponed.

The Chair understands that amendment No. 2 will not be offered.

Mr. BILIRAKIS. Mr. Chair, I move that the Committee do now rise.

The motion was agreed to.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. MCCORMICK) having assumed the chair, Mr. MAST, Acting Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 1615) to prohibit the use of Federal funds to ban gas stoves, had come to no resolution thereon.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Proceedings will resume on questions previously postponed.

Votes will be taken in the following order:

Passage of H.J. Res. 44; and

Passage of H.J. Res. 42, the objections of the President to the contrary notwithstanding.

The first electronic vote will be conducted as a 15-minute vote. Pursuant to clause 9 of rule XX, the second electronic vote will be conducted as a 5-minute vote.

PROVIDING FOR CONGRESSIONAL DISAPPROVAL UNDER THE RULE SUBMITTED BY THE BUREAU OF ALCOHOL, TOBACCO, FIREARMS, AND EXPLOSIVES RELATING TO ''FACTORING CRITERIA FOR FIREARMS WITH ATTACHED 'STABILIZING BRACES' ''

The SPEAKER pro tempore. The unfinished business is the vote on passage of the joint resolution (H.J. Res. 44) providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Bureau of Alcohol, Tobacco, Firearms, and Explosives relating to ''Factoring Criteria for Firearms with Attached 'Stabilizing Braces' '', on which the yeas and nays were ordered.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. The question is on the passage of the joint resolution.

The vote was taken by electronic device, and there were—yeas 219, nays 210, not voting 5, as follows:

[Roll No. 252]

YEAS—219

Aderholt
Alford
Allen
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bean (FL)
Bentz
Bergman
Bice
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brecheen
Buchanan
Buck
Bucshon
Burchett
Burgess
Burlison
Calvert
Cammack
Carey
Carl
Carter (GA)
Carter (TX)
Chavez-DeRemer
Ciscomani
Cline
Cloud
Clyde
Cole
Collins
Comer
Crane
Crawford
Crenshaw
Curtis
Davidson
De La Cruz
DesJarlais
Diaz-Balart
Donalds
Duarte
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Ezell
Fallon
Feenstra
Ferguson
Fischbach
Fitzgerald
Fleischmann
Flood
Foxx
Franklin, C. Scott
Fry
Fulcher
Gaetz
Gallagher
Garbarino
Garcia, Mike
Gimenez
Golden (ME)
Gonzales, Tony
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Hill
Hinson
Houchin
Hudson
Huizenga
Hunt
Issa
Jackson (TX)
James
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kelly (MS)
Kelly (PA)
Kiggans (VA)
Kiley
Kim (CA)
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Langworthy
Latta
LaTurner
Lawler
Lee (FL)
Lesko
Letlow
Loudermilk
Lucas
Luetkemeyer
Luna
Luttrell
Mace
Malliotakis
Mann
Massie
Mast
McCarthy
McCaul
McClain
McClintock
McCormick
McHenry
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moran
Murphy
Nehls
Newhouse
Norman
Nunn (IA)
Obernolte
Ogles
Owens
Palmer
Peltola
Pence
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Rosendale
Rouzer
Roy
Rutherford
Salazar
Santos
Scalise
Schweikert
Scott, Austin
Self
Sessions
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spartz
Stauber
Steel
Stefanik
Steil
Steube
Stewart
Strong
Tenney
Thompson (PA)
Tiffany
Timmons
Valadao
Van Drew
Van Duyne
Van Orden
Wagner
Walberg
Waltz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams (NY)
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NAYS—210

Adams
Aguilar
Allred
Auchincloss
Balint
Barragán
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Budzinski
Bush
Caraveo
Carbajal
Cárdenas
Carson
Carter (LA)
Cartwright
Casar
Case
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Connolly
Correa
Costa
Courtney
Craig
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Davis (NC)
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Dingell
Doggett
Escobar
Eshoo
Espaillat
Evans

Fitzpatrick
Fletcher
Foster
Foushee
Frankel, Lois
Frost
Gallego
Garamendi
Garcia (IL)
Garcia (TX)
Garcia, Robert
Goldman (NY)
Gomez
Gonzalez, Vicente
Green, Al (TX)
Grijalva
Harder (CA)
Hayes
Higgins (NY)
Himes
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Ivey
Jackson (IL)
Jackson (NC)
Jackson Lee
Jacobs
Jayapal
Jeffries
Johnson (GA)
Kamlager-Dove
Kaptur
Kean (NJ)
Keating
Kelly (IL)
Khanna
Kildee
Kilmer
Kim (NJ)
Krishnamoorthi
Kuster
Landsman
Larsen (WA)
Larson (CT)
Lee (CA)
Lee (NV)
Lee (PA)
Leger Fernandez
Levin
Lieu
Lofgren
Lynch
Magaziner
Manning
Matsui
McBath
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Mfume
Moore (WI)
Morelle
Moskowitz
Moulton
Mrvan
Mullin
Nadler
Napolitano
Neal
Neguse
Nickel
Norcross
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Pelosi
Perez
Peters
Pettersen
Phillips
Pingree
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Ross
Ruiz
Ruppersberger
Ryan
Salinas
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Slotkin
Smith (WA)
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stevens
Strickland
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Underwood
Vargas
Vasquez
Veasey
Velázquez
Wasserman Schultz
Waters
Watson Coleman
Wexton
Wild
Williams (GA)
Wilson (FL)

NOT VOTING—5

Casten
D'Esposito
Finstad
Gottheimer
Turner

□ 1739

Messrs. GARAMENDI, VICENTE GONZALEZ of Texas, DAVIS of Illinois, Ms. JACKSON LEE, and Mr. DAVIS of North Carolina changed their vote from ''yea'' to ''nay.''

So the joint resolution was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

DISAPPROVING THE ACTION OF THE DISTRICT OF COLUMBIA COUNCIL IN APPROVING THE COMPREHENSIVE POLICING AND JUSTICE REFORM AMENDMENT ACT OF 2022

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the question on whether the House, on reconsideration, will pass the joint resolution (H.J. Res. 42), disapproving the action of the District of Columbia Council in approving the Comprehensive Policing and Justice Reform Amendment Act of 2022, the objections of the President to the contrary notwithstanding.

In accord with the Constitution, the yeas and nays are ordered.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 233, nays 197, not voting 4, as follows:

[Roll No. 253]

YEAS—233

Aderholt
Alford
Allen
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bean (FL)
Bentz
Bergman
Bice
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brecheen
Buchanan
Buck
Bucshon
Budzinski
Burchett
Burgess
Burlison
Calvert
Cammack
Carey
Carl
Carter (GA)
Carter (TX)
Chavez-DeRemer
Ciscomani
Cline
Cloud
Clyde
Cole
Collins
Comer
Craig
Crane
Crawford
Crenshaw
Cuellar
Curtis
D'Esposito
Davidson
Davis (NC)
De La Cruz
DesJarlais
Diaz-Balart
Donalds
Duarte
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Ezell
Fallon
Feenstra
Ferguson
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Flood
Foxx
Franklin, C. Scott
Fry
Fulcher
Gaetz
Gallagher
Garbarino
Garcia, Mike
Gimenez
Golden (ME)
Gonzales, Tony
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Hill
Hinson
Houchin
Hudson
Huizenga
Hunt
Issa
Jackson (TX)
James
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kean (NJ)
Kelly (MS)
Kelly (PA)
Kiggans (VA)
Kiley
Kim (CA)
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Langworthy
Latta
LaTurner
Lawler
Lee (FL)
Lee (NV)
Lesko
Letlow
Loudermilk
Lucas
Luetkemeyer
Luna
Luttrell
Mace
Malliotakis
Mann
Massie
Mast
McCarthy
McCaul
McClain
McClintock
McCormick
McHenry
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moran
Murphy
Nehls
Newhouse
Nickel
Norman
Nunn (IA)
Obernolte
Ogles
Owens
Palmer
Panetta
Pappas
Pence
Perez
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Rosendale
Rouzer
Roy
Rutherford
Ryan
Salazar
Santos
Scalise
Schrier
Schweikert
Scott, Austin
Self
Sessions
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Sorensen
Spartz
Stauber
Steel
Stefanik
Steil
Steube
Stewart
Strong
Tenney
Thompson (PA)
Tiffany
Timmons
Valadao
Van Drew
Van Duyne
Van Orden
Wagner
Walberg
Waltz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams (NY)
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NAYS—197

Adams
Aguilar
Allred
Auchincloss
Balint
Barragán
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Bush
Caraveo
Carbajal
Cárdenas
Carson
Carter (LA)
Cartwright
Casar
Case
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Connolly
Correa
Costa
Courtney
Crockett
Crow
Davids (KS)
Davis (IL)
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Dingell
Doggett
Escobar
Eshoo
Espaillat
Evans
Fletcher
Foster
Foushee
Frankel, Lois
Frost
Gallego
Garamendi
García (IL)
Garcia (TX)
Garcia, Robert
Goldman (NY)
Gomez
Gonzalez, Vicente
Green, Al (TX)
Grijalva
Harder (CA)
Hayes
Higgins (NY)
Himes
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Ivey
Jackson (IL)
Jackson (NC)
Jackson Lee
Jacobs
Jayapal
Jeffries
Johnson (GA)
Kamlager-Dove
Kaptur
Keating
Kelly (IL)
Khanna
Kildee
Kilmer
Kim (NJ)
Krishnamoorthi
Kuster
Landsman
Larsen (WA)
Larson (CT)
Lee (CA)
Lee (PA)
Leger Fernandez
Levin
Lieu
Lofgren
Lynch
Magaziner
Manning
Matsui
McBath
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Mfume
Moore (WI)
Morelle
Moskowitz
Moulton
Mrvan
Mullin
Nadler
Napolitano
Neal
Neguse
Norcross
Ocasio-Cortez
Omar
Pallone
Pascrell
Payne
Pelosi
Peltola
Peters
Pettersen
Phillips
Pingree
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Ross
Ruiz
Ruppersberger
Salinas
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Slotkin
Smith (WA)
Soto
Spanberger
Stansbury
Stanton
Stevens
Strickland
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Underwood
Vargas
Vasquez
Veasey
Velázquez
Wasserman Schultz
Waters
Watson Coleman
Wexton
Wild
Williams (GA)
Wilson (FL)

NOT VOTING—4

Casten
Finstad
Gottheimer
Turner

□ 1748

So (two-thirds not being in the affirmative) the veto of the President was sustained and the joint resolution was rejected.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The veto message and the joint resolution are referred to the Committee on Oversight and Accountability.

The Clerk will notify the Senate of the action of the House.

GAS STOVE PROTECTION AND FREEDOM ACT

The SPEAKER pro tempore (Mr. RUTHERFORD). Pursuant to House Resolution 495 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the further consideration of the bill, H.R. 1615.

Will the gentleman from Georgia (Mr. MCCORMICK) kindly resume the chair.

□ 1752

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole

House on the state of the Union for the further consideration of the bill (H.R. 1615) to prohibit the use of Federal funds to ban gas stoves, with Mr. MCCORMICK in the chair.

The Clerk read the title of the bill.

The CHAIR. When the Committee of the Whole rose earlier today, a request for a recorded vote on amendment No. 1 printed in part C of House Report 118–108 offered by the gentlewoman from Colorado (Mrs. BOEBERT) had been postponed.

AMENDMENT NO. 1 OFFERED BY MRS. BOEBERT

The CHAIR. Pursuant to the clause 6 of Rule XVIII, the unfinished business is the demand for a recorded vote on amendment No. 1, printed in part C of House Report 118–108 offered by gentlewoman from Colorado (Mrs. BOEBERT), on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 222, noes 210, not voting 7, as follows:

[Roll No. 254]

AYES—222

Aderholt
Alford
Allen
Allred
Amodei
Armstrong
Arrington
Babin
Baird
Balderson
Banks
Barr
Bean (FL)
Bentz
Bergman
Bice
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brecheen
Buchanan
Buck
Bucshon
Burchett
Burgess
Burlison
Calvert
Cammack
Carey
Carl
Carter (GA)
Carter (TX)
Chavez-DeRemer
Ciscomani
Cline
Cloud
Clyde
Cole
Collins
Comer
Crane
Crawford
Crenshaw
Cuellar
Curtis
Davidson
Davis (NC)
De La Cruz
DesJarlais
Diaz-Balart
Donalds
Duarte
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Ezell
Fallon
Feenstra
Ferguson
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Fletcher
Flood
Foxx
Franklin, C. Scott
Fry
Fulcher
Gaetz
Gallagher
Garbarino
Garcia, Mike
Gimenez
Gonzales, Tony
González-Colón
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Hill
Hinson
Houchin
Hudson
Huizenga
Hunt
Issa
Jackson (TX)
James
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kean (NJ)
Kelly (MS)
Kelly (PA)
Kiggans (VA)
Kiley
Kim (CA)
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Landsman
Langworthy
Latta
LaTurner
Lawler
Lee (FL)
Lesko
Letlow
Loudermilk
Lucas
Luetkemeyer
Luna
Luttrell
Malliotakis
Mann
Massie
Mast
McCaul
McClain
McClintock
McCormick
McHenry
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moran
Moylan
Murphy
Nehls
Newhouse
Norman
Nunn (IA)
Obernolte
Ogles
Owens
Palmer
Pence
Perez
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Rosendale
Rouzer
Roy
Rutherford
Salazar
Santos
Scalise
Schweikert
Scott, Austin
Self
Sessions
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Spartz
Stauber
Steel
Stefanik
Steil
Steube
Stewart
Strong
Tenney
Thompson (PA)
Tiffany
Timmons
Valadao
Van Drew
Van Duyne
Van Orden
Wagner
Walberg
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams (NY)
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NOES—210

Adams
Aguilar
Auchincloss
Bacon
Balint
Barragán
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Budzinski
Bush
Caraveo
Carbajal
Cárdenas
Carson
Carter (LA)
Cartwright
Casar
Case
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Connolly
Correa
Costa
Courtney
Craig
Crockett
Crow
Davids (KS)
Davis (IL)
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Dingell
Doggett
Escobar
Eshoo
Espaillat
Evans
Foster
Foushee
Frankel, Lois
Frost
Gallego
Garamendi
García (IL)
Garcia (TX)
Garcia, Robert
Golden (ME)
Goldman (NY)
Gomez
Gonzalez, Vicente
Green, Al (TX)
Grijalva
Harder (CA)
Hayes
Higgins (NY)
Himes
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Ivey
Jackson (IL)
Jackson (NC)
Jackson Lee
Jacobs
Jayapal
Jeffries
Johnson (GA)
Kamlager-Dove
Kaptur
Keating
Kelly (IL)
Khanna
Kildee
Kilmer
Kim (NJ)
Krishnamoorthi
Kuster
Larsen (WA)
Larson (CT)
Lee (CA)
Lee (NV)
Lee (PA)
Leger Fernandez
Levin
Lieu
Lofgren
Lynch
Mace
Magaziner
Manning
Matsui
McBath
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Mfume
Moore (WI)
Morelle
Moskowitz
Moulton
Mrvan
Mullin
Nadler
Napolitano
Neal
Neguse
Nickel
Norcross
Norton
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Pelosi
Peltola
Peters
Pettersen
Phillips
Pingree
Plaskett
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Ross
Ruiz
Ruppersberger
Ryan
Sablan
Salinas
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Slotkin
Smith (WA)
Smucker
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stevens
Strickland
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Underwood
Vargas
Vasquez
Veasey
Velázquez
Wasserman Schultz
Waters
Watson Coleman
Wexton
Wild
Williams (GA)
Wilson (FL)

NOT VOTING—7

Casten
D'Esposito
Finstad
Gottheimer
Radewagen
Turner
Waltz

□ 1754

So the amendment was agreed to.

The result of the vote was announced as above recorded.

The Acting CHAIR (Mr. RUTHERFORD). There being no further amendments, under the rule, the Committee rises.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. MCCORMICK) having assumed the chair, Mr. RUTHERFORD, Acting Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 1615) to prohibit the use of Federal funds to ban gas stoves, and, pursuant to House Resolution 495, he reported the bill back to the House with an amendment adopted in the Committee of the Whole.

The SPEAKER pro tempore. Under the rule, the previous question is ordered.

The question is on the amendment.

The amendment was agreed to.

The SPEAKER pro tempore. The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

The SPEAKER pro tempore. The question is on the passage of the bill.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. PALLONE. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 9 of rule XX, this 5-minute vote on passage of the bill will be followed by a 5-minute vote on the motion to suspend the rules with respect to H. Res. 377, if ordered.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 248, nays 180, not voting 5, as follows:

[Roll No. 255]

YEAS—248

Aderholt
Alford
Allen
Allred
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bean (FL)
Bentz
Bera
Bergman
Bice
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brecheen
Buchanan
Buck
Bucshon
Budzinski
Burchett
Burgess
Burlison
Calvert
Cammack
Caraveo
Carey
Carl
Carter (GA)
Carter (TX)
Chavez-DeRemer
Ciscomani
Cline
Cloud
Clyde
Cohen
Cole
Collins
Comer
Craig
Crane
Crawford
Crenshaw
Cuellar
Curtis
D'Esposito
Davidson
Davis (IL)
Davis (NC)
De La Cruz
DesJarlais
Diaz-Balart
Donalds
Duarte
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Ezell

Fallon
Feenstra
Ferguson
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Fletcher
Flood
Foxx
Franklin, C. Scott
Fry
Fulcher
Gaetz
Gallagher
Garbarino
Garcia (TX)
Garcia, Mike
Gimenez
Golden (ME)
Gonzales, Tony
Gonzalez, Vicente
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Harder (CA)
Harris
Harshbarger
Hayes
Hern
Higgins (LA)
Hill
Hinson
Horsford
Houchin
Hudson
Huizenga
Hunt
Issa
Jackson (NC)
Jackson (TX)
James
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kean (NJ)
Kelly (MS)
Kelly (PA)
Kiggans (VA)
Kiley
Kim (CA)
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Landsman
Langworthy
Latta
LaTurner
Lawler
Lee (FL)
Lee (NV)
Lesko
Letlow
Loudermilk
Lucas
Luetkemeyer
Luna
Luttrell
Mace
Malliotakis
Mann
Manning
Massie
Mast
McCaul
McClain
McClintock
McCormick
McHenry
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moran
Moskowitz
Murphy
Nehls
Newhouse
Norman
Nunn (IA)
Obernolte
Ogles
Owens
Palmer
Panetta
Peltola
Pence
Perez
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Rosendale
Rouzer
Roy
Rutherford
Salazar
Santos
Scalise
Schweikert
Scott, Austin
Self
Sessions
Sewell
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Sorensen
Spartz
Stanton
Stauber
Steel
Stefanik
Steil
Steube
Stewart
Strong
Tenney
Thompson (PA)
Tiffany
Timmons
Valadao
Van Drew
Van Duyne
Van Orden
Vasquez
Veasey
Wagner
Walberg
Waltz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams (NY)
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NAYS—180

Adams
Aguilar
Auchincloss
Balint
Barragán
Beatty
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Bush
Carbajal
Cárdenas
Carson
Carter (LA)
Cartwright
Casar
Case
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Connolly
Correa
Costa
Courtney
Crockett
Crow
Davids (KS)
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Dingell
Doggett
Escobar
Eshoo
Espaillat
Evans
Foster
Foushee
Frankel, Lois
Frost
Gallego
Garamendi
García (IL)
Garcia, Robert
Goldman (NY)
Gomez
Green, Al (TX)
Grijalva
Higgins (NY)
Himes
Houlahan
Hoyer
Hoyle (OR)
Huffman
Ivey
Jackson (IL)
Jackson Lee
Jacobs
Jayapal
Jeffries
Johnson (GA)
Kamlager-Dove
Kaptur
Keating
Kelly (IL)
Khanna
Kildee
Kilmer
Kim (NJ)
Krishnamoorthi
Kuster
Larsen (WA)
Larson (CT)
Lee (CA)
Lee (PA)
Leger Fernandez
Levin
Lieu
Lofgren
Lynch
Magaziner
Matsui
McBath
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Mfume
Moore (WI)
Morelle
Moulton
Mrvan
Mullin
Nadler
Napolitano
Neal
Neguse
Nickel
Norcross
Ocasio-Cortez
Omar
Pallone
Pappas
Pascrell
Payne
Pelosi
Peters
Pettersen
Phillips
Pingree
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Ross
Ruiz
Ruppersberger
Ryan
Salinas
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, David
Sherman
Sherrill
Slotkin
Smith (WA)
Soto
Spanberger
Stansbury
Stevens
Strickland
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Underwood
Vargas
Velázquez
Wasserman Schultz
Watson Coleman
Wexton
Wild
Williams (GA)
Wilson (FL)

NOT VOTING—5

Casten
Finstad
Gottheimer
Turner
Waters

□ 1804

Ms. LEGER FERNANDEZ changed her vote from ''yea'' to ''nay.''

Mr. SORENSEN and Ms. SEWELL changed their vote from ''nay'' to ''yea.''

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

CALLING FOR THE IMMEDIATE RELEASE OF EVAN GERSHKOVICH, A UNITED STATES CITIZEN AND JOURNALIST, WHO WAS WRONGFULLY DETAINED BY THE GOVERNMENT OF THE RUSSIAN FEDERATION IN MARCH 2023

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and agree to the resolution (H. Res. 377) calling for the immediate release of Evan Gershkovich, a United States citizen and journalist, who was wrongfully detained by the Government of the Russian Federation in March 2023, as amended.

The Clerk read the title of the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. MCCAUL. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 422, noes 0, not voting 11, as follows:

[Roll No. 256]

AYES—422

Adams
Aderholt
Aguilar
Alford
Allen
Allred
Amodei
Armstrong
Auchincloss
Babin
Bacon
Baird
Balderson
Balint
Banks
Barr
Barragán
Bean (FL)
Beatty
Bentz
Bera
Bergman
Beyer
Bice
Biggs
Bilirakis
Bishop (GA)
Bishop (NC)
Blumenauer
Blunt Rochester
Boebert
Bonamici
Bost
Bowman
Boyle (PA)
Brecheen
Brown
Brownley
Buchanan
Buck
Bucshon
Budzinski
Burchett
Burgess
Burlison
Bush
Calvert
Cammack
Caraveo
Carbajal
Cárdenas
Carey
Carl
Carson
Carter (GA)
Carter (LA)
Carter (TX)
Cartwright
Casar
Case
Castor (FL)
Castro (TX)
Chavez-DeRemer
Cherfilus-McCormick
Chu
Ciscomani
Clark (MA)
Clarke (NY)
Cleaver
Cline
Cloud
Clyburn
Clyde
Cohen
Cole
Collins
Comer
Connolly
Correa
Costa
Courtney
Craig
Crane
Crawford
Crenshaw
Crockett
Crow
Cuellar
Curtis
D'Esposito
Davids (KS)
Davidson
Davis (IL)
Davis (NC)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
DesJarlais
Diaz-Balart
Dingell
Doggett
Donalds
Duarte
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Escobar
Eshoo
Espaillat
Estes
Evans
Ezell
Fallon
Feenstra
Ferguson
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Fletcher
Flood
Foster
Foxx
Frankel, Lois
Franklin, C. Scott
Frost
Fry
Fulcher
Gaetz
Gallagher
Gallego
Garamendi
Garbarino
García (IL)
Garcia (TX)
Garcia, Mike
Garcia, Robert
Gimenez
Golden (ME)
Gomez
Gonzales, Tony
Gonzalez, Vicente
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Green, Al (TX)
Greene (GA)
Griffith
Grijalva
Grothman
Guest
Guthrie
Hageman
Harder (CA)
Harris
Harshbarger
Hayes
Hern
Higgins (LA)
Higgins (NY)
Hill
Himes
Hinson
Horsford
Houchin
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Hunt
Issa
Ivey
Jackson (IL)
Jackson (NC)
Jackson (TX)
Jackson Lee
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kamlager-Dove
Kaptur
Kean (NJ)
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Khanna
Kiggans (VA)
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kuster
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latta
LaTurner
Lawler
Lee (CA)
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Lesko
Letlow
Levin
Lieu
Lofgren
Loudermilk
Lucas
Luetkemeyer
Luna
Luttrell
Lynch
Mace
Magaziner
Malliotakis
Mann
Manning
Massie
Mast
Matsui
McBath
McCaul
McClain
McClellan
McClintock
McCollum
McCormick
McGarvey
McGovern
Meeks
Menendez
Meng
Meuser
Mfume
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moran
Morelle
Moskowitz
Moulton
Mrvan
Mullin
Murphy
Nadler
Napolitano
Neal
Neguse
Nehls
Newhouse
Nickel
Norcross
Norman
Nunn (IA)
Obernolte
Ocasio-Cortez
Ogles
Omar
Owens
Pallone
Palmer
Panetta
Pappas
Pascrell
Payne
Pelosi
Peltola
Pence
Perez
Perry
Peters
Pettersen
Pfluger
Phillips
Pingree
Pocan
Porter
Posey
Pressley
Quigley
Ramirez
Raskin
Reschenthaler

Rodgers (WA)	Slotkin	Tonko
Rogers (AL)	Smith (MO)	Torres (CA)
Rogers (KY)	Smith (NE)	Torres (NY)
Rose	Smith (NJ)	Trahan
Rosendale	Smith (WA)	Trone
Ross	Smucker	Underwood
Rouzer	Sorensen	Valadao
Roy	Soto	Van Drew
Ruiz	Spanberger	Van Duyne
Ruppersberger	Spartz	Van Orden
Rutherford	Stansbury	Vargas
Ryan	Stanton	Vasquez
Salazar	Stauber	Veasey
Salinas	Steel	Velázquez
Sánchez	Stefanik	Wagner
Santos	Steil	Walberg
Sarbanes	Steube	Waltz
Scalise	Stevens	Wasserman Schultz
Scanlon	Stewart	Watson Coleman
Schakowsky	Strickland	Weber (TX)
Schiff	Strong	Webster (FL)
Schneider	Swalwell	Wenstrup
Scholten	Sykes	Westerman
Schrier	Takano	Wexton
Schweikert	Tenney	Wild
Scott (VA)	Thanedar	Williams (GA)
Scott, Austin	Thompson (CA)	Williams (NY)
Scott, David	Thompson (MS)	Williams (TX)
Self	Thompson (PA)	Wilson (FL)
Sessions	Tiffany	Wittman
Sewell	Timmons	Womack
Sherman	Titus	Yakym
Sherrill	Tlaib	Zinke
Simpson	Tokuda	

NOT VOTING—11

Arrington	Goldman (NY)	Turner
Casten	Gottheimer	Waters
Finstad	McHenry	Wilson (SC)
Foushee	Moore (WI)	

□ 1812

Ms. PRESSLEY changed her vote from ''no'' to ''aye.''

So (two-thirds being in the affirmative) the rules were suspended and the resolution, as amended, was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mr. GOTTHEIMER. Mr. Speaker, I missed the following votes due to a family issue. Had I been present, I would have voted ''nay'' on rollcall No. 249, ''nay'' on rollcall No. 250, ''yea'' on rollcall No. 251, ''nay'' on rollcall No. 252, ''yea'' on rollcall No. 253, ''yea'' on rollcall No. 254, ''yea'' on rollcall No. 255, and ''yea'' on rollcall No. 256.

MOMENT OF SILENCE RECOGNIZING SHAWN JACKSON AND RENZO SMITH, VICTIMS OF THE HUGUENOT HIGH SCHOOL SHOOTING IN RICHMOND, VIRGINIA

(Mrs. MCCLELLAN asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. MCCLELLAN. Mr. Speaker, I rise today alongside members of the Virginia delegation as we mourn the loss of Shawn Jackson, an 18-year-old high school graduate, and Renzo Smith, his stepfather, an Army veteran.

Just 20 minutes after Shawn received his high school diploma, both were tragically shot and killed when a gunman opened fire at the Huguenot High School graduation in Richmond last week.

We pray for Shawn's mother, Tameeka Jackson-Smith, and his sister, Renya Jackson-Smith, who, at 9 years old, was struck by a car fleeing the scene that night.

We invite all Members of the body to join us in a moment of silence to remember Shawn and Renzo.

SAVE OUR GAS STOVES ACT

GENERAL LEAVE

Mrs. LESKO. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material in the RECORD on H.R. 1640.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Arizona?

There was no objection.

The SPEAKER pro tempore. Pursuant to House Resolution 495 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the consideration of the bill, H.R. 1640.

The Chair appoints the gentleman from Georgia (Mr. AUSTIN SCOTT) to preside over the Committee of the Whole.

□ 1820

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the consideration of the bill (H.R. 1640) to prohibit the Secretary of Energy from finalizing, implementing, or enforcing the proposed rule titled ''Energy Conservation Program: Energy Conservation Standards for Consumer Conventional Cooking Products'', and for other purposes, with Mr. AUSTIN SCOTT of Georgia in the chair.

The Clerk read the title of the bill.

The CHAIR. Pursuant to the rule, the bill is considered read the first time.

General debate shall be confined to the bill and shall not exceed 1 hour equally divided and controlled by the chair and ranking minority member of the Committee on Energy and Commerce or their respective designees.

The gentlewoman from Arizona (Mrs. LESKO) and the gentleman from New Jersey (Mr. PALLONE) each will control 30 minutes.

The Chair recognizes the gentlewoman from Arizona.

Mrs. LESKO. Mr. Chair, I yield myself such time as I may consume.

Mr. Chair, I rise in support of my bill, the Save Our Gas Stoves Act. I never would have thought that I would need to introduce legislation to protect Americans' kitchen appliances, but this only goes to show how out of touch this administration's policies have become.

In February, the Department of Energy proposed an extreme regulation that would effectively eliminate nearly all gas stoves and gas cooktops on the market today.

The Department's proposed rule sets requirements for gas stoves at the maximum technologically feasible, or max-tech level. Based on the Department of Energy's own analysis and DOE's own technology support report, 96 percent of the market share of gas stoves will not, I repeat, not meet DOE's new proposed rule. That is a 96 percent ban.

Worse yet, no gas ranges passed DOE's new proposed rule tests. Gas ranges represent nearly 90 percent of all gas stoves sold.

What did DOE do after the public heard about this and pushed back? They adjusted their analysis, seemingly out of thin air. Now, they claim that nearly 50 percent of gas stoves will pass their rule. Guess what? That means more than 50 percent won't. Don't tell me they are not trying to ban gas stoves.

The DOE is justifying this proposed requirement under the false guise of saving Americans money. However, the estimated savings is just $21.89 over the next 14½ years. That is only $1.50 per year or 12 cents per month.

Consumers don't want to give up the features of the stoves they like for 12 cents per month. Consumers don't want to wait an extra 7 minutes to watch a pot of water boil for 12 cents per month.

Instead of DOE bragging about how they are going to save consumers 12 cents per month, maybe they should tell the public that natural gas is 3½ times cheaper than electricity and that, according to studies, households that use natural gas for heating, cooking, and drying clothes save an average of $1,068 per year.

Consumers don't want the government taking away the features on gas stoves that they like and use. That is not the role of the U.S. Government. That is why I introduced the Save Our Gas Stoves Act to protect Americans' consumer choice.

My legislation prohibits the Department of Energy from implementing this extreme rule and prohibits the Department of Energy from imposing standards that result in the unavailability of a product based on the type of fuel the product consumes.

Mr. Chair, I thank the American Association of Homebuilders; the American Restaurant Association; the American Gas Association; the Association of Home Appliance Manufacturers; the Arizona Restaurant Association; the American Public Gas Association; the National Propane Gas Association; and several energy companies, including Southwest Gas, which delivers natural gas to consumers in Arizona, for their support of my bill and for their support for American consumer choice.

Mr. Chair, I am pleased that this is a bipartisan bill that has received bipartisan support and that my Republican colleagues and 29 of my Democratic colleagues already voted in favor of an amendment to H.R. 1 that did virtually the same thing as this bill.

Mr. Chair, I urge my colleagues to vote ''yes'' on my bill. I urge my colleagues to vote in favor of consumer

choice. I urge my colleagues to vote to save our gas stoves.

Mr. Chair, I reserve the balance of my time.

Mr. PALLONE. Mr. Chair, I yield myself such time as I may consume.

Mr. Chair, I rise today in opposition to H.R. 1640, the so-called Save Our Gas Stoves Act. This is a Republican messaging bill designed to deliberately mislead the American people about gas stoves.

Let's set the record straight with a little reality. The Biden administration is not, and I repeat, not banning gas stoves. This is nothing but a political stunt.

House Republicans continue to put politics over people. With this bill today, they are once again putting polluters over people.

H.R. 1640 is designed to prevent the Department of Energy from finalizing a recently proposed energy efficiency standard for electric and gas stoves and cooktops that would lower energy bills, improve Americans' health, and cut pollution.

DOE energy efficiency standards are extremely popular. A recent poll found that three out of five Americans support stricter energy efficiency standards for appliances and buildings.

The proposed DOE rule that Republicans are trying to prevent from moving forward is a commonsense standard. The claim that 96 percent of gas stoves on the market don't meet the proposed DOE standard is just not true. Mr. Chair, 50 percent of the market already meets the proposed standard, including all entry-level models.

More importantly, the proposed standard only applies to new gas stoves manufactured and sold 3 years after the rule is finalized. That would give manufacturers more than enough time to meet these new standards. There is simply no reason for this proposed rule to be controversial.

No one is saying you can't keep your gas stove. No one is saying you don't have a choice. No one is saying you have to move to electric stoves. This is all misinformation.

Rather than acknowledging the facts, Republicans are instead employing their usual scare tactics, putting politics over people.

Despite what you hear from my Republican colleagues today, the DOE rule does not ban gas stoves, does not remove gas stoves from homes, and does not prevent anyone from putting a gas stove in their home.

This rule only applies to new stoves, and, as I said, manufacturers have 3 years to meet the standard.

Mr. Chair, I am sorry I have to keep repeating it, but I know the other side keeps repeating the misinformation.

All this means is that if a consumer goes to buy a new gas stove in 3 years, it will be more energy efficient and cheaper to operate. That is a win for consumers, our health, and our ongoing fight to combat the worsening climate crisis.

Mr. Chair, to make it worse, Republicans are not just going after this energy efficiency standard. Since the bill does not include a sunset clause, it could forever limit the Department of Energy from taking substantive action to improve energy efficiency of cooktops. This is just another way Republicans are continuing to prop up their polluter friends.

This bill as well as the REINS Act, which is on the floor later this evening, show that Republicans are skeptical of everything agencies do, including all rulemakings and regulations.

Republicans think that they can do the math, conduct the analysis, and reach conclusions better than the subject matter experts at our Federal agencies. That is not how our government works. We hire agency experts to make the best decisions and do their jobs best. The Department of Energy rulemaking process is detailed and well researched, with ample opportunity for public engagement.

Commonsense energy efficiency standards save everyday Americans money and reduce emissions. These standards are popular, and cooktops that meet the standard are already available on the market.

Republicans claim to care about energy prices, but this Republican bill prohibits the Department of Energy from finalizing a rule that can save consumers up to $1.7 billion.

□ 1830

Mr. Chair, H.R. 1640 should be rejected so that the Department of Energy can proceed with its commonsense energy efficiency standards.

Mr. Chair, I strongly urge my colleagues to vote ''no,'' and I reserve the balance of my time.

Mrs. LESKO. Mr. Chair, respectfully, my Democratic colleague, Mr. PALLONE, said: We are not banning gas stoves.

Yet, the Department of Energy studied this for many years, and in their own analysis, their own book, and their own standards called the technical support document in table 1032, it says that only 4 percent of the gas cooktops that they have tested will meet the qualifications. That is 96 percent that will not. It says that is 4 percent of market share, meaning 96 percent won't.

Even if it is true, which I don't think it is, where Mr. PALLONE says that now 50 percent already qualify, that means 50 percent don't. To me, that is at least a 50 percent ban.

Mr. Chair, I yield 5 minutes to the gentleman from South Carolina (Mr. DUNCAN).

Mr. DUNCAN. Mr. Chair, I can't even believe we are at this moment where the administration wants to take your gas stove—not take your gas stove but limit what you can purchase in the future.

I rise in support of H.R. 1640, the Save Our Gas Stoves Act.

It is no secret this administration has waged war on American energy. From day one, President Biden has waged war on American energy, doing everything possible to phase out the use of all fossil fuels, including American-produced oil and clean-burning, American-produced natural gas.

Now, they are taking it a step further. They are dictating what appliances Americans can purchase for their homes.

In February, the Department of Energy announced a new proposal that would ban most natural-gas-fueled stoves on the market today. According to DOE's evaluation, only 4 percent of the gas stove cooking tops tested would meet DOE's proposed standard. DOE's proposed regulation would render gas stoves almost completely unavailable to the American consumer.

The average annual savings under the proposed rule would be only about $1 over the average lifetime of the appliance—$1 a year. We are debating a proposed rule that would save Americans, on average, $1 a year over the life of the appliance?

Mr. Chair, we have a lot more to do in this United States Congress than debating a proposed rule that will limit Americans' choices for appliances that would only save them $1 a year.

This clearly does not achieve the significant savings of energy as the law, the Energy Policy and Conservation Act, requires.

So, what is this all about? I will tell you what it is about, Mr. Chair. The Democrats and this administration hate fossil fuels, and they want to diminish Americans' standard of living.

This rule is illegal, and it should be withdrawn. It is not a sincere effort to improve efficiency but rather a part of the whole-of-government approach to target energy sources they ideologically oppose.

H.R. 1640, the Save Our Gas Stoves Act, which we are debating today, would prohibit the Secretary of Energy from finalizing, implementing, or enforcing the recently proposed rule. It would also prohibit the Department of Energy from reissuing a rule that bans the use of natural gas.

Their goal is to end natural gas in this country. Natural gas is what got us down to the carbon emissions levels that we have achieved. If you want to approach it from the climate change standpoint, the carbon emissions standpoint has been because of natural gas.

It would also prohibit the Department of Energy from reissuing a rule. It would clarify that DOE does not have the authority to remove cooking products from the market simply because of the fuel product that the appliance consumes.

I am a proud cosponsor of this bipartisan legislation, and I thank Congresswoman LESKO for her leadership on this and for introducing this bill.

Americans should be free to choose the cooking products they use in their homes and their businesses, and this bill ensures that. Households that use

natural gas for heating, cooking, and clothes drying save an average of $1,068 per year compared to homes that use electricity for those appliances.

The rush to green and mass electrification efforts pursued by the Biden administration are costing Americans and making everyday life more expensive, all for $1 per year savings.

It is gas stoves today. It will be gas furnaces tomorrow. They are already talking about gas hot water heaters and then dryers. They are coming after your natural gas appliances because they hate natural gas.

The bottom line is that, on day one, President Biden said that we are going to end the use of fossil fuels. He wanted to ban fracking, offshore production, and onshore production.

That is the real reason we are debating this. It is not about the appliance. It is about the war on energy and American-produced energy.

Mr. Chairman, I urge my colleagues to support this legislation that is in front of us today which prioritizes American energy affordability and reliability and that puts the American people first and gives them choices.

Let the market determine which choice they can have, and let the consumer choose which one best meets their needs for their family, for their households, and for their businesses as they look at the bottom line in their budgets because the intention of the proposed rule only saves American families $1 a year. Give me a break.

Mr. Chair, I urge my colleagues to support H.R. 1640.

Mr. PALLONE. Mr. Chair, I yield 3 minutes to the gentleman from Maryland (Mr. SARBANES), who is a member of the committee.

Mr. SARBANES. Mr. Chair, I thank the ranking member for yielding.

Mr. Chair, I rise in strong opposition to this bill.

Today, we are arguing about a proposed Department of Energy efficiency standard for stoves, not just gas stoves, but every sort of kitchen stove.

Let me be clear about what this proposed rule is and what it is not. It is not a ban on any type of appliance. Let me repeat that: It is not a ban on any type of appliance. Instead, it is a well-reasoned proposal to help us save energy and reach our environmental goals, two very important objectives that we need to undertake here in the United States Congress.

Since the Energy Policy and Conservation Act was passed in 1975—so this is not something that came out of the ether; it has been around a long time—it has been the Department of Energy's job to put forth efficiency standards for kitchen ranges and ovens and to update them once every 6 years. This is what the Department has done here.

In its detailed proposal, the Department of Energy examined its statutory ability to implement the standard, consider its economic impact on manufacturers and on consumers, and calculated the potential energy savings.

Our job in Congress, as Congressman PALLONE said, is not to be subject matter experts on stoves and cooktop efficiency. Hopefully, we have other things to focus on. Instead, our job is to tell the agencies what their jobs are and set forth the standards by which they should do them.

We have done that here, and the scientific and other experts at the Department of Energy have done their jobs that we have given them in issuing a commonsense, easy-to-implement proposed rulemaking.

Now, rather than debating this CRA, we should be allowing the Department to finish its job and finalize this rulemaking.

We know that energy conservation is actually very popular with Americans. They want us to pursue this. They want the agencies to have responsibility to step up and do that job. The vast majority of Americans understand the gravity of the climate crisis we face.

Mr. Chair, I encourage my Republican colleagues to work with us to improve our energy security and efficiency and to join us in doing the meaningful legislating that the American people sent us here to do.

Mrs. LESKO. Mr. Chairman, I yield 3 minutes to the gentleman from Georgia (Mr. CARTER).

Mr. CARTER of Georgia. Mr. Chair, I thank the gentlewoman for yielding and for hosting us here today.

Mr. Chair, I rise today in support of H.R. 1640 because, yet again, House Republicans are on the front lines of stopping President Biden's executive overreaching. Last week, it was trucks, and this week, it is gas stoves.

This bill will prevent the Department of Energy from telling the American people which stoves they can use in their own homes. According to the Department of Energy, these new rules would eliminate 50 percent of the current stovetops on the market.

I am honestly astounded that we even need to pass a bill letting people have the freedom to choose the surface they cook on for their families. The President and his army of unelected bureaucrats will not stop meddling in the personal lives of the American people.

I, along with 187 million Americans, use gas stoves every day because it is more affordable and reliable than electric stovetops. My constituents who use gas stoves in their homes save over $1,000 a year compared to all-electric homes.

To justify this overreach, the Biden administration is using a study from the Rocky Mountain Institute, which so happens to also be a partner with the Chinese Government.

For an administration dead set on forcing a radical climate agenda on the American people, I find it odd that they would take aim at an appliance that emits 22 percent less carbon dioxide than a comparable electric model.

This is bigger than just stoves, though. Since the beginning of his administration, Joe Biden has had it out for natural gas, a cheap, clean, American source of energy, not to mention that over 4 million Americans are also connected to the natural gas industry in some way.

Today, we stand against the Biden administration and say, no, you cannot govern unilaterally from 1600 Pennsylvania Avenue.

Mr. Chair, I look forward to voting ''yes'' on the bill, and I urge my friends in the Senate to take up its consideration.

Mr. PALLONE. Mr. Chair, I yield 3 minutes to the gentlewoman from California (Ms. KAMLAGER-DOVE).

Ms. KAMLAGER-DOVE. Mr. Chair, when I first heard of the Save Our Gas Stoves Act, I thought it was a joke. It turns out the joke is on me because here I am on the floor debating this.

Of course, I planned to speak on this bill last week, but Republicans imploded in their dysfunction and prevented Congress from working.

American families want answers to the high prices they see in the grocery stores. They want answers to why their children are being shot and killed in their places of worship and at graduations. They want answers to why Republicans are targeting their LGBTQ family members and loved ones.

Republicans are responding to these pressing issues by talking about what stove you can own.

For a party that touts freedom, there seems to be some confusion about what that word actually means because some people might want the freedom to purchase an energy-efficient stove that actually helps the environment.

Let's get into it. This legislation would prohibit the Department of Energy from moving forward with a congressionally mandated efficiency standard, a standard, by the way, that would help people with their energy bills, and a Department of Energy, by the way, that doesn't have the authority to ban your gas stoves.

If this is the Republican messaging bill, then what is the message? That Republicans can't govern? That they are not in tune with the American people? That they don't care about the real issues?

I would give them some credit if Republicans talked about the issues of the day, like the fact that the frontrunner for the Republican Party already found liable of sexual assault was arraigned today on 37 counts of Federal criminal charges, including violating the Espionage Act, which is reserved for enemies of the state. A stove is not an enemy of the state. Or if they talked about the fact that we had more mass shootings than days in the year, and we just passed a bill to make handguns more dangerous.

Do you want to keep people safe? Then regulate guns, not stoves. Convict criminals, not cooktops, because stoves are not killing people. Stoves are not accelerating homelessness. Stoves are not exacerbating crime. We

could be talking about any number of pressing issues of substantive things to legislate, but stoves?

I actually told folks in my district that Republicans care more about how you cook your cupcakes than how to keep your children alive.

If this is an example of Republican messaging, then we have a real problem.

I will say it again: The American people want us to focus on issues like immigration, climate change, gun violence, the right to have an abortion, the questionable ethics of SCOTUS Justices, the need to regain competitive status with global allies, bringing home U.S. hostages, rebuilding our infrastructure, getting people out of poverty, feeding children, protecting caregivers who take care of our children and our elderly, protecting firefighters from toxic chemicals, and fighting against gender violence at home and abroad.

These are real issues where America can lead, not how you cook with your stove.

The CHAIR. The time of the gentlewoman has expired.

Mr. PALLONE. Mr. Chair, I yield an additional 1 minute to the gentlewoman from California.

Ms. KAMLAGER-DOVE. Mr. Chair, I will say it again: I have seen it all, and I am here to tell you Republicans: The emperor has no clothes.

We should be talking about the pressing issues of the day. China is not coming after us because of our stoves.

Mr. Chair, I ask for a ''no'' vote on this legislation.

The CHAIR. The Chair reminds Members to direct their remarks to the Chair.

□ 1845

Mrs. LESKO. Mr. Chair, I agree with my Democratic colleague, we should be talking about the issues that are important to Americans today, like securing our border, lowering our crime rates, lowering the cost of living.

We have crisis after crisis in our country, and you know what the Department of Energy does under the Biden administration? They go after our gas stoves. That is why I had to bring this bill to the floor.

Mr. Chair, I yield 2 minutes to the gentleman from Texas (Mr. WEBER).

Mr. WEBER of Texas. Mr. Chair, would that the other side of the aisle cared as much about unborn babies and worried about their safety as well.

Mr. Chair, let's get this right. First, the Biden administration decides to come after the cars that Americans drive, then it is how Americans heat their homes, and now they want to determine how Americans cook their food? For what?

All in the name of climate change? Oh, this ought to help, making sure that Americans can only use stoves that they think they ought to use.

Mr. Chair, I am not sure what dimension—or might I say dementia—that the Biden administration is living in, but the American people do not want out-of-touch bureaucrats to control what stoves they use in their houses.

I might add that folks in my great State of Texas have a slogan, ''Don't Mess with Texas.'' My message to the Biden administration is, don't mess with our gas stoves.

House Republicans, Mr. Chair, are tired of the blatant overreach, and that is why I am proud to cosponsor the Save Our Gas Stoves Act, and I urge all my colleagues to vote in favor of this bill.

Once we get this bill passed, then we can say, now we are cooking with gas.

Mr. PALLONE. Mr. Chairman, I yield 3 minutes to the gentlewoman from Virginia (Mrs. MCCLELLAN).

Mrs. MCCLELLAN. Mr. Chair, I rise in opposition today to H.R. 1640, the so-called Save Our Gas Stoves Act.

After weeks of holding the American economy hostage to their ransom note of devastating cuts and policy changes that would impact American families, State budgets, and our economic recovery, after a temper tantrum that brought this body to gridlock last week, we are now debating a bill that is nothing more than a political stunt to peddle the lie that the Biden administration is attempting to ban gas stoves.

The American people can rest easy knowing that the Department of Energy cannot ban gas stoves, but the Department of Energy is proceeding with a congressionally mandated efficiency standard that will save the American people money, reduce harmful indoor air pollution that disproportionately and adversely impacts the health of low-income communities, communities of color, and our children.

House Republicans are using this bill as a guise to prioritize the fossil fuel industry and raise utility costs for Americans while misrepresenting data from the Department of Energy. Ultimately, H.R. 1640 is nothing more than a desperate attempt to weaken the Department's ability to issue energy efficiency standards.

This is astoundingly disappointing. We should be addressing the issues that matter to my constituents, like reducing the gun violence that killed an 18-year-old 20 minutes after he received his diploma last week, increasing access to affordable healthcare and affordable childcare, addressing the mental health needs of our veterans and our servicemen and -women, the farm bill, and addressing the maternal health crisis instead of this bill.

I find it interesting that the party that thinks it can insert itself into healthcare decisions of pregnant people now is accusing the Biden administration of inserting itself into the decisions of buying appliances.

Instead of dealing with the issues that my constituents sent me here to deal with, we are having to deal with a ridiculous political stunt, delayed votes, and nonsensical bills.

I urge my colleagues to vote ''no'' on this bill, and I encourage my Republican colleagues to stop the fearmongering and infighting so we can get back to governing and solving the problems that our constituents are actually asking us to address.

Mrs. LESKO. Mr. Chair, I agree, we need to focus on important issues, so may I suggest to my Democratic colleagues that they talk to President Biden and say stop going after our gas stoves, so we don't have to talk about this?

Mr. Chair, I yield 3 minutes to the gentlewoman from Washington State (Mrs. RODGERS), the chair of the Energy and Commerce Committee.

Mrs. RODGERS of Washington. Mr. Chairman, I rise in strong support of H.R. 1640. The Save Our Gas Stoves Act is a bipartisan bill that was introduced by Energy and Commerce Committee member DEBBIE LESKO, and it will stop the Department of Energy from finalizing its plans to ban the majority of natural gas-fueled cooking stoves on the market today.

H.R. 1640 was considered through regular order in committee, where it received hearings and markups and was favorably reported with a strong bipartisan vote.

Congress must intervene to stop the war that President Biden and Democrats are waging on reliable, affordable energy and the choices people make to provide for their families.

On day one in office, President Biden canceled the Keystone XL pipeline, imposed a moratorium on fossil energy development on Federal lands, and directed agencies across the Federal Government to issue punitive regulations and delay permits for energy projects. This agenda is raising costs across the board and making life more difficult for hardworking Americans across this country.

Now the Biden administration is coming for their appliances, like natural gas stoves. H.R. 1640 will stop the Department of Energy from finalizing the terribly misguided and legally vulnerable proposal to ban gas stoves.

H.R. 1640 is necessary because the administration doesn't have any regard for the will of the American people, or the laws passed by Congress.

Despite a statement from the White House that ''the President does not support banning gas stoves,'' the Department of Energy and radical environmental activists are abusing an obscure law called the Energy Policy and Conservation Act to mandate a backdoor regulatory ban on gas stoves.

They are pursuing this agenda to control the home appliance market despite DOE's own evidence that its proposed standard would pull more than half the gas stoves off the market and save people $1.08 over the life of the product.

This is completely out of touch. One dollar of savings over the life of the product is not worth the up-front expense of ripping out gas lines and installing new electrical service. One dollar of savings does not bring peace of

mind if you need to heat your water or feed your family during an electricity blackout. One dollar of savings means nothing when people are paying record prices to buy food and fill up their gas tanks.

The American people are strongly opposed to regulations to ban natural gas appliances. In fact, we recently polled the citizens in my district as to whether they support a ban on natural gas stoves in their homes. An overwhelming 87 percent of them responded ''no.'' H.R. 1640 addresses their concerns and their freedom to choose an affordable stove that is right for them.

Therefore, Mr. Chair, I urge my colleagues to join me in supporting H.R. 1640 and look forward to working with the Senate to send this bipartisan bill to the President's desk.

Mr. PALLONE. Mr. Chairman, I yield myself such time as I may consume.

My colleagues on the other side of the aisle love to claim that they support lower energy costs, but the fact is that this bill will increase costs for consumers. As a result of appliance efficiency standards in effect today, the average American household saves roughly $500 annually on utility bills, and this bill blocks an efficiency standard that will save consumers up to $1.7 billion. This will specifically impact low- and moderate-income households that spend more of their money on energy bills.

I also think it is ironic that Republicans have cited the American Gas Association's strong support for this bill. AGA is an association of gas utilities that make more money when consumers use more gas. Should we be surprised that they oppose a standard that makes gas stoves more efficient and affordable?

This bill is nothing but a handout to the fossil fuel industry, and that would drive prices higher for Americans. Mr. Chair, I reserve the balance of my time.

Mrs. LESKO. Mr. Chair, my colleague said, oh, this is going to save money. May I remind him that, according to the DOE, only $21.89 over 14½ years will be saved. That is 12 cents a month.

Mr. Chair, I yield 2 minutes to the gentleman from Georgia (Mr. ALLEN).

Mr. ALLEN. Mr. Chair, I rise today in support of H.R. 1640, Representative LESKO's Save Our Gas Stoves Act. In my wildest imagination, I never thought I would be standing here defending my wife's gas stove.

In nearly 40 percent of households across the country, including mine, the use of natural gas stoves are the preferred appliance to prepare family meals because it is affordable, reliable and, I might add, very stylish. Consumers deserve choice and the right to decide what goes in their dadgum kitchen.

However, the Biden Department of Energy has issued a proposed rule that would impose more stringent standards on the use of a conventional cooking product such as a natural gas stove.

This is ridiculous. This harmful proposed rule is yet another attempt by the Biden administration to push its radical climate agenda on the American people. I am going to tell you, the American people are getting sick of this, the high gas prices and all the other things, like the cost of natural gas today—you can't build pipelines—and this time in the form of mandating what kitchen appliances families can and cannot use.

Mr. Chair, 96 percent of the stove models that the Department of Energy tested failed to meet the proposed standard. If they implemented this rulemaking, it would impact the majority of gas stoves on the market.

Not only would this cause significant market distortions, which is a problem the Biden administration has caused across the entire economic front, but implementing this proposed rule would also increase costs for consumers.

Why, at a time when Americans are facing hyperinflation, would this administration propose a rule that would push consumers to a more expensive option?

That is why I am proud to cosponsor the Save Our Gas Stoves Act, which will ensure that the Secretary of Energy does not implement an energy standard on cooking appliances that would reduce consumer choice. This bill also stops overreach by the Department of Energy.

Mr. Chair, I urge my colleagues to vote in support of this bill.

Mr. PALLONE. Mr. Chairman, I continue to reserve the balance of my time.

Mrs. LESKO. Mr. Chair, I yield 2 minutes to the gentleman from Idaho (Mr. FULCHER).

Mr. FULCHER. Mr. Chairman, here we are on the House floor talking about gas stoves. No, it wasn't the Republicans who are bringing this issue up. It is our friends in the administration who are making moves to try to eliminate a very reliable, efficient source of cooking energy.

I rise in opposition to the Biden administration's efforts to limit consumer choice. Gas stoves are the preferred cooktop appliance of nearly 40 percent of American households. They are affordable, reliable, and easy to use.

If the administration succeeds in banning gas stoves, it will force millions of Americans to switch to more expensive and less efficient electric stoves. This will impact jobs and the economy. More than 4.1 million jobs are connected to the gas industry.

House Republicans have taken a stance against this policy by introducing the Save Our Gas Stoves Act and the Gas Stove Protection and Freedom Act. This was not our initiative. This was brought on us because of a very unrealistic, very ill-advised attempt by the administration.

At a time when our Nation faces a confluence of crises, my friends on the other side of the aisle believe that banning appliances is somehow a matter of national concern. I reject that.

This week, we will vote to protect Americans' choices, their wallets, their time, and their jobs.

□ 1900

Mr. PALLONE. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, I take a moment to draw attention to a fundamental difference between the Democrats and our friends across the aisle.

Over the last few years, Democrats enacted $4.5 billion to help Americans with their home energy bills and replace appliances, $4.5 billion for energy efficiency retrofits, and historic funding for weatherization and low-income energy assistance, including a record $6 billion for the Low-Income Home Energy Assistance Program in last year's omnibus spending bill.

All this funding goes to Americans' pocket to help them lower their energy bills during a time of increasing climate threats, turbulent fossil fuel prices, and economic challenges caused by the pandemic and the war in Ukraine.

Democrats have worked hard to help Americans pay the energy bills. Republicans, on the other hand, are working hard for their fossil fuel friends.

While Democrats advocate the energy efficient standards that lower bills, Republicans try to chip away at the Department of Energy's conservation work. While Democrats defend families and try to ensure indoor appliances don't emit harmful pollutants, Republicans push bills endorsed by the American Gas Association, bills that ensure gas stoves use more energy than they really need.

So let me be clear. Democrats are advocating for everyday Americans, and Republicans are advocating for their fossil fuel friends.

Mr. Chairman, I reserve the balance of my time.

Mrs. LESKO. Mr. Chair, I yield 1 minute to the gentlewoman from Wyoming (Ms. HAGEMAN).

Ms. HAGEMAN. Mr. Chair, it is the height of insanity that Congress must pass legislation to keep unelected agency bureaucrats from taking away our ability and right to use gas stoves, which would surely be followed by cutting off gas to our homes completely.

In fact, that is ultimately the plan.

H.R. 1640, however, will protect our right to make dinner for our families without Big Government forcing their subpar cooking mandates on the American public. We are a free people after all—or at least we used to be.

This bill will stop the Biden administration from intentionally increasing the cost of cooking and energy and will prevent this absurd government overreach from taking away even more of our rights.

Natural gas stoves are the preferred cooktop of almost 40 percent of households in our country used by nearly 187 million people. They are more efficient

and three times cheaper than their electric counterparts, so, of course, this administration would want to ban them.

Look, energy poverty is not just an esoteric concept. It is this administration's goal.

The CHAIR. The time of the gentlewoman has expired.

Mrs. LESKO. Mr. Chair, I yield an additional 30 seconds to the gentlewoman from Wyoming.

Ms. HAGEMAN. Energy poverty is this administration's goal. I will repeat that.

Their policies are actually designed to increase the cost of food, energy, and housing, and their effort to ban gas stoves is just one more step in that direction.

Vote to end this madness. Support passage of the STOVE Act.

Mr. PALLONE. Mr. Chairman, I yield 2 minutes to the gentlewoman from California (Ms. BARRAGÁN), a member of the Committee on Energy and Commerce.

Ms. BARRAGÁN. Mr. Chairman, I thank Ranking Member PALLONE for yielding me time.

Mr. Chairman, I want to know, why are my Republican colleagues opposed to energy efficiency standards that will save homeowners money? Why?

Energy conservation used to be bipartisan. Over the years under Democratic and Republican administrations, the Department of Energy has updated efficiency standards for light bulbs, dishwashers, refrigerators, washing machines, and dozens more appliances.

The first efficiency rules were signed into law in 1987 by Ronald Reagan, and they included gas stoves. No one argued back then that the government was taking away your light bulbs or your refrigerator or your stove because it would have been nonsense, and it is nonsense here today.

Many of our appliances use less energy today than they did decades ago, and it is because of energy efficiency standards that help drive those improvements.

This saves Americans money after they buy a home appliance. Let me say that again. Energy efficiency saves Americans money. New efficiency standards for stoves are long overdue. They were delayed by several years by the previous administration. It is time to update them, not to delay it further.

The fear-mongering over efficiency standards for stoves is Republicans playing politics. Democrats are focused on saving money for American households on their energy bill. We are focused on the climate crisis. When household appliances use less energy, they will cause less pollution. We will not be distracted.

The CHAIR. The time of the gentlewoman has expired.

Mr. PALLONE. Mr. Chair, I yield an additional 1 minute to the gentlewoman from California.

Ms. BARRAGÁN. We will not be distracted by this political stunt. The Republicans' bill peddles the lie that the administration or the Democrats are attempting to ban gas stoves. That is just not true. The Department of Energy cannot ban gas stoves. The Department of Energy is simply proceeding with the congressionally mandated efficiency standard.

So let's not be distracted about what this is. This has been a bipartisan issue. There is no need to peddle lies about anybody taking away gas stoves.

Mr. Chair, I urge my colleagues to oppose this bill and to support energy conservation standards to save Americans money. Let's save Americans money.

Mrs. LESKO. Mr. Chair, may I inquire as to how much time is remaining on both sides?

The CHAIR. The gentlewoman has 6½ minutes remaining. The gentleman from New Jersey has 12 minutes remaining.

Mrs. LESKO. Mr. Chair, I yield 1 minute to the gentleman from Wisconsin (Mr. GROTHMAN).

Mr. GROTHMAN. Mr. Chairman, about 1 out of 3 Wisconsinites have a gas stove, and about 40 percent nationwide do. There is some name-calling over there as far as what the parties stand for.

The gas stove is about three times cheaper than the electric stove. The Republican Party is the party of the working class. The party that pays attention to what their energy bill is. There is another class of people out there: The rich Hollywood types, the high-tech billionaires, the well-paid college professors who don't have to worry how much they pay for electricity.

As a result, that side feels very good when a bill is passed where they restrict what the hoi polloi can do. Also, they don't have to worry about the welfare class because they will give stuff perhaps to the welfare class to make up the difference. But they won't help the middle class. And that is who the Republican Party tries to look out for. The average guy who knows exactly what he is paying in his energy bill.

Mr. Chair, I ask that we leave the working class alone.

Mr. PALLONE. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chair, I would just take a moment to bring us back to the real world. Earlier this week, the administration issued its statement of administration policy, that is the Biden administration's official views on this bill, and I have to report that the administration does not view this bill favorably.

Despite what our Republican colleagues are saying today, the administration makes clear that in the real world, this bill would ''deny the American people the savings that come with having more efficient, new appliances on the market.''

The administration is right. This bill is not about freedom. I keep hearing that a lot on the other side. It is not about choice—they keep mentioning that—or about saving gas stoves, because we are not banning it. It is about taking away the freedom of Americans to save money to buy new, efficient appliances.

The bill's authors do not believe in the essentially American innovation that has brought consumers a cumulative $2 trillion in savings since DOE first issued efficiency standards.

Now, let me say, our committee, the Committee on Energy and Commerce, prides ourselves on being the committee of innovation, of invention, of doing things better. I come from a district in Menlo Park and in Edison, New Jersey, where Thomas Edison invented the light bulb, the motion picture, and so many different things.

We should be proud of the fact that we are trying to do things differently, more efficiently, more innovatively. I listen to my colleagues on the other side. For a Republican Party that claims that it wants to let Americans make their own individual choices, this doesn't seem like much of a choice at all.

Mr. Chairman, I reserve the balance of my time.

Mrs. LESKO. Mr. Chair, I am prepared to close, and I reserve the balance of my time.

Mr. PALLONE. Mr. Chairman, I yield myself the balance of my time. In closing, let me just say that this is the second bill that came up today dealing with gas stoves. If there is one message that I really want to give to my colleagues, and urge them to vote against this bill, as well as the previous one, is that we are not banning gas stoves. I don't know how many times I can say that. The administration, the Consumer Product Safety Commission, the Department of Energy, all of them had made clear over and over again that we are not banning gas stoves.

What we are doing in this case with this bill is to try to provide more energy efficiency, which has been something that the Department of Energy has done for years. We have given them the authority and urged them to deal with and come up with more efficient appliances, whether it is gas stoves, electric stoves, cooktops, whatever it happens to be. So why not let them do that? Why keep saying that we are banning gas stoves when we are not? Why keep suggesting that somehow eliminating the Department of Energy's ability to adopt more efficiency standards for these appliances is not a good thing? It saves money. It makes sense.

I heard my colleagues on the other side talk about the middle class, about working people. Working people want to save money. They want more efficiency. Overwhelmingly, polls show that they believe that appliances should be more efficient.

I think that when people buy things and go to the appliance store or to the supermarket, or wherever they are

buying appliances, they not only expect that those appliances are safe and safe for themselves and for their kids, but they also think that the Federal Government is trying to do things to make things more efficient. There is no reason why we shouldn't.

For those reasons, I would ask my colleagues to vote to oppose this bill.

Mr. Chairman, I yield back the balance of my time.

Mrs. LESKO. Mr. Chairman, I yield myself the balance of my time.

Mr. Chair, my colleagues keep saying we are not banning gas stoves, but what would they call it when the Department of Energy's own analysis says that of the gas stoves that they have tested, only 4 percent of the market share would qualify for their new proposed rule? That means about 96 percent won't. Then they revised it to say, well, almost 50 percent will qualify. Well, that means more than 50 percent won't.

I call that a ban. We are mixing words here.

The other things that my Democratic colleagues keep asking is: Why wouldn't we want to save money? It is only 12 cents a month. Who is going to give up the choice of what type of stove they want for 12 cents a month? Nobody. That is not a good exchange.

I would also say that if the Biden administration is not doing anything, why do all of these people support my bill? The National Association of Homebuilders, the American Restaurant Association, the American Gas Association, the American Home Appliance Manufacturers, numerous other energy companies.

Mr. Chairman, I would read a little bit from the National Restaurant Association, because it talks about why this bill is important. We didn't bring it. The Republicans didn't bring this on; it was the Biden administration. With all these crises going on in our country, he has to pick on gas stoves. I don't understand why.

This is what the National Restaurant Association says:

Natural gas is a critical energy source for many sectors of the economy but none more than the restaurant industry. In fact, natural gas is the preferred cooking energy source for 76 percent of restaurants. Cooking with an open flame from natural gas is critical for a variety of dishes to ensure a responsive, consistent, and precise heat source that affects the quality of food served.

Natural gas also allows restaurants to use certain cooking techniques that cannot be replicated with an electric stove.

□ 1915

Finally, banning or overly restricting natural gas use could burden restaurant owners with higher operating costs, particularly local and independent restaurants. The cost to convert existing infrastructure to handle the power capacity needed to operate a commercial kitchen alone would be prohibitive for many locally owned restaurants.

I say the same is true for individual homeowners. They don't want to change. They like the features on their gas stove. They don't want to give them up.

Mr. Chair, I ask my colleagues to support my bill, and I yield back the balance of my time.

The CHAIR. All time for general debate has expired.

Pursuant to the rule, the bill shall be considered for amendment under the 5-minute rule.

The bill is considered as read.

The text of the bill is as follows:

H.R. 1640

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Save Our Gas Stoves Act''.

SEC. 2. STANDARDS FOR KITCHEN RANGES AND OVENS.

Section 325(h) of the Energy Policy and Conservation Act (42 U.S.C. 6295(h)) is amended by adding at the end the following:

''(3) The Secretary may not determine that imposition of an energy conservation standard under this section for kitchen ranges or ovens is economically justified for purposes of subsection (o) unless the Secretary determines that imposition of such energy conservation standard is not likely to result in the unavailability in the United States of a type (or class) of product based on what type of fuel the product consumes.''.

SEC. 3. PROHIBITION ON RULEMAKING.

The Secretary of Energy may not finalize, implement, or enforce the proposed rule titled ''Energy Conservation Program: Energy Conservation Standards for Consumer Conventional Cooking Products'' (88 Fed. Reg. 6818 (February 1, 2023)) or any substantially similar rule.

The CHAIR. No amendment to the bill shall be in order except those printed in part D of House Report 118–108.

Each such amendment offered only in the order printed in the report, by the Member designated in the report, shall be considered read, shall be debatable for the time specified in the report, equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question.

AMENDMENT NO. 1 OFFERED BY MR. HUIZENGA

The CHAIR. It is now in order to consider amendment No. 1 printed in part D of House Report 118–108.

Mr. HUIZENGA. Mr. Chair, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 2, beginning on line 8, strike ''unless the Secretary determines that imposition of such energy conservation standard is not likely to result in the unavailability in the United States of a type (or class) of product based on what type of fuel the product consumes.'' and insert ''unless—''.

Page 2, line 12, strike the closing quotation mark and the final period.

Page 2, after line 12, insert the following:

''(A) the Secretary determines that imposition of such energy conservation standard is not likely to result in the unavailability in the United States of a type (or class) of product based on what type of fuel the product consumes; and

''(B) the Secretary discloses all stakeholder meetings with entities that—

''(i) have ties to the People's Republic of China or the Chinese Communist Party;

''(ii) have produced studies regarding, or advocated for, regulations or policy to limit, restrict, or ban the use of any type of energy; and

''(iii) have applied for or received Federal funds.''.

The CHAIR. Pursuant to House Resolution 495, the gentleman from Michigan (Mr. HUIZENGA) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Michigan.

Mr. HUIZENGA. Mr. Chairman, I rise today in support of my amendment to require the Secretary of Energy to disclose certain stakeholder meetings with any entity that has: one, ties to the People's Republic of China or the Chinese Communist Party; two, has produced studies regarding or has advocated for policies to limit, restrict, or ban the use of any type of energy; and, three, has applied for or received Federal funds.

We have recently seen concerning examples of anti-energy, China-connected entities receiving not just elevated access to the White House and Federal agencies but granting of funds, as well. Literally, we have been using U.S. taxpayer dollars to help fund them.

I introduced this amendment because the Biden administration has not been transparent about who it has been meeting with, and frankly, I believe this administration has not been honest with the American people about its desire to ban gas stoves.

In February of this year, it was widely reported that a government watchdog group obtained information through the Freedom of Information Act revealing a private meeting between the Secretary of Energy and a group that would be covered by this amendment. In particular, this group has been on the forefront of the effort to ban gas stoves.

Unsurprisingly, when I sent a letter to Secretary Granholm in February, inquiring whether she was aware of this group's ties to China and the extent of their influence on the Department, I received a letter back that was completely ignoring my questions and concerns.

I have to give you a little bit of perspective, Mr. Chairman. My family has been involved in construction for over three generations, and I fully understand the needs that people have at various levels in their homes and their businesses.

I mean, we are talking about gas stoves today. Don't get me wrong. There is nothing inherently wrong with electric stoves. That oftentimes fits very nicely—same thing with electric base heat or water heaters, et cetera.

There are certain regions of the country, like in Michigan and the upper Midwest, where we are very dependent on propane and natural gas.

We don't have the electric grid to support an expansion of that.

I know the other side will say that nobody is going to pull your stove out of your house—yet. Nobody is doing anything other than just stoves—yet.

We know that places like California, New York, and even in Michigan, the city of Ann Arbor, have gone in and literally banned the addition of and use of gas stoves. They are looking to expand that. They have talked about that.

The real rub here, Mr. Chairman, is that we have a major problem with questionable groups with established connections to China. They have those established connections, but we are not sure what their unanswered intentions might be.

They are succeeding in influencing policy to limit affordable appliance options for Americans. When President Biden or Senate Majority Leader SCHUMER are telling the American people that no one is going after their stoves, they may be technically correct today, Mr. Chairman. In the broader picture, we know that that may be coming.

I have to say that it is one thing for elected officials to be going after a particular appliance or source of energy, but we have a real problem when Washington bureaucrats, unelected bureaucrats, aren't being honest about their end goal, and they are the ones making the rules and regulations.

A ban on gas stoves is going to cost the taxpayers. It is going to cost hardworking, honest Americans more when they are already in an inflationary heightened situation.

That is why I wanted to bring this amendment. I appreciate the author's acceptance of this and understanding of where we are trying to go with this.

At the end of the day, Mr. Chairman, my amendment is simply to bring an added dose of transparency, expose connections to the CCP, which I truly, honestly believe that both sides of the aisle have concerns about the tentacles of the CCP and the Chinese Government and the influence that it has gained here in the United States.

That is why, on the Financial Services Committee that I serve on, we have done CFIUS reviews, which is making sure that it is property and technology and other things that we are protecting from our adversaries like China.

Why would we hand over the keys to this particular kingdom? I don't understand.

We need to let the American people know who is truly influencing our government and that exposure is there.

Mr. Chair, I urge my colleagues to support the amendment, and I reserve the balance of my time.

The CHAIR. The time of the gentleman has expired.

Mr. PALLONE. Mr. Chairman, I rise in opposition to the amendment.

The CHAIR. The gentleman from New Jersey is recognized for 5 minutes.

Mr. PALLONE. Mr. Chairman, let me say that I am happy to see that the gentleman from Michigan admits that the Department of Energy is not banning gas stoves. I keep saying it, but he did say that they are not banning them, at least not yet, he said.

I want to stress that the efficiency standards in the Department of Energy rule, again, don't go into effect until 3 years after the rule is finalized. Even though my colleagues keep saying that we are banning gas stoves and talk about the efficiency standards and how they have to get rid of them with this legislation, keep in mind that these efficiency standards don't even go into effect for another 3 years after the rule is adopted.

Again, we are not banning gas stoves, just talking about efficiency standards.

There is also the claim that has been put out there by the Republicans that 96 percent of gas stoves on the market today don't meet the proposed DOE standard, and that is just not true. The statistic that is mentioned by our colleagues on the other side is a specific test of high-end models that the Department of Energy anticipated would not meet the standard, meaning one of the tests conducted by DOE was deliberately designed to focus on models that would need upgrades to meet the standard. This test was not designed to represent the whole market.

According to DOE, and you can look at what they have put out, about half of the market already meets the proposed energy conservation standard, including all entry-level models at this time.

Again, you can keep your gas stove. We are talking about efficiency standards in 3 years, not now.

As to the amendment before us, which I oppose, it amends the Energy Policy and Conservation Act with vague language that would likely be impossible to implement.

Additionally, this amendment is clearly designed to target environmental and clean energy groups. If this amendment is adopted, and if H.R. 1640 becomes law, it would slow down the Department of Energy rulemaking process and create additional burdens to adopting energy conservation standards.

Mr. Chair, I urge my colleagues to recognize that this amendment is pure Republican messaging and would hinder climate action. I urge my colleagues to vote against the amendment.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR (Mr. MOYLAN). The question is on the amendment offered by the gentleman from Michigan (Mr. HUIZENGA).

The amendment was agreed to.

AMENDMENT NO. 2 OFFERED BY MR. MCGOVERN

The Acting CHAIR. It is now in order to consider amendment No. 2 printed in part D of House Report 118–108.

Mr. MCGOVERN. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 2, line 14, strike ''The Secretary'' and insert the following:

(a) IN GENERAL.—Subject to subsection (b), the Secretary

Page 2, after line 18, insert the following:

(b) ENERGY SECURITY EXEMPTION.—Subsection (a) shall not take effect unless and until the Secretary of Energy certifies that the absence of new or amended energy conservation standards described in the proposed rule described in subsection (a) (or any substantially similar rule) will not adversely affect the energy security of the United States.

The Acting CHAIR. Pursuant to House Resolution 495, the gentleman from Massachusetts (Mr. MCGOVERN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Massachusetts.

Mr. MCGOVERN. Mr. Chair, I rise in support of my amendment to H.R. 1640, which would add an important provision to ensure that nothing in this bill would harm U.S. energy security.

Before I share with my colleagues why this amendment is necessary, I want to take a minute to say what an exercise in absurdity this week in the House has been.

With everything going on in the world, we are considering nonsense bills about imaginary threats. That is the best that this Republican majority could muster, bills that are written so poorly they wouldn't even fake solve the fake problems they are making up to scare people.

In the case of H.R. 1640, this bill could do real damage. The Biden administration is not trying to ban gas stoves, period, but instead of just acknowledging that and moving on, my Republican friends are pretending that the administration is trying to ban them through an energy efficiency proposal that would save consumers money and improve America's energy security.

Consumers and experts recognize that energy efficiency is a key component of energy security. It is simple. If you can cook the same exact way with less gas, that means we are more energy secure.

I have heard for years from Republicans that they care about energy security. This vote is an opportunity for them to prove it.

This amendment contains a ''do no harm'' provision, which says that the bill should not take effect until the Secretary of Energy certifies that it would not have a negative impact on U.S. energy security.

This is simple. This amendment is a chance to affirm, in a bipartisan way, that Congress should be strengthening our energy security, not weakening it.

Mr. Chair, I urge support of this amendment, and I reserve the balance of my time.

□ 1930

Mrs. LESKO. Mr. Chair, I rise in opposition to the amendment.

The CHAIR. The gentlewoman from Arizona is recognized for 5 minutes.

Mrs. LESKO. Mr. Chair, I yield myself such time as I may consume.

I rise in opposition to this amendment, which is nothing more than an attempt to delay implementation of the underlying bill.

Secretary Granholm could simply say that my bill affects energy security, even though it doesn't.

The Biden administration's ban on gas stoves is the result of the Democrats' war on natural gas. They want to force a transition away from affordable and reliable energy by banning the products that Americans use every day.

The Department of Energy's gas stove ban is actually an energy security threat. Because it is not economically justified, it will not result in a significant savings of energy, and it will reduce consumer choice for natural gas kitchen ranges and ovens. Its goal is to eliminate the use of natural gas, which is used to support America's energy security.

Natural gas kitchen ranges and ovens are currently the preferred choice of 40 percent of American households. Nearly 187 million Americans use natural gas because it is affordable and reliable.

According to industry estimates, homes with natural gas appliances save up to $1,068 per year, compared to all electric homes.

Natural gas stoves are affordable, reliable, and widely popular. I urge my colleagues to oppose this amendment and support the underlying bill, the Save Our Gas Stoves Act.

Mr. Chair, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Chair, I yield myself such time as I may consume.

If energy security is as important to Republicans as they say it is, this should be a no-brainer, because why would they bring a bill to the floor that could possibly weaken our energy security?

I suspect there might be something else at play here.

It is possible that the majority knows exactly what this bill would actually do, and they are eager to steamroll U.S. energy security and make consumers pay through the nose.

Why do I think that? Because that is exactly what Big Oil and the fossil fuel lobby wants. Follow the money. Google their donations.

If Republicans really care about energy security, they wouldn't all have voted against the Inflation Reduction Act last year, the single most ambitious bill on energy security that Congress has ever considered.

If Republicans really care about energy security, they wouldn't have voted against millions of new clean energy jobs that will make us truly energy independent.

With this vote, let's see what my Republican colleagues care more about, America's energy security or helping Big Oil and gas billionaires rake in more profits on the backs of our constituents.

I am sure my Republican friends will be generously compensated for their efforts here today. How sad. How pathetic.

I urge everybody to follow the money. I urge a ''yes'' vote on this amendment.

Mr. Chair, I yield back the balance of my time.

Mrs. LESKO. Mr. Chair, again, I urge a ''no'' vote on this amendment. Even my Democratic colleagues admit that the Department of Energy is now saying that less than 50 percent of gas stoves would qualify for the new proposed rule, so more than 50 percent of the existing models of gas stoves would be banned.

I urge a ''no'' vote on this amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Massachusetts (Mr. MCGOVERN).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. MCGOVERN. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Massachusetts will be postponed.

AMENDMENT NO. 3 OFFERED BY MR. PALLONE

The Acting CHAIR. It is now in order to consider amendment No. 3 printed in part D of House Report 118–108.

Mr. PALLONE. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Strike section 2.

Page 2, line 18, strike ''or any substantially similar rule''.

The Acting CHAIR. Pursuant to House Resolution 495, the gentleman from New Jersey (Mr. PALLONE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from New Jersey.

Mr. PALLONE. Mr. Chair, I yield myself such time as I may consume.

There are many problems with the Save Our Gas Stoves Act. One of the biggest issues, in my opinion, is that this bill not only prevents the Department of Energy from finalizing a commonsense proposed efficiency standard, but it also limits future DOE rulemaking.

H.R. 1640 includes Congressional Review Act style language blocking ''any substantially similar rule.'' This is designed to ensnare future related rules in a messy legal and linguistic trap.

This language provides no clarity on what a substantially similar rule means and could hamstring the Department of Energy on future cooktop and stove efficiency standards.

The bill also amends the Energy Policy and Conservation Act to limit and complicate future Department of Energy rulemaking on cooktops and gas stoves. The bill imposes an additional hurdle in the DOE rulemaking process and could impact future cooktop standards, regardless of fuel type.

If this bill becomes law, it will negatively impact the Department of Energy's ability to issue effective energy conservation standards related to cooktops and stoves going forward. This would also significantly impact DOE's ability to reduce energy bills and slash carbon emissions.

My amendment to H.R. 1640 strikes these harmful and open-ended provisions from the bill and limits the application of the bill only to the current proposed Department of Energy standard.

While I still strongly oppose blocking the current rule, it is critical that we not impede future Department of Energy action.

I urge all my colleagues to support this important amendment, and I reserve the balance of my time.

Mrs. LESKO. Mr. Chair, I rise in opposition to the amendment.

The Acting CHAIR. The gentlewoman from Arizona is recognized.

Mrs. LESKO. Mr. Chair, I yield myself such time as I may consume.

This amendment strikes the language preventing the Department of Energy from implementing any substantially similar rule. Removing this language would allow the Department of Energy to just reissue another gas stove ban after my bill becomes law.

I rise in opposition to this amendment, which strikes important language in the underlying bill. That language would prevent the Department of Energy from reissuing a nearly identical rule to ban gas stoves.

H.R. 1640 allows the Department of Energy to issue energy efficiency standards that are cost effective and that have a significant amount of energy for consumers.

This is the current standard under the Energy Policy and Conservation Act, and H.R. 1640 does nothing to change that.

The Biden administration's politically motivated proposal to ban a majority of gas stoves violates the statutory requirements of EPCA because it fails to save consumers money or energy and because it removes products from the market simply because they use natural gas.

The Energy and Commerce Committee held hearings on this and conducted oversight. The facts are clear that the Department of Energy should withdraw this misguided rule, and DOE should be prohibited from reissuing a substantially similar rule.

For these reasons, I urge my colleagues to oppose this amendment and support the underlying bill, the Save Our Gas Stoves Act.

Mr. Chair, I reserve the balance of my time.

Mr. PALLONE. Mr. Chair, I yield myself the balance of my time.

Let me just say I find it incredible that the Republicans want to just take away all ability of the Department of Energy to deal with efficiency standards not only for gas stoves, for electric stoves—remember, that this rule doesn't just apply to gas stoves or cooktops. It applies to electric stoves, as well.

Any fair reading of this legislation makes it clear, in my opinion, that not only are they banning and overturning this bill but overturning anything else that is within the sphere of efficiency for cooktops, whether they be gas stoves or electric stoves or anything of that nature.

Again, I think it is a huge overreach. I, of course, oppose the underlying bill as well, but it is a huge overreach to say that the Department of Energy can't deal with this efficiency issue when it comes to stoves of whatever type in the future because that is what their job is—to deal with these efficiency standards, and they have been doing it very effectively to save money and to be innovative.

Mr. Chairman, for those reasons, I would ask for support of my amendment, and I yield back the balance of my time.

Mrs. LESKO. Mr. Chairman, yes, indeed, the energy efficiency standards deal with both gas and electric stoves.

The problem is that it disproportionately would ban the majority of gas stoves, not electric stoves. That takes away consumer choice.

That is why I brought this bill to the floor, and that is why I oppose this amendment.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from New Jersey (Mr. PALLONE).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. PALLONE. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from New Jersey will be postponed.

Mrs. LESKO. Mr. Chair, I move that the Committee do now rise.

The motion was agreed to.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. RUTHERFORD) having assumed the chair, Mr. MOYLAN, Acting Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 1640) to prohibit the Secretary of Energy from finalizing, implementing, or enforcing the proposed rule titled ''Energy Conservation Program: Energy Conservation Standards for Consumer Conventional Cooking Products'', and for other purposes, had come to no resolution thereon.

REGULATIONS FROM THE EXECUTIVE IN NEED OF SCRUTINY ACT OF 2023

GENERAL LEAVE

Mr. MASSIE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on H.R. 277.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Kentucky?

There was no objection.

The SPEAKER pro tempore. Pursuant to House Resolution 495 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the consideration of the bill, H.R. 277.

The Chair designates the gentleman from Guam (Mr. MOYLAN) as Chair of the Committee of the Whole, and requests the gentleman from Florida (Mr. RUTHERFORD) to assume the chair temporarily.

□ 1943

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the consideration of the bill (H.R. 277) to amend chapter 8 of title 5, United States Code, to provide that major rules of the executive branch shall have no force or effect unless a joint resolution of approval is enacted into law, with Mr. MOYLAN (Chair) in the chair.

The Clerk read the title of the bill.

The CHAIR. Pursuant to the rule, the bill is considered read the first time.

General debate shall be confined to the bill and shall not exceed 1 hour equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary or their respective designees.

The gentleman from Kentucky (Mr. MASSIE) and the gentleman from New York (Mr. NADLER) each will control 30 minutes.

The Chair recognizes the gentleman from Kentucky (Mr. MASSIE).

□ 1945

Mr. MASSIE. Mr. Chair, I yield myself such time as I may consume.

Even before America declared its independence, John Adams emphasized that a republic is a government of laws and not of men. That is what we are here to debate tonight.

Are we a government of laws or a government of the executive branch? Are we going to allow the executive branch to write the laws? Are we going to turn our Constitution on its head? Have we gone too far already? I would argue we have, and that is why we need the REINS Act, Regulations from the Executive in Need of Scrutiny. It provides that every major regulation that the administration seeks to promulgate has to come to Congress first, has to be passed by concurrent majorities in the House and the Senate and signed by the President. This is exactly what our Founders prescribed. This is a bill about who makes the laws in our country, and it is about reclaiming our legislative power from the administrative state.

I think it is appropriate to read from our Constitution at this point. Article I, Section 1 of the Constitution says: ''All legislative powers . . . '' not some legislative powers.

''All legislative powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representatives.''

Does it say it shall consist of a bureaucracy? It does not. All legislative powers are vested here and in the Senate. That is why we need to stop letting the executive branch make law.

Are they merely tweaking regulations? Are they determining the amount of sulfur dioxide that is acceptable to release from a power plant with civil infractions imposed if a company doesn't comply? No, they are making laws that put people in prison over in the administrative branch, and we are doing nothing about it.

We have atrophied. The power of Congress has atrophied. We are almost like ombudsmen to the executive branch now. This needs to change.

In the words of James Madison: ''The accumulation of all powers, legislative, executive, and judiciary, in the same hands . . . may justly be pronounced the very definition of tyranny.''

I am afraid that is what we have come to. Too many of our laws, civil and criminal, are now being written by the executive branch.

Here is what the REINS Act does, and here is why it is important. If a regulation that is passed by the executive branch or suggested by the executive branch has more than $100 million of impact—that is a pretty high threshold. I would argue if it has any impact, we should be legislating it, but this is a compromise. If it has more than $100 million of impact, it has to come here if it is going to become a law.

They do not get to write the laws, and so that is why we need the REINS Act.

Mr. Chair, I reserve the balance of my time.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON THE JUDICIARY,
Washington, DC, May 31, 2023.

Hon. JODEY ARRINGTON,
Chairman, Committee on the Budget,
House of Representatives, Washington, DC.

DEAR CHAIRMAN ARRINGTON: Thank you for consulting with the Committee on the Judiciary and agreeing to be discharged from further consideration of H.R. 277, the Regulations from the Executive In Need of Scrutiny Act of 2023, so that the measure may proceed expeditiously to the House floor.

I agree that your forgoing further action on this measure does not in any way diminish or alter the jurisdiction of your committee, or prejudice its jurisdictional prerogatives on this measure or similar legislation in the future. I would support your effort to seek appointment of an appropriate number of conferees from your committee to any House-Senate conference on this legislation.

I will include the exchange of these letters in the Judiciary Committee's report to accompany this legislation and in the Congressional Record during consideration of this legislation on the House floor. I appreciate your cooperation regarding this legislation and look forward to continuing to work together on matters of shared jurisdiction during this Congress. Thank you for your attention to this matter.

Sincerely,

JIM JORDAN,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON THE BUDGET,
Washington, DC, May 30, 2023.

Hon. JIM JORDAN,
Chairman, Committee on the Judiciary, Washington, DC.

DEAR CHAIRMAN JORDAN: I am writing regarding H.R. 277, the Regulations from the Executive in Need of Scrutiny (REINS) Act, which was ordered reported by the Committee on the Judiciary on May 24, 2023.

The bill contains provisions that fall within the jurisdiction of the Committee on the Budget. In order to expedite House consideration of H.R. 277, the Committee on the Budget will forgo action on this bill. This is being done with the understanding that it does not waive any jurisdiction over the subject matter contained in H.R. 277 or similar legislation and that the Committee will be appropriately consulted and involved as this bill or similar legislation moves forward so that the Committee may address any remaining issues that fall within its jurisdiction. The Committee on the Budget also reserves the right to seek appointment of an appropriate number of conferees to any House-Senate conference involving this or similar legislation and requests your support of any such request.

I would appreciate a response to this letter confirming this understanding with respect to H.R. 277 and would ask that a copy of our exchange of letters on this matter be included in your committee report and in the Congressional Record during floor consideration of H.R. 277.

Sincerely,

JODEY C. ARRINGTON,
Chairman,
Committee on the Budget.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON RULES,
Washington, DC, May 25, 2023.

Hon. JIM JORDAN,
Chairman, Committee on the Judiciary,
House of Representatives, Washington, DC.

DEAR CHAIRMAN JORDAN: On May 25, 2023, the Committee on the Judiciary ordered H.R. 277, the Regulations from the Executive in Need of Scrutiny (REINS) Act of 2023, reported to the House. As you know, the Committee on Rules was granted an additional referral upon the bill's introduction pursuant to the Committee's jurisdiction under rule X of the Rules of the House of Representatives over the rules of the House and special orders of business. The Committee has exclusive jurisdiction over several provisions related to expedited procedures for consideration of legislation in the House.

Because of your willingness to consult with my committee regarding this matter, I will waive consideration of the bill by the Committee on Rules. By agreeing to waive its consideration of the bill, the Committee on Rules does not waive its jurisdiction over H.R. 277. In addition, the Committee reserves its authority to seek conferees on any provisions of the bill that are within its jurisdiction during any House-Senate conference that may be convened on this legislation. I ask your commitment to support any request by the Committee on Rules for conferees on H.R. 277 or related legislation.

I also request that you include our exchange of letters on this matter in the committee report to accompany H.R. 277 and in the *Congressional Record* during consideration of this legislation on the House floor. Thank you for your attention to these matters.

Sincerely,

TOM COLE,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON THE JUDICIARY,
Washington, DC, May 25, 2023.

Hon. TOM COLE,
Chairman, Committee on Rules,
House of Representatives, Washington, DC.

DEAR CHAIRMAN COLE: Thank you for consulting with the Committee on the Judiciary and agreeing to be discharged from further consideration of H.R. 277, the Regulations from the Executive In Need of Scrutiny Act of 2023, so that the measure may proceed expeditiously to the House floor.

I agree that your forgoing further action on this measure does not in any way diminish or alter the jurisdiction of your committee, or prejudice its jurisdictional prerogatives on this measure or similar legislation in the future. I would support your effort to seek appointment of an appropriate number of conferees from your committee to any House-Senate conference on this legislation.

I will include the exchange of these letters in the Judiciary Committee's report to accompany this legislation and in the *Congressional Record* during consideration of this legislation on the House floor. I appreciate your cooperation regarding this legislation and look forward to continuing to work together on matters of shared jurisdiction during this Congress. Thank you for your attention to this matter.

Sincerely,

JIM JORDAN,
Chairman.

Mr. NADLER. Mr. Chair, today, we are considering a bill that would require both houses of Congress to vote to approve, and for the President to sign, a motion of approval for any major rule in progress from our executive branch.

We are considering this bill just a week after a splinter group of the far-right Republicans voted down a rule and held our legislative calendar hostage all to prove a point about a debt ceiling that already has passed Congress and has been signed by the President.

Even before this radical move, I had no doubt that the REINS Act would grind to a halt the most impactful actions by our regulatory state. Now, after seeing what just a handful of Members will do just to make a point, I am certain that we cannot let bad measures like this one move forward.

The REINS Act would frustrate the purpose of government and put our constituents in harm's way.

Even if the underlying policy behind the REINS Act was a good idea, which it emphatically is not, I would still argue against it because it is unconstitutional. By allowing the regulation to be blocked from being implemented if even one Chamber declines to pass an approval resolution, the REINS Act is essentially a legislative veto, which the Supreme Court has already held to be unconstitutional.

The goal of this legislation, quite simply, is to stop the regulatory process in its tracks, regardless of its impact on public health and safety.

The bill purports to give Congress control of the rulemaking process, but Congress already has this power and it exercises it in a number of ways. Congress can delegate authority to agencies with specificity, thus limiting the scope of the agency's authority. It can impose restrictions on rulemaking through appropriations. It can influence rulemaking through oversight activities. If all of these measures are insufficient, we also have the blunt tool of the Congressional Review Act, which allows Congress not only to overturn a rule but also to bar the agency from ever passing a substantially similar rule.

The REINS Act is not only redundant, it also creates insurmountable procedural hurdles that would stall the approval of rules of major impact, rules that would be highly beneficial to the public's health and safety.

It is important to remember why we have regulations in the first place. Congress sets broad policies but we delegate authority to executive agencies because we do not have the expertise to craft technical regulations ourselves.

Who here knows how many parts per billion of arsenic should be allowed in our drinking water? Is 10 the proper amount? Should it be 5 or 15? None of us here knows the answer, but the dedicated professionals at our Federal agencies, many of whom have decades of experience and vast technical expertise, undertake a careful process with numerous procedural safeguards to protect our health and safety.

The recent smog and pollution much of the East Coast experienced last week as a result of the Canadian wildfires is a great example of why we need an informed regulatory state to act on our behalf. Decades ago, many cities had similar levels of pollutants in the air, clogging our lungs and causing harm to our children and the environment as we saw last week.

Thanks to expert-informed policies like those regulations instituted under the Clean Air Act, we rarely have days like we saw last week when our most vulnerable citizens must take shelter inside to avoid breathing the air.

Regulations ensure that our air is safe to breathe, our water is safe to drink, our food is safe to eat, and the lifesaving medications we depend on are safe and effective.

I feel much better about leaving regulatory decisions to the careful study of agency experts rather than to Members of Congress who want to substitute their judgment, subject to the whims of politics.

Mr. Chair, I urge my colleagues to join me in opposing this dangerous bill, and I reserve the balance of my time.

Mr. MASSIE. Mr. Chair, I yield myself such time as I may consume.

We now have had a sneak preview of what the next hour of debate is going

to look like. The other side is going to argue that we need to give up more power to the executive branch.

I think our constituents would be appalled. They sent us here and they say we are not effective enough, yet the other side of the aisle is going to say, oh, we need to give the power to the executive branch.

We have also heard here already tonight that this bill, which would restore our Constitution, they say may be unconstitutional. They are referring to a Supreme Court case that has nothing to do with this bill, INS v. Chadha, which said you can't have a legislative veto. That bill that they were ruling on ran afoul of the Constitution because it didn't require passage in both Chambers and a signature by the President.

The REINS Act requires passage in both Chambers and a signature by the President, so their claim that it is unconstitutional is absurd because this is what is required to restore the Constitution.

Their claim that the REINS Act is redundant because we already have the Congressional Review Act is equally as absurd. There have been over 90,000 rules passed by the executive branch since the Congressional Review Act was passed. Only 20 of those have been able to be repealed by this Chamber and the Senate.

This is not a substitute for the Congressional Review Act. It is not redundant. This is what is required. It is what is missing right now in our constitutional structure from what our Founders intended.

Mr. Chair, I yield 3½ minutes to the gentlewoman from Wyoming (Ms. HAGEMAN), who is also a member of the Subcommittee on Regulatory Reform.

Ms. HAGEMAN. Mr. Chair, the power of the administrative state to impose radical and unpopular policies that could never be passed by Congress violates the separation of powers established by the Constitution and is a failed business model for running this country.

Section 1 of Article I of the U.S. Constitution grants all legislative powers to Congress. Over time, however, Congress has excessively delegated its constitutional charge while failing to conduct appropriate oversight and retain accountability for the content of the laws it passes.

The REINS Act is critical to Congress reclaiming its rightful authority and responsibility to legislate. The purpose of this act is to increase accountability for and transparency in the Federal regulatory process.

By requiring a vote in Congress, the REINS Act will result in more carefully drafted and detailed legislation, an improved regulatory process, and a legislative branch that is truly accountable to the American people.

The REINS Act is drafted to address what is often referred to as the nondelegation doctrine, which is a judicially created concept that has resulted in a dramatic shift in power from the legislative branch to the executive branch and is flatout unconstitutional. It is what has allowed regulatory agencies to adopt regulations and even guidance documents that may impose economic costs of billions of dollars on certain industries and businesses and ultimately on the American people without any congressional oversight or involvement at all.

As an example, a few years ago, the USDA issued guidance requiring cattle to have radiofrequency ID ear tags for tracking purposes. This would have imposed a $2 billion cost on the cattle industry, yet the ranchers had no input and Congress never passed such a law.

The current state of affairs has empowered unelected bureaucrats to legislate without any accountability whatsoever while allowing Members of Congress, your elected Representatives, to abdicate their most important constitutional responsibility, the responsibility to write the laws.

The REINS Act requires Congress to affirmatively approve agency rules with an annual economic effect of $100 million before they become effective.

Prior legislative attempts to rein in the administrative state have been insufficient. The result is that the administrative state has continued unabated, imposing unwanted, unwise, unlawful, and unconstitutional policies with impunity.

What do I mean? In 2021, Congress passed just 143 laws, while Federal agencies issued 3,257 rules. The REINS Act would require affirmative congressional approval of major agency rules before they take effect. It does nothing more than require Congress to do as our Founding Fathers expected, to legislate, and it promotes electoral accountability.

I cannot fathom why anyone would oppose such accountability and course-correcting of this legislative ship. Please put America and your constituents first. Please hold Congress accountable for legislating, and please vote ''yes'' on the REINS Act.

Mr. NADLER. Mr. Chair, I reserve the balance of my time.

Mr. MASSIE. Mr. Chair, I include in the RECORD a cost estimate for H.R. 277 prepared by the Congressional Budget Office.

AT A GLANCE, H.R. 277, REINS ACT OF 2023, AS ORDERED REPORTED BY THE HOUSE COMMITTEE ON THE JUDICIARY ON MAY 24, 2023

	By fiscal year, millions of dollars—		
	2023	2023–2028	2023–2033
Direct Spending (Outlays)	a	a	a
Revenues	a	a	a
Increase or Decrease (-) in the Deficit	a	a	a
Spending Subject to Appropriation (Outlays)	a	a	a

a. CBO has no basis to estimate the budgetary effects of enacting H.R. 277.

Increases net direct spending in any of the four consecutive 10-year periods beginning in 2034? a.

Increases on-budget deficits in any of the four consecutive 10-year periods beginning in 2034? a.

Statutory pay-as-you-go procedures apply? Yes.

Mandate Effects:

Contains intergovernmental mandate? No.

Contains private-sector mandate? No.

The bill would:

- Require the Congress to affirmatively approve any major rule issued by a federal agency for it to take effect
- Establish special Congressional procedures and timelines for enacting a joint resolution of approval for major rules
- Require the Government Accountability Office to study how many rules are in effect across the federal government and to estimate the economic cost imposed by those rules

Estimated budgetary effects would mainly stem from:

- Changes in the number and content of major rules that federal agencies would issue in the future

Areas of significant uncertainty include:

- The number and content of major rules that federal agencies would issue in the future, including the economic costs and benefits of those rules
- Decisions made by the Congress about whether to approve those rules

BILL SUMMARY

Under current law, a final federal rule can take effect unless the Congress enacts a joint resolution of disapproval. In contrast, H.R. 277 would require the Congress to enact a joint resolution of approval before any major rule could take effect. Thus, under H.R. 277, new major regulations issued by federal agencies would depend on future legislation.

ESTIMATED FEDERAL COST

CBO and the staff of the Joint Committee on Taxation (JCT) cannot determine the budgetary effect of making all future major rules subject to Congressional approval, but we expect that, in the absence of subsequent legislative action affecting those rules, enacting H.R. 277 would have significant effects on direct spending, revenues, and spending subject to appropriation.

BASIS OF ESTIMATE

For this estimate, CBO assumes that the bill will be enacted in August 2023.

BACKGROUND

The Congressional Review Act (CRA) of 1996 requires federal agencies to submit final rules to the Congress and the Comptroller General before they may take effect. Final rules may be annulled by the Congress if a joint resolution of disapproval is enacted into law. H.R. 277 would amend current law to require instead that the Congress enact a joint resolution of approval before any major rule may take effect, thereby making implementation of major rules contingent on future Congressional action.

The CRA defines a major rule as one that the Office of Management and Budget finds has resulted in or is likely to result in:

- An annual effect on the economy of $100 million or more;
- A major increase in costs or prices for consumers, individual industries, federal, state, or local government agencies, or geographic regions; or
- Significant adverse effects on competition, employment, investment, productivity, innovation, or the ability of U.S.-based enterprises to compete with foreign-based enterprises in domestic and export markets.

H.R. 277 would establish special Congressional procedures and explicit timelines for enacting a joint resolution of approval for major rules. Under the bill, if a joint resolution of approval is not enacted within 70 legislative (or session) days of the Congress receiving the major rule and an accompanying report from a federal agency, the rule would

not take effect. Further, the Congress could not reconsider a joint resolution of approval relating to that rule in the same Congress. However, a major rule could take effect for one 90-calendar-day period without Congressional approval if the President determines, via an executive order, that it was necessary for one of four reasons: (1) to respond to an imminent threat to health or safety, (2) to enforce criminal laws, (3) to protect national security, or (4) to implement an international trade agreement.

Historical data show that federal agencies published 78 major rules in 2022, and 93 major rules, on average, over the past five fiscal years. Major rules published in recent years include ones that established emissions standards for motor vehicles, set Medicare payment rates, and increased the minimum wage for federal contractors. However, looking to recent major rules as a way to estimate the number or scope of future major rules that would be affected by H.R. 277 may not be a good guide to what would happen under the bill because agencies might change the number of major rules they issue or implement policies differently if the bill was enacted.

Because major rules are issued to implement current law, the budgetary effects of anticipated rules are reflected in CBO's baseline projections. For example, annual rules establish new payment rates for a variety of Medicare services that reflect changes in the price indices used for those services under current law. Those rules often result in an increase in payment rates and thus an increase in spending, which are incorporated in the baseline.

Under the Balanced Budget and Emergency Deficit Control Act of 1985 (Deficit Control Act), which governs the contents of the baseline, actions that are contingent on future Congressional action are generally not included in CBO's projections. H.R. 277 would amend that Act to require that CBO continue to assume that any planned major rule will go into effect, unless the rule has already been issued and the Congress has not enacted a resolution of approval within the specified 70-day period. (Without that provision amending the Deficit Control Act, H.R. 277 would result in baseline projections that did not reflect the budgetary effects of major rules.)

Under H.R. 277, CBO's baseline projections would continue to include the budgetary effects of major rules even though future Congressional action would be necessary to approve them. For example, if H.R. 277 is enacted, baseline projections would continue to reflect the assumption that payment rates and related federal spending for Medicare providers would rise over time, even though raising those rates would require future Congressional action. Accordingly, a Congressional resolution of approval for a major rule raising such rates would be estimated as having no cost relative to CBO's baseline projections. (CBO's subsequent baseline projections would be updated to exclude the budgetary effects of a proposed rule if is the Congress does not approve it.)

DIRECT SPENDING

To assess the budgetary effects of H.R. 277, CBO considered the costs and savings that would be realized if anticipated major rules do not take effect. The consequences would vary tremendously because the budgetary effects of different rules vary considerably.

Preventing some major rules from taking effect would result in costs to the federal government, while preventing others would result in savings. On net, CBO estimates that enacting H.R. 277 would probably have a significant effect on direct spending (more than $500,000), but we cannot determine the magnitude or direction of those changes for any year or over time.

Many major rules that occur routinely under current law are related to the government's health care programs, in particular Medicare. For example, some rules establish annual updates to payment rates for services provided by hospitals, skilled nursing facilities, and other Medicare providers. Enacting H.R. 277 would freeze payment structures for those providers at current levels pending future Congressional actions. Similarly, payment rates (such as the annual benefit amount for each person) under some other federal programs might also be frozen under the bill in the absence of future Congressional actions. CBO cannot estimate the net effect of all such changes.

REVENUES

Enacting H.R. 277 also would affect tax revenues, and JCT expects that preventing regulations from going into effect could reduce collections of revenues in some cases and increase collections in other cases. JCT cannot determine the sign or magnitude of the possible effects on revenues.

SPENDING SUBJECT TO APPROPRIATION

H.R. 277 also would affect programs funded through the annual appropriation process. However, CBO cannot determine the magnitude of such effects. For example, if major rules issued by the Environmental Protection Agency could not take effect, spending by the agency would decline, assuming future appropriations were reduced accordingly.

The legislation also would require the Government Accountability Office (GAO) to quantify the number of major and nonmajor rules in effect as of the date of enactment, and to estimate their total economic cost. Using information from GAO about the cost of similar studies, CBO estimates that completing that requirement would cost less than $500,000.

UNCERTAINTY

On net, CBO estimates that enacting H.R. 277 would likely have a significant effect on direct spending and revenues, but we cannot determine the magnitude or direction of those changes for any year or over time.

The budgetary effects of enacting the legislation are highly uncertain principally because CBO cannot predict:

The number and content of major rules that federal agencies would issue in the future,

Decisions made by the Congress about whether to approve those rules, or

The economic costs and benefits of those rules, including their effects on the federal budget.

PAY-AS-YOU-GO CONSIDERATIONS

The Statutory Pay-As-You-Go Act of 2010 establishes budget-reporting and enforcement procedures for legislation affecting direct spending or revenues. Pay-as-you-go procedures apply to H.R. 277 because enacting the legislation would affect direct spending and revenues. However, CBO and JCT cannot determine the magnitude or direction of those effects.

INCREASE IN LONG-TERM NET DIRECT SPENDING AND DEFICITS

CBO cannot determine the magnitude or direction of the budgetary effects of H.R. 277. As a result, CBO cannot determine whether the legislation would increase net direct spending by more than $2.5 billion or on-budget deficits by more than $5 billion in any of the four consecutive 10-year periods beginning in 2034.

MANDATES

H.R. 277 would impose no intergovernmental or private-sector mandates as defined in the Unfunded Mandates Reform Act. However, by requiring major rules to be approved by a joint resolution of the Congress the bill could affect public and private entities. Those joint resolutions could delay or halt the implementation of major rules that could slow reimbursements to public and private entities or change regulatory requirements followed by those entities. CBO has no basis for estimating the magnitude of those effects because of the uncertainty about the number and content of regulations affected, but the costs and savings to public and private entities could be significant.

ESTIMATE APPROVED BY

PHILLIP L. SWAGEL,
Director, Congressional Budget Office.

Mr. MASSIE. Mr. Chair, I yield 2 minutes to the gentleman from Florida (Mr. RUTHERFORD).

Mr. RUTHERFORD. Mr. Chair, like my good colleague here from Kentucky, I rise today to remind this Chamber that our Founders put Congress in charge of writing our laws, not unelected bureaucrats at Federal agencies.

Yet, since taking office, President Biden has signed more than 100 executive orders and insidious rules fast flowing from executive branch agencies creating miles of red tape and running up American taxpayers' tab by $1.5 trillion.

My constituents back home are struggling to make ends meet, and it is a direct consequence of this administration's misguided policies and their insidious rulemaking. It is past time that we put a stop to the President's abuse of executive power.

Last fall, House Republicans made a commitment to our constituents that this Congress would hold the government accountable. This week, with the REINS Act, we have an opportunity to show the American people that we are keeping that commitment.

The very first bill I cosponsored 6 years ago when I first came to Congress was the REINS Act. The REINS Act stops Federal agencies from legislating by fiat by requiring Congress to approve all major rules before they can be enacted.

This bill returns Congress' Article I legislative authority back to where it belongs, and it will protect hard-working, taxpaying Americans.

The REINS Act is a strong start, and I urge my colleagues to vote ''yes.''

□ 2000

Mr. NADLER. Mr. Chair, I reserve the balance of my time.

Mr. MASSIE. Mr. Chairman, I yield 3 minutes to the gentleman from California (Mr. MCCLINTOCK), my good friend who serves on the Judiciary Committee.

Mr. MCCLINTOCK. Mr. Chairman, this bill presents a question that is fundamental to the central architecture of our Republic: Who is to make law?

This has been pointed out, and the Constitution is very clear on this: ''All legislative powers herein granted shall be vested in a Congress of the United States.''

What about that passage do my friends on the other side of the aisle not understand?

The Founders wanted it to be hard to make laws so that society isn't smothered by them. They wanted every voice in the land to be heard through their elected representatives and be accountable and answerable to the people.

The modern regulatory state takes these powers from the people and gives them to unelected bureaucrats. An unelected agency writes the law, and then it enforces the law that it has written. If it accuses you of violating its law, you have to answer to the agency in a court run by that agency without a jury, and the agency keeps the fines that it assesses on you. Is there any more profound threat to a democracy than that?

Ten times more laws are written by the regulatory agencies today than by the people's representatives. Americans now have 10 times the chance of being hauled into an administrative law court for breaking an agency regulation than they have of being charged with a statutory crime where they have the full protection of the Bill of Rights.

The REINS Act starts to put this genie back in the bottle by requiring that regulatory acts that impose more than $100 million of costs to the American public must be enacted by the elected Congress. That means if you don't like that law, you can hold your elected representative directly accountable. That is what a democracy is, a government that answers to the people.

Opponents of this bill tell us that we must defer to the experts. That is not a democracy. That is an oligarchy. We have just endured the folly of experts—lockdowns and mandates the experts told us would slow the spread of COVID. We now have study after study documenting that their measures not only failed to protect us but did incalculable damage to the economy and to the education of our children, and needlessly cost lives through delayed health screenings and treatments, drug and alcohol-related deaths, and increased suicide rates. No representative voted for these measures. The regulatory state simply imposed them.

Experts are there to advise us from every perspective. It is then the responsibility of elected representatives on behalf of the people to sort through their perspectives and advise and chart a course that takes into account all the issues at hand and be accountable and answerable to the people for those decisions.

Mr. Chair, this bill starts us back toward that democracy.

Mr. NADLER. Mr. Chairman, I will note that we have letters representing over 180 public interest organizations, health experts, and labor unions opposed to the REINS Act because of the harm this bill presents to our country's health and welfare.

Mr. Chair, I include in the RECORD the letters of opposition.

MARCH 9, 2023.

DEAR SENATOR/REPRESENTATIVE: The following undersigned organizations representing the public health, medical and patient advocacy communities, write to you to state our strong opposition to S. 184 and H.R. 277—the Regulations from the Executive in Need of Scrutiny Act of 2023 (REINS Act), and we ask you to oppose this harmful legislation.

The REINS Act is a threat to public health. It would add major roadblocks to health-protective regulations by requiring Congress to approve all ''major'' rules issued by federal agencies within a 70-day window. This includes public health rules from the Centers for Medicare and Medicaid Services, the Environmental Protection Agency and the Food and Drug Administration, among other federal agencies that protect the health and safety of American citizens. Under the REINS Act, the default would be Congress blocking important and critical protections including clean air, public health, safety and healthcare measures that have already been authorized by current law.

The REINS act would unilaterally weaken the implementation of public health and safety safeguards that require the promulgation of significant rules that benefit millions of Americans. These include rules that are statutorily required to prevent deaths, illness and injury and to protect the public health. Additionally, the REINS Act would give Congress the power to prevent a ''major'' rule from being effectively implemented simply by taking no action. This step delays safeguards and means that agencies would not only have to reckon with a significantly longer time frame to pass any meaningful rules, but also that the health and safety of the public would remain in limbo and under threat. As we've tragically witnessed in East Palestine, Ohio, federal rules are imperative to ensuring the health and safety of the public.

The REINS Act would also hinder the ability of federal agencies to act and respond to threats swiftly and effectively. While there are some exceptions that allow a rule to be implemented for one 90-day period without Congressional approval—it is not enough.

The REINS Act is a threat to our nation's health. We urge you to oppose the REINS Act and other similar legislation.

Sincerely,

American Lung Association, Allergy & Asthma Network, Alliance for Nurses for Healthy Environments, ALS Association, American Heart Association, Asthma and Allergy Foundation of America, Campaign for Tobacco-Free Kids, Climate Psychiatry Alliance, Cystic Fibrosis Foundation. Health Care Without Harm, Hemophilia Federation of America, National Association of Pediatric Nurse Practitioners, National Environmental Health Association, National Organization for Rare Disorders, Physicians for Social Responsibility.

AMERICAN FEDERATION OF GOVERNMENT EMPLOYEES, AFL–CIO,
Washington, DC, May 23, 2023.

Hon. JIM JORDAN,
Chairman, House Judiciary Committee, Washington, DC.
Hon. JERRY NADLER,
Ranking Member, House Judiciary Committee, Washington, DC.

DEAR CHAIRMAN JORDAN, RANKING MEMBER NADLER, AND MEMBERS OF THE COMMITTEE: On behalf of the American Federation of Government Employees, which represents over 750,000 federal and D.C. government workers across the country, I write to urge you to oppose the following legislation being considered for markup in the House Judiciary Committee this week.

Please oppose H.R. 277, the ''Regulations from the Executive in Need of Scrutiny (REINS) Act of 2023,'' introduced by Representative Kat Cammack (R–FL). This bill would require Congress to approve any federal rule or regulation the Office of Management and Budget determines to have an economic impact of $100 million or more according to before it is imposed on the American people.

Federal agencies should have delegated authority to ensure regulations keep the American public healthy and safe. Government regulations foster job growth and ensure that workplaces are healthy, safe, and accountable. Federal agencies, in conducting rulemaking, are simply implementing programs and regulatory systems that were already approved by Congress and signed into law. Involving Congress in the details of these processes will result in paralysis, the politicization of rulemaking, and poorer outcomes for the health, safety, and wellbeing of the American public.

Please oppose H.R. 357, the ''Ensuring Accountability in Agency Rulemaking Act,'' introduced by Representative Ben Kline (R–VA). This bill would require that any agency rule promulgated under notice and comment procedures must be issued and signed by an individual who was appointed by the President and confirmed by the Senate. This bill would paralyze the functioning of agencies during periods when they have acting heads, and could further complicate and politicize the confirmation process for agency heads.

Unnecessary restrictions on government rulemaking will no doubt restrict the process and prevent the full force of oversight to ensure the American people have a strong and productive government supported by federal workers who are valued and respected.

Sincerely,

JULIE N. TIPPENS,
Director,
Legislative Department.

UNITED STEELWORKERS,
March 10, 2023.

Statement for the Record of Anna Fendley, Director of State and Regulatory Policy, The United Steel, Paper and Forestry, Rubber, Manufacturing, Energy, Allied Industrial and Service Workers International Union (USW) for the House Committee on the Judiciary's Subcommittee on the Administrative State, Regulatory Reform, and Antitrust hearing on ''Reining in the Administrative State: Reclaiming Congress's Legislative Power''

The United Steel, Paper and Forestry, Rubber, Manufacturing, Energy, Allied Industrial and Service Workers International Union (USW) is North America's largest industrial union representing 1.2 million active and retired members. We welcome the opportunity to comment and submit this statement on the subject of today's hearing.

We strongly believe that the Administrative agencies play critical roles in implementing the laws that Congress passes through regulations. Regulations are imperative for protecting public health, welfare, and safety, as well as our shared environment. For our members, regulations allow them to work and live in safer, cleaner, more prosperous communities across the country. Regulations also help level the playing field among businesses and encourage innovation.

Legally, Congress grants federal agencies authority to promulgate and enforce regulations where necessary using their policy, scientific, and technical expertise. The current rulemaking process requires that professional experts work diligently to collect and process complex information. Additionally, agencies must solicit and incorporate input

from a broad range of interested stakeholders when designing new rules.

For example, USW members who work in oil refineries and chemical plants and their communities are protected by strong process safety management regulations. Our members who work in gas utilities and on pipelines are protected by regulations from the Pipeline and Hazardous Materials Safety Administration (PHMSA). Steelworkers who make steel for automobiles have more job security because fuel economy rules incentivized their employers to innovate and invest in making stronger, lighter steel. These are just a few examples of the benefits to USW members.

It is also imperative to note that the current regulatory process isn't perfect. However, legislation like H.R. 277, the Regulations from the Executive in Need of Scrutiny Act of 2023 (REINS Act), represents an extreme threat to public health and safety. This legislation would obstruct the ability of federal agencies to enact rules by inappropriately injecting congressional dysfunction and political considerations into the regulatory process. H.R. 277 would require both houses of Congress to approve every major regulation within 70 session or legislative days before it can take effect. By doing nothing or through partisan gridlock, Congress could stop all major regulations from being finalized, including those that are not controversial. Thus, this risks blocking agencies' efforts to fulfill their statutory mandates to pursue public protections and significantly wasting federal government resources.

We believe that improving and strengthening the regulatory process is critical to ensuring that our federal agencies are transparent, accountable, and effective at delivering strong regulatory protections for consumers, workers, public health, and the environment. That is why we encourage the Subcommittee to evaluate legislative proposals that provide a roadmap for reforming the regulatory process, such as the ''Stop Corporate Capture Act'', which is being reintroduced for the 118th Congress today. This legislation would reduce special interest influence on the rulemaking process, increase transparency around federal agency decision-making, clear procedural bottlenecks that delay regulatory protections, empower the public to hold agencies accountable for enforcing the rules, and build a foundation for consideration of social equity in the rulemaking process.

The American people and American businesses need smart and sensible regulations to ensure that all players in our economy are held to the same standards. We stand ready to assist the Subcommittee in its important work to ensure that our regulatory process is transparent, assessible, and protective of the public. Thank you.

Mr. NADLER. Mr. Chair, I reserve the balance of my time.

Mr. MASSIE. Mr. Chair, I yield such time as she may consume to the gentlewoman from Florida (Mrs. CAMMACK), the sponsor of the REINS Act.

Mrs. CAMMACK. Mr. Chairman, I rise today in strong support of my bill, H.R. 277, the REINS Act, the largest regulatory reform bill in American history.

I know that sounds pretty major, but the REINS Act is actually a commonsense bill that would require every new major rule costing more than $100 million to be approved by Congress before going into effect. I know that sounds radical to some, but actually, it is quite a bit of common sense.

This is a bill that every single Member of this body should support to rein in a largely unchecked bureaucracy that is undermining the role of the very body in which we have the honor to serve. Every single Member in this Chamber should honor and support government transparency, government accountability, and empowerment of their constituents.

Mr. Chair, I know that not everyone in Washington wants more power for the people. In fact, during his first 2 years in office, the President added more than $300 billion in new regulatory costs to the economy. That burden was left on the backs of we the American people.

Additionally, the American Action Forum found that new rules in his first 2 years of office required 193 million hours of compliance paperwork. Mr. Chair, 193 million hours to comply with new regulations from nameless, faceless bureaucrats who are accountable to no one, certainly not the American people.

To really drive home how wild government has grown under the Biden administration, think about this: Since the beginning of his time as President, Biden has added an average of 1,641 pages to the Federal Registry every single week. That is astonishing.

According to the Foundation for Government Accountability, regulations cost Americans $2 trillion every year in compliance costs, economic losses, and other expenses. Those costs are due to ever-increasing regulatory actions that lack proper accountability by Congress.

It is now time for Congress to reassert its role by placing new checks on the regulatory actions and the regulatory regime that negatively impact Americans in all walks of life across the country.

Our constituents deserve to have their voices heard and be able to hold those in the Federal Government making decisions that have impacts on their daily lives and businesses accountable. Under the ever-growing regulatory state, that is not the case. Rather, nameless, faceless bureaucrats are making decisions and creating new regulations that have impacts to our day-to-day lives.

In the case of this bill, these new regulations that have an impact of more than $100 million would be subject to coming back to Congress.

When I talk to my constituents about this bill, they cannot believe how vast the regulatory regime truly is. Members of this body who argue against this bill are, in fact, arguing against their own self-interest and the role of Congress in our political system.

In Federalist No. 51, James Madison states: ''Ambition must be made to counteract ambition.'' Right now, the ambitions of the executive branch down the street have far exceeded those of the regulatory branch. This has gone on for 100 years, regardless of the party that is in the White House.

When it comes to regulations, I quite frankly don't care who is in the White House. I will come down to this floor in this Chamber every single Congress and fight for this bill because we in Congress must do what the Founders of this Nation and the Framers of our Constitution expected us to do—provide a proper, equal check to the executive and judicial branches of the government.

Look no further than the Federal Register to determine the volume of regulations being proposed or finalized every single year. These are actions that Congress has no say in prior to going into effect and having the force of law. We are the lawmakers, not the folks down the street.

The current Congressional Review Act process to disapprove of administrative actions is after the fact, going after regulations and actions after they have gone into effect. It is a useful tool but one that is not particularly effective. It is inadequate to match the size of the administrative branch and the number of regulations that are being proposed and finalized.

Here are just a few examples of executive actions that could have been prevented if the REINS Act had been in effect: student loan forgiveness and loan repayment pauses, which could cost us in excess of $1 trillion; the Biden oil and gas lease sale ban; the unilateral increase in SNAP benefits through new agency standards that increase spending on the program by 25 percent, totaling more than $115 billion in 2022 alone; the expansion of subsidies for ObamaCare, costing more than $45 billion with a b, leaving people with less care, worse care that is, in fact, more expensive; new climate risk disclosure requirements for publicly traded companies, including the companies that they do business with, putting an undue administrative burden on small mom-and-pop shops. The list goes on and on.

Let us not forget the ridiculous Federal regulations like fines and fees for Good Samaritans who untangle whales from fishing nets.

One of the most ridiculous ones under title 21 of the U.S. Code makes it a Federal crime to sell spaghetti thicker than 0.11 inches in diameter. I couldn't believe it when I actually read this. It is a Federal crime.

When you start digging into the impact that that has, think about this, Americans consume, on average, 6 billion pounds of spaghetti a year. It is a $30 billion industry in the United States alone, and we have a regulation on the books to monitor the size of spaghetti, like we don't have anything better to do.

Some of these regulations sound silly, but I promise they have a very real impact. They drive up costs and ultimately cost us, the American people, money.

Recently, a nationwide poll was conducted in which Republicans, Democrats, and Independents from all across the country of all demographics were educated on the REINS Act and then asked their opinion on it. The majority of Republicans, Democrats, and Independents all favored the REINS Act.

In fact, this poll found that more Democrats than Republicans were in favor of this policy. Seventy-two percent of Democrats were in favor, and 71 percent of Republicans were in favor of it. I sent this very poll to every single Republican and Democrat with a personalized letter before this debate here tonight.

There is no excuse for not knowing about this poll and the fact that their constituencies support more accountability and transparency in this Chamber. I just can't wrap my head around why, as a Member of Congress, you wouldn't want people in your district to be empowered to know that you are exercising your Article I authority as a Member of the people's House instead of playing partisan games and chasing political narratives that are nonexistent.

Just last week, I had a meeting with homebuilders from my district who were in town for their annual fly-in. In fact, 35 percent of the cost of new homes being built in Florida is due to regulations. That is insane. For first-time home buyers, you are now paying 35 percent more, not just because of inflation, not just because of a broken supply chain, but because of Federal regulations.

You can find examples in every single sector across this great country. That is why I encourage all of my colleagues to talk to local stakeholders and understand how regulations affect their constituents and impact the costs of goods, energy, services, heck, the cost of living. Talk to individuals in any sector, and they will tell you that there are burdensome regulations that are killing them.

It is our job to step in. You will hear the negative impact. You will understand that Congress did not explicitly approve these regulations.

That is why if you are a Republican, Democrat, Independent, or heck, just an American who believes in the rule of law, who believes in our Constitution and wants more transparency and accountability in the government, you will vote for this bill and support this bill.

Mr. NADLER. Mr. Chair, I reserve the balance of my time.

Mr. MASSIE. Mr. Chairman, I yield 5 minutes to the gentleman from Florida (Mr. POSEY), my good friend.

Mr. POSEY. Mr. Chairman, I thank the gentleman from Kentucky for yielding today.

Today, the issue is rules reform. Let's answer some commonly asked questions about agency rules.

Question number one: What is a rule? To be clear, rules were made by unelected, unrecallable, unaccountable bureaucrats.

Question number two: Why do agencies write rules? It has been said on the floor, and even by an expert commentator on C–SPAN, that Congress created agencies to write rules. Wrong. Congress created agencies to implement laws passed by elected people, not create new laws outside of their delegated authority.

Question number three: Most people back home think Congress makes all the Federal laws. Is that true? Wrong. For every law elected representatives make, unelected, unrecallable, unaccountable bureaucrats can make 1,000 or more new rules enforceable as laws. Last time I checked, there were 170-some volumes of Federal code that were actually passed by elected representatives. The laws known as rules made by unelected, unrecallable, unaccountable bureaucrats could fill this Chamber.

□ 2015

Question number four: Can an American citizen end up in court or in prison for violating a rule made by an unelected, unrecallable, unaccountable bureaucrat? The answer is yes. It is estimated that if a citizen is called into Federal court, it is 100 to 1,000 times more likely to be a result of violating a rule made by an unelected person than a law.

Question number five: Are there any further restrictions on unelected, unrecallable, unaccountable bureaucrats' ability to write rules enforceable as laws that can end up putting American citizens in court or in prison? Yes. Currently, unelected, unrecallable, unaccountable bureaucrats who write a rule with an impact of over $100 million, as you heard earlier, have to write a cost-benefit analysis.

Question number six: Does that mean that they can write a rule with an impact of less than $100 million without doing one? Sure. It seems like it is okay to write rules as enforceable as laws that negatively affect Americans if the cost is estimated to be only $99,999,999.

Question number seven: Do agencies always perform cost-benefit analyses as required if the proposed rule has a $100 million or greater impact? The answer is no. Some unelected, unrecallable, unaccountable bureaucrats, unfortunately, are also arrogant, petulant, and defiant. One study revealed one rule had an $80 billion negative impact, but the agency had refused to do the required study saying, you, meaning Congress, can't make me, and we couldn't.

Not all Federal rules writers are guilty of bad behavior, for sure. We have many employees who add great value to the process, but we must establish needed guidelines for those who exceed and abuse legislative intent and authority.

I could go on for hours, but my time is limited, so I urge my colleagues to support this legislation to regain authority for lawmaking back from unelected, unaccountable, unrecallable bureaucrats by supporting this much-needed legislation reform.

Before I yield, I would like to say that I collected Federal Registers for the last 4 years of the last administration. Instead of throwing them in the trash like most people do because we can't act on them, I started building a stack in the corner. My office became a tourist attraction. I had people from almost every State come into my office and want to have their picture taken before the stack of rules implemented by unelectable, unrecallable, unaccountable bureaucrats.

How big do you think that stack got to be after 4 years? A lot of people say probably over my head. Actually, it was seven stacks over 10 feet high, over 70 linear feet of rules, longer than the entire amount of laws passed in this country since its founding.

Mr. Chairman, I thank the gentleman again for yielding.

Mr. NADLER. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, at the appropriate time, I will offer a motion to recommit this bill to committee. If the House rules permitted, we would have offered the motion with an important amendment to the bill. The amendment would have ensured that vulnerable groups like veterans and their health will not be harmed by the politicization and delay of critical executive branch rules under the REINS Act.

Mr. Chairman, I include in the RECORD the proposed text of the amendment.

Mr. Nadler moves to recommit H.R. 277 to the Committee on the Judiciary with instructions to report the same back to the House forthwith with the following amendment:

Add at the end the following:

SEC. 6. EFFECTIVE DATE.

This Act and the amendments made by this Act shall not take effect until the date on which the Secretary of Veterans Affairs certifies to Congress that implementation of this Act, and the amendments made by this Act, will not delay the provision of benefits or health services to veterans by the Secretary of Veterans Affairs.

Mr. NADLER. Mr. Chair, although the REINS Act will harm everyone, we must at least ensure that those who serve in our Armed Forces are not further harmed by this legislation.

Mr. Chairman, this legislation is just the latest effort by Republicans to dismantle and destroy the regulatory process, a process that protects our health and safety each and every day.

Regulations ensure that we have clean air to breathe, clear water to drink, and safe food to eat. They ensure that children's toys and cribs are safe, that medications are safe and effective, and that the planes, trains, and automobiles we depend on for transportation will keep us safe. They ensure that consumers are protected from fraud and discrimination, that workers are treated fairly, that veterans are fairly compensated for their service, and so much more.

However, Republicans want to stop this process in its tracks and put our health and safety at risk, just as they stopped our process of legislating last week, all to prove a point to leadership.

Mr. Chairman, I urge all of my colleagues to oppose this dangerous legislation, and I reserve the balance of my time.

Mr. MASSIE. Mr. Chairman, I yield 2 minutes to the gentleman from Wisconsin (Mr. TIFFANY).

Mr. TIFFANY. Mr. Chairman, it is good to join Representative MASSIE, once again, here tonight in regard to the REINS Act.

I want to share with everybody a real-world example of how the REINS Act could be used. I think back to the Boiler MACT issue, which was over a decade ago.

That was an administrative rule that was put in place administratively. It was not passed by the United States Congress. If the REINS Act would have been in place, we would have prevented the example I am about to give you.

There was a smokestack that had to be built on a paper plant in northern Wisconsin that cost $10-plus million. It was meant to reduce emissions that were coming from that paper plant.

Do you know how much it reduced emissions, Mr. Chairman? Zero. No emissions were reduced as a result of them spending $10 million as a result of this administrative rule, Boiler MACT, that was put in place.

Think about the ripple effect of that. That company had to spend $10 million of their scarce capital on that. They wanted to do an expansion to be able to build an addition onto their plant that would make an advanced fiber that is being used on modern-day jets, commercial aircraft.

As a result of that, they had to go to Oneida County and get a loan in order to do the expansion on their plant. It put the taxpayers of Oneida County on the hook rather than them simply spending their scarce capital and being able to make this addition that created another 40 to 50 jobs.

That is the impact that we see as a result of the people's House not voting on something like this.

This is really simple. These are the ABCs of good government. The agencies should have to come back to the United States Congress to be able to do something—that is, to institute a rule that is going to cost more than tens of millions of dollars.

If this would have happened, if this would have been in effect, we would have not seen something like this previously.

Mr. MASSIE. Mr. Chairman, I thank the gentleman from Wisconsin for his comments, and I reserve the balance of my time.

Mr. NADLER. Mr. Chairman, I will not repeat myself. For all the reasons I gave a couple of minutes ago, this is a very bad bill. It is very dangerous legislation for the peace and health and safety of the people of the United States.

Mr. Chairman, I urge everyone to oppose it, and I yield back the balance of my time.

Mr. MASSIE. Mr. Speaker, reasonable minds may differ about certain policies, but under the Constitution, we should all be on the same page about who should make law. Congress should make law.

Think about some of the laws that have been promulgated by the administrative branch, things that should have come to Congress. I got on an airplane a few years ago, and they said that Federal law requires that you wear a mask.

Do you know what I thought to myself? We never voted on that law. We should have voted on whether that should be a law or not. I would have voted ''no.''

It probably would not have passed, and if it had and our constituents decided it was too onerous, they could appeal to us, not some bureaucrat.

What are some other examples? The vaccine mandates that cost people their jobs. These were not laws passed by Congress. These were from the executive branch.

Then, tonight, we have just had two bipartisan votes to repeal executive branch rules, one on the pistol brace and one on stoves—bipartisan.

What does that mean? That means if they had tried to bring those as laws through Congress as the Founders had intended, they would have failed because there would have been bipartisan opposition to that.

We should be making the laws here. It is very simple. When unelected, unaccountable, unrecallable bureaucrats write the laws, then the laws become more numerous and more onerous. We should pass the REINS Act and bring the constitutional authority back to Congress to pass legislation.

Mr. Chairman, I urge adoption of the bill, and I yield back the balance of my time.

The Acting CHAIR (Mr. ROSE). All time for general debate has expired.

Mr. MASSIE. Mr. Chair, I move that the committee do now rise.

The motion was agreed to.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. VAN ORDEN) having assumed the chair, Mr. ROSE, Acting Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 277) to amend chapter 8 of title 5, United States Code, to provide that major rules of the executive branch shall have no force or effect unless a joint resolution of approval is enacted into law, had come to no resolution thereon.

APPOINTMENT OF MEMBER AND INDIVIDUAL TO CONGRESSIONAL AWARD BOARD

The SPEAKER pro tempore. The Chair announces the Speaker's appointment, pursuant to section 803(a) of the Congressional Recognition for Excellence in Arts Education Act (2 U.S.C. 803(a)), and the order of the House of January 9, 2023, of the following Member on the part of the House to the Congressional Award Board:

Mr. HUDSON, North Carolina

And, in addition:

Dr. Vipul Dev, Bakersfield, California

SUPPORTING CONGRESS' LEGISLATIVE AUTHORITY

(Mr. CLINE asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CLINE. Mr. Speaker, since our country's founding, the United States Constitution has granted Congress the legislative authority to decide major questions of nationwide policy.

Yet, since President Biden took office, his administration has continued his assault on America's economy with costly Federal regulations and executive overreach of power to advance his radical agenda.

In its first year alone, the Biden administration finalized liberal regulations that added more than $200 billion in new regulatory costs. The Biden administration has acted unilaterally on several occasions to circumvent congressional approval to pass policies that advance its far-left agenda.

We saw this in the Biden administration's attempt to pass the unconstitutional student loan giveaway plan, putting taxpayers on the hook for others' heavy college debt. We saw this in the Biden administration's cancelation of pending oil and gas lease sales, hiking up energy costs for hardworking families. We saw this in the Biden administration's proposed ESG investment rule that would put seniors' hard-earned retirement savings at risk.

This is all unacceptable. American taxpayers deserve to know just how much the administration's executive orders will cost them before they go into effect.

As our Nation faces $31 trillion in debt, Congress must pass the REINS Act. I urge my colleagues to support this important legislation.

STRIKING DOWN ATF'S UNCONSTITUTIONAL RULE

(Mr. ROSE asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ROSE. Mr. Speaker, today, I rise in support of legislation I am proud to originally cosponsor, H.J. Res. 44, which would strike down the ATF's unconstitutional pistol stabilizing rule.

Time after time, this administration has shown they show little to no regard for our God-given rights protected under the U.S. Constitution. That is why it is no surprise to see unelected agency bureaucrats pushing for this

outrageous and draconian regulation that criminalizes firearm ownership for millions of law-abiding Americans.

Under this rule, many of the service-disabled veterans who rely on these braces would no longer be able to exercise their Second Amendment freedoms and right to self-defense.

That is why I was proud to be an original cosponsor of this legislation and to vote in favor of its passage on the House floor.

''Shall not be infringed'' means exactly that. Rest assured, I will always stand against efforts like these to diminish our God-given Second Amendment rights.

□ 2030

LAKE TAHOE PIZZA COMPANY CELEBRATING 50 YEARS IN BUSINESS

The SPEAKER pro tempore. Under the Speaker's announced policy of January 9, 2023, the gentleman from California (Mr. KILEY) is recognized for 60 minutes as the designee of the majority leader.

Mr. KILEY. Mr. Speaker, I rise to offer congressional recognition to the Lake Tahoe Pizza Company to mark their 50-year anniversary in business.

For over five decades, this family-run restaurant has survived many challenges, including the Great Recession, a global pandemic, and the recent California winter storms. Despite these challenges, all the hard work and dedication the Touryan family has put into this restaurant has made it into quite the success story.

John Touryan, the founder, embodies the spirit of the American Dream. Mr. Touryan emigrated to the United States as a child. He began the restaurant in the bay area as a recent college graduate with no financial support, all while living in his Volkswagen bus.

After moving from the bay area to South Lake Tahoe in the late 1970s, Mr. Touryan's new home became a great location for his restaurant. In just 3 years, business was booming. In 1980, he had to move the restaurant to another location within South Tahoe to keep up with the pressing demand.

He grew a successful restaurant from the ground up and has kept it in the family throughout. Now ownership of the restaurant has been passed to his son, Brenon Touryan, and many, many members of the family have all played an important role in the day-to-day operations of the restaurant.

It is truly special to witness a family that works so collaboratively and effectively together to run a thriving business, and it is inspiring to see that business being passed on through the generations.

The Lake Tahoe Pizza Company serves as a local gathering place in the Tahoe area and continues to contribute positively to the community. The restaurant has received both local and national recognition, including selection as the Best of Tahoe more than a dozen times through popular vote, and awarded the Best of Tahoe Pizza by the Tahoe Quarterly magazine, a feature on the Travel Channel's ''Best Places I Have Ever Been'' in an episode titled Pizza, and it was filmed by Discovery Channel's Monster Garage.

On behalf of the United States House of Representatives, I am honored to acknowledge the Lake Tahoe Pizza Company for reaching this significant milestone, as well as for their invaluable contributions to our State and local economies and outstanding dedication to the Tahoe community.

ANNASTASIA MALONEY EXHIBITS BRAVERY AND WINNING SPIRIT

Mr. KILEY. Mr. Speaker, I rise to offer congressional recognition to Annastasia Maloney, an athlete from Grass Valley, California, who will travel to Germany this summer to compete in the 2023 Special Olympics World Summer Games.

Ms. Maloney is a tremendously talented athlete who plays basketball, softball, soccer, and flag football. She has also competed in throwing the mini javelin, but running is her main event. She has won gold and bronze medals in the 400- and 800-meters in track and field competitions in both local and national Special Olympics. This will be her first World Olympics.

The Special Olympics World Games offer the opportunity to unite the world like no other event can, where people of different nations, cultures, political views, and religions are brought together through the power of sport.

Eunice Kennedy Shriver founded the Special Olympics in 1968 because she believed that everyone, regardless of physical or intellectual ability, can realize their potential for growth through sports and competition.

In addition to working full time and adhering to a daily training schedule, Maloney is a global messenger for the Special Olympics. This summer her message of persistence and excellence will be conveyed from the global stage, where she will compete according to the oath sworn by every athlete since the Games' inception: ''Let me win; but if I cannot win, let me be brave in the attempt.''

Maloney has undoubtedly already demonstrated her bravery and winning spirit. I am confident the crowds in Berlin this summer will cheer for Annastasia Maloney and the 7,000 Special Olympics athletes from 170 countries.

On behalf of the U.S. House of Representatives, I express admiration and best wishes to Annastasia Maloney, Special Olympics USA, and all the athletes in the Special Olympics World Summer Games.

CELEBRATING 75 YEARS OF AUBURN AREA RECREATION AND PARK DISTRICT

Mr. KILEY. Mr. Speaker, I rise to mark and celebrate the 75-year anniversary of the Auburn Area Recreation and Park District.

When the district was originally formed on July 1, 1948, it had one park aptly named Recreation Park and the use of the Gold Country Fairgrounds. Today, the district proudly maintains and operates many exceptional parks as well as open space and trail systems, recreation programs, community events and facilities, such as community centers, pools, and courts for sports, to name a few.

I had the pleasure of visiting last month and was very impressed with their award-winning Auburn Bike Park and the ever-popular preschool program. I even ended up planting a tree at Recreation Park and managed to fit in a quick game of pickleball.

Such a bounty of recreational opportunities promotes the health and quality of life of residents in the Auburn and Meadow Vista communities. For over seven decades, the Auburn Area Recreation and Park District has exhibited a strong commitment to providing safe, quality, and accessible parks and recreational activities that are enjoyed by all.

I wish to express gratitude and thanks on behalf of the Third Congressional District of California for the Auburn Area Recreation and Park District's service and dedication to enriching the greater Auburn area with comprehensive recreational opportunities.

ANDREA SEASTRAND'S LEGACY WILL ENDURE FOR GENERATIONS

Mr. KILEY. Mr. Speaker, I rise today to offer congressional recognition to a remarkable public servant, former Congresswoman Andrea Seastrand, whose unwavering dedication to her constituents and tireless commitment to public service have left an indelible mark on our Nation's history.

Andrea Seastrand was born on August 5, 1941, in Chicago, Illinois. She graduated from DePaul University with a BA in education, and moved to Salinas, California, to find work as an elementary schoolteacher. Before serving one term as a Member of the United States House of Representatives, she served as a member of the California State Assembly for 4 years, where she was part of the Assembly Education Committee and served as assistant minority leader.

After her time in public service, she founded the California Space Technology Alliance, a private nonprofit organization focused on promoting California's participation in space ventures. She has also served in leadership positions on local boards and civic groups focused on fiscal responsibility and citizen involvement.

The career of former Congresswoman Andrea Seastrand is a testament to the power of visionary leadership, dedicated public service, and a profound commitment to serving with dedication and responsibility to our fellow citizens.

Her contributions have shaped the aerospace industry in California, protected taxpayers, and improved the

lives of countless Americans. The impact of her legacy will endure for generations to come.

It is with the utmost respect and admiration that I commend her exceptional service and numerous contributions to our State and Nation.

CASA DIABLO IV GROUNDBREAKING INVESTMENT

Mr. KILEY. Mr. Speaker, I rise today to recognize a groundbreaking investment in renewable energy development in my district, the Casa Diablo IV geothermal plant.

The Mammoth Geothermal Complex, located just outside of Mammoth Lakes, California, has been powering Inyo and Mono Counties since 1984. A new geothermal facility has recently been added to the existing three facilities of the complex.

With the addition of the Casa Diablo IV plant, the total generation for the complex will double and produce enough energy to power 45,000 homes.

Geothermal energy harnesses the power contained in the fluids and heat from the Earth's core to produce clean energy for our communities while producing zero nitrogen oxide emissions, virtually no carbon dioxide emissions, and presenting low visual and noise impacts.

I commend the owners and operators of the complex, Mammoth Pacific Geothermal and Ormat Technologies for their leadership in this industry, their dedication to promoting clean, renewable energy resources, and their meaningful contributions to the Mammoth community through their support of local projects, scholarship programs, and housing assistance.

I also applaud the Inyo National Forest for their close partnership and collaboration on this important project.

On behalf of the United States House of Representatives and the Third Congressional District of California, I am pleased to celebrate today on the House floor this valuable addition to the Mammoth Geothermal Complex.

HONORING THE SERVICE OF DR. JOHN A. UNGERSMA

Mr. KILEY. Mr. Speaker, I rise today to recognize a truly outstanding individual in my district, Dr. John A. Ungersma for his heroic and invaluable service to our Nation and community.

Dr. Ungersma earned his bachelor of arts degree from Stanford University and his medical degree from the University of Southern California. He used his education and experience to serve our Nation in the United States military as a naval flight surgeon and senior surgeon in the 1st Marine Division. He also served with honor in both Desert Shield and Desert Storm and ended his 48 years of service as a captain of the Medical Corps in the United States Navy.

Dr. Ungersma established the first orthopedic surgery practice in Bishop, California, in 1966. He was the only orthopedic surgeon on the Highway 395 corridor between Los Angeles and Reno for almost a decade.

Dr. Ungersma additionally served for 18 years on the Northern Inyo Hospital Board of Directors as president, vice president, and director at large. During his tenure, he was active in the planning, financing, and construction of a new 25-bed critical access hospital, which became one of only 28 critical access hospitals in California. He also served as vice president and treasurer of the Association of California Healthcare Districts and was named the Association's trustee of the year in 2015.

Dr. Ungersma has touched countless lives, and his contributions have made a meaningful and lasting impact on the healthcare industry.

On behalf of the United States House of Representatives, I am honored to recognize Dr. John A. Ungersma for his leadership and the years of service he has provided to the people of Inyo County, the State of California, and the United States of America.

JULIE SU NOMINATION STALLED

Mr. KILEY. Mr. Speaker, I would like to take a moment to discuss a hearing that was held last week by the House Education and the Workforce Committee where Acting Secretary of Labor Julie Su testified as a witness.

Now, as background, Ms. Su, of course, has been nominated by President Biden to be Secretary of Labor. She has been in that role in only an acting capacity now for several months, and the nomination has been stalled for those months.

In fact, the Biden administration, as being reported by Bloomberg, has now set up a nightly war room to try to advance Su's nomination, but there is a reason that the nomination has remained stalled, and that is because she is exactly the wrong person for the job.

The testimony she gave at last week's hearing before the Education and the Workforce Committee was evasive, nonresponsive, and in some cases outright dishonest in a way that provided further confirmation that she should not be the next Secretary of Labor of the United States.

For starters, the hearing almost didn't happen because Acting Secretary Su tried to cancel at the last moment. Chair VIRGINIA FOXX began the hearing as follows: She said to Ms. Su: '' . . . you have been a hard witness to schedule. The committee began working with the Department to secure your in-person testimony beginning in March. When you would not appear in May, we honored your request to appear in June, using a date, June 7, that was offered by your staff and to which you agreed.''

Chair FOXX continued: ''So why is it that on a late Friday evening, following the committee's public posting of the hearing a week ago, your staff told us that you were 'no longer able to make June 7th work?' ''

The only reason Acting Secretary Su did appear before the committee is that the committee was going to resort to a subpoena to get her there otherwise.

That was the first major issue with Ms. Su's performance at this hearing, but there were several others.

First, was her response on the topic of Proposition 22, which was a major labor initiative passed by California voters less than 3 years ago, in 2020. Now, Ms. Su was California's secretary of labor at the time. She would have been substantially affected by whether this initiative passed or failed. It ended up passing. California voters overwhelmingly chose to allow companies like Uber and Lyft and Door Dash to continue to use independent contractors, and thereby allowing them to stay in California.

When I asked Ms. Su how she, herself, voted as a California voter on Prop 22, she answered as follows: ''How did I vote on Prop 22? I don't remember how I voted on that.''

Now, Mr. Speaker, this utterly exceeds all bounds of plausibility, that the secretary of labor for our State would not remember how she voted on this major labor initiative less than 3 years ago. I think it is fairly safe to conclude that this was a false statement that Ms. Su made to our committee.

Just to be fair, I gave her several opportunities to correct her statement on that later in the hearing, and she still did not retract it. That is her testimony on the record, that she does not remember how she voted on this major labor initiative while she was California's secretary of labor.

Second, was her testimony with respect to AB5. Now, AB5 is a law that has made it virtually impossible for countless professionals in California to continue their careers. It has essentially abolished independent contracting in hundreds of professions and has been widely condemned across the partisan spectrum.

Now, Ms. Su has been called an architect of that law, AB5. As California's secretary of labor, she was the one who enforced it, and she did so in the most aggressive, ruthless, broadest way possible to ensnare as many people as possible.

After the law passed, she was on the record celebrating its passage, so you would think she would have a pretty good answer when I asked her whether she thought AB5 was a good law. However, after I asked that, here is what she said: ''I don't know what—I mean, I don't know. I don't know. Tell me what—give me a little bit more on what you mean by that.''

□ 2045

I took several other opportunities to ask her whether she thought AB5 was a good law. Each and every time she refused to answer.

I also asked Ms. Su whether she was involved in the drafting of AB5, and she responded simply no. However, she then contradicted herself later in the hearing when my colleague, Mr. BURLISON, asked her about her involvement. She said that, oh, yes, she did, in fact, provide technical assistance.

When I asked Ms. Su whether she was aware that people have lost their livelihoods in California because of this law AB5, she said: I have heard from people who have said that.

She reiterated that exact language again: I have heard from people who said that. I have heard people who said something different too. I have had people tell me that. She responded, refusing each time to recognize the legitimacy of these claims, refusing to recognize that we have had countless people who have lost their livelihoods in California.

Also, it was no less than 2 days after that hearing that we got yet another example of this when the city of Los Angeles announced that it was having to terminate a contract with almost 100 truckers for a road repair program that had been around for about 130 years and the Department of Public Works in the city of Los Angeles specifically cited AB5 as the reason it was canceling that contract.

There are countless examples like this, and yet the most that Ms. Su is willing to say is: I have heard from people who have said that.

Next, I asked Ms. Su about her role with the massive $32 billion, at a minimum, unemployment fraud that occurred in California on her watch. I asked her several times: Do you take any responsibility for that fraud?

She evaded the question several times before finally saying: Yes. I do take responsibility to the fact the system did not deliver in ways that we would have hoped that it delivered.

I then asked her several times what she would have done differently, what she has learned if she could do it all over again, and she could not name a single thing that she would have done differently to prevent this $32 billion unemployment fraud, even though the independent State auditor and the leading Democrat lawmakers in California have blamed her specifically for the fraud.

I also asked Ms. Su about the migrant child labor crisis that has been uncovered by The New York Times, and I asked her whether she had communicated the scale of this problem to the White House prior to this year. Her response was: I don't know. I don't know that.

I, along with several other members of the committee, asked Ms. Su if she would commit to not changing the joint-employer rule or bringing a new joint-employer rule that would threaten the entire franchise business model.

She was evasive each and every time and would give no such commitment. She made comments such as: We do not have a plan to do that. It is not on our agenda.

She also said: I commit to following all of the rules of rulemaking, everything that we are required to do, I pledge to you that we will do under my leadership, under my tenure at the Department of Labor. I can't sit here at this moment and tell you with certainty everything that is going to happen.

Again, we tried several times, myself and several members of the committee. She would not commit to not bring a new joint-employer rule.

Finally, I asked Ms. Su about the economic performance of her home State, California, where she was the Secretary of Labor for Governor Gavin Newsom and was the labor commissioner for several years before that. I asked Ms. Su if she knew where California ranks among the States when it comes to its unemployment rank. She did not know.

The answer is that California has the second highest unemployment rate in the Nation. I asked Acting Secretary Su if she happened to know which State has the highest poverty rate in the country. She didn't know. The answer, once again, is California.

I asked Acting Secretary Su if she knew which State has the lowest rate of net earnings growth of any of the 50 States. She didn't know that either and, once again, the answer is her home State of California where she was the Secretary of Labor.

Mr. Speaker, I think it is clear, based on Acting Secretary Su's record, that she is not the right person for this role. She is not the right person for the highest labor position in the land, in our country, at this moment of such great importance for the American economy and American workforce.

I will, once again, encourage President Biden to withdraw her nomination and to nominate a secretary who will be on the side of American workers.

Mr. Speaker, I will take a moment to offer a little bit of background on the individual that President Biden is planning to appoint as the new director of the CDC. It is being widely reported that he will name Dr. Mandy Cohen of North Carolina to this post.

Now, interestingly, the position of CDC director will soon be a Senate-confirmed position starting in 2025, based upon legislation passed last year. It was recognized that this is a position of such great importance that during the COVID era was so relevant to the lives of so many people that it should be a Senate-confirmed position. However, that provision has not taken effect yet, so if President Biden does, in fact, move forward with this appointment, as has been reported, then there will be no opportunity for her to be vetted.

With the appointment not yet official, this really is the one opportunity that Americans have to weigh in on whether this is the right person for the job.

We need to recognize that there is a huge gap in the level of trust that Americans have in our entire public health establishment, based on many of the things that have happened in the last few years.

I will actually point to a comment from the CEO of Facebook, or Meta, as it is now called, Mark Zuckerberg, just a couple weeks ago. Mr. Zuckerberg said this: ''Just take some of the stuff around COVID earlier on in the pandemic, where there were real health implications, but there hadn't been time to fully vet a bunch of the scientific assumptions and, unfortunately, I think a lot of the establishment on that kind of waffled on a bunch of facts and asked for a bunch of things to be censored that, in retrospect, ended up being more debatable or true. And that stuff,'' Mr. Zuckerberg continued, ''is really tough, right? It really undermines trust.''

We are learning more and more about the role that the CDC and government authorities played in those efforts to censor certain facts or opinions related to COVID–19, many of which, in the words of Mr. Zuckerberg, ''ended up being more debatable or true.''

We also saw in the CDC, throughout the COVID era, take truly radical positions, such as recommending masks for children as young as 2 years old. This defied the international consensus. It was not what the WHO recommended. It was not what the European counterpart of the CDC recommended, yet it was the CDC's position.

We also saw how the CDC apparently changed its school reopening guidance in February 2021 after pressure from teachers' unions. Texts between the outgoing director of the CDC, Ms. Walensky, and Randi Weingarten have been uncovered showing this level of coordination and how the guidance was, apparently, revised based on input or pressure from the unions.

This, of course, is not a role, head of a teachers' union, that is selected for based upon one's scientific credentials, yet apparently played an important role in guidance that was then used to keep many, many schools across our country closed and to deprive millions of kids of the education that they deserve.

We also had time and again the CDC make statements on issues like the transmissibility of COVID for vaccinated individuals that turned out to be incorrect. We saw vaccine mandates struck down by the courts as unconstitutional.

With all that as background, let's turn to the question of whether Dr. Mandy Cohen of North Carolina is the right person to restore trust in our public health system, and I would say, based upon her record, she absolutely is not the right person. Indeed, she manifested the very worst tendencies of the COVID era.

Let's start with the method she used for shutting down the economy in her own State. Now, I will first give you her words when she described it. She said: Our scientific team, in coordination with looking at recommendations for the Centers for Disease Control and others, and really understanding, again, what we have learned this year about how this virus spreads. We know that there are settings and activities

that are lower risk. It doesn't mean that they are no risk, but lower risks. We know there are things that are medium risk, things that are higher risks, and so forth.

So you would think this is a very considered process that she went through. However, feedback from others in her State suggested the opposite.

Dale Folwell, who was the North Carolina State treasurer, said: I tried for months during COVID to get the council of State to convene with Dr. Cohen to explain the lack of transparency in the data used to shut down our economy and our schools. These decisions disproportionately hurt lower- and fixed-income adults and kids. By closing schools and the economy, it closed opportunity and upward mobility for students and citizens. The damage, he said, is generational.

That is how another Statewide elected official in North Carolina described the level of transparency and the implications during the COVID era, but what is even more revealing is comments that Dr. Cohen recently made herself.

In contrast to the more methodological approach that she claimed to have followed, she made these comments in a 2022 interview with the Duke Health Sector Management. When asked how she decided what to lock down, what could remain open, what wouldn't, she said: So I would call probably the person I called most was the Secretary of Health and Human Services in Massachusetts.

Dr. Cohen went on: When she was, like, are you gonna let them have professional football? And I was, like, nope. And she's, like, okay, neither are we. Neither are we.

At this point, Dr. Cohen laughs at this.

She goes on: So it was, you know, conversations like that, so or I'd be, like, when are you gonna think about lightening up on masks? They're, like, next Monday, and I'm, like, okay, next Monday.

See, this is what we all suspected was happening in many of these States that seemed to have no rhyme or reason to the way they went about these lockdown and reopening policies.

Here, you have President Biden's own presumptive nominee to be the CDC director saying, yes, that is exactly what she did. In a flippant and arbitrary manner, she decided what industries would be shut down and which would remain open, as well as what would be mandated and what wouldn't.

In addition to that, Dr. Cohen adopted many policies that were on the extreme end of the spectrum when it came to COVID mandates. For example, on July 26, 2021, she said: Schools with students in K–8 should require all children and staff to wear masks indoors, regardless of vaccination status.

Now, we have already seen this was a position that is at odds with the international norm. She also repeated claims that turned out to be false with regard to transmissibility. She said in a 2021 interview with the Carolina Business review: What we heard from the CDC last week was even better than what we heard before, right. We had heard that vaccines protect you from getting COVID. I think the new piece of information for us was that we now have more definitive data to show that it prevents you from giving COVID to others. And that is really where masks come in, right, a mask is about protecting you from giving COVID to others even if you don't know you have it.

She also promoted masks for vaccinated individuals 7 months after the CDC dropped its mask requirement for vaccinated individuals. She said: We still need to mask—everyone. This was during a December 20 news briefing. Even if you are vaccinated, she said, you should wear a mask in public, indoor spaces, and if possible, wear a medical grade mask for more protection. This was in December 2021.

In addition to that, Ms. Cohen threatened to sue a school district, Union County School Board, for their decision to drop contact tracing and quarantine processes in September 2021. The dispute came after Union County Health Department officials would not work with the district on reducing quarantine times if students presented a negative test or other mitigation measures were used.

In other words, they were trying to get their kids back to school. School officials made this request to minimize the impact a quarantine has on students and their families; the Union County Public School's statement reads: Local health officials would not consider this request despite the fact that health officials around the State have implemented similar measures. The district also refuted Cohen's claims about infections in their district using her own agency's data.

Dr. Cohen also strongly supported vaccine mandates for healthcare workers. In July 2021, she said: Thank you to the North Carolina Healthcare Association and the health systems that are leading the way requiring vaccination for employees, for taking action to protect the healthcare workforce, their parents, our communities and the State. Vaccinations are our way out of this pandemic, she concluded.

Dr. Cohen also wore a double mask at an event in January 2021, and even posted a photo of herself wearing a mask with Dr. Fauci's picture on it.

Mr. Speaker, while this is not an appointment that will be subject to a vote in either House, I would simply encourage President Biden to acknowledge the lack of trust that exists right now in many parts of this country, with even Mark Zuckerberg saying that we had public health decisions that undermined public trust, and to instead appoint a CDC Director who will actually adhere to science, who will adhere to norms, and who will not take us down this road ever again.

Mr. Speaker, I yield back the balance of my time.

□ 2100

HONORING THE LIVES OF TWO GREAT MISSOURIANS

The SPEAKER pro tempore. Under the Speaker's announced policy of January 9, 2023, the gentleman from Missouri (Mr. BURLISON) is recognized for the remainder of the hour as the designee of the majority leader.

Mr. BURLISON. Mr. Speaker, I rise today to honor the lives of two great Missourians who burned brightly, but sadly, their lives were cut short.

The first public servant from Missouri is William Duston. William Thomas Duston—his nickname was ''Dub''—was a father, a public servant, and a Taney County community leader.

Dub was a well-educated man. He earned degrees from Middle Tennessee State and James Madison and a law degree from American University.

Upon finishing his education, Dub started a life of public service here as a legislative assistant to then-Senator John Ashcroft, a legend, until Dub returned home to Branson.

He subsequently became Branson's city prosecutor in 2006 before becoming city attorney, a role that he held until being elected the Taney County prosecuting attorney in 2018.

Dub had many jobs in his life, but his favorite was being a dad. He loved spending time with his wife and daughters. He loved cooking, and he loved restoring Ford cars.

Dub is survived by his wife, Charlie; his daughters, Shiloh and Raleigh; his aunts, his cousins, and extended family; and the Young family.

On behalf of southwest Missouri, I join Taney County and our community in honoring his life and lasting impact.

The second great Missourian is Ron Richard. Ron Richard was a father, grandfather, local businessman, and dedicated public servant to the city of Joplin and all of Missouri.

Ron started out his life owning and operating bowling alleys before entering a life of public service. During his three decades of public service, he served as a councilmember and then as the mayor of Joplin.

He then served as a State representative and was elected by his colleagues to be speaker of the Missouri House. Eventually, he served in the State senate, where he was then elected by his colleagues to be the president pro tem of the Missouri Senate.

In fact, Mr. Speaker, Ron Richard is the only person in Missouri history to serve as the leader of both chambers, the house and the senate, and only the fifth person in our Nation's history to have done so.

His career of service did not end with his retirement from the legislature. He was appointed by Missouri Governor Mike Parson to the Missouri Southern State University board of governors, a

position that he held at the time of his death. He also served on the board of the Missouri Higher Education Savings Program and continued to be active in local and State politics.

Beyond the titles and the accolades, he was a mentor and a friend to all who knew him, including me.

Ron is survived by his wife, Patty; his children, Kara and Chad; his grandchildren; and siblings and numerous family members who loved him.

It is an honor and privilege to have known him and to have had him as a constituent, as well. He exhibited a life of service, and we mourn his untimely death. Our prayers are with his wife, Patty, and the rest of his family and friends.

I will say that my life in public service began as a freshman, green, wet behind the ears, and Ron was my speaker. He was my leader. While being speaker wasn't the last role that he had—he was able to be the president of the senate—to me, he was always my speaker.

Missouri lost a good one.

Mr. Speaker, I yield back the balance of my time.

ISSUES OF THE DAY

The SPEAKER pro tempore (Mr. DUARTE). Under the Speaker's announced policy of January 9, 2023, the Chair recognizes the gentleman from Wisconsin (Mr. GROTHMAN) for 30 minutes.

Mr. GROTHMAN. Mr. Speaker, we go home every weekend. In June, when we go home to Wisconsin, what do we think of? What is going on in June? June is Dairy Month in Wisconsin. It is Dairy Month around the whole country.

Of course, last weekend, I spent Dairy Month at Breakfast on the Farm in Winnebago County and Breakfast on the Farm in Manitowoc County, having milk and all sorts of different cheeses.

Whether you like Colby or provolone, cheddar or mozzarella, whether you like your milk pasteurized or raw, whole or 2 percent, whether you like cream cheese or just plain cream, Wisconsin is America's Dairyland, and everybody has to remember, June is Dairy Month.

Now, on to our next topic. I have just been reading about a KGB defector. What he wrote should be required reading for all Congressmen and all young children. His name, he has since died, is Yuri Bezmenov. He was a Soviet defector in the 1980s.

When he defected—he defected to China—he gave an interview about the KGB. He said things that I think are far different than what the average American thinks about the KGB.

He pointed out that about 85 percent of the KGB employees were not spies. They were not going around looking for nuclear secrets or finding out more about our military. They were wide out in the open. They were engaging in psychological warfare, subversion to destroy the American psyche.

He pointed out that what they do is out in the open, if only the press would pay attention. Well, you can see he was a newcomer to America, as he thought the press might pay attention.

He pointed out that, at the time, people might think we were at peace, but in fact, we were at war. It was a war, psychological warfare.

Nikita Khrushchev said the same thing. He felt we would destroy America from within. It would not be a military attack that would destroy America. It would be America losing confidence in itself.

There are a variety of ways in which the United States is, in my mind, in danger. Last week, we talked about the huge deficit, and President Biden, through a variety of bills last year, certainly put the value of the dollar at risk.

You can say we are in danger because we are losing the value of the family. Of course, John Adams said that our Constitution is built for a moral and religious people, totally unfit for any other kind.

We have a situation here in which a group called Black Lives Matter, which had a lot to do with the Democrats maintaining their majority in 2020, Black Lives Matter was opposed to the traditional nuclear family. Of course, they have a lot of allies here in Congress who presumably didn't object to that.

That is another way we could tear down America, through our growing welfare state, having more and more people without the psychological background of a family.

We certainly have a problem at the southern border. No normal country could survive unlimited immigration. We see two things going on down there. We see over 200,000 people a month streaming across the border, and we also see, compared to past administrations, even people who break the law are not deported.

□ 2110

You could say that is another way we are being destroyed from within. It is not a military attack, but it is over 200,000 people who have not been trained how to become Americans, who have not had drilled into them the freedoms that we should respect and that we are a great country because our great Constitution is supposed to have a limited government, guarantee us a limited government, and we are supposed to be self-reliant. That is certainly a problem.

We have the bizarre transgender movement. I ran into a gal the other day who had literal surgery taking away some of her organs at 15 years old and puberty blockers. That is another way to completely try to blend the difference of the sexes, which would be another way to destroy society.

What I am going to focus on tonight is the Biden obsession with racism. I think if there is one issue that Joe Biden seems most obsessed over, it is this idea that supposedly in the United States we are a racist country. He brought it up four times in his inaugural speech and talked about white privilege once. This year, in his State of the Union speech, again Joe Biden talked about the racist police and if you are a person of color, you have to tell your children to watch out for the racist police. Obviously, this is an important message from Joe Biden.

He has certainly acted on it, as well. Right now, his Department of Labor nominee—she may make it; she may not—claimed in the past that we are a society built on white privilege, kind of this bizarre hatred of White people that I thought was merely in academia, but Joe Biden decided to try to appoint someone head of the Department of Labor who felt that way. I sure hope the Senate rejects her.

He is trying to appoint General Charles Q. Brown to be head of the Joint Chiefs. He right off the bat said we have too many White officers. He wants to restrict the number of White officers in the military to 43 percent. In other words, he doesn't want qualified White people becoming officers, because he has got some psychological problem there. I think we have to pay attention to that sort of thing when it comes to the Biden administration.

This is not limited to President Biden. Not long after he took office, both Senator DUCKWORTH of Illinois and Senator HIRONO of Hawaii threatened Joe Biden saying they did not want any more White men, that they were not going to vote to confirm any more White men in his administration. He met with them. They backed off that to a degree. I should say, he shouldn't appoint White men unless they are gay, which gets back to this kind of obsession with breaking away with the traditional family that we sadly have among the Democratic Party right now.

In addition to that, President Biden wants in his budget to have new equity action teams in all of our government agencies: the Department of the Interior, the Department of Justice. These equity action teams presumably will enforce the type of things that Senators DUCKWORTH and HIRONO want. They want to look at people's race before anybody gets hired. They want to look at somebody's race before they get a government grant. I think it is something that the American public is not discussing anywhere nearly as much as they should.

It is kind of particularly ridiculous, because, of course, you are never probably going to have a country in which more immigrants, who have different ethnicity than the native born, have succeeded so much and are so accepted. If you look around, the most successful ethnic group in America today are Indian Americans. You look at other wildly successful groups: Filipino, Chinese, Japanese, Korean, Cuban. Thomas Sowell wrote 40 years ago—I can't vouch whether it is today or not—but

by the second generation, immigrants from the Caribbean of African descent outperform the average American.

At a time when the overwhelming evidence is that racism has very little role in America, Joe Biden is trying to elevate the potentially hard feelings by doing all he can by not treating people equally and looking at people racially.

Now, I think we should have a discussion over this, and the discussion does not necessarily have to be in Congress, but it should be here, as well. I think the discussion should be in periodicals, online, as people debate what the answers to various questions are.

First of all, how long should this go on? Affirmative action—in other words, preferences based on race or based on sex, as well as preferences for women—have been going on since 1965. We have been going on with this thing 58 years. I have a feeling when Lyndon Johnson really kicked it off in earnest—there was a more mild policy under President Kennedy—when it was kicked off by President Johnson, I don't think even he would have dreamed that this would have been going on for 57 years. The question is, should there be a time when it ends.

When we give people preferences or identify people by their ethnic group, what defines somebody's ethnic group? Right now, we identify or put on the government forms African American, Latin American, Asian Pacific Islander, Native American. What makes up a person in these groups?

Right now you self-identify. In the extreme case of ELIZABETH WARREN, who was something like a 64th or a 128th Native American, she felt that was enough that she should be a Native American. I think she is relatively rare. I don't think a lot of Americans would do that, but apparently it is legal. It was a way for her to become a professor at Harvard Law School. But what should be the cutoff? A half a percent? A quarter a percent? One-eighth?

On the face of it, it seems a little bit strange, because a lot of these people you would never even guess what ethnicity they are, but that is the way the system works nowadays. We do have DNA tests nowadays. I think we should put some sort of standards as to who gets preferences.

Then where you come from. Right now, if you are somebody whose ancestry was in Spain and you come to the United States, you are considered a European, but if your ancestry is Spain and your ancestors spent three generations in Cuba, you are considered an ethnic minority. To me, that seems a little bit silly. I am not sure what the difference is.

Maybe the person from Spain just came here right now and the person from Cuba, one-quarter Cuban, came here 50 years ago. Does this make any sense that when you fill out the forms or see who is going to get the government contract or who is going to get into Harvard Law School, that the person from Cuba is treated different than the person from Spain? If we have someone from Italy or somebody who was of Italian descent but spent three generations in Argentina, should that person be given preference? I think that is something we should have a public discussion over.

Should you have to be from America? Right now, the way these programs work, if you show up, if you are not even a citizen, you can get preferences on the form.

You have an example right now, the Vice President's own dad who came here from Jamaica. Originally, at the time this affirmative action kicked in, I thought it was a little bit to make up for slavery or make up for Jim Crow. Well, somebody like the Vice President's dad, he wasn't mistreated in America. He wasn't in America at all. He came here for the land of opportunity, came here to become a professor at Stanford University. Is that fair?

When we try to identify different groups as somebody who really never suffered in the United States at all, because they are a recent immigrant, should they be getting these preferences? I think that is something that should be talked about. I don't know.

Should there be a wealth component? We are supposedly helping the underserved communities, but the way the programs work today and the different areas that they pick out—I think it is government employment, employment in businesses that do business with the government, government contractors, if you have a business, and admissions to universities.

□ 2120

Should there be a wealth component? If I am the son of a multi-multimillionaire who is a member of a favored group, do I get preferences?

It kind of seems wrong to say I am an underserved group, but that is the way it works today, which is typical, and we will come back in a second to what Thomas Sowell says about affirmative action.

He wrote a book on the topic. Usually it benefits the well-off people, as things that come up from the progressive background usually do.

Should there be some familiarity with your background? I mean, if I am going to claim to get preferences because my ancestors came from Peru, should I have to know something about Peru?

Somebody that doesn't even know Spanish, has spent generations here, never lived in a Spanish country, should I get preferences there? Should that have something to do with this?

Are there jobs that should be exempt from preferences where it is entirely based on merit? One of the things that is going on in America today is a lot of medical schools are saying you don't have to take the MCAT test.

Now, when I was younger, we usually associated doctors with the ones that did the best on the test because if you were going to be a doctor, it was a matter of life and death. We wanted to take the smartest person no matter what.

Now we have medical schools saying we don't want to look at any test to determine your intelligence. We want to base your admission on things like what you say on an essay or how many groups you volunteered for, that sort of thing.

I think we should have that discussion. Maybe we should have preferences for certain jobs like college professor where you can say it is not a matter of life and death if we have somebody who is not as good, but we should make sure we always get the better people for the medical field or for dentistry or for airline pilots or air traffic controllers.

Should we say, well, we can afford to have people that aren't good air traffic controllers because what is the worst thing that could happen?

I think that is another question that we should be asking right now because the Biden administration is clearly walking down this path.

That is why they have these what we are referring to as equity action teams. We want to know exactly what standards the equity action teams are using.

I had a fellow come up to me a few years ago whose son worked in one of our Federal agencies, and he loved the job. He went to college for the job.

He was told after 9 or 10 years why he was not being promoted. He was told, you are a White guy who is not a veteran. We give preferences to veterans too.

Is that fair? If they are going to continue down that path, shouldn't we at least make it public so this guy wouldn't have gone to school to learn about a field that he wanted to excel in, only to be told 10 years later that he is a White guy, he is not a veteran, too bad? I think that is something that ought to be discussed before we hurt any other people.

In any event, I think this is a topic to look at. I think it is certainly one way to cause hard feelings in America.

I have talked about Thomas Sowell who wrote a book dealing with affirmative action about 40 years ago now. He pointed out that other countries that went down this path—America's not all the way down the path—but have the same experiences as America.

First of all, it begins, and it is supposed to be temporary; 57 years later, it is still here. It is supposed to be restricted to maybe one or two ethnic groups, but here in America, first people of African decent, and then people who never were mistreated in the United States come here and are automatically given preferences based on where their ancestors were born centuries ago.

We begin to add other groups. I make another point about why this is relevant, because Joe Biden is also trying to add another preference group.

He wants to add Middle Eastern and North African people. Right now, I rattled off all the different backgrounds

that we are supposed to be keeping track of, but we don't keep track of people from Algeria or Syria or Iraq, and Joe Biden wants to do that, as well.

I think we should have a discussion there. There are not a lot of people in this country with backgrounds from those countries, but there are more and more people coming here.

Joe Biden apparently says that if you are from America, and you apply for a job, and we have an immigrant from Algeria or an immigrant from Iraq, people like that should be given preferences.

Well, I think maybe that is something we should talk about here a little bit and see what the appropriate course of action is.

Whatever the course of action is, it should be after a thorough public discussion, not just something, you know, pushed in under the table because it is a sensitive topic.

In any event, I would ask the press to look into this situation. We want to find out what rules President Biden's equity action teams are operating under.

We want to have a public discussion. Is it right to add North African and Middle Easterners to this topic?

Should we give preferences to people who have no background of discrimination in America, people who just show up and immediately get preferences?

I obviously have my strong opinions, but I would like to hear what the pundit class, that so many of us read, has to say.

I would like to see maybe sometime the Committee on Education and the Workforce or the Judiciary Committee look into this and see what the different viewpoints are because it affects a lot of Americans. We are kind of moving down this train without having a public discussion.

Those are my comments on that topic. I think it is a topic more people ought to look into. I think they ought to review how some people want to destroy America from within.

I think they ought to review what happened in other countries as they went down the affirmative action path, be it Nigeria, be it Sri Lanka, be it Malaysia or Singapore, and I think a lot of times it doesn't work out very well.

It is something we ought to have a discussion about, and nobody else is talking about it around here, so we throw that open for discussion.

Mr. Speaker, I yield back the balance of my time.

ENGAGING IN DEBATE

The SPEAKER pro tempore. Under the Speaker's announced policy of January 9, 2023, the Chair recognizes the gentleman from Texas (Mr. ROY) for 30 minutes.

Mr. ROY. Mr. Speaker, I thank my friend from Wisconsin who frequently comes down to the floor and engages and uses the Special Orders, as we call them. It is great to see him down here.

I often state I wish we would have more engaged debate on the floor of the House, actual debate, not just the kind of fake debate where we go back and forth for an hour equally divided over a bill that we pretty much predetermined will be passed on a partisan basis but actually pick an issue and engage in thoughtful debate back and forth about a topic.

I would encourage any of my colleagues who are willing to do so on, frankly, either side of the aisle where we have reasonable disagreements that we could engage and try to deal with.

The fact is for too long, in this country, in the House of Representatives, we have been dealing with a uniparty.

We have been dealing with essentially not a lot of difference in terms of the total output of what this town does.

We have strong disagreement here on the floor. We pass bills. We get them passed that nobody on that side of the aisle is going to vote for and vice versa, knowing they are going to go to the Senate and die or knowing they are going to get to the White House and not be signed or knowing they are not going to have 60 votes in the Senate.

When push comes to shove on the things that matter, when we come to a spending bill, it is all the same. It ends up being effectively the same. It is the only explanation for being $32 trillion in debt.

Now, by virtue of the bipartisan effort of this body, the bipartisan effort of the Senate, the signature of the President, we now know we will be roughly $36 trillion in debt in January of 2025.

We know this, and we did it. We embraced it, but we didn't materially change the trajectory. Yeah, we dented it a tiny fraction.

We had a spending freeze for 2 years that is a part of a deal that isn't even yet consummated because we haven't done the appropriations process.

We patted ourselves on the back—some of us did—for oh, well, we had to get this done because we might default.

Every time we talk about this effort, it is that we must raise the debt ceiling, or we are going to get to a place where we are going to default on the debt.

The fact is, it is just simply not true. We were never going to default on the debt. The President of the United States was never going to choose in terms of the prioritization of payments to end up in a place where we were not going to make the payments on the interest on the bonds. That is just a fact.

□ 2130

We play this game. To raise the debt ceiling and increase the borrowing level, we say, wait, maybe we should get some changes for that.

We get up to the date, and what happens? People say we are going to default. All of Wall Street calls all the folks and say, well, you are going to do that, aren't you? Everybody hops, both sides of the aisle.

Here we sit, yet again, going from $32 trillion to now, predictably, $36 trillion in January 2025. As sure as the Sun coming up, the House of Representatives, the Senate, and the President just agreed to mortgage your children's future again because that is what we do. That is what the House of Representatives does.

The point here is, as I said, we were never going to default on our debt. What we are going to do with almost the same amount of certainty as what I just described is default on the American Dream. That is where we are headed, a full-scale, unequivocal default on the American Dream.

This is all led by the people who are supposed to be representing the American people in this great Republic but who are barreling us right down the path, if we are not there already, to default on the American Dream.

The hardworking American family right now, today, is sitting out there in this country unable to afford groceries, unable to afford gas, unable to afford housing, and unable to afford healthcare.

I talked to staffers in this building in their twenties, and they looked at me and asked: How am I ever going to afford to buy a house?

They genuinely mean it. They don't know.

The hardworking plumber in the district I represent in central Texas who never took out a student loan is now being forced to pay for his neighbor's master's degree.

The veteran is paying for some liberal arts major to get the same student loan benefits he earned by risking his life for America.

The nurse wants to save lives without a Federal bureaucrat telling her she needs to take a needle in her arm to keep her job.

The blue-collar workers are watching their way of life sacrificed to the climate cult and billions of corporate crony tax subsidies in the so-called Inflation Reduction Act, enriching elite, wealthy investors—true—and corporations—true—all while empowering the Chinese Communist Party, weakening our own grid, and undermining our own national security—all true.

The rancher right now in Texas who is putting diesel in his truck is forced to subsidize a tech worker making six figures to buy a Tesla hundreds of miles away. This body just encouraged it.

Minority and poor taxpayers are trying to make ends meet but have expanded IRS audits, three to five times more than other Americans.

The fact is, we are on the verge of defaulting on the American Dream.

It is not enough to play politics and just pass something and then try to point the finger at the other party. Well, we just got this, and it is better. That ain't working. It is simply not working.

We had a rather raucous meeting in our Republican Conference this morning. I make it a practice not to talk

about what we do in private meetings. Some of my colleagues do not adhere to that same standard or rule. It tends to leak like a sieve. A lot of the conversations we had in that private meeting are not fully private now.

To my colleagues on both sides of the aisle, but particularly my colleagues on this side of the aisle, my Republican colleagues, let me be very clear: I will be happy to engage personally anytime, anywhere, on any of these issues. We can have disagreements, and we can reasonably disagree. I am going to say emphatically right here in front of God, in front of all the people I represent in this hallowed Chamber, I don't give a rat's rear end what you think compared to what my constituents think. I don't.

My job is to care what my constituents think. My job is to care about people on the airplane or down the street who pull me aside every day and thank me and thank a few of my colleagues for daring to stand up against the uniparty and an institution that is trampling their way of life. I will stand with them.

I will stand with the American people sick of having the American Dream pulled out from under them. I will stand with them.

I will be happy to work with my colleagues. I love and respect many of my colleagues. I do not answer to my colleagues. I answer to the people I represent, and I am going to darn well stand up and defend them.

I am going to fight to stop spending money we don't have. I am going to fight to secure the border of the United States. I am going to fight for all the people I just described who are losing their ability to afford a home, afford groceries, to be able to carry out their livelihood, their job, without being forced to take a needle.

I am going to fight for the guy trying to put diesel in his truck and not have to subsidize a Tesla. I am going to fight for people to have a stable grid. I am going to fight for the national security of this country. I am going to fight to stop China from encroaching on this country.

I am not going to give lip service for ads to go win political campaigns when you did nothing. I am not going to do that. I am not going to try to sell the American people on something that didn't occur.

That is what we do in this body all the time. It is time that stops. We have a duty—yes, a bipartisan duty.

If any one of my colleagues on the other side of the aisle would actually like to join the party of standing up for the American people and standing up in defense of this country instead of a radical leftist ideology that results in a pride flag being hung at the same level as the United States flag on the front of the White House and people parading around topless in front of the White House, the people's house for their President—have we no respect? Does the flag of the United States mean nothing?

It is the flag of the United States. Men and women have died for that flag, and they put that flag up to the side, flanking a pride flag on the front of the United States President's house. It is despicable. They did that right on the eve of Flag Day.

Tomorrow is Flag Day. The flag of the United States stands for something so much bigger than any of these people running around pretending like they are standing up for, oh, we can't have established religion, and we are for the separation of church and state. Yet, their religion is represented by that pride flag on the front of the White House. It is a religion, just like the cult of climate fetishism is a religion every bit as much as any religion.

How many lives have been lost with that flag on a patch on the arm of one of our men and women who have fought for this country, and that is what they do? I am at a loss for words. I really am.

□ 2140

Mr. Speaker, I am going to read one thing here, and then I am going to yield to my friend from Pennsylvania. It is going to take me a couple of minutes.

One of my favorite songs is ''The Ragged Old Flag'' by Johnny Cash. I will not do this nearly as cool as Johnny Cash does.

It goes like this:

I walked through a county courthouse square.
On a park bench, an old man was sitting there.
I said, ''Your old courthouse is kinda run-down.''
He said, ''Naw, it'll do for our little town.''
I said, ''Your old flagpole has leaned a little bit,
and that's a Ragged Old Flag you got hanging on it.''
He said, ''Have a seat,'' and I sat down.
''Is this the first time you've been to our little town?''
I said, ''I think it is.''
He said, ''I don't like to brag, but we're kinda proud of
that Ragged Old Flag.''
''You see, we got a little hole in that flag there
when Washington took it across the Delaware.
And it got powder-burned the night Francis Scott Key sat
watching it writing 'Oh, Say Can You See.'
And it got a rip in New Orleans with Packingham and
Jackson tuggin' at its seams.''
''And it almost fell at the Alamo beside the Texas flag,
but she waved on through.
She got cut with a sword at Chancellorsville
and she got cut again at Shiloh Hill.
There was Robert E. Lee, Beauregard and Bragg,
and the south wind blew hard on that Ragged Old Flag.''
''On Flanders Field in World War I
she got a big hole from a Bertha gun.
She turned blood red in World War II.
She hung limp and low by the time it was through.
She was in Korea and Vietnam.
she went where she was sent by her Uncle Sam.''
''She waved from our ships upon the briny foam,
and now they've about quit waving her back here at home.
In her own good land here she's been abused—she's been burned,
dishonored, denied and refused.''
''And the government for which she stands is scandalized
throughout the land.
And she's getting threadbare and wearing thin,
but she's in good shape, for the shape she's in.
'Cause she's been through the fire before
and I believe she can take a whole lot more.''
''So we raise her up every morning
take her down every night.
We don't let her touch the ground and we fold her up right.
On second thought, I do like to brag,
'cause I'm mighty proud of that Ragged Old Flag.''

On tomorrow, Flag Day, I hope we will honor the American flag. I know that my friend from Pennsylvania is proud to be a Member of Congress, but certainly I would think more proud to have worn the uniform of the United States military and devote his life in service to his country.

Mr. Speaker, I yield to the gentleman from Pennsylvania (Mr. PERRY).

Mr. PERRY. Mr. Speaker, I thank my friend, the gentleman from Texas, for bringing up this subject.

Each one of us feels maybe differently. I don't know whether people know this or not, but there is actually a United States Flag Code. There is a decorum that we are supposed to follow when displaying the flag: how you wear it, if you wear it. The flag is not supposed to be festooned. The flag is not clothing.

The flag, the standard of America, the standard of freedom, and the standard of liberty recognized around the globe, is second to no other flag at all. To have it fly flanking the Pride flag on the White House—my friend said he was at a loss for words. I too am.

I communicate home every day. Just this morning, I talked to my wife. I let her know I love her. We get on with our day, and we reconnect in the evening.

This morning, I reminded my children—not thinking about what was going to happen at the White House, having no clue—but I reminded my children that tomorrow is Flag Day, make sure you get up early, get the flag, and fly the flag in the front of our House because it is important that America and my community know that their Representative respects what our country is about and its standard.

It is a new low every single day. My friend from Texas has talked about it as appropriately and as particularly as anybody can, the destruction of this country, evidenced in so many different ways. Every day you wake up, you turn on the TV, you open a newspaper, you listen to the radio, or you talk to somebody, and you say to yourself: I can't believe this is happening in America.

Every day you think we have reached the apex of the nadir, the lowest of the low. Every day the left takes us to a

new place of a new low of a new disrespect of a new destruction of the country that we love.

So I am very, very proud to stand with my friend, the gentleman from Texas, to say that there is an urgency to saving and to restoring this Republic.

We always stand up speaking of the flag and pledge allegiance to the flag, and we say: ''to the Republic for which it stands.''

Most people, I would guarantee you, Mr. Speaker, don't know what a republic is. I am going to school you really quickly here: A republic is a place where the individual citizen is supreme and is sovereign, and their views, represented by the people they elect, are supreme and sovereign.

I ask you, Mr. Speaker, in a country where there is some agency—where no one was elected and there is no accountability—that says: You are not going to be able to drive the car you choose and you are not going to be able to buy a stove to cook your family meal unless the government approves, is that a republic?

I would argue that it is not. I would argue that it is not, unfortunately.

So I am proud, I am happy, and I am gratified to stand here in the people's House with my good friend from Texas and say that I, too, understand the urgency. I too, will not accept any more. I, too, will withstand the ire of some of my colleagues here if it means defending the people at home who sent me here to defend them from the tyranny that emanates from this town, this building, and this institution by the uniparty or by the establishment or whatever you want to call them that feathers their nest with the hard-earned dollars of the people whom I represent at home who can't afford their groceries, a new house, a new car, or to send their kids to school.

I am sick of it. I'm going to do everything I can with the moments that I have every single time I have a moment so that I don't have to look back and say: I wish I would have.

I am not going to do that.

Every single moment of every day where there is fight in me and there is a fight to be had, I am going to be in it supporting those folks and defending those folks back home from Pennsylvania's 10th district and, quite honestly and quite literally, across the great United States of America.

I will stand by.

Mr. ROY. Mr. Speaker, I thank my friend from Pennsylvania.

Again, I want to reiterate on this eve of Flag Day my appreciation for his service to this country wearing the uniform and in Congress. He understands what citizenship means.

I am deeply appreciative of him for that. I am deeply appreciative of his friendship. I am deeply appreciative of the friendships I have here in this Congress, my colleagues whom I am proud to serve with across the spectrum, but particularly those colleagues who are willing to stand in the fire when it is needed.

We don't have much time left, Mr. Speaker. I don't say that lightly. You cannot look at this country with objective and clear eyes and believe that we are on the right path. We are not. We are so far off the right path that it is going to take a massive course correction and trajectory change to save this great Republic for our kids and grandkids.

That is not hyperbole. Our children and our grandchildren are on the precipice inheriting now—booked, as I said before—$36 trillion of debt guaranteed, give or take a few billion, in January of 2025.

I am just going to be honest. To be lectured by some of my colleagues this morning, to be lectured about my motivations for why I am here on the floor of the House and standing up and speaking right now and for it to be alleged that it is for clicks or for money, the only thing that would have made it more ironic is if that meeting had occurred in the NRCC.

The fact is it is our job right now to stand up and defend the country and not wait for some time in the future.

I don't want to hear another thing about, Well, we will do it when. We will do it when we have the Senate. We will do it when we have 60 in the Senate. We will do it when we have a bigger majority. We will do it when we have someone in the White House.

Why don't we do it right now? Right now?

Let's have these debates. Let's have these fights out on the floor of the House right now, because I can promise you, the debt deal that we just passed ain't going to get the job done. It is not, and everybody here knows it.

□ 2150

Yet, they are going to go out and sell it as if it is something that it isn't; thinks, well, that is water under the bridge. Well, that is a hell of a lot of water under the bridge. There is $4 trillion worth of water under that bridge.

Now we have got to go to work to pass appropriations bills. Will those appropriations bills turn the trajectory of this country away from the iceberg? That is my question for my colleagues.

We should appropriate to the FY22 levels that we have been talking about since last December, that we told the American people we were going to do.

We should appropriate the Federal bureaucracy back to pre-COVID levels because nobody in America thinks we should continue to spend at post-COVID levels. I am going to stand on that. I am going to keep fighting for that. I believe the American people want us to do that. I believe they want the bureaucracy to be shrunk. I believe they want their country back. I believe they want their lives back. I believe they don't want any more bureaucrats interfering with their freedoms, and I think we should stand united, yes, united in defense of the American people in fighting for their freedom. That is what I believe we should do.

Does my friend from Pennsylvania have anything else he wishes to add?

Mr. PERRY. Well, as you know, I am in the same position as you with the bill. We never thought—look, we got together, this House, Republicans stood united, passed the Limit, Save, Grow Act. We stood united, and it was supposed to get us in the room.

We knew it wasn't going to be perfect. We always knew that. We never expected to get everything we wanted. We understand that President Biden didn't want any of it. We understand that CHUCK SCHUMER couldn't pass any bills over there and wasn't going to agree with any of it, but we thought we would get something from it, something.

It was $1.5 trillion for a date certain, a number certain for said policy. We lost on both ends of the deal. It is $4 trillion, uncapped spending, and none of the policies. The REINS Act, to stop the unbridled regulatory state, that is not there. Work requirements that would actually save us money, not saving us money. Rescissions, where we took money and were going to send it back to the Treasury, that didn't happen. We rescinded it, but we are going to spend it. That is not saving money.

Mr. ROY. Mr. Speaker, I thank my friend from Pennsylvania. I am going to close with this: An opinion in the United States District Court for the Northern District of Texas, Fort Worth Division.

''Defendants, illegal aliens, pleaded guilty to conspiracy to transport and harbor illegal aliens. The sentencing information shows that on behalf of the Juarez cartel, defendants participated in an alien smuggling conspiracy. Their participation included operating an illegal alien stash house in Fort Worth, Texas, and transporting those who had been smuggled into the United States to their desired destination upon full payment. The smuggling organization charged $10,000 to smuggle an adult illegal alien into the United States and between $12,000–$14,000 to smuggle a child illegal alien.''

I am going to stop there. More money to smuggle a child illegal alien.

''Law enforcement discovered the Fort Worth portion of this smuggling operation after a man in Baltimore, Maryland (the husband) paid the organization to have his wife and 2-year-old daughter smuggled into the United States after they arrived in Mexico from Honduras. The husband contends that he paid the smuggling organization $1,000 to smuggle his wife and child into the United States. They were then transported to the stash house in Fort Worth, where the husband contends a member of the smuggling organization demanded he pay an additional $23,000 before his family would be released. The member also told the husband, 'they would do things to his daughter he [would] not like' if he did not make the payment.''

It goes on to describe the absurdities of cartels in active engagement in this Republic, in this country, and we are doing nothing about it. The judge closes out: ''The guidelines—the sentencing guidelines—do not adequately take into account these facts when recommending an appropriate prison range. The current prison guideline calculation of 51–63 months fails to meet the requirement that any sentence provide adequate deterrence and just punishment. Accordingly, the parties are provided notice that the court intends to vary upward from the applicable guideline range so that they may address this at the time of sentencing.''

My point is, a Federal judge is having to step in to do the work that we are supposed to do here, to stand up and defend this country, not just for ourselves, but for the people being abused in our name. These are human beings.

Texans are getting absolutely ravaged in south Texas, ranches getting overrun, people dying from fentanyl, and here, migrants getting abused in the false name of compassion. Literally, thousands of dollars to have to pay to get out from a stash house.

As we head into Flag Day tomorrow, and we think about what that flag represents for people around the world seeking to come here, is that what it is?

Is it to be in a stash house where a little girl is being threatened?

Why won't we do anything about it?

Why should we appropriate money to a Department of Homeland Security that refuses to secure the homeland?

We have a job. We have a job to represent the people of the United States and to actually do what we are supposed to do to defend the United States and ensure that we have a sovereign nation. We should think about that tomorrow as we head into Flag Day.

While the White House flouts the United States flag, we should honor it. We should honor it right here, and we should honor it, remembering that the flag consists of 13 horizontal stripes, 7 red alternating with 6 white. We know that the stripes represent the original 13 Colonies; the stars, the 50 States of the Union.

A lot of people don't know, though, that the colors of the flag are symbolic as well. Red symbolizes hardiness and valor, white symbolizes purity and innocence, and blue represents vigilance, perseverance, and justice.

Are we going to stand up for those tomorrow?

Are we going to stand up those for the rest of this Congress or are we going to continue to punt for some future date when everything magically works out politically so that you can finally stand up and do what you know is right today?

Mr. Speaker, I yield back the balance of my time.

ADJOURNMENT

Mr. ROY. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 9 o'clock and 57 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, June 14, 2023, at 10 a.m. for morning-hour debate.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

EC–1188. A letter from the President and Chair, Board of Directors, Export-Import Bank of the United States, transmitting a statement with respect to exports, pursuant to 12 U.S.C. 635(b)(3); July 31, 1945, ch. 341, Sec. 2 (as added by Public Law 102-266, Sec. 102); (106 Stat. 95); to the Committee on Financial Services.

EC–1189. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the Fiscal Year 2022 Ryan White HIV/AIDS Program Parts A and B Supplemental Awards Report to Congress, pursuant to 42 U.S.C. 300ff-13(e); July 1, 1944, ch. 373, title XXVI, Sec. 2603(e) (as amended by Public Law 109-415, Sec. 104(e)); (120 Stat. 2776) and 42 U.S.C. 300ff-29a(d); July 1, 1944, ch. 373, title XXVI, Sec. 2620(d) (as amended by Public Law 109-415, Sec. 205(2)); (120 Stat. 2798); to the Committee on Energy and Commerce.

EC–1190. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the Substance Abuse and Mental Health Services Administration Treatment, Recovery, and Workforce Support Grants, Preliminary Report to Congress for FY 2022, pursuant to 42 U.S.C. 290ee-8(j)(1); Public Law 115-271, Sec. 7183(j)(1); (132 Stat. 4072); to the Committee on Energy and Commerce.

EC–1191. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the Tick-Borne Disease Working Group 2022 Report to Congress, pursuant to the 21st Century Cures Act of 2016, Sec. 2062(c); to the Committee on Energy and Commerce.

EC–1192. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the Scarlett's Sunshine on Sudden Unexpected Death Act Report to Congress, pursuant to Sec. 1121 of the Public Health Service Act; to the Committee on Energy and Commerce.

EC–1193. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the Department's 2021 Progress Report on Understanding the Long-Term Health Effects of Living Organ Donation, pursuant to Sec. 3 of the Charlie W. Norwood Living Organ Donation Act, P.L. 110-144, codified at 42 U.S.C. Sec. 273b; to the Committee on Energy and Commerce.

EC–1194. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the National Health Service Corps Report to Congress for the Year 2021, pursuant to 42 U.S.C. 254i; July 1, 1944, ch. 373, title III, Sec. 336A (as amended by Public Law 107-251, Sec. 307(b)); (116 Stat. 1649); to the Committee on Energy and Commerce.

EC–1195. A letter from the Assistant Secretary of Legislative Affairs, Department of State, transmitting a Congressional Report Transmittal Letter, Department Report Number: 005530, pursuant to Public Law 117-103, div. K, title VII, Sec. 7071; (136 Stat. 682); to the Committee on Foreign Affairs.

EC–1196. A letter from the Assistant Secretary, Bureau of Legislative Affairs, Department of State, transmitting Department Notification Number: DDTC 23-012, pursuant to Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

EC–1197. A letter from the Assistant Secretary of State, Bureau of Legislative Affairs, Department of State, transmitting Department Notification Number: DDTC 22-082, pursuant to Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

EC–1198. A letter from the Assistant Secretary, Bureau of Legislative Affairs, Department of State, transmitting Department Notification Number: DDTC 23-012, pursuant to Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

EC–1199. A letter from the Acting Commissioner, Social Security Administration, transmitting the 2023 Annual Report of the Supplemental Security Income Program, pursuant to 42 U.S.C. 1383f(a); Aug. 14, 1935, ch. 531, title XVIII, Sec. 1875 (as amended by Public Law 104-193, Sec. 231); (110 Stat. 2197); to the Committee on Ways and Means.

EC–1200. A letter from the Secretary, Environmental Protection Agency, transmitting a report to Congress titled ''Implementing IWG Recommendations on Improving the Consultation Process Required Under Sec. 7 of the Endangered Species Act for Pesticide Registration and Registration Review; Progress Report No. 5'', pursuant to Sec. 3(c)(11)(D)(i) of the Federal Insecticide, Fungicide, and Rodenticide Act; jointly to the Committees on Agriculture and Energy and Commerce.

EC–1201. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the Department's report titled ''Annual Report to Congress on the Open Payments Program'' for Fiscal Year 2022, pursuant to 42 U.S.C. 1320a-7h(d)(1); Aug. 14, 1935, ch. 531, title XI, Sec. 1128G (as added by Public Law 111-148, Sec. 6002); (124 Stat. 693); jointly to the Committees on Energy and Commerce and Ways and Means.

EC–1202. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting a report entitled, ''Finalizing Medicare Rules under Section 902 of the Medicare Prescription Drug, Improvement, and Modernization Act of 2003 (MMA) for Calendar Year 2022'', pursuant to 42 U.S.C. 1395hh(a)(3)(D); Public Law 108-173, Sec. 902(a)(1); (117 Stat. 2375); jointly to the Committees on Energy and Commerce and Ways and Means.

EC–1203. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the FY 2021 Medicare and Medicaid Integrity Programs Report to Congress, pursuant to 42 U.S.C. 1395ddd(i)(2); Aug. 14, 1935, ch. 531, title XVIII, Sec. 1893(i)(2) (as amended by Public Law 111-148, Sec. 6402(j)(1)(B)); (124 Stat. 762) and 42 U.S.C. 1396u-6(e)(5); Aug. 14, 1935, ch. 531, Sec. 1936(e)(5) (as added by Public Law 109-171, Sec. 6034(a)(2)); (120 Stat. 76); jointly to the Committees on Energy and Commerce and Ways and Means.

EC–1204. A letter from the Regulations Coordinator, Centers for Medicare and Medicaid Services, Department of Health and Human Services, transmitting the Department's Major final rule — Medicare Program; Treatment of Medicare Part C Days in the Calculation of Hospital's Medicare Disproportionate Patient Percentage [CMS-1739-F] (RIN: 0938-AU24) received June 7, 2023, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); jointly to the Committees on Energy and Commerce and Ways and Means.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. SMITH of Missouri: Committee on Ways and Means. H.R. 1843. A bill to amend the Internal Revenue Code of 1986 to permanently extend the exemption for telehealth services from certain high deductible health plan rules; with an amendment (Rept. 118–109). Referred to the Committee of the Whole House on the state of the Union.

Mr. SMITH of Missouri: Committee on Ways and Means. H.R. 3797. A bill to amend the Internal Revenue Code of 1986 to provide an alternative manner of furnishing certain health insurance coverage statements to individuals; with an amendment (Rept. 118–110). Referred to the Committee of the Whole House on the state of the Union.

Mr. SMITH of Missouri: Committee on Ways and Means. H.R. 3801. A bill to amend the Internal Revenue Code of 1986 to streamline and improve the employer reporting process relating to health insurance coverage and to protect dependent privacy; with an amendment (Rept. 118–111). Referred to the Committee of the Whole House on the state of the Union.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. DAVIS of Illinois:

H.R. 4052. A bill to facilitate efficient investments and financing of infrastructure projects and new job creation through the establishment of a National Infrastructure Bank, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committees on Ways and Means, Transportation and Infrastructure, Financial Services, Education and the Workforce, Natural Resources, and the Budget, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. KUSTER (for herself and Mr. CARTER of Georgia):

H.R. 4053. A bill to provide for the review of the scheduling under the Controlled Substances Act of buprenorphine-naloxone combination products, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. BUDZINSKI (for herself and Mrs. STEEL):

H.R. 4054. A bill to amend the SUPPORT for Patients and Communities Act to reauthorize grants to improve trauma support services and mental health care for children and youth in educational settings; to the Committee on Education and the Workforce.

By Mr. BARR:

H.R. 4055. A bill to amend the Internal Revenue Code of 1986 to exclude interest on loans by depository institutions to qualified opportunity zone businesses from gross income, and for other purposes; to the Committee on Ways and Means.

By Mr. BILIRAKIS (for himself, Ms. CASTOR of Florida, and Ms. CHU):

H.R. 4056. A bill to amend title XIX of the Social Security Act to ensure that medical assistance is available to children in foster care who are placed in a qualified residential treatment program under the Medicaid program; to the Committee on Energy and Commerce.

By Ms. BLUNT ROCHESTER (for herself and Mr. FITZPATRICK):

H.R. 4057. A bill to amend the SUPPORT for Patients and Communities Act to reauthorize surveillance and data collection by the Centers for Disease Control and Prevention for child, youth, and adult trauma; to the Committee on Energy and Commerce.

By Mr. BRECHEEN (for himself, Mr. BIGGS, Ms. LEE of Florida, Mr. GROTHMAN, Mr. CLOUD, and Mr. GALLAGHER):

H.R. 4058. A bill to amend the Food and Nutrition Act of 2008 to require the Secretary to designate food and food products to be made available under the supplemental nutrition assistance program, and for other purposes; to the Committee on Agriculture.

By Mrs. CAMMACK (for herself, Ms. SLOTKIN, Mr. PANETTA, and Mr. MOORE of Alabama):

H.R. 4059. A bill to include phosphate and potash on the final list of critical minerals of the Department of the Interior; to the Committee on Natural Resources.

By Ms. CARAVEO (for herself, Mrs. SYKES, Mrs. HAYES, Mr. CARTER of Louisiana, Ms. MOORE of Wisconsin, Mr. SMITH of Washington, Ms. DELBENE, Ms. NORTON, Mr. CARSON, Mr. PAYNE, Mr. EVANS, Ms. BONAMICI, Ms. TITUS, Ms. GARCIA of Texas, Mrs. WATSON COLEMAN, Ms. ADAMS, and Ms. ESCOBAR):

H.R. 4060. A bill to amend the Fiscal Responsibility Act of 2023 to repeal the sunset of the work requirement exemption applicable to homeless individuals, veterans, and foster care individuals for the purpose of determining eligibility to receive supplemental nutrition assistance program benefits under the Food and Nutrition Act of 2008; to the Committee on Agriculture.

By Mr. CASE (for himself and Ms. TOKUDA):

H.R. 4061. A bill to require the Secretary of Health and Human Services to establish an exposure registry and conduct epidemiological studies to assess health outcomes associated with the Red Hill Incident; to the Committee on Energy and Commerce, and in addition to the Committee on Armed Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CASTEN (for himself, Mr. GREEN of Texas, Mr. NICKEL, Mr. GOTTHEIMER, Mr. SHERMAN, and Mr. TORRES of New York):

H.R. 4062. A bill to amend the Financial Stability Act of 2010 to require certain large banking institutions to have a Chief Risk Officer, and for other purposes; to the Committee on Financial Services.

By Mrs. DINGELL (for herself and Mr. BILIRAKIS):

H.R. 4063. A bill to amend the SUPPORT for Patients and Communities Act to reauthorize a pilot program for public health laboratories to detect fentanyl and other synthetic opioids; to the Committee on Energy and Commerce.

By Mr. GARAMENDI (for himself and Mr. FITZPATRICK):

H.R. 4064. A bill to require that certain aspects of bridge projects be carried out by certified contractors, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mrs. GONZÁLEZ-COLÓN (for herself, Mr. SOTO, Mr. TORRES of New York, and Mr. KELLY of Pennsylvania):

H.R. 4065. A bill to obtain and direct the placement in the Capitol or on the Capitol Grounds of a statue to honor American humanitarian and star athlete Roberto Clemente of Puerto Rico; to the Committee on House Administration.

By Mr. HARDER of California (for himself and Mr. PANETTA):

H.R. 4066. A bill to direct the Secretary of Agriculture to provide additional payments under the environmental quality incentives program for implementation of a nutrient management practice, and for other purposes; to the Committee on Agriculture.

By Mrs. HINSON (for herself, Mr. BISHOP of North Carolina, and Mr. VALADAO):

H.R. 4067. A bill to rescind the executive order relating to the revocation of certain executive orders concerning Federal regulation and to codify certain executive orders; to the Committee on Oversight and Accountability, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. HUFFMAN (for himself, Mr. COHEN, Ms. TITUS, Ms. DELBENE, Mr. MCGOVERN, Mr. CONNOLLY, Mr. BLUMENAUER, and Ms. BONAMICI):

H.R. 4068. A bill to prohibit the use of M-44 devices, commonly known as ''cyanide bombs'', on public land, and for other purposes; to the Committee on Natural Resources, and in addition to the Committee on Agriculture, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. KEAN of New Jersey:

H.R. 4069. A bill to increase observations, understanding, and forecasting of coastal flooding and storm surge events, to address weather observation gaps in highly vulnerable areas, and for other purposes; to the Committee on Science, Space, and Technology.

By Mr. LAMALFA (for himself, Mr. THOMPSON of California, Mr. ROUZER, Mr. HIGGINS of Louisiana, Mr. CARL, Mr. FITZGERALD, and Ms. ROSS):

H.R. 4070. A bill to amend the Internal Revenue Code of 1986 to provide for the exclusion from gross income of amounts received from state-based catastrophe loss mitigation programs; to the Committee on Ways and Means.

By Ms. LEE of California (for herself and Mr. DESAULNIER):

H.R. 4071. A bill to require a professional baseball club to compensate its home community if such club relocates its home field more than 25 miles from its previous location; to the Committee on the Judiciary.

By Mr. LIEU (for himself, Ms. BONAMICI, Ms. STEVENS, Mrs. MCCLELLAN, Mr. CASTEN, Mrs. FOUSHEE, Ms. SALINAS, and Ms. LOFGREN):

H.R. 4072. A bill to direct the Administrator of the Environmental Protection Agency to conduct a measurement-based national methane research pilot study to quantify methane emissions from certain oil and gas infrastructure, and for other purposes; to the Committee on Science, Space, and Technology.

By Mr. MCGARVEY (for himself, Mr. WOMACK, Mr. GUTHRIE, and Mr. BARR):

H.R. 4073. A bill to amend the Harmonized Tariff Schedule of the United States to provide a uniform 8-digit subheading number for all whiskies; to the Committee on Ways and Means.

By Mr. MOSKOWITZ (for himself, Mr. SCHNEIDER, Ms. WASSERMAN SCHULTZ, Mr. CONNOLLY, Mrs. WATSON COLEMAN, Ms. CASTOR of Florida, Mr. PETERS, Mr. ESPAILLAT, Mr. CASTEN, Ms. NORTON, Ms. BALINT, Ms. CLARKE of New York, Ms. CHU, Mr. HUFFMAN, Mr. DAVIS of Illinois, Ms. KELLY of Illinois, Mr. JOHNSON of Georgia, Ms. DELBENE, Ms. MENG, Mr. PAYNE, Ms. CROCKETT, Ms. BLUNT ROCHESTER, and Ms. BROWN):

H.R. 4074. A bill to amend chapter 44 of title 18, United States Code, to prohibit the distribution of 3D printer plans for the printing of firearms, and for other purposes; to the Committee on the Judiciary.

By Mr. NORCROSS:

H.R. 4075. A bill to require the Secretary of Defense report on the domestic content requirements major defense acquisition programs, to establish an enhanced domestic content requirement for certain procurements, and for other purposes; to the Committee on Armed Services.

By Mr. PAPPAS (for himself, Mr. PANETTA, Ms. SALAZAR, Mr. CRENSHAW, Mr. GRAVES of Louisiana, Ms. MACE, Mr. VAN DREW, Mr. WALTZ, Mr. NUNN of Iowa, Mr. FITZPATRICK, Mr. GIMENEZ, Mr. EZELL, Mr. DUNN of Florida, Mr. MOOLENAAR, Mr. LAWLER, Mr. LAMBORN, Mr. MOONEY, Mr. MOLINARO, Mr. KIM of New Jersey, Mr. DAVIS of North Carolina, Mr. CISCOMANI, Mr. ARRINGTON, Mrs. MCCLAIN, Mr. BACON, Mr. GOTTHEIMER, Mr. MOSKOWITZ, Mr. AUCHINCLOSS, Mr. LIEU, Mr. SCHIFF, Ms. TOKUDA, Mr. KILMER, Ms. STEVENS, Ms. BROWNLEY, Mr. SHERMAN, Mr. SORENSEN, Ms. TITUS, Mr. BOYLE of Pennsylvania, Mr. LEVIN, Mrs. TRAHAN, Ms. MENG, Mr. MULLIN, Mr. COHEN, Ms. CRAIG, Mr. FLEISCHMANN, Mr. KEAN of New Jersey, Mr. STEUBE, Mr. TONY GONZALES of Texas, Mr. BILIRAKIS, Mr. GROTHMAN, Mr. BOST, Mr. MILLER of Ohio, Mr. RUTHERFORD, Ms. BROWN, Mr. TURNER, Mr. JOHNSON of South Dakota, Mr. WILSON of South Carolina, and Mr. KUSTOFF):

H.R. 4076. A bill to authorize funding for a bilateral cooperative program with Israel for the development of health technologies; to the Committee on Energy and Commerce.

By Mr. PETERS (for himself, Ms. JACOBS, Ms. CLARKE of New York, Mr. PHILLIPS, Ms. TITUS, Mr. MOULTON, Mr. KHANNA, Ms. CROCKETT, Ms. CARAVEO, Mr. THOMPSON of California, Mr. PANETTA, Mr. COSTA, Ms. VELÁZQUEZ, Mr. NEGUSE, Mr. KRISHNAMOORTHI, Mr. BOWMAN, Ms. PETTERSEN, and Mr. MULLIN):

H.R. 4077. A bill to direct the Administrator of the Environmental Protection Agency to provide grants to air pollution control agencies to implement a cleaner air space program, and for other purposes; to the Committee on Energy and Commerce.

By Mr. PHILLIPS (for himself, Mr. GREEN of Tennessee, Mr. MOULTON, and Mr. GALLAGHER):

H.R. 4078. A bill to amend the National Defense Authorization Act for Fiscal Year 2020 to modify the establishment of a coordinator for detained ISIS members and relevant displaced populations in Syria, and for other purposes; to the Committee on Foreign Affairs.

By Mr. ROGERS of Kentucky (for himself and Ms. SPANBERGER):

H.R. 4079. A bill to amend the Public Health Service Act to reauthorize a loan repayment program for the substance use disorder treatment workforce; to the Committee on Energy and Commerce.

By Mr. RUIZ (for himself and Mr. LATTA):

H.R. 4080. A bill to amend the SUPPORT for Patients and Communities Act to extend a task force to develop best practices for trauma-informed identification, referral, and support; to the Committee on Education and the Workforce, and in addition to the Committees on Energy and Commerce, and the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. SLOTKIN (for herself and Mr. GARBARINO):

H.R. 4081. A bill to amend title 10, United States Code, to provide for certain requirements relating to the retirement, adoption, and recognition of military working dogs, and for other purposes; to the Committee on Armed Services.

By Ms. STEVENS:

H.R. 4082. A bill to provide for Federal Aviation Administration research and development on severe turbulence, and for other purposes; to the Committee on Science, Space, and Technology.

By Ms. TLAIB (for herself, Ms. WILSON of Florida, and Mr. BOWMAN):

H.R. 4083. A bill to amend the Elementary and Secondary Education Act of 1965 to improve oversight of private charter management organizations, and for other purposes; to the Committee on Education and the Workforce.

By Ms. TLAIB:

H.R. 4084. A bill to defer part of the compensation of senior employees of large financial institutions (and their subsidiaries), to use such deferred amounts to pay any civil or criminal fines that may be levied on the institution (or subsidiary), and for other purposes; to the Committee on Financial Services.

By Mr. VAN ORDEN:

H.R. 4085. A bill to require certain State departments of transportation to notify first responders of AskRail application, and for other purposes; to the Committee on Transportation and Infrastructure.

By Ms. WASSERMAN SCHULTZ (for herself, Mr. CASTRO of Texas, Ms. SALAZAR, Mr. WALTZ, Mr. SOTO, Mr. MOSKOWITZ, and Ms. CASTOR of Florida):

H.R. 4086. A bill to direct the United States Government to support extending the mandate of the Independent International Fact-Finding Mission on Venezuela until a resolution of the Venezuelan crisis is achieved; to the Committee on Foreign Affairs.

By Mr. WENSTRUP (for himself and Mrs. LESKO):

H.R. 4087. A bill to prohibit the use of Federal funds to conduct or support certain gain-of-function research by a foreign adversary; to the Committee on Energy and Commerce.

By Mr. SANTOS:

H. Con. Res. 52. Concurrent resolution condemning Cuba and the Chinese Communist Party for discussing and implementing an agreement to build a Chinese Communist Party spy base on the island of Cuba, 90 miles from the United States; to the Committee on Foreign Affairs.

By Mr. ROGERS of Kentucky (for himself and Mr. CARTWRIGHT):

H. Res. 501. A resolution honoring the men and women of the Drug Enforcement Administration on the 50th anniversary of the agency; to the Committee on the Judiciary.

By Mr. AGUILAR:

H. Res. 502. A resolution electing a Member to a certain standing committee of the House of Representatives; considered and agreed to.

By Mrs. BOEBERT (for herself, Mr. GAETZ, and Mr. CRANE):

H. Res. 503. A resolution impeaching Joseph R. Biden, Jr., President of the United States, for high crimes and misdemeanors; to the Committee on the Judiciary.

By Ms. MACE:

H. Res. 504. A resolution recognizing and honoring the 51 mobility Airmen from Joint Base Charleston who received the Distinguished Service Cross; to the Committee on Armed Services.

By Ms. JACKSON LEE (for herself, Ms. NORTON, Mr. DAVIS of Illinois, Mr. MFUME, Mr. IVEY, Mr. HORSFORD, Ms. WILLIAMS of Georgia, Mr. BISHOP of Georgia, Ms. CASTOR of Florida, Mr. GREEN of Texas, Mr. JEFFRIES, Ms. PELOSI, Mr. COHEN, Mr. MCGOVERN, Ms. MENG, Mr. MEEKS, Mr. PALLONE, Ms. SCHAKOWSKY, Mr. RASKIN, Ms. DELAURO, Mr. CUELLAR, Mr. FROST, Mrs. MCBATH, Ms. KELLY of Illinois, Ms. CLARKE of New York, Mrs. BEATTY, Mr. CLYBURN, Mr. WEBER of Texas, Mr. MCCAUL, and Ms. SPANBERGER):

H. Res. 505. A resolution recognizing June 19, 2023, as this year's observance of the historical significance of Juneteenth Independence Day; to the Committee on Oversight and Accountability.

By Ms. MACE:

H. Res. 506. A resolution commending the South Carolina Aquarium in Charleston for its outstanding Sea Turtle Care Center and its dedicated efforts in rehabilitating and releasing injured and sick sea turtles, ensuring their return to their natural environment; to the Committee on Natural Resources.

By Mr. POCAN (for himself, Ms. BUDZINSKI, Mr. CONNOLLY, Mr. LANDSMAN, Ms. NORTON, and Mrs. DINGELL):

H. Res. 507. A resolution congratulating the National Treasury Employees Union on its 85th anniversary and commending the dedication shown Federal employees and continued service provided by the National Treasury Employees Union and the members of the National Treasury Employees Union; to the Committee on Oversight and Accountability.

By Mr. DAVID SCOTT of Georgia (for himself, Mr. JOHNSON of Georgia, Mrs. MCBATH, Ms. WILLIAMS of Georgia, Ms. TLAIB, and Mr. BISHOP of Georgia):

H. Res. 508. A resolution honoring the struggle, sacrifice, and triumph of the LGBTQ+ movement in Georgia; to the Committee on the Judiciary.

MEMORIALS

Under clause 3 of rule XII, memorials were presented and referred as follows:

ML-18. The SPEAKER presented a memorial of the House of Representatives of the State of Colorado, relative to House Joint Resolution 23-1015, concerning reaffirming Colorado to be the permanent location for the United States Space Command, and, in connection therewith, urging the Department of Defense to keep the United States Space Command in Colorado; to the Committee on Armed Services.

ML-19. Also, a memorial of the Legislature of the State of North Dakota, relative to House Concurrent Resolution No. 3036, urging Congress not to support legislation, or other efforts, relating to the adoption of a Central Bank Digital Currency in the United States; to the Committee on Financial Services.

ML-20. Also, a memorial of the Legislature of the State of Arizona, relative to House

Concurrent Memorial 2008, urging the President and Congress of the United States to halt the imposition of unrealistic ozone standards on the state of Arizona; to the Committee on Energy and Commerce.

ML-21. Also, a memorial of the Legislature of the State of Arizona, relative to House Concurrent Memorial 2005, urging the United States Congress to support hunting, angling and wildlife conservation; to the Committee on Natural Resources.

ML-22. Also, a memorial of the Legislature of the State of Arizona, relative to House Concurrent Memorial 2006, urging the United States Congress to appropriate monies and federal entities to develop solutions to eradicate salt cedars in Arizona waterways; jointly to the Committees on Natural Resources and Agriculture.

CONSTITUTIONAL AUTHORITY AND SINGLE SUBJECT STATEMENTS

Pursuant to clause 7(c)(1) of rule XII and Section 3(c) of H. Res. 5 the following statements are submitted regarding (1) the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution and (2) the single subject of the bill or joint resolution.

By Mr. DAVIS of Illinois:

H.R. 4052.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18 of the Constitution: To make all laws which shall be necessary and proper for carrying into Execution the powers enumerated under section 8 and all other Powers vested by the Constitution in the Government of the United States, or in any Department or Officer thereof.

The single subject of this legislation is:

Finance and Banking

By Ms. KUSTER:

H.R. 4053.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 of the United States Constitution, the Taxing and Spending Clause:

''The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defense and general Welfare of the United States. . .''

The single subject of this legislation is:

This bill requires an evaluation of buprenorphine-naloxone combination products in regards to their scheduling under the Controlled Substances Act.

By Ms. BUDZINSKI:

H.R. 4054.

Congress has the power to enact this legislation pursuant to the following:

Clause 18 of Section 8 of Article 1 of the Constitution

The single subject of this legislation is:

Trauma and mental health support in schools

By Mr. BARR:

H.R. 4055.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution.

The single subject of this legislation is:

This bill incentivizes more lending from banks into Opportunity Zones.

By Mr. BILIRAKIS:

H.R. 4056.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to Article 1, Section 8, Clause 18 of the Constitution of the United States.

The single subject of this legislation is:

This bill allows states to receive federal Medicaid payment for services provided to foster care children in qualified residential treatment programs.

By Ms. BLUNT ROCHESTER:

H.R. 4057.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the US Constitution

The single subject of this legislation is:

Health Care

By Mr. BRECHEEN:

H.R. 4058.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8.

The single subject of this legislation is:

To prohibit junk food purchases with SNAP benefits.

By Mrs. CAMMACK:

H.R. 4059.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution

The single subject of this legislation is:

To include phosphate and potash on the final list of critical minerals

By Ms. CARAVEO:

H.R. 4060.

Congress has the power to enact this legislation pursuant to the following:

Constitutional Authority—Necessary and Proper Clause (Art. I, Sec. 8, Clause 18)

THE U.S. CONSTITUTION

ARTICLE I, SECTION 8: POWERS OF CONGRESS

CLAUSE 18

The single subject of this legislation is:

To permanently extend SNAP work exemptions for certain vulnerable populations.

By Mr. CASE:

H.R. 4061.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

The single subject of this legislation is:

To address the health implications associated with the Red Hill Incident by directing the establishment of a health registry and the creation of an epidemiological study.

By Mr. CASTEN:

H.R. 4062.

Congress has the power to enact this legislation pursuant to the following:

Clause 18 of Section 8 of Article 1 of the Constitution

The single subject of this legislation is:

Financial institution's accountability.

By Mrs. DINGELL:

H.R. 4063.

Congress has the power to enact this legislation pursuant to the following:

The Constitutional authority of Congress to enact this legislation is provided by Article I, Section 8 of the United States Constitution.

The single subject of this legislation is:

To reauthorize a pilot program for public health laboratories to detect fentanyl and other synthetic opioids.

By Mr. GARAMENDI:

H.R. 4064.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 and Clause 3 of the Constitution

The single subject of this legislation is:

Transportation and Public Works

By Mrs. GONZÁLEZ-COLÓN:

H.R. 4065.

Congress has the power to enact this legislation pursuant to the following:

Article I Section 8, Clauses 17 and 18:

''To exercise exclusive legislation in all cases whatsoever, over . . . the seat of the government of the United States. . .

To make all laws which shall be necessary and proper for carrying into execution the foregoing

The single subject of this legislation is:

To obtain and direct the placement in the Capitol or on the Capitol Grounds of a statue to honor American humanitarian and star athlete Roberto Clemente of Puerto Rico.

By Mr. HARDER of California:

H.R. 4066.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the Constitution

The single subject of this legislation is:

To direct the Secretary of Agriculture to provide additional payments under the environmental quality incentives program for implementation of a nutrient management practice.

By Mrs. HINSON:

H.R. 4067.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 18

The single subject of this legislation is:

Repeals the executive order relating to the revocation of certain executive orders concerning federal regulation signed on January 20, 2021.

By Mr. HUFFMAN:

H.R. 4068.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

The single subject of this legislation is:

To prohibit the use of M–44 devices, commonly known as ''cyanide bombs'', on public land, and for other purposes.

By Mr. KEAN of New Jersey:

H.R. 4069.

Congress has the power to enact this legislation pursuant to the following:

Article 1 section 8 clause 3 of the U.S. Constituion.

The single subject of this legislation is:

To increase observations, understanding, and forecasting of coastal flooding and storm surge.

By Mr. LAMALFA:

H.R. 4070.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18 of the U.S. Constitution.

The single subject of this legislation is:

Excludes state-based catastrophe loss mitigation program grants from the calculation of gross income.

By Ms. LEE of California:

H.R. 4071.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

The single subject of this legislation is:

Professional Baseball

By Mr. LIEU:

H.R. 4072.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8 of the Constitution of the United States.

Pursuant to clause 7 of Rule XII of the Rules of the House of Representatives, the following statement is submitted regarding the single subject of this legislation.

Creates a pilot study on methane emissions.

By Mr. McGARVEY:

H.R. 4073.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

The single subject of this legislation is:

Tariffs

By Mr. MOSKOWITZ:

H.R. 4074.

Congress has the power to enact this legislation pursuant to the following:

Pursuant to clause 3(d) (1) of rule XIII of the Rules of the House of Representatives, the Committee find the authority for this legislation in article I, section 8 of the Constitution.

The single subject of this legislation is:

Gun Violence Prevention

By Mr. NORCROSS:

H.R. 4075.

Congress has the power to enact this legislation pursuant to the following:

Necessary and Proper Clause (Art. 1, Sec. 8, Cl. 18)

The single subject of this legislation is:

Major Defense Acquisition Programs

By Mr. PAPPAS:

H.R. 4076.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 18 of the United States Constitution states that ''Congress shall have the authority to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States, or in any Department or Officer thereof.''

The single subject of this legislation is:

International affairs

By Mr. PETERS:

H.R. 4077.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

The single subject of this legislation is:

Wildfire smoke

By Mr. PHILLIPS:

H.R. 4078.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

The single subject of this legislation is:

Legislation to extend the position of the ISIS Detainee Coordinator within the Department of State until January 31, 2028 and direct the development of an interagency strategy on how to address the IDP camps, with an emphasis on efforts to address acute humanitarian and security concerns; repatriation efforts; and a framework to measure progress.

By Mr. ROGERS of Kentucky:

H.R. 4079.

Congress has the power to enact this legislation pursuant to the following:

Congress has the power to enact this legislation pursuant to Article 1, Section 8, Clauses 1 and 18 of the United States Constitution.

The single subject of this legislation is:

Reauthorize the Substance Use Disorder Treatment and Recovery Loan Repayment Program.

By Mr. RUIZ:

H.R. 4080.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8, Clauses 1 and 18 of the United States Constitution, to provide for the general welfare and make all laws necessary and proper to carry out the powers of Congress.

The single subject of this legislation is:

Health Care

By Ms. SLOTKIN:

H.R. 4081.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18: To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

The single subject of this legislation is:

To amend title 10, United States Code, to provide for certain requirements relating to the retirement, adoption, and recognition of military working dogs, and for other purposes.

By Ms. STEVENS:

H.R. 4082.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution.

The single subject of this legislation is:

Supports Research & Development of Turbulence

By Ms. TLAIB:

H.R. 4083.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 1 of the Constitution.

The single subject of this legislation is:

The COAT Act would require private charter management organizations (PCMOs) to disclose the following to the Department of Education to receive federal Elementary and Secondary Education Act funds

By Ms. TLAIB:

H.R. 4084.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 1 of the Constitution.

The single subject of this legislation is:

This bill defers part of the compensation of senior employees of large financial institutions (and their subsidiaries), to use such deferred amounts to pay any civil or criminal fines that may be levied on the institution (or subsidiary), and for other purposes.

By Mr. VAN ORDEN:

H.R. 4085.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, clause 3 (Commerce Clause)

The single subject of this legislation is:

Rail Inspector Safety Act

This bill authorizes an additional $3,000,000 for the National Transportation Safety Board (NTSB), intended to increase the number of investigators in rail from 14 to 29.

By Ms. WASSERMAN SCHULTZ:

H.R. 4086.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18 of the U.S. Constitution

The single subject of this legislation is:

Extending the mandate of the Independent International Fact-Finding Mission on Venezuela until there is a resolution to the political and humanitarian crisis in the country.

By Mr. WENSTRUP:

H.R. 4087.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8

The single subject of this legislation is:

Research Security

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 7: Mr. ROSENDALE.

H.R. 40: Ms. DELBENE.

H.R. 41: Mr. POSEY, Mr. LUTTRELL, and Mr. BILIRAKIS.

H.R. 45: Mr. DAVIS of Illinois and Mr. IVEY.

H.R. 79: Mrs. MCCLAIN.

H.R. 188: Mr. CALVERT.

H.R. 233: Mr. GOOD of Virginia.

H.R. 309: Ms. GARCIA of Texas.

H.R. 336: Mr. DONALDS.

H.R. 354: Mr. WILLIAMS of Texas.

H.R. 357: Mrs. LESKO.

H.R. 468: Mr. GROTHMAN.

H.R. 531: Mr. KUSTOFF, Mr. BAIRD, Mr. AUSTIN SCOTT of Georgia, Mr. DUNN of Florida, Mr. HARRIS, Mr. SMITH of New Jersey, Mr. MURPHY, and Mr. MANN.

H.R. 547: Ms. SHERRILL.

H.R. 569: Ms. NORTON.

H.R. 589: Ms. BROWNLEY and Mr. FEENSTRA.

H.R. 603: Mr. FROST.

H.R. 618: Mr. COHEN.

H.R. 630: Mr. JOYCE of Ohio.

H.R. 681: Mr. DOGGETT.

H.R. 705: Mr. FERGUSON.

H.R. 735: Ms. TLAIB and Mr. VASQUEZ.

H.R. 790: Mr. ARMSTRONG and Mr. HARRIS.

H.R. 926: Mr. HIMES.

H.R. 927: Ms. KUSTER.

H.R. 936: Mr. MOORE of Utah, Mr. ROUZER, and Mr. SANTOS.

H.R. 949: Ms. KUSTER.

H.R. 951: Ms. TOKUDA.

H.R. 963: Mr. CLINE.

H.R. 972: Ms. VAN DUYNE.

H.R. 987: Mr. CARBAJAL and Mr. LATURNER.

H.R. 997: Mr. ROSENDALE.

H.R. 1015: Mr. PHILLIPS, Ms. DEAN of Pennsylvania, Mr. TIMMONS, Ms. PETTERSEN, Mr. CORREA, and Ms. SÁNCHEZ.

H.R. 1083: Mr. LEVIN, Mr. GOLDEN of Maine, Ms. LEE of Nevada, and Mr. LARSEN of Washington.

H.R. 1204: Mr. DELUZIO.

H.R. 1413: Mr. DAVID SCOTT of Georgia, Mr. MOULTON, and Ms. STRICKLAND.

H.R. 1439: Mr. TONKO.

H.R. 1511: Mr. SCHIFF.

H.R. 1525: Ms. MACE.

H.R. 1572: Ms. DE LA CRUZ and Mr. NEGUSE.

H.R. 1668: Mr. LAWLER.

H.R. 1684: Mr. SOTO.

H.R. 1719: Mr. LYNCH.

H.R. 1763: Ms. SHERRILL.

H.R. 1764: Ms. SHERRILL.

H.R. 1776: Mr. MOULTON.

H.R. 1777: Mr. IVEY and Mr. GALLEGO.

H.R. 1784: Mr. BLUMENAUER.

H.R. 1801: Ms. KAMLAGER-DOVE.

H.R. 1818: Mr. TIMMONS and Mr. HARRIS.

H.R. 1823: Ms. CASTOR of Florida.

H.R. 1826: Mr. KIM of New Jersey.

H.R. 1839: Mr. MAGAZINER.

H.R. 2377: Ms. BARRAGÁN, Mrs. TRAHAN, and Ms. DEGETTE.

H.R. 2380: Mr. STEUBE.

H.R. 2532: Ms. WASSERMAN SCHULTZ.

H.R. 2685: Mr. JOHNSON of South Dakota and Mr. FLEISCHMANN.

H.R. 2708: Ms. DAVIDS of Kansas, Ms. SLOTKIN, and Mr. SOTO.

H.R. 2717: Mr. BENTZ.

H.R. 2725: Mr. NORCROSS.

H.R. 2739: Mr. KHANNA.

H.R. 2748: Mr. RUTHERFORD.

H.R. 2783: Ms. PINGREE.

H.R. 2801: Ms. SALINAS.

H.R. 2871: Mr. LEVIN, Ms. WILD, Mr. LAWLER, Ms. BONAMICI, Mr. DELUZIO, Mr. CÁRDENAS, Mrs. MCBATH, Ms. BARRAGÁN, and Mr. MAGAZINER.

H.R. 2885: Mr. GOTTHEIMER.

H.R. 2901: Ms. DEGETTE.

H.R. 2918: Ms. HOYLE of Oregon.

H.R. 2953: Mr. DELUZIO.

H.R. 2955: Ms. MACE, Ms. STEVENS, Mrs. CHAVEZ-DEREMER, Ms. BROWN, Ms. MALLIOTAKIS, Mr. DAVIS of North Carolina, and Mr. CURTIS.

H.R. 2968: Mr. SANTOS.

H.R. 2988: Mr. PAPPAS.

H.R. 2995: Mr. PAPPAS.

H.R. 2996: Mr. MORELLE.

H.R. 3014: Mr. STEUBE.

H.R. 3018: Mrs. TORRES of California and Mr. RASKIN.

H.R. 3039: Mr. BIGGS.

H.R. 3074: Ms. CROCKETT, Mr. GOTTHEIMER, and Mr. MOYLAN.

H.R. 3093: Mr. MAGAZINER.

H.R. 3099: Mr. MOOLENAAR.

H.R. 3103: Mr. MCGOVERN.

H.R. 3127: Mr. MORELLE.

H.R. 3148: Mr. PAPPAS.
H.R. 3149: Mr. BACON.
H.R. 3152: Mr. DELUZIO, Ms. WILLIAMS of Georgia, Mr. MOOLENAAR, Mr. PALLONE, Ms. MACE, Mr. COHEN, Mr. SWALWELL, Ms. LEE of Nevada, Mr. WALBERG, Mr. CURTIS, Mr. IVEY, Mr. FLOOD, and Mr. MRVAN.
H.R. 3165: Ms. STEFANIK.
H.R. 3218: Ms. LEE of Florida.
H.R. 3227: Mr. GROTHMAN and Mr. YAKYM.
H.R. 3238: Mr. SHERMAN, Mr. CRAWFORD, Mr. TRONE, Mr. NUNN of Iowa, Mr. TAKANO, and Mr. BURCHETT.
H.R. 3246: Mr. QUIGLEY.
H.R. 3249: Mr. PAPPAS.
H.R. 3328: Mr. TIMMONS and Mr. JACKSON of Texas.
H.R. 3329: Mr. TIMMONS and Mr. JACKSON of Texas.
H.R. 3355: Ms. CRAIG and Mr. NORCROSS.
H.R. 3358: Ms. DE LA CRUZ and Mr. WILLIAMS of Texas.
H.R. 3391: Mr. WITTMAN, Mr. MOSKOWITZ, and Mr. CORREA.
H.R. 3396: Mr. COSTA.
H.R. 3397: Mr. DUARTE and Mr. ARMSTRONG.
H.R. 3413: Mr. TRONE and Mr. NADLER.
H.R. 3416: Mr. NEGUSE, Ms. KUSTER, Mr. CROW, and Ms. BLUNT ROCHESTER.
H.R. 3424: Mr. THOMPSON of Mississippi and Ms. SCHRIER.
H.R. 3428: Ms. CRAIG.
H.R. 3442: Mr. NUNN of Iowa and Ms. MANNING.
H.R. 3458: Mr. PERRY.
H.R. 3470: Mr. PETERS.
H.R. 3474: Mr. CARTWRIGHT.
H.R. 3475: Ms. TITUS, Mr. RESCHENTHALER, Ms. SALAZAR, Ms. PETTERSEN, and Mr. PASCRELL.
H.R. 3510: Mr. NUNN of Iowa, Mr. LALOTA, Mr. BOYLE of Pennsylvania, and Mr. ESTES.
H.R. 3511: Ms. LEE of Nevada and Mr. THANEDAR.
H.R. 3519: Mr. AUCHINCLOSS.
H.R. 3520: Mr. CRENSHAW and Mr. WENSTRUP.
H.R. 3537: Mr. TRONE and Mr. ALLRED.
H.R. 3599: Mr. DIAZ-BALART and Ms. LEE of Nevada.
H.R. 3601: Mr. SABLAN.
H.R. 3612: Mr. CRANE and Mr. HARRIS.
H.R. 3627: Ms. GREENE of Georgia, Mr. GAETZ, and Mr. HIGGINS of Louisiana.
H.R. 3639: Ms. MACE.
H.R. 3646: Mr. NADLER.
H.R. 3650: Ms. NORTON.
H.R. 3683: Ms. DEAN of Pennsylvania.
H.R. 3692: Mrs. LESKO.
H.R. 3698: Mr. POCAN, Mr. CASTEN, Mr. LARSON of Connecticut, Ms. CARAVEO, Ms. ROSS, Ms. DEAN of Pennsylvania, Ms. WILD, Mr. SCHIFF, Mr. CORREA, and Ms. GARCIA of Texas.
H.R. 3748: Mr. MOORE of Alabama.
H.R. 3773: Mr. GOTTHEIMER and Mrs. CHAVEZ-DEREMER.
H.R. 3792: Mr. IVEY, Mr. ELLZEY, and Mr. MCHENRY.
H.R. 3817: Mr. MULLIN and Ms. KUSTER.
H.R. 3828: Mr. LAWLER.
H.R. 3847: Ms. SCANLON, Ms. OMAR, and Mr. BLUMENAUER.
H.R. 3851: Mr. DOGGETT.
H.R. 3855: Mr. MOULTON.
H.R. 3882: Mr. CRAWFORD, Mr. KILDEE, Mr. CARTER of Louisiana, and Ms. MACE.
H.R. 3887: Mr. JOHNSON of Ohio and Mrs. MILLER-MEEKS.
H.R. 3889: Ms. STEFANIK.
H.R. 3899: Mr. DAVID SCOTT of Georgia.
H.R. 3925: Ms. PORTER and Mr. RUTHERFORD.
H.R. 3952: Mr. WOMACK.
H.R. 3962: Mr. CROW and Ms. DEGETTE.
H.R. 3985: Ms. ESHOO and Mr. KHANNA.
H.R. 4003: Mr. BURCHETT.
H.R. 4004: Mr. LAHOOD, Mr. THOMPSON of California, Mr. PASCRELL, Ms. MOORE of Wisconsin, Mr. BEYER, Mr. MURPHY, Mr. STEUBE, and Mr. WENSTRUP.
H.R. 4038: Mr. NEWHOUSE, Mr. RESCHENTHALER, Mr. MOONEY, and Mr. MEUSER.
H.R. 4046: Mr. RASKIN and Mr. BLUMENAUER.
H. J. Res. 11: Mrs. WAGNER.
H. J. Res. 54: Mr. KHANNA and Mr. VARGAS.
H. J. Res. 70: Ms. GREENE of Georgia.
H. Con. Res. 10: Mr. RESCHENTHALER and Mr. FITZGERALD.
H. Con. Res. 28: Mr. SORENSEN, Mr. GOLDEN of Maine, Mr. PASCRELL, Mr. CASE, Ms. PETTERSEN, and Ms. SÁNCHEZ.
H. Res. 77: Mr. DOGGETT and Mrs. RAMIREZ.
H. Res. 82: Mr. MCCAUL.
H. Res. 200: Ms. PORTER.
H. Res. 269: Ms. BLUNT ROCHESTER.
H. Res. 275: Mr. SHERMAN.
H. Res. 288: Ms. ROSS.
H. Res. 320: Mr. MULLIN.
H. Res. 376: Ms. SHERRILL.
H. Res. 380: Ms. BROWN.
H. Res. 461: Mr. RESCHENTHALER and Mr. CARL.
H. Res. 462: Ms. PELOSI and Mr. GOTTHEIMER.
H. Res. 465: Mr. GOLDEN of Maine, Ms. MCCOLLUM, and Ms. PEREZ.
H. Res. 474: Ms. GREENE of Georgia.
H. Res. 483: Mr. GREEN of Texas.
H. Res. 492: Mr. SMUCKER and Mr. RASKIN.
H. Res. 498: Ms. TITUS and Mr. COHEN.

United States
of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE 118th CONGRESS, FIRST SESSION

Vol. 169 WASHINGTON, TUESDAY, JUNE 13, 2023 *No. 103*

Senate

The Senate met at 10 a.m. and was called to order by the Honorable RAPHAEL G. WARNOCK, a Senator from the State of Georgia.

PRAYER

The PRESIDING OFFICER. Today's opening prayer will be offered by our guest Chaplain, the Reverend Asriel McLain, Little Union Baptist Church, Shreveport, LA.

The guest Chaplain offered the following prayer:

Let us pray.

O Lord, how excellent is Your Name. In the mighty Name of Jesus, we praise You for this land of the free and home of the brave.

Lord, bless this U.S. Senate and its leadership on both sides of the aisle. Remind us that Your amazing grace is, indeed, nonpartisan. Use these servants of freedom to represent all the Nation from sea to shining sea. Bless their families, their staffs, and their constituents back home.

Bless us all with the vision to see what is right and the power and strength to do what is right. Help us not to forget the Savior's words that the greatest among us will be servants of all.

Inspire us all to heed the words of the eighth century prophet Amos when we read, ''Let justice run down like waters and righteousness like a mighty stream.''

We pray in Your merciful Name. Amen.

PLEDGE OF ALLEGIANCE

The Presiding Officer led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

APPOINTMENT OF ACTING PRESIDENT PRO TEMPORE

The PRESIDING OFFICER. The clerk will please read a communication to the Senate from the President pro tempore (Mrs. MURRAY).

The senior assistant legislative clerk read the following letter:

U.S. SENATE,
PRESIDENT PRO TEMPORE,
Washington, DC, June 13, 2023.

To the Senate:

Under the provisions of rule I, paragraph 3, of the Standing Rules of the Senate, I hereby appoint the Honorable RAPHAEL G. WARNOCK, a Senator from the State of Georgia, to perform the duties of the Chair.

PATTY MURRAY,
President pro tempore.

Mr. WARNOCK thereupon assumed the Chair as Acting President pro tempore.

RESERVATION OF LEADER TIME

The ACTING PRESIDENT pro tempore. Under the previous order, the Senate leadership time is reserved.

CONCLUSION OF MORNING BUSINESS

The ACTING PRESIDENT pro tempore. Morning business is closed.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

The ACTING PRESIDENT pro tempore. Under the previous order, the Senate will proceed to executive session and resume consideration of the following nomination, which the clerk will report.

The senior assistant legislative clerk read the nomination of Elizabeth Allen, of New York, to be Under Secretary of State for Public Diplomacy.

The ACTING PRESIDENT pro tempore. The distinguished Senator from Louisiana.

WELCOMING REVEREND ASRIEL MCLAIN

Mr. CASSIDY. Mr. President, it is my privilege now to speak to the pastor from my home State who gave the prayer today, the Reverend Asriel McLain of Shreveport.

Reverend McLain is a graduate of Bishop College in Dallas, TX, and he earned his master of divinity degree from Princeton Theological Seminary. He has been a pastor, ministering to others in Louisiana, Texas, and Michigan.

Reverend McLain is the son of Mrs. Mildred Oliver McLain and the late Reverend Claude Clifford, the former pastor of the historic Little Union Baptist Church, which was the epicenter of the civil rights movement in Shreveport.

I had breakfast with Pastor McLain this morning and learned of the courage of his father and that of his congregation, while in the face of official oppression, in making sure that one Martin Luther King got to speak in Shreveport and that those in their community had a voice about how they wanted their community to evolve. The courage that his father showed and that the parish showed—I am an Episcopalian—that the congregation showed was quite remarkable.

Much like his father, Reverend McLain has spent much of his life preserving the civil rights history of Louisiana, and much like his father, he is a man of profound faith and is a messenger of God's grace.

He is a proud father of four kids and is a grandfather of four. He is also one of five siblings—Pat, John, Gene, and Clifford—and Clifford is here with him today. Pastor McLain is also accompanied by his son David and grandson Jayden.

It was a pleasure to have Pastor McLain lead us in prayer today, and I look forward to perhaps having him join us once more.

I yield the floor.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Printed on recycled paper.

RECOGNITION OF THE MAJORITY LEADER

The ACTING PRESIDENT pro tempore. The majority leader is recognized.

ARTIFICIAL INTELLIGENCE

Mr. SCHUMER. Mr. President, AI, artificial intelligence, is unlike any innovation that has previously come to the attention of Congress. In a few years, this technology will usher in dramatic changes to the workplace, the classroom, our living rooms—to virtually every corner of life—and it is already starting to happen. Maximizing AI's benefits and mitigating its potential and very real risks will require bipartisan cooperation, focus, and speed from the U.S. Congress.

Today, the U.S. Senate is taking an important step in intensifying our focus on AI by holding the first all-Senators briefing solely dedicated to AI. More briefings will soon follow, and they will help lay a bipartisan foundation on which Congress can take appropriate action. These briefings are vital because elected representatives in 2023 cannot afford to be in the dark about how AI works and how it is going to reshape our world and is already reshaping our world for that matter.

Today's briefing will focus on the state of AI as it stands today—its capabilities, its applications, its limitations, its challenges. We will hear from Professor Antonio Torralba of MIT, an expert in machine learning and the head MIT faculty member on AI and decision making. He is the head of AI at MIT. So it is pretty good stuff that people should know.

Next month, our second and third briefings will focus on where AI is headed in the very near future and AI's implications to our national security.

I urge every single Senator to join these briefings. AI is a topic none of us can afford to ignore. It should be treated with the same urgency as national security, job creation, and civil liberties, because AI will impact all of these issues and many others.

The possibilities of AI should excite every single one of us. If used correctly, AI could unlock remarkable breakthroughs in health care, scientific research, national security, and so many other fields.

Much like we did in CHIPS and Science, Congress should look for ways to promote innovation in AI so that American companies can lead the way. But the top AI developers have also made clear that Congress must play a role in safeguarding against AI's many potential risks. They have said it to us directly through congressional testimony.

We must therefore strike a balance to promote innovation and growth, on one hand, while mitigating AI's risks on the other. That will take a lot of bipartisan cooperation, and these briefings will help us move closer to that goal.

Finally, I want to thank my colleagues for the good work they have already done on the issue. I want to especially thank Senators ROUNDS, HEINRICH, and YOUNG for helping to make all of these Senate briefings possible.

REPUBLICAN TAX PLAN

Now, Mr. President, on the Republican tax plan that is over there in the House, while Democrats have spent the last 2 years lowering energy costs, lowering the price of prescription drugs, and bringing manufacturing jobs to our shores, Republicans are doubling down on what they do best: pushing tax giveaways to large corporations and the ultrawealthy.

A few years ago, the Trump GOP tax cuts proved to be a dud for our economy and a political loser for the Republican Party. We all remember, in 2017, they said: This is going to help us win the election. And, by 2018, they couldn't even bring it up because we Democrats had made clear to the American people that this wasn't aimed at the middle class or working class; it was aimed at the very rich—corporate and individual.

But Republicans don't learn from their mistakes, apparently. This morning, the GOP-led House Ways and Means Committee is going to advance a sweeping array of new tax giveaways that reward the wealthy and the well-connected while leaving ordinary families in the lurch. This latest GOP tax scam feels like a bad rerun, where the biggest winners are giant companies, big oil polluters, and the highest—the very highest—income households.

After the Trump tax law blew a nearly $2 trillion hole in our national deficit, forecasters say this new Republican proposal would increase the deficit by another trillion dollars. Again, their proposal over in the House increases the deficit by another trillion dollars, by objective forecasters.

These are the same Republicans who just pushed our country to the brink of catastrophic default in the name of fiscal responsibility and deficit reduction, and now, before the ink is even dry on avoiding default, the same Republicans want to blow another trillion-dollar hole into the deficit—what hypocrisy, what hypocrisy, what hypocrisy.

First, they would say: We have got to default if we don't deal with the deficit. Then they come back and blow a hole—or propose to blow a hole—in the deficit by another trillion dollars so they can help the very, very, most elite in the country.

Of course, Republicans only care about the deficit when it suits them. When the deficit gets in the way, Republicans preach the fantasy that their tax cuts will somehow pay for themselves and that the benefits will magically trickle down to the rest of the country.

But facts are stubborn. The economic reality of the past few decades shows that these Republican trickle-down claims are bunkum. It has been refuted over and over again.

You know, this has come up. I remember Jude Wanniski and all of these rightwingers and Wall Street Journal editorials in the eighties: Cut taxes, and the deficit will go down.

It didn't happen, especially when you cut taxes on the rarified few at the top of the income scale. So it doesn't work.

We all saw what happened the last time Republicans pushed tax cuts for the very, very elite—for the top, top economic end of America—in 2017. There was no historic wave of economic activity. There was no trickle-down stemming from the huge benefits Republicans gave to the wealthy. Instead, the Trump tax cuts translated into huge profits for shareholders and trillions—record trillions—of dollars in corporate stock buybacks.

We saw the vast majority of Americans reject these Republican policies when they went to the ballot box. We even saw Republicans afraid to talk about it as we got closer to the elections in 2018.

So, if Republicans really want to help working- and middle-class families, if they really want to lower the deficit as they have claimed for years, they will stop pushing this irredeemably flawed tax package.

I yield the floor.

RECOGNITION OF THE MINORITY LEADER

The ACTING PRESIDENT pro tempore. The Republican leader is recognized.

NOMINATION OF JARED BERNSTEIN

Mr. MCCONNELL. Mr. President, since President Biden took office, consumer prices have risen more than 16 percent. American families are paying 20 percent more to put food on the table than they did in January 2021 and 36 percent more on energy. But over more than 2 years of Washington Democrats' runaway inflation, President Biden's top advisers have refused to even admit that it is a problem, let alone that their policies are driving it.

In early 2021, after Senate Democrats helped ram through the administration's reckless taxing-and-spending spree, one top White House adviser insisted that any inflationary effect would be ''transitory.''

Eight months deeper into the administration's inflationary spiral, the same adviser insisted that inflation would be ''growing half as fast a year from now''—another fanciful prediction overcome by the harsh, painful consequence of Washington Democrats' reckless spending and another instance where Jared Bernstein—President Biden's choice to serve as Chair of the Council of Economic Advisers—was simply dead wrong on economic advice, dead wrong.

The CEA was designed to produce objective, empirical economic analysis. With the rarest of exceptions, it has been led by a seasoned economist with a Ph.D. in the field. That streak would end with Mr. Bernstein.

The nominee the Senate will consider this week can more accurately claim expertise in partisan warfare than economics. He has been labeled in the press as President Biden's ''man on the left.''

In his own words, Mr. Bernstein's long record of progressive fantasies speaks for itself. For example, he said:

We should not kid ourselves into thinking . . . that we can pay for Medicare for All and a jobs guarantee solely by taxing the rich.

The nominee has called abortion ''at its core an economic issue.'' He urged Democrats to ''take the Green New Deal seriously.'' And last year, he praised a nearly $80 billion plan to expand IRS enforcement as one of his favorite parts of President Biden's so-called Inflation Reduction Act. What a staggering—staggering—lack of awareness of the way his party's policies have hurt working families across our country. So the American people cannot afford Jerry Bernstein at the wheel of CEA.

NATO

Mr. President, now on another matter, this week, NATO Secretary General Stoltenberg is in Washington at an important time for transatlantic alliance.

The Secretary General deserves tremendous credit for his tireless efforts over nearly a decade at the helm. He has helped major allies wake up to the growing threats from ISIS, Putin's Russia, and the People's Republic of China. He has skillfully managed disagreements among members who share values but sometimes have very different views. He has pressed allies to meet their pledges to spend more on collective defense, to modernize their militaries, and to contribute more to the collective security of the alliance.

I just met with him, along with some of my colleagues, this morning. I am encouraged by the progress the alliance is making to become ''fit for purpose,'' but more work remains to be done.

At the Vilnius summit next month, I hope to see allies agree to set 2 percent as a floor for defense spending, not an aspiration. Let me say that again: 2 percent as the floor for defense spending, not an aspiration.

The threats we face will require sustained European investments in modernizing their militaries and expanding their defense industrial bases, not merely a short-term infusion of emergency funds.

We will need greater coherence among NATO allies about how to confront the real and growing threat China poses to our collective security. And after seeing Finland joining the alliance this spring, I know the Senate hopes and expects to see Sweden become a NATO ally by the Vilnius summit. I believe Sweden's leaders understand and respect Turkey's national security interests, and I know it is in NATO's interests to welcome this modern, high-tech economy into the alliance.

When Secretary General Stoltenberg spoke to a joint session of Congress in 2019, he reminded us of the way President Truman saw NATO's purpose at its founding back in 1949. Here is what President Truman had to say:

[W]e hope to create a shield against aggression and the fear of aggression—a bulwark which will permit us to get on with the real business of government and society, the business of achieving a fuller and happier life for all of our citizens.

I think we can safely say, by and large, NATO has fulfilled that lofty objective. But we can only continue to do so if allies take seriously their obligations to invest in the hard power that has underwritten Western peace and prosperity for more than 70 years.

I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. THUNE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

BIDEN ADMINISTRATION

Mr. THUNE. Mr. President, at the end of last week, President Biden published an op-ed in the Wall Street Journal touting his economic record. It was not exactly new material. The President is well known for attempting to put a rosy spin on his economic record. But I still have to marvel every time the President claims that he is building the economy from the bottom up and the middle out and working to give families ''more breathing room'' because if there is one thing that can be said about the Biden Presidency, it is that American families have lost a lot of their breathing room.

The inflation crisis the President helped make is costing American families $880 this month. Let me just repeat that. The inflation crisis the President helped create is costing American families $880 this month—$880 for just 1 month. Meanwhile, real wages have declined for 26 consecutive months under President Biden—26 consecutive months; 2-plus years.

So it is no surprise that in a poll last month, 49 percent of Americans reported that their personal financial situation is getting worse or that in another poll, 61 percent said recent price increases had caused financial hardship for them or their household.

Let's be very clear. This is not a random situation that just happened to occur on the President's watch. The President bears direct responsibility for this inflation crisis, which was set off in large part thanks to the bloated, Big-Government American Rescue Plan spending spree the Democrats and President forced through shortly after the President came to office.

You don't have to take my word on that. Here is what one former Obama adviser had to say on the subject:

The $1.9 trillion American Rescue Plan passed in the early days of the Biden administration will go down in history as an extraordinary policy mistake.

''Will go down in history as an extraordinary policy mistake''—that from an Obama adviser.

Another former Obama adviser noted:

The original sin was an oversized American Rescue Plan.

Contrary to what he suggested in his op-ed, the President has done exactly nothing to bring down inflation since. Indeed, he has continued to pursue the same kind of Big-Government, big-spending policies that helped land us in this mess in the first place.

It is frankly staggering to me that the President continues to have the audacity to say things like ''[h]ardworking families are reaping the rewards'' of his policies. Hardworking families are certainly reaping something from the President's policies, but it isn't rewards.

As I said earlier, the President is well known for trying to put a rosy spin on his economic record, and he trots out some of his favorite misleading statistics in this op-ed.

Since he took office, he claims, the economy has created more than 13 million jobs. That sounds pretty good, right? Until you realize that the vast majority of those jobs weren't newly created but are, rather, just jobs that were naturally added back after the pandemic. Currently, we are just 3.7 million jobs above where we were prepandemic—hardly the historic job boom the President portrays.

The President also mentions that gasoline prices are down from their peak in June of 2022, but he neglects to mention that gas prices are currently up 50 percent from where they were when he took office.

Then, of course, the President brings up one of his favorite claims—that he reduced the deficit by $1.7 trillion over the first 2 years of his administration.

Here is how the Washington Post Fact Checker column has described that claim: ''highly misleading.'' Highly misleading. The President arrives at this highly misleading statistic by comparing his budget deficit in fiscal year 2022 to the fiscal year 2020 budget deficit, which was unusually large, to put it mildly, as a result of the COVID pandemic.

A much more appropriate comparison would be to compare President Biden's actual 2022 budget deficit to what the Congressional Budget Office was projecting that deficit would be before the President's American Rescue Plan spending spree was enacted. That tells a far different story.

The reality, as the Post points out, is that ''the data shows the deficit picture has worsened under Biden.''

The Washington Post Fact Checker column recently awarded President Biden a Bottomless Pinocchio for his deficit reduction claims—a rating the column gives for ''false or misleading statements repeated so often that they [become] a form of propaganda.''

I can't close without mentioning the President's staggering claim that he, again, ''fought so hard to bring Democrats and Republicans in Congress together to compromise on the budget and prevent a catastrophic default.'' As I have already highlighted, the President is fairly well known for revisionist history, but this statement might take the cake.

Can the President possibly think that people have already forgotten that he spent months refusing to negotiate on a debt ceiling agreement and only came to the table at the last minute? Credit to the President for eventually recognizing that divided government requires compromise, but to suggest that he set out from the outset to forge a compromise between Democrats and Republicans is to skate the line between revisionist history and outright falsehood.

After 2 years of painful price hikes at the gas pump and the grocery store, I think few Americans would recognize the positive picture the President paints in his op-ed. Unfortunately, it is clear from the President's column that he plans to continue to pursue policies that will further undermine the economic well-being of the American people. So much for giving American families more breathing room.

I yield the floor.

I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. SCHATZ. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. PADILLA). Without objection, it is so ordered.

Mr. SCHATZ. Mr. President, I ask unanimous consent that we start the vote now.

The PRESIDING OFFICER. Without objection, it is so ordered.

VOTE ON ALLEN NOMINATION

The question is, Will the Senate advise and consent to the Allen nomination?

Mr. SCHATZ. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. THUNE. The following Senator is necessarily absent: the Senator from North Carolina (Mr. TILLIS).

Further, if present and voting: the Senator from North Carolina (Mr. TILLIS) would have voted ''yea.''

The result was announced—yeas 66, nays 33, as follows:

[Rollcall Vote No. 154 Ex.]

YEAS—66

Baldwin	Fetterman	Menendez
Bennet	Gillibrand	Merkley
Blumenthal	Graham	Moran
Booker	Grassley	Murkowski
Brown	Hassan	Murphy
Cantwell	Heinrich	Murray
Capito	Hickenlooper	Ossoff
Cardin	Hirono	Padilla
Carper	Kaine	Peters
Casey	Kelly	Reed
Collins	Kennedy	Ricketts
Coons	King	Risch
Cortez Masto	Klobuchar	Romney
Crapo	Luján	Rosen
Duckworth	Manchin	Rounds
Durbin	Markey	Sanders
Feinstein	McConnell	Schatz
Schumer	Sullivan	Warren
Shaheen	Tester	Welch
Sinema	Van Hollen	Whitehouse
Smith	Warner	Wyden
Stabenow	Warnock	Young

NAYS—33

Barrasso	Daines	Marshall
Blackburn	Ernst	Mullin
Boozman	Fischer	Paul
Braun	Hagerty	Rubio
Britt	Hawley	Schmitt
Budd	Hoeven	Scott (FL)
Cassidy	Hyde-Smith	Scott (SC)
Cornyn	Johnson	Thune
Cotton	Lankford	Tuberville
Cramer	Lee	Vance
Cruz	Lummis	Wicker

NOT VOTING—1

Tillis

The nomination was confirmed.

The PRESIDING OFFICER (Mr. HICKENLOOPER). Under the previous order, the motion to reconsider is considered made and laid upon the table, and the President will be immediately notified of the Senate's action.

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The senior assistant legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the nomination of Executive Calendar No. 25, Hernan D. Vera, of California, to be United States District Judge for the Central District of California.

Charles E. Schumer, Richard J. Durbin, Richard Blumenthal, Christopher A. Coons, Benjamin L. Cardin, Tina Smith, Christopher Murphy, Mazie K. Hirono, Tammy Baldwin, Margaret Wood Hassan, John W. Hickenlooper, Sheldon Whitehouse, Catherine Cortez Masto, Brian Schatz, Gary C. Peters, Alex Padilla, Michael F. Bennet.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the nomination of Hernan D. Vera, of California, to be United States District Judge for the Central District of California, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. THUNE. The following Senator is necessarily absent: the Senator from Alabama (Mr. TUBERVILLE).

The yeas and nays resulted—yeas 51, nays 48, as follows:

[Rollcall Vote No. 155 Ex.]

YEAS—51

Baldwin	Coons	Hickenlooper
Bennet	Cortez Masto	Hirono
Blumenthal	Duckworth	Kaine
Booker	Durbin	Kelly
Brown	Feinstein	King
Cantwell	Fetterman	Klobuchar
Cardin	Gillibrand	Luján
Carper	Hassan	Manchin
Casey	Heinrich	Markey
Menendez	Rosen	Tester
Merkley	Sanders	Van Hollen
Murphy	Schatz	Warner
Murray	Schumer	Warnock
Ossoff	Shaheen	Warren
Padilla	Sinema	Welch
Peters	Smith	Whitehouse
Reed	Stabenow	Wyden

NAYS—48

Barrasso	Fischer	Murkowski
Blackburn	Graham	Paul
Boozman	Grassley	Ricketts
Braun	Hagerty	Risch
Britt	Hawley	Romney
Budd	Hoeven	Rounds
Capito	Hyde-Smith	Rubio
Cassidy	Johnson	Schmitt
Collins	Kennedy	Scott (FL)
Cornyn	Lankford	Scott (SC)
Cotton	Lee	Sullivan
Cramer	Lummis	Thune
Crapo	Marshall	Tillis
Cruz	McConnell	Vance
Daines	Moran	Wicker
Ernst	Mullin	Young

NOT VOTING—1

Tuberville

The PRESIDING OFFICER (Mr. LUJÁN). The yeas are 51, the nays are 48.

The motion is agreed to.

EXECUTIVE CALENDAR

The PRESIDING OFFICER. The clerk will report the nomination.

The bill clerk read the nomination of Hernan D. Vera, of California, to be United States District Judge for the Central District of California.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 1:13 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Mr. LUJÁN).

EXECUTIVE CALENDAR—Continued

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The senior assistant legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the nomination of Executive Calendar No. 171, Jared Bernstein, of Virginia, to be Chairman of the Council of Economic Advisers.

Charles E. Schumer, Sherrod Brown, Raphael G. Warnock, Robert P. Casey, Jr., Margaret Wood Hassan, Tina Smith, Jeff Merkley, Jack Reed, Ben Ray Luján, Tammy Baldwin, Gary C. Peters, Jeanne Shaheen, Alex Padilla, Christopher A. Coons, Brian Schatz, Michael F. Bennet.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the nomination

of Jared Bernstein, of Virginia, to be Chairman of the Council of Economic Advisers, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. THUNE. The following Senator is necessarily absent: the Senator from Alabama (Mr. TUBERVILLE).

The yeas and nays resulted—yeas 50, nays 49, as follows:

[Rollcall Vote No. 156 Ex.]

YEAS—50

Baldwin	Heinrich	Rosen
Bennet	Hickenlooper	Sanders
Blumenthal	Hirono	Schatz
Booker	Kaine	Schumer
Brown	Kelly	Shaheen
Cantwell	King	Sinema
Cardin	Klobuchar	Smith
Carper	Luján	Stabenow
Casey	Markey	Tester
Coons	Menendez	Van Hollen
Cortez Masto	Merkley	Warner
Duckworth	Murphy	Warnock
Durbin	Murray	Warren
Feinstein	Ossoff	Welch
Fetterman	Padilla	Whitehouse
Gillibrand	Peters	Wyden
Hassan	Reed	

NAYS—49

Barrasso	Graham	Paul
Blackburn	Grassley	Ricketts
Boozman	Hagerty	Risch
Braun	Hawley	Romney
Britt	Hoeven	Rounds
Budd	Hyde-Smith	Rubio
Capito	Johnson	Schmitt
Cassidy	Kennedy	Scott (FL)
Collins	Lankford	Scott (SC)
Cornyn	Lee	Sullivan
Cotton	Lummis	Thune
Cramer	Manchin	Tillis
Crapo	Marshall	Vance
Cruz	McConnell	Wicker
Daines	Moran	Young
Ernst	Mullin	
Fischer	Murkowski	

NOT VOTING—1

Tuberville

The PRESIDING OFFICER. The yeas are 50, the nays are 49.

The motion is agreed to.

EXECUTIVE CALENDAR

The PRESIDING OFFICER. The clerk will report the nomination.

The senior assistant legislative clerk read the nomination of Jared Bernstein, of Virginia, to be Chairman of the Council of Economic Advisers.

Thereupon, the Senate proceeded to consider the nomination.

The PRESIDING OFFICER (Mr. WELCH). The Senator from Missouri.

Mr. HAWLEY. Mr. President, it is my great privilege to say a very few words in introduction of my friend and fellow Senator, ERIC SCHMITT, as he prepares to give his maiden speech on this floor.

We haven't worked together very long in the Senate, but we have known each other for some time, and I just want to say that if you look at Senator SCHMITT's record, the people of Missouri are tremendously fortunate to have him, and he is already doing tremendous work for them.

As attorney general, Eric led the way in taking on the Biden administration and holding them accountable for their abuses of power. He led the way in taking on Big Tech and holding them accountable for what they tried to do to our children, what they tried to do to our elections, and what they tried to do to our speech. And already now in the U.S. Senate, he is holding the deep state—the administrative state—accountable, standing up for ordinary, normal, everyday working Missourians who deserve to have a voice in this Chamber, who deserve to have a voice in their government. And he has been standing here fighting for them. I can't wait to continue to have the privilege to serve with him, and I can't wait to hear his remarks today.

So with that, Mr. President, I yield the floor to the Senator from Missouri, ERIC SCHMITT.

The PRESIDING OFFICER. The Senator from Missouri.

MAIDEN SPEECH

Mr. SCHMITT. Mr. President, it is an honor to be here with all of you to give this maiden speech, and I want to thank the senior Senator from Missouri. We may be the youngest combo. He is younger than I, but he is the senior Senator. He reminds me of that quite often as we speak to groups. But I want to thank him for his leadership. Senator Blunt is also here, whom I followed in the Senate.

When Benjamin Franklin exited the Constitutional Convention, he was asked what type of government the delegates had come up with. He famously replied:

A republic, if you can keep it.

Those words are as significant today as they were a couple hundred years ago, especially as two major threats loom over our Republic: a supercharged administrative State and the unprecedented stifling of free speech.

If you want to understand some of the frustration that is out there, a lot of it comes from the fact that people believe there is a narrowing of the bandwidth of acceptable speech—what they can say, what they can hear. As it relates to the administrative state, a lot of people are frustrated that no matter whom they send here, they feel like sometimes things never really change, and we must fix that.

But first, let's back up.

Years before Franklin's famous remark, ordinary folks—farmers, blacksmiths, laborers, leatherworkers—who made up the Continental militias achieved something extraordinary. Fed up with an increasingly tyrannical rule of an unaccountable despot thousands of miles away, these ordinary men fought and won our independence at a time that seems very far away but set the stage for the freedoms that we enjoy to this very minute.

That is our origin story. The electrical cord of freedom that has been strung across the centuries is our national identity. We boldly declared to the world that freedom isn't granted to us by a King or a Queen or any government.

We believe in individual rights, a very new concept at the time, and those rights were granted to us by God. Chief among those were life, liberty, and the pursuit of happiness. If those words are a mission statement—and they are—the Constitution provides the structure to protect and safeguard those freedoms that we enjoy that have made us the envy of the world. That structure has allowed ordinary men and women to achieve incredible things, to pursue their dreams, to pursue happiness, which is a very uniquely American concept.

I grew up in Bridgeton, MO. Bridgeton sits in North St. Louis County in the shadow of the airport. Bridgeton is a working-class, blue-collar neighborhood, and I grew up in a working-class, blue-collar family.

My grandfather was an infantryman in World War II and returned from the war with little more than an eighth grade education and some money he won playing craps on the Queen Elizabeth on the way home. He started a butcher shop and raised a family. My dad and his brothers and sister all worked there growing up. When I was growing up, I saw my dad working 7 days a week on the midnight shift to provide for his family to give me and my sisters every opportunity to succeed.

Speaking of family, my wife Jaime and my two beautiful daughters are here today, and I am very grateful that they are here to share this moment of this inaugural speech, this maiden speech today.

From an early age, I understood the value of hard work. I saw the value of a society where hard work was rewarded, and I appreciated at a young age how the law provided guardrails for individuals to pursue their dreams. So I decided that I wanted to be a lawyer. I didn't know any lawyers growing up, and certainly nobody in my family had any power or prestige, but we believed in this country, and I wanted to fight for people who needed a voice, like the people I grew up around, hard-working people who just wanted to be treated fairly, who did the right things, and worked really hard for everything that they had.

Some of those folks are looked down upon in this town because maybe they didn't go to the right schools or they don't wear the fanciest suits. A lot of journalists will interview these people after elections and wonder what happened. These are my people.

I thought that I could do some good and advocate for them and for protecting those God-given rights that are guaranteed and protected in our Constitution. So I went to law school. I went to college and later earned my law degree.

When my son Stephen was born a few years later, in the mid-2000s, I was working at a law firm, made partner. Life was great. Then one day everything changed in my life forever. My wife Jaime and I noticed that Stephen

had a birthmark on his leg. It looked like an angel's wing. We thought so little of this that Jaime actually allowed me to take Stephen to the doctor.

But when I got there, the doctor had some pretty terrible news. He said Stephen probably had something—which he did—something called tuberous sclerosis, which causes tumors in different organs, including Stephen's brain. Stephen has epilepsy. He is on the autism spectrum and nonverbal. Going through that experience with my son, including a 4-hour seizure, you start to evaluate things. What is important? What do you want to do? Through that process of discernment, I decided that I wanted to do more than what I was doing, and Stephen was my inspiration.

So I ran for office. I ran for the State senate twice and won, was elected and served as State treasurer, was elected and served as Missouri's attorney general, and I am blessed for all the work that I have been able to do on behalf of the people I represented to be a voice for those who needed a voice.

And so I decided to run for Senate, again, to be a voice for people, for all 6 million Missourians but especially the forgotten men and women whom I referenced earlier who work hard every day and just want a fair shake.

So I appear before you today in the U.S. Senate, the most important and deliberative body civilization has ever known. And I believe that. It is an unbelievable story, and, quite frankly, I sometimes find it hard to believe it is my own.

But only in America can a boy from Bridgeton make it here, all the way to the U.S. Senate. And yet each one of us has a uniquely American story to tell. I take this responsibility with great humility. I understand that I have very big shoes to fill—for God's sake, this is Harry Truman's desk. Senator Tom Eagleton, another Missouri attorney general—in addition to the senior Senator and myself who served Missouri in that capacity—also had this desk. When I graduated from the university named after Harry Truman, Truman State University, Tom Eagleton, in 1997, gave the commencement address.

In addition to Truman, I stand on the shoulders of other innovators and leaders and pioneers from my State, the ''Show-Me'' State, from cities named Liberty and Independence and towns called Freedom and Defiance. Missourians have always blazed their own trail.

Whether it was Lewis and Clark and the Corps of Discovery headed west to see what was on the other side of the mountains or Mark Twain changing the world with his words or Edwin Hubble, who mapped the heavens, Missourians and Missouri proudly represent the best of America. Is Missouri a northern State? Is Missouri a Southern State? Is Missouri a Midwestern State? Is Missouri a Western State? The answer to all those questions is yes. We are all of them. We sit uniquely at the cultural and geographic crossroads of America. Missourians are tough and they are honest and have always been skeptical of the Federal Government, 1,000 miles away, telling them how to live their lives. And although we are skeptical of government, we love America.

America was and is a bold experiment in self-government. Before America declared its independence from Great Britain or had a Constitution, the world believed that rights came from a King. The King, in turn, was handed down power simply by being born into a monarchy, certainly not by any achievement or merit. The King was sovereign and free; the rest of us, not so much. We were subjects.

The Founders flipped the script on this concept that had been accepted for literally thousands of years. They challenged the King and boldly proclaimed to the world that everybody else had it wrong. Rights come from God, not Kings or government. This was truly revolutionary and a war was fought over it against the No. 1 superpower on the planet and we won.

We won, which, of course, was a big deal, but the Founders also understood that unless we created something different, a government focused on protecting those rights and our national identity of freedom, we would end up being just like everybody else.

So they brilliantly devised a system of separation of powers and federalism that would spread power out both vertically and horizontally, meant to protect individual liberty. In arguing for the adoption of the Constitution, Madison wrote in Federalist 48:

> The accumulation of all powers, legislative, executive, and judiciary in the same hands, whether of one, a few, or many, and whether hereditary, self-appointed, or elective, may justly be pronounced the very definition of tyranny.

He also notes in Federalist 47:

> [T]he preservation of liberty requires that the three great departments of power should be separate and distinct.

In Federalist 51, Madison famously notes:

> Ambition must be made to counteract ambition.

The Founders also created a republican—small ''r''—form of government never tried before on this scale and made it accountable to the people. And the virtues of this form of government were certainly extolled in Madison Federalist 10.

The Founders understood human nature. They knew what tyranny looked like and understood that having a government where power is properly spread out and having elected representatives accountable to the people safeguarded liberty and freedom.

They understood that freedom of speech and, more broadly, principles of pluralism were crucial to the survival of the Republic. They also understood that a Republic spread across a continent needed a pressure release valve to resolve political disputes, not through violence, as we see even in the world today, but through elections and free expression.

It is in this vein that I want to return to the two grave threats to the Founders' vision, the principles of separation of powers, our republican form of government, and individual liberty: the administrative state and attacks on free speech.

First, the vast expansion of Federal administrative power that we have seen in recent history is destroying representative government by placing immense power in the hands of the unelected. The article I branch, the people's branch, is being diluted of its rightful role—willingly, I might add—and the power exerted by this class of experts is doing great damage to a government based on accountability. These unelected bureaucrats can issue rules, regulations, or guidance letters that can destroy people's lives and their liberty and nobody ever elected these folks to anything.

This massive aggregation of Federal regulatory power is eating away at our freedoms and liberties, deepening political division, and cheapening discourse, and it is completely antithetical to the vision the Founders had. It is called the administrative state. And it falls on each one of us here in the article I branch, in this time and place, to fundamentally dismantle it.

When I say ''administrative state,'' I mean the mess of alphabet Agencies that have slowly yet aggressively aggregated and amassed power over the years, promulgating rules and regulations with reckless abandon. See, you can send your elected representative home. You can send them there, send them back, send them home. But these so-called experts are not really accountable to anybody ever. It is out of control. In short, it is a runaway train with an invisible conductor.

If left unchecked, they will continue to amass power bit by bit until our core principles and our liberties that make our country unique are a mere prologue to history. We need deep structural reform, and we need to return power back to where it belongs—in the hands of the Article I branch, the people's branch.

A second major threat to the Republic is the unprecedented stifling of First Amendment rights in new, innovative, and modern ways. The freedom to speak your mind in the public square or in the virtual town square is vital to the health of the Republic. Far too many Americans are being told what they can say, what they can hear, and what they can see. Censorship—censorship—is on the rise. The desire of governments and powerful elites to control speech is hardly new, but America has always stood as the exception.

Long before the Revolutionary War, Americans witnessed the oppression of speech. More than 1,200 times before 1700, the British prosecuted and punished Americans for what they called seditious speech. Sedition laws prohibited criticism of the government based

on the idea that that criticism could inflame the public against the government. But as the Revolutionary War approached, colonists began standing up for free speech. Colonial juries began refusing British requests to issue indictments for criticizing the government. They acquitted individuals accused of criticizing the government. They tossed tea into the harbor to protest taxes, and we printed publications denouncing the King. We were on our way.

We, the American people, wanted to protect the free expression of ideas, and we did so in the very first amendment to the Constitution. We protected it not just for peaceful times but especially in times of crisis or so-called emergencies. It is easy to forget how fortunate we are here in America to have the First Amendment and how terrifying it is to see how frequently now it is being violated.

Recently, government actors colluded with big tech companies—some of the biggest companies and the most powerful companies in the history of the world—to censor and deplatform individuals for not buying in to the approved narrative. Whether you agree with that narrative or not is hardly the point. The point is it is incredibly dangerous. Suppression of speech and censorship is justified now as it has always been but with a new lexicon, calling it misinformation or disinformation; but the goal is still the same: power and control.

We saw the Department of Homeland Security recently attempt to set up an Orwellian disinformation governance board. We saw individuals silenced and suspended from platforms at the government's behest for challenging the validity of mask mandates and lockdowns or for questioning the official narrative of the origins of COVID–19—for simply speaking their minds. It is not the government's job to tell us what we can hear or what we are supposed to believe. Each one of us can make those decisions ourselves—period.

This vast censorship enterprise was at the behest of some of the highest ranking government officials in the country. For example, the Surgeon General of the United States was messaging with senior Facebook executives, demanding that they censor speech more stringently. Whatever your political persuasion is, this ought to scare the bejesus out of every American. Our government is supposed to be protecting our rights and liberties, not infringing upon them. And we have to ensure that this never happens again.

As Justice Hugo Black wrote:

> The freedoms [of the] First Amendment must be accorded to the ideas we hate or, sooner or later, they will be denied to the ideas [that] we cherish.

In short, we have to be willing to defend somebody's ability to say something we vehemently oppose. We must be willing to protect the rights of citizens to speak their minds free from censorship and fundamentally dismantle the administrative state.

I mentioned that Missouri is at the crossroads of America; but in many ways, America itself is at a crossroads. It is up to us in this Chamber—the most important legislative body in the history of the world—to address these big issues that directly impact the people we serve. We need to fight back against this censorship industrial complex from controlling what we can say and what we can hear, and we need to ensure that the great wall of the administrative state that separates the people from their elected Representatives comes crumbling down.

When I asked Missourians for their vote last fall, I promised them that I would fight for them. I believe that this is the fight, and the goal is to save our Republic and this grand experiment of self-government.

May God bless each one of you. May God bless the great State of Missouri. May God bless the United States of America.

I yield the floor.

(Applause.)

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 4:30 p.m.

Thereupon, the Senate, at 3:30 p.m., recessed until 4:30 p.m. and reassembled when called to order by the Presiding Officer (Mr. WELCH).

EXECUTIVE CALENDAR—Continued

The PRESIDING OFFICER. The Senator from Ohio.

NOMINATION OF JARED BERNSTEIN

Mr. BROWN. Mr. President, I rise to urge my colleagues to join me in supporting the nomination of Dr. Jared Bernstein to be Chairman of the Council of Economic Advisers, or CEA.

Dr. Bernstein is highly qualified, with close to four decades of economic experience. He has devoted his career to working on economic policies that ensure growth reaches all Americans, fighting to make our economy fairer—something there is a lot of talk about in here but not enough action.

Since the beginning of the Biden administration, he served as a member of CEA. Before that, his experience, again, tells the story. He served in various senior-level roles inside and outside government—chief economist and economic policy adviser to then-Vice President Biden; Deputy Chief Economist, Department of Labor; a senior fellow at the Center on Budget and Policy Priorities; economist at the Economic Policy Institute—all the kinds of qualifications that feed into this job.

Dr. Bernstein is widely respected by his peers from both sides of the aisle. I want to really make that clear. Before his nomination hearing—and I chair the Committee on Banking, Housing, and Urban Affairs, from which he came. Before that hearing, seven—seven—former CEA chairs—the only one that didn't is long, long, long retired. I don't know if he was even asked. But seven former CEA chairs, who served in Republican administrations, wrote to the committee in support of his nomination. Three of them served under President Trump.

Think of that. Seven Republican former CEA chairs—still Republicans, most of them, much more conservative than Jared Bernstein—they all wrote a letter together, initiated by one of the Trump nominees, one of the Trump CEA chairs, Kevin Hassett. He led the effort. He told the New York Times:

> I disagree with Jared about a lot, and Jared and I have been disagreeing about things for 20 years. But he really is a fundamentally good person who tries to figure things out with an open mind, and [sometimes he] changes his mind.

That is really all you want from a CEA chair.

Again, President Trump's chief economist said that Jared Bernstein has an open mind and changes his mind. That is precisely the kind of openness to ideas from anyone, of any party or point of view, that we should all want in an economic adviser.

Despite Dr. Bernstein's years of experience, despite his impeccable credentials, and despite receiving support from seven—I believe the most recent seven—former CEA chairs serving in Republican administrations, my Republican colleagues on the Banking, Housing, and Urban Affairs Committee all voted no to Jared Bernstein.

Now, the decision to vote against his nomination is partisanship for the sake of partisanship, and I will give you an example. This sort of tells the whole story, Mr. President. The Banking and Housing Committee has a tradition of members voting for the President's pick. This isn't the Secretary of the Treasury. This isn't the Secretary of Labor. There are major disagreements. This isn't the head of the EPA.

This is essentially the President's personal economic adviser. So regardless of ideology, we support that, as I did—and I will get to that in a second—with the Trump nominees. Whom the President picks, we support in this body. It is one of the good traditions of the Senate. Not all traditions are good here. That is one of the good traditions of the Senate.

In 2017, I voted for Kevin Hassett, President Trump's nominee to serve as CEA Chair. I wasn't wild about Kevin Hassett. I liked him as a person. I wasn't wild about his ideology. He much too much believed that if you cut taxes on rich people and you give corporations all these tax breaks, it will trickle down and grow the economy.

I didn't buy that. I still don't buy that. We saw that huge tax cut. All it did was make rich people richer, make corporations move jobs overseas more quickly. It never trickles down to help middle-class workers. It never honors the dignity of work. We know that,

but, nonetheless, because the President of the United States, duly elected, picked him as his Chair of the Council of Economic Advisers and Kevin Hassett was honest, he was credentialed—he just was wrong on issues, but that shouldn't stop us from supporting for that position.

In 2021, PAT TOOMEY, the ranking member of the Housing, Banking, and Urban Affairs Committee, voted for Cecelia Rouse, President Biden's CEA nomination. The way I voted for a more conservative economist than I wanted, Senator Toomey voted for a more liberal economist than he wanted because she was qualified, she was credentialed, and she was an honest person.

Next step: The Senate confirmed both of them—Dr. Hassett's nomination, 81 to 16. I led our side of the aisle, with my fellow Democrats here, in an overwhelming—only 16 of them voted against, out of 48 or 49 then, because I stood in the committee and said: We owe this to the White House. The tradition is such in the Senate that you support the Chair of the Council of Economic Advisers.

Dr. Rouse's nomination passed 95 to 4. Senator TOOMEY did the same.

So we all used to agree in this body until somebody made it much more partisan. Never before in this nomination was there this kind of partisanship. We have agreed that the President is entitled to have his choice of CEA Chair.

I see no reason why that should change today. Dr. Bernstein's Republican peers and Democratic peers all came together and supported him. There is no reason the Senate shouldn't, in that same bipartisan fashion, vote to confirm his nomination. There are no really good reasons at all to do that.

I urge my colleagues to support Dr. Jared Bernstein's nomination to be Chair of the Council of Economic Advisers.

NOMINATION OF HERNAN D. VERA

Mr. DURBIN. Mr. President, today, the Senate will vote to confirm Judge Hernan Vera to the U.S. District Court for the Central District of California. With his years of experience defending equal justice under law, Judge Vera will make an excellent addition to the Federal bench. He received a B.A. from Stanford University and a J.D. from the UCLA School of Law before clerking for Judge Consuelo B. Marshall on the Central District of California. Following his clerkship, Judge Vera entered private practice and focused on complex business disputes with an emphasis on commercial civil litigation and intellectual property issues. He then spent 12 years working for Public Counsel, the Nation's largest pro bono law firm, and eventually became the firm's CEO. During his time with Public Counsel, he exclusively represented low-income clients and litigated hundreds of matters involving consumer fraud, housing, employment, and other civil rights issues.

In 2020, Judge Vera was appointed to the Los Angeles Superior Court. Since his appointment to the bench, he has presided over more than 200 cases that have gone to verdict or judgment, including cases involving juvenile dependency issues and allegations of child abuse and neglect.

Judge Vera has extensive litigation experience and a proven track record of independent decisionmaking on the bench. And having dedicated such a significant portion of his career to pro bono work, he will bring a unique perspective to the Central District of California.

The American Bar Association unanimously rated Judge Vera ''well qualified'' for the Federal bench, and he has the strong support of his home State Senators: Mrs. FEINSTEIN and Mr. PADILLA.

I urge my colleagues to support his nomination.

Mr. BROWN. Mr. President, I ask unanimous consent that the vote scheduled at 5 p.m. begin immediately.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

VOTE ON VERA NOMINATION

The question is, Will the Senate advise and consent to the Vera nomination?

Mr. BROWN. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. THUNE. The following Senator is necessarily absent: the Senator from Alabama (Mr. TUBERVILLE).

The result was announced—yeas 51, nays 48, as follows:

[Rollcall Vote No. 157 Ex.]

YEAS—51

Baldwin	Heinrich	Reed
Bennet	Hickenlooper	Rosen
Blumenthal	Hirono	Sanders
Booker	Kaine	Schatz
Brown	Kelly	Schumer
Cantwell	King	Shaheen
Cardin	Klobuchar	Sinema
Carper	Luján	Smith
Casey	Manchin	Stabenow
Coons	Markey	Tester
Cortez Masto	Menendez	Van Hollen
Duckworth	Merkley	Warner
Durbin	Murphy	Warnock
Feinstein	Murray	Warren
Fetterman	Ossoff	Welch
Gillibrand	Padilla	Whitehouse
Hassan	Peters	Wyden

NAYS—48

Barrasso	Ernst	Moran
Blackburn	Fischer	Mullin
Boozman	Graham	Murkowski
Braun	Grassley	Paul
Britt	Hagerty	Ricketts
Budd	Hawley	Risch
Capito	Hoeven	Romney
Cassidy	Hyde-Smith	Rounds
Collins	Johnson	Rubio
Cornyn	Kennedy	Schmitt
Cotton	Lankford	Scott (FL)
Cramer	Lee	Scott (SC)
Crapo	Lummis	Sullivan
Cruz	Marshall	Thune
Daines	McConnell	Tillis
		Vance
		Wicker
		Young

NOT VOTING—1

Tuberville

The nomination was confirmed.

(Mr. MARKEY assumed the Chair.)

The ACTING PRESIDENT pro tempore. Under the previous order, the motion to reconsider is considered made and laid upon the table, and the President will be immediately notified of the Senate's action.

VOTE ON BERNSTEIN NOMINATION

Under the previous order, the question is, Will the Senate advise and consent to the Bernstein nomination?

Mr. MENENDEZ. I ask for the yeas and nays.

The ACTING PRESIDENT pro tempore. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The bill clerk called the roll.

Mr. THUNE. The following Senator is necessarily absent: the Senator from Alabama (Mr. TUBERVILLE).

The result was announced—yeas 50, nays 49, as follows:

[Rollcall Vote No. 158 Ex.]

YEAS—50

Baldwin	Heinrich	Rosen
Bennet	Hickenlooper	Sanders
Blumenthal	Hirono	Schatz
Booker	Kaine	Schumer
Brown	Kelly	Shaheen
Cantwell	King	Sinema
Cardin	Klobuchar	Smith
Carper	Luján	Stabenow
Casey	Markey	Tester
Coons	Menendez	Van Hollen
Cortez Masto	Merkley	Warner
Duckworth	Murphy	Warnock
Durbin	Murray	Warren
Feinstein	Ossoff	Welch
Fetterman	Padilla	Whitehouse
Gillibrand	Peters	Wyden
Hassan	Reed	

NAYS—49

Barrasso	Graham	Paul
Blackburn	Grassley	Ricketts
Boozman	Hagerty	Risch
Braun	Hawley	Romney
Britt	Hoeven	Rounds
Budd	Hyde-Smith	Rubio
Capito	Johnson	Schmitt
Cassidy	Kennedy	Scott (FL)
Collins	Lankford	Scott (SC)
Cornyn	Lee	Sullivan
Cotton	Lummis	Thune
Cramer	Manchin	Tillis
Crapo	Marshall	Vance
Cruz	McConnell	Wicker
Daines	Moran	Young
Ernst	Mullin	
Fischer	Murkowski	

NOT VOTING—1

Tuberville

The nomination was confirmed.

The PRESIDING OFFICER (Mr. KELLY). Under the previous order, the motion to reconsider is considered made and laid upon the table, and the President will be immediately notified of the Senate's action.

The Senator from Illinois.

LEGISLATIVE SESSION

MORNING BUSINESS

Mr. DURBIN. Mr. President, I ask unanimous consent that the Senate

proceed to legislative session and be in a period of morning business with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

ARMS SALES NOTIFICATION

Mr. MENENDEZ. Mr. President, section 36(b) of the Arms Export Control Act requires that Congress receive prior notification of certain proposed arms sales as defined by that statute. Upon such notification, the Congress has 30 calendar days during which the sale may be reviewed. The provision stipulates that, in the Senate, the notification of proposed sales shall be sent to the chairman of the Senate Foreign Relations Committee.

In keeping with the committee's intention to see that relevant information is available to the full Senate, I ask unanimous consent to have printed in the RECORD the notifications which have been received. If the cover letter references a classified annex, then such annex is available to all Senators in the office of the Foreign Relations Committee, room SD–423.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

DEFENSE SECURITY COOPERATION AGENCY,
Washington, DC.

Hon. ROBERT MENENDEZ,
Chairman, Committee on Foreign Relations, U.S. Senate, Washington, DC.

DEAR MR. CHAIRMAN: Pursuant to the reporting requirements of Section 36(b)(1) of the Arms Export Control Act, as amended, we are forwarding herewith Transmittal No. 23–46, concerning the Navy's proposed Letter(s) of Offer and Acceptance to the Government of France for defense articles and services estimated to cost $160 million. We will issue a news release to notify the public of this proposed sale upon delivery of this letter to your office.

Sincerely,

JAMES A. HURSCH,
Director.

Enclosures.

TRANSMITTAL NO. 23–46

Notice of Proposed Issuance of Letter of Offer Pursuant to Section 36(6)(1) of the Arms Export Control Act, as amended

(i) Prospective Purchaser: Government of France.

(ii) Total Estimated Value:
Major Defense Equipment* $0 million.
Other $160 million.
Total $160 million.

(iii) Description and Quantity or Quantities of Articles or Services Under Consideration for Purchase: Foreign Military Sales (FMS) case FR–P–GWR for non-MDE E–2C Hawkeye sustainment support was originally valued at $99.6 million, below the congressional notification threshold. The Government of France has requested the case be amended to include additional non-MDE E–2C Hawkeye sustainment items and services. This case amendment will increase the total case value above the total non-MDE notification threshold and thus notification of the entire FMS case is now required.

Major Defense Equipment (MDE): None.

Non-MDE: Included is an Engine Component Improvement Program (CIP); software updates; technical publication; U.S. Government and contractor technical and product support and assistance; and other related elements of logistics and program support.

(iv) Military Department: Navy (FR–P–GWR).

(v) Prior Related Cases, if any: FR–P–SBG, FR–P–SBI, FR–P–SBL.

(vi) Sales Commission, Fee, etc., Paid, Offered, or Agreed to be Paid: None.

(vii) Sensitivity of Technology Contained in the Defense Article or Defense Services Proposed to be Sold: None.

(viii) Date Report Delivered to Congress: June 13, 2023.

*As defined in Section 47(6) of the Arms Export Control Act.

POLICY JUSTIFICATION

France—E–2C Hawkeye Sustainment Support

The Government of France has requested to buy additional non-MDE E–2C Hawkeye sustainment items and services that will be added to a previously implemented case. The original Foreign Military Sales (FMS) case, valued at $99.6 million, included E–2C Hawkeye sustainment support. Therefore, this notification is for E–2C Hawkeye sustainment support, which includes an Engine Component Improvement Program (CIP); software updates; technical publications; U.S. Government, and contractor technical and product support and assistance; and other related elements of logistics and program support. The estimated total cost is $160 million,

This proposed sale will support the foreign policy and national security objectives of the United States by helping to improve the security of a NATO Ally that is an important force for political stability and economic progress in Europe.

The proposed sale will improve France's capability to meet current and future threats in the European domain by maintaining its E–2C fleet in fully mission-capable status and sustain introperability with U.S. and NATO forces. France will have no difficulty absorbing these articles and services into its armed forces.

The proposed sale of this equipment and support will not alter the basic military balance in the region.

The principal U.S. contractor will be Northrop Grumman, Melbourne, FL. There are no known offset agreements proposed in connection with this potential sale.

Implementation of the proposed sale will require occasional government personnel to visit France on a temporary basis and one contractor personnel to be permanently assigned in France in conjunction with program technical Oversight and support requirements, including program and technical reviews as well as training and maintenance support.

There will be no adverse-impact on U.S. defense readiness as a result of this proposed sale.

ARMS SALES NOTIFICATION

Mr. MENENDEZ. Mr. President, section 36(b) of the Arms Export Control Act requires that Congress receive prior notification of certain proposed arms sales as defined by that statute. Upon such notification, the Congress has 30 calendar days during which the sale may be reviewed. The provision stipulates that, in the Senate, the notification of proposed sales shall be sent to the chairman of the Senate Foreign Relations Committee.

In keeping with the committee's intention to see that relevant information is available to the full Senate, I ask unanimous consent to have printed in the RECORD the notifications which have been received. If the cover letter references a classified annex, then such annex is available to all Senators in the office of the Foreign Relations Committee, room SD–423.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

DEFENSE SECURITY COOPERATION AGENCY,
Washington, DC.

Hon. ROBERT MENENDEZ,
Chairman, Committee on Foreign Relations, U.S. Senate, Washington, DC.

DEAR MR. PRESIDENT: Pursuant to the reporting requirements of Section 36(b)(1) of the Arms Export Control Act, as amended, we are forwarding herewith Transmittal. No. 23–13 concerning the Navy's proposed Letter(s) of Offer and Acceptance to the Government of Kuwait for defense articles and services estimated to cost $1.8 billion. We will issue a news release to notify the public of this proposed sale upon delivery of this letter to your office.

Sincerely,

MIKE MILLER
(For James A. Hursch, Director).

Enclosures.

TRANSMITTAL NO. 23–13

Notice of Proposed Issuance of Letter of Offer Pursuant to Section 36(b)(1) of the Arms Export Control Act, as amended

(i) Prospective Purchaser: Government of Kuwait.

(ii) Total Estimated Value:
Major Defense Equipment* $0.
Other $1.8 billion.
Total $1.8 billion.
Funding Source: National Funds.

(iii) Description and Quantity or Quantities of Articles or Services under Consideration for Purchase:
Major Defense Equipment (MOE): None.

Non-MDE: Continuation of contractor engineering technical services; contractor maintenance services; Hush House (an enclosed, noise-suppressed aircraft jet engine testing facility) support services; and Liaison Office Support for the Government of Kuwait's F/A–18 C/D/E/F program, to include: F/A–18 avionics software upgrades; engine component improvements; ground support equipment; engine and aircraft spares and repair parts; publications and technical documentation; Engineering Change Proposals (ECP); U.S. Government and contractor programmatic, financial, and logistics support; maintenance and engineering support; F404/F414 engine and engine test cell support; and other related elements of logistical and program support.

(iv) Military Department: Navy (KU–P–GHY).

(v) Prior Related Cases, if any: KU–P–GGX, KU–P–GHI, KU–P–GHJ, KU–P–SBG.

(vi) Sales Commission, Fee, etc., Paid, Offered, or Agreed to be Paid: None.

(vii) Sensitivity of Technology Contained in the Defense Article or Defense Services Proposed to be Sold: None.

(viii) Date Report Delivered to Congress: June 13, 2023.

*As defined in Section 47(6) of the Arms Export Control Act.

POLICY JUSTIFICATION

Kuwait—Follow-On Technical Support

The Government of Kuwait has requested to buy continuation of contractor engineering technical services; contractor maintenance services; Hush House (an enclosed, noise-suppressed aircraft jet engine testing

facility) support services; and Liaison Office Support for the Government of Kuwait's F/A–18 C/D/E/F program, to include: F/A–18 avionics software upgrades; engine component improvements; ground support equipment; engine and aircraft spares and repair parts; publications and technical documentation; Engineering Change Proposals (ECP); U.S. Government and contractor programmatic, financial, and logistics support; maintenance and engineering support; F404/F414 engine and engine test cell support; and other related elements of logistical and program support. The estimated cost is $1.8 billion.

This proposed sale will support the foreign policy and national security objectives of the United States by helping to improve the security of a Major Non-NATO ally that has been an important force for political stability and economic progress in the Middle East.

The proposed sale will improve Kuwait's ability to meet current and future regional threats. Kuwait will have no difficulty absorbing this support and services into its armed forces.

The proposed sale of this equipment and support will not alter the basic military balance in the region.

The principal contractors will be Sigmatech, Inc., Huntsville, AL; Kay and Associates, Inc., Buffalo Grove, IL; Kellogg, Brown, and Root, Houston, TX; L3 Technologies, Melbourne, FL; The Boeing Company, St. Louis, MO; General Electric, Lynn, MA; Industrial Financial Services, Ottawa, ON; and Lockheed Martin, Orlando, FL. Additional principal contractors will be determined by a competitive contractual award process. There are no known offset agreements proposed in connection with this potential sale.

Implementation of this proposed sale will require the assignment of seven hundred thirty-five (735) U.S. Government and contractor representatives to Kuwait for a period of three years to establish and maintain operational capability.

There will be no adverse impact on U.S. defense readiness as a result of this proposed sale.

RECOGNIZING THE NORTHWESTERN WOMEN'S LACROSSE TEAM

Mr. DURBIN. Mr. President, I would like to congratulate the Northwestern Wildcats for winning this year's National Collegiate Athletics Association—NCAA—Division I Women's Lacrosse Championship. This historic victory marks the team's first national title since 2012, nearly a decade in the making.

Clinching a championship comes down to a series of moments: split-second decisions during showdowns on the field, putting in extra sprints after practice, and taking time to strategize after a close loss. For the Northwestern women's lacrosse team, this year's victory can be traced back to one moment in 2002. That was the year Northwestern started its varsity women's lacrosse program with Coach Kelly Amonte Hiller at the helm, a role she still holds to this day. A lacrosse legend in her own right, Coach Amonte Hiller has cultivated a culture of excellence at Northwestern.

During her first year, Coach Amonte Hiller built an impressive team, recruiting players from across the country and adding students from around campus. Two players on the inaugural team had never even played lacrosse. Nonetheless, Coach Amonte Hiller saw something in the young team—and her instincts were right: The players, who began as freshmen, went on to finish the 2005 season 21–0. It was the first time the Wildcats were crowned national champions, but not the last. And with their victory in 2005, Northwestern became the first non-Eastern Time Zone school—male or female—to win an NCAA national championship in lacrosse. In every season that followed, Coach Amonte Hiller led the Wildcats to the NCAA finals—and secured the championship eight times.

Throughout her tenure, Coach Amonte Hiller has been applauded for her recruitment efforts—searching for players across the country and shaking up the model for what collegiate lacrosse teams traditionally have looked like. While lacrosse was invented by Native Americans, collegiate teams have been predominantly White, with the majority of recruits coming from the East Coast. Instead of limiting her recruiting efforts to this area of the country, Coach Amonte Hiller has sought to discover talent from all over. In fact, one member of the Wildcats was inspired to play at Northwestern as a young athlete, after watching a fellow Black player and Texas native, who Coach Amonte Hiller had recruited, compete in the NCAA finals. And in 2011, ''ESPN The Magazine'' named Coach Amonte Hiller one of the 20 best recruiters across all college sports, joining the ranks of other NCAA championship winning coaches.

Resilience can be defined as believing in the possibility of success and remaining determined to overcome any challenge. And the Wildcats rise to this year's NCAA national championship was a masterclass in resilience. Last season, after a bitter loss that knocked Northwestern out of the semifinals, alongside season-long injuries that kept key players on the sidelines, the Wildcats dusted themselves off and committed themselves to bringing home a national title. Several players even made the decision to stay on campus and play in their fifth year of eligibility as graduate students, which meant putting their postgraduation plans on hold. And it was a sacrifice worth making.

The Wildcats never shied away from a challenge, and the team filled their schedule with tough, matchups. They opened the 2023 season with a game against a top-ranked team, which they lost by a single point. It was the Wildcats' first and final loss of the season, and they began a 21-game winning streak.

In the championship game, the Wildcats faced Boston College. With vital contributions from both freshman players and graduate students alike, the depth of the Wildcats' bench was on full display. They finished the game with a 12-point lead. And as a result, for the first time in 11 years, the Northwestern Wildcats claimed the national title.

The continued success of this program has inspired young athletes throughout the region. The expansion of lacrosse to other colleges and westward, along with the rise in demand for youth lacrosse in Illinois, is a testament to the excitement Northwestern has helped generate. Since that fateful moment in 2002, when Amonte Hiller took the reins as coach, Northwestern has emerged as a powerhouse in women's lacrosse.

I would like to congratulate every member of the Northwestern Wildcats women's lacrosse team, and especially Coach Kelly Amonte Hiller for her years of leadership. This year's national championship will be Amonte Hiller's eighth national title, matching Navy coach, Cindy Timchal, for the most won championships in women's college lacrosse history.

Coach Kelly Amonte Hiller and her team represent the best of Illinois. I hope their resilience, dedication, and commitment will continue to serve as an inspiration for young athletes across the country for years to come.

CENTENNIAL CELEBRATION OF EVANSVILLE, WYOMING

Mr. BARRASSO. Mr. President, I rise today to celebrate the Centennial of Evansville, WY. Located in Natrona County, just east of the city of Casper, Evansville is home to 2,746 residents. Settled along the North Platte River, the area boasts many opportunities for outdoor recreation and activities. Visitors to the Edness Kimball Wilkins State Park can enjoy fishing, hiking, canoeing, and biking. Named after Edness Wilkins, a longtime Natrona County legislator, the park is also a great place for wildlife viewing.

Evansville's history is built upon a legacy of opportunity. With its proximity to the North Platte River, the area was a gateway to the West. The area, originally popular with mountain men and fur traders, attracted thousands of American Pioneers along the Oregon, California, and Mormon trails during the 1850s and 1860s.

In the fall of 1852, French trader John Baptiste Richard built the first successful bridge over the North Platte River. He designed the thousand-foot bridge with reinforced wood piers meant to withstand high water and strong currents. Given his accent, many thought Richard pronounced his name ''Reshaw.'' Thus, the crossing became widely known as Reshaw's Bridge. It was completed in 1853 and was immensely popular. That year, nearly 50,000 people paid fees to cross the river safely.

As traffic at the bridge increased, a settlement developed in the area. This included a trading post, where travelers could barter for buckskin clothing, moccasins, and other supplies.

Eventually, competition from other bridges and alternate routes drew visitors away, and the post was abandoned.

In 1855, the US Army established Fort Clay, an outpost of Fort Laramie, where soldiers protected citizens living in the area. By 1856, the fort housed the 10th Infantry, led by Captain Henry Heth. It was renamed Camp Davis in honor of Jefferson Davis. The Army briefly used Camp Davis from 1855 to 1856 and later as a supply post during the Mormon war.

During an especially hard winter in 1865–66, soldiers from nearby Fort Caspar dismantled Reshaw's Bridge and used it for firewood. Today, a replica of the bridge stands in Reshaw Park in Evansville. The town of Evansville also maintains a free exhibit in the community center detailing the site's history.

In 1911, William T. Evans, an English immigrant, homesteaded a plot of land in the area and began a successful ranch. As the area grew, Evans began parceling off property for homes and businesses. He built many of the area's most prominent buildings, including the Bishop House in Casper, which was listed on the U.S. National Register of Historic Places in 2001. Evansville was officially incorporated on May 15, 1923.

Evansville and the surrounding area experienced rapid growth during the oil boom of the 1920s, with the discovery of oil and natural gas at Salt Creek Oil Field. During this time, Evansville was home to two of the State's 16 refineries. The Texas Company, established in 1922, and White Eagle Oil and Refining, established in 1923, boosted the small town's economy. While oil and natural gas development is still a primary economic driver, Evansville has many thriving small businesses whose owners are committed to giving back to the community.

The only Wyoming State Veterans Cemetery—Oregon Trail State Veterans Cemetery—is also located in Evansville. Built in 1983, the cemetery holds regular events to honor our current, former, and fallen U.S. servicemembers.

On November 11, 2022—Veterans Day—I was honored to join members of the Evansville community in honoring the life and service of Leo Sanchez. Leo, a Casper native, served as a U.S. Marine in the Korean war. Officials renamed a bridge leading from the cemetery to Evansville the Leo R. Sanchez Freedom Bridge. It is a testament to his decades of service as a teacher, mentor, and American hero.

There are several events planned to celebrate Evansville's centennial. On May 15, the town's actual centennial, Evansville's first responders hosted a parade. Students at Evansville Elementary School spent time learning about the area's history and contributed to a time capsule. On June 24, town officials and residents will celebrate its 100th birthday with a family-friendly festival in Reshaw Park. There will be vendors, food trucks, and live music and a fireworks show. I appreciate the efforts of Evansville council member Candace Machado and the members of the centennial planning committee: Alona Vigneault, Town Clerk Janelle Underwood, PW Director Robert Lewallen, Carol Knop, Ardell Breed, Fire Chief Leo Malsom, and Police Chief MIKE THOMPSON.

The Town of Evansville is led by these dedicated individuals:

Chad Edwards, Mayor
Candace Machado, Council Member
Dacia Edward, Council Member
Greg Flesvig, Council Member
Janelle Underwood, Clerk
Lexi Erickson, Treasurer
Shane Porter, Planning/Zoning Director
Robert Lewallen, Public Works Director
Mike Thompson, Police Chief
Leo Malsom, Fire Chief

Evansville is a remarkable place. I applaud the citizens who continue to improve their community, making it a safe and welcoming place for all to visit. In honor of Evansville's centennial celebration, my wife Bobbi joins me in recognizing this special milestone.

70TH ANNIVERSARY OF KOBI-TV/NBC5

Mr. WYDEN. Mr. President, today I want to recognize and honor KOBI-TV/NBC5 in Medford on its 70th anniversary. KOBI went on the air on August 1, 1953, and is an integral part of its parent company California Oregon Broadcasting, Inc., founded in 1933 by William B. Smullin.

In classic KOBI and ''Oregon Way'' fashion, this TV station is celebrating seven decades of public service serving southern Oregon by teaming up with the United Way of Jackson County for a ''United in Kindness'' campaign.

This community campaign is gathering stories of kindness, civility, generosity, and charity that will be featured throughout this year on the air and online.

What a wonderful example of how KOBI informs and lifts up its community. That has been the case since 1953 when Bill Smullin founded the station—the first VHF TV station in Oregon. Seventy years later, it remains one of the very few locally owned and operated TV stations in the United States.

Bill Smullin's daughter Patricia C. ''Patsy'' Smullin has guided KOBI since 1985 as owner and president of California Oregon Broadcasting, Inc., Ms. Smullin has earned numerous honors in that time. Among those honors are the Chuck Sherman Television Leadership Award from the National Association of Broadcasters in recognition of an individual demonstrating leadership, service and commitment to local television in medium and smaller markets; and the Oregon Association of Broadcasters Tom McCall Award for outstanding service to the State and to the nation.

When I am in southern Oregon, for townhalls, community meetings and more, I make it a regular practice to come into the KOBI studio. There, I can count on a thorough and fair discussion from well-prepared interviewers about issues affecting southern Oregon.

For 70 years, viewers in southern Oregon have been equally able to count on KOBI's steadfast commitment to local journalism. I know I speak for all those viewers when I say thank you for that commitment the past seven decades and here is to many more decades of success.

ADDITIONAL STATEMENTS

TRIBUTE TO DEVINDER MALHOTRA

● Ms. SMITH. Mr. President, I rise today to recognize the career of Chancellor Devinder Malhotra. Devinder is retiring this summer from his role as chancellor of the Minnesota State Colleges and Universities.

Devinder has served as chancellor or interim chancellor since 2017. During that time, the system of 26 colleges, 7 universities, and 54 campuses has advanced its strategic priorities towards building a systemwide identity and leveraging the advantages that come from its scale and scope as one of the largest higher education systems in the country.

Under his leadership, Minnesota State launched Equity 2030, a key strategic initiative that set a critical goal of eliminating educational equity gaps, including by race and ethnicity, socioeconomic background, and first-generation status at every Minnesota State college and university by the year 2030. This work is currently underway and has received broad support throughout the system, including from presidents, bargaining units, faculty, staff, and students.

Chancellor Malhotra led the system through the uncertainty of the pandemic. His commitment and dedication has helped thousands create a better future for themselves, their families, and their communities, all while working to address Minnesota's workforce needs.

I have had the pleasure of knowing and working with Devinder for years. I thank him for his service to our State. On behalf of the State of Minnesota, I wish him all the best as he enjoys all that retirement has to offer.●

RECOGNIZING KLYCE TRUE VALUE HARDWARE STORE

● Mr. WICKER. Mr. President, today, June 13, 2023, Klyce True Value Hardware in Sardis, MS, will celebrate its 100th year of business. It is my pleasure to congratulate William ''Bill'' Klyce, the current owner, on this milestone.

This family-owned local store is a picture of the American dream. In 1923, Fred Walthall Klyce, Sr., opened for

business in downtown Sardis. He never dreamed his shop would become an anchor of the town for the next century. Fred passed the business down to his son John Klyce, Sr., who would then hand it down to his own son Bill Klyce. Through the years, Klyce Hardware has become a repository for the history of Sardis. Visitors will be surprised at the artifacts they find when they walk through the store.

Klyce Hardware has always been characterized by community service. Today, Bill Klyce stocks the nuts, bolts, paints, and brushes his customers expect. But he does even more than that. Occasionally, someone needs an item he does not carry. When they do, he goes out of his way to find it. And sometimes, emergencies happen on a Sunday. When they do, Bill has been known to open the store so his fellow townspeople can repair their homes in a pinch.

Many who hear the story of Klyce Hardware will find it familiar, even if they have never heard of this particular store. They will recognize it because they know and love similar shops in their own towns. They have their own Klyce Hardware and their own Bill Klyce.

Across our Nation stretches a constellation of small businesses that quietly support the American way of life. The entrepreneurs who start them perform a kind of magic. Their enterprises create most American jobs, inject energy into local economies, and meet the practical needs of their neighbors. Without them, the American economy would lack its characteristic strength and optimism.

I want to thank Bill personally for carrying the legacy of his family's dream, and I want to congratulate Klyce Hardware on 100 years of outstanding service to the people of Sardis. The Klyce family represents the best of American enterprise, and I am glad to honor them today.●

MESSAGES FROM THE HOUSE

At 12:23 p.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following bill, in which it requests the concurrence of the Senate:

H.R. 662. An act to amend the Disaster Relief Supplemental Appropriations Act, 2023 to improve disaster relief funding for agricultural producers, and for other purposes.

The message further announced that pursuant to section 114(b) of the John C. Stennis Center for Public Service Training and Development Act (2 U.S.C. 1103), the Minority Leader reappoints the following Member of the House of Representatives to the Board of Trustees for the John C. Stennis Center for Public Service Training and Development for a term of 6 years: Ms. TERRI A. SEWELL of Alabama.

At 6:12 p.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following joint resolution, in which it requests the concurrence of the Senate:

H.J. Res. 44. Joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Bureau of Alcohol, Tobacco, Firearms, and Explosives relating to ''Factoring Criteria for Firearms with Attached 'Stabilizing Braces' ''.

MEASURES REFERRED

The following bill was read the first and the second times by unanimous consent, and referred as indicated:

H.R. 662. An act to amend the Disaster Relief Supplemental Appropriations Act, 2023 to improve disaster relief funding for agricultural producers, and for other purposes; to the Committee on Appropriations.

MEASURES PLACED ON THE CALENDAR

The following joint resolution was read the first and second times by unanimous consent, and placed on the calendar:

H.J. Res. 44. Joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Bureau of Alcohol, Tobacco, Firearms, and Explosives relating to ''Factoring Criteria for Firearms with Attached 'Stabilizing Braces' ''.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–1506. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report entitled ''Determination Under Section 506(a)(1) of the Foreign Assistance Act of 1961 (FAA) to Provide Military Assistance to Ukraine''; to the Committee on Foreign Relations.

EC–1507. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report entitled ''Determination Under section 7034(I)(5) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2023 (Div. K, P.L. 117–328)''; to the Committee on Foreign Relations.

EC–1508. A communication from the Assistant Secretary of Defense (Legislative Affairs), transmitting additional legislative proposals that the Department of Defense requests be enacted during the first session of the 118th Congress; to the Committee on Foreign Relations.

EC–1509. A communication from the Chair of the Board of Governors, Federal Reserve System, transmitting, pursuant to law, the Inspector General's Semiannual Report for the six-month period from October 1, 2022 through March 31, 2023; to the Committee on Homeland Security and Governmental Affairs.

EC–1510. A communication from the Chairman, National Railroad Passenger Corporation, Amtrak, transmitting, pursuant to law, the Inspector General's Semiannual Report to Congress for the period from October 1, 2022 through March 31, 2023; to the Committee on Homeland Security and Governmental Affairs.

EC–1511. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, the Department's Semiannual Report of the Inspector General for the period from October 1, 2022 through March 31, 2023; to the Committee on Homeland Security and Governmental Affairs.

EC–1512. A communication from the Board Chairman and Chief Executive Officer, Farm Credit Administration, transmitting, pursuant to law, the Administration's Semiannual Report of the Inspector General and the Semiannual Management Report on the Status of Audits for the period from October 1, 2022 through March 31, 2023 received in the Office of the President pro tempore; to the Committee on Homeland Security and Governmental Affairs.

EC–1513. A communication from the Secretary of Labor, transmitting, pursuant to law, the Department's Semiannual Report of the Inspector General for the period from October 1, 2022 through March 31, 2023; to the Committee on Homeland Security and Governmental Affairs.

EC–1514. 15A communication from the Administrator, Environmental Protection Agency, transmitting, pursuant to law, the Agency's Semiannual Report of the Office of Inspector General for the period from October 1, 2022 through March 31, 2023; to the Committee on Homeland Security and Governmental Affairs.

EC–1515. A communication from the Deputy Inspector General for Audit Services, Department of Health and Human Services, transmitting, pursuant to law, a report entitled ''Department of Health and Human Services Met Many Requirements, but It Did Not Fully Comply With the Payment Integrity Information Act of 2019 and Applicable Improper Payment Guidance for Fiscal Year 2022''; to the Committee on Homeland Security and Governmental Affairs.

EC–1516. A communication from the Chairman of the Railroad Retirement Board, transmitting, pursuant to law, the Board's Semiannual Report of the Inspector General for the period from October 1, 2022 through March 31, 2023; to the Committee on Homeland Security and Governmental Affairs.

EC–1517. A communication from the Executive Director of the Acquisition, Policy, and Oversight, Office of the Chief Procurement Officer, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Homeland Security Acquisition Regulation; Safeguarding of Controlled Unclassified Information (HSAR Case 2015–001)'' (RIN1601–AA76) received during adjournment of the Senate in the Office of the President of the Senate on May 26, 2023; to the Committee on Homeland Security and Governmental Affairs.

EC–1518. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 25–104, ''Motor Vehicle and Homeowner Insurance Prior Approval Rate Filing Temporary Amendment Act of 2023''; to the Committee on Homeland Security and Governmental Affairs.

EC–1519. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 25–105, ''Migrant Services Eligibility Clarification Temporary Amendment Act of 2023''; to the Committee on Homeland Security and Governmental Affairs.

EC–1520. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 25–106, ''Historic Preservation of Derelict District Properties Extension Temporary Amendment Act of 2023''; to the Committee on Homeland Security and Governmental Affairs.

EC–1521. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 25–104, ''Medical Cannabis Clarification Supplemental Temporary Amendment Act of 2023''; to the Committee on Homeland Security and Governmental Affairs.

EC–1522. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 25–104, ''African American Civil War Museum and Ben's Chili Bowl Limited Grant-Making Authority Temporary Amendment Act of 2023''; to the Committee on Homeland Security and Governmental Affairs.

EC–1523. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 25–110, ''Criminal Justice Coordinating Council Information Sharing Temporary Amendment Act of 2023''; to the Committee on Homeland Security and Governmental Affairs.

EC–1524. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 25–98, ''Davon T. McNeal, III Way Designation Act of 2023''; to the Committee on Homeland Security and Governmental Affairs.

EC–1525. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 25–99, ''Cassandra S. Pinkney Way Designation Act of 2023''; to the Committee on Homeland Security and Governmental Affairs.

EC–1526. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 25–100, ''Wooten Court Designation Act of 2023''; to the Committee on Homeland Security and Governmental Affairs.

EC–1527. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 25–101, ''Rev. Lloyd Young Court Designation Act of 2023''; to the Committee on Homeland Security and Governmental Affairs.

EC–1528. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 25–102, ''Copay Accumulator Amendment Act of 2023''; to the Committee on Homeland Security and Governmental Affairs.

EC–1529. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 25–103, ''William Dorsey Swann Street Designation Act of 2023''; to the Committee on Homeland Security and Governmental Affairs.

EC–1530. A communication from the Assistant Secretary of Defense (Legislative Affairs), transmitting additional legislative proposals that the Department of Defense requests be enacted during the first session of the 118th Congress; to the Committee on Small Business and Entrepreneurship.

EC–1531. A communication from the Associate Administrator, Congressional and Legislative Affairs, Small Business Administration, transmitting, pursuant to law, the report of a rule entitled ''Affiliation and Lending Criteria for the SBA Business Loan Programs'' (RIN3245–AH87) received in the Office of the President of the Senate on June 6, 2023; to the Committee on Small Business and Entrepreneurship.

EC–1532. A communication from the Associate Administrator, Congressional and Legislative Affairs, Small Business Administration, transmitting, pursuant to law, the report of a rule entitled ''Affiliation and Lending Criteria for the SBA Business Loan Programs; Correction'' (RIN3245–AH87) received in the Office of the President of the Senate on June 6, 2023; to the Committee on Small Business and Entrepreneurship.

EC–1533. A communication from the Associate Administrator, Congressional and Legislative Affairs, Small Business Administration, transmitting, pursuant to law, the report of a rule entitled ''Small Business Lending Company (SBLC) Moratorium Rescission and Removal of the Requirement for a Loan Authorization'' (RIN3245–AH87) received in the Office of the President of the Senate on June 6, 2023; to the Committee on Small Business and Entrepreneurship.

EC–1534. A communication from the Director of Congressional Affairs, Federal Election Commission, transmitting, pursuant to law, the report of a rule entitled ''Contributions in the Name of Another'' (Notice 2023–09); to the Committee on Rules and Administration.

EC–1535. A communication from the Deputy Chief of the Policy and Rules Division, Office of Engineering and Technology, Federal Communications Commission, transmitting, pursuant to law, the report of a rule entitled ''Amendment of the Commission's Rules to Make Non-Substantive Editorial Revisions to Part 2'' (ET Docket No. 21–232) received in the Office of the President of the Senate on June 6, 2023; to the Committee on Commerce, Science, and Transportation.

EC–1536. A communication from the Attorney, Office of the General Counsel, Consumer Product Safety Commission, transmitting, pursuant to law, the report of a rule entitled ''Direct Final Rule to Amend Safety Standard for Bedside Sleepers'' (Docket No. CPSC–2012–0067) received in the Office of the President of the Senate on June 6, 2023; to the Committee on Commerce, Science, and Transportation.

EC–1537. A communication from the Deputy Chief, Public Safety and Homeland Security Bureau, Federal Communications Commission, transmitting, pursuant to law, the report of a rule entitled ''Communications Assistance for Law Enforcement Act Electronic Filing System'' (PS Docket No. 22–217) received in the Office of the President of the Senate on June 6, 2023; to the Committee on Commerce, Science, and Transportation.

PETITIONS AND MEMORIALS

The following petition or memorial was laid before the Senate and was referred or ordered to lie on the table as indicated:

POM–28. A resolution adopted by the Senate of Louisiana urging the United States Congress to enact a trade policy that supports United States businesses and workers while penalizing global polluters; to the Committee on Finance.

SENATE RESOLUTION NO. 53

Whereas, Chinese government-owned industry is an arm of the communist party and strives to increase its influence over the global economy by pursuing predatory, unfair trade practices designed to steal intellectual property and destroy competition from the United States; and

Whereas, China's dominance of key components of the global supply chain, including those related to critical minerals, represents a threat to United States economic security and economic and social development; and

Whereas, China, by far the world's largest polluter, accounts for approximately thirty percent of global carbon dioxide (CO_2) emissions and subsidizes its exports by not imposing or enforcing reasonable environmental and labor standards; and

Whereas, the United States has eliminated more carbon emissions than any other country in the last fifteen years, and its economy is forty-four percent more carbon efficient than the world average; and

Whereas, United States' manufacturers are more efficient in nearly every industry from steel to solar panels to automobiles and yet are forced to compete with companies in China and elsewhere that face few limits on how much they pollute; and

Whereas, goods produced in China, on average, generate three times the CO_2 emissions of equivalent goods made in the United States, and goods produced in Russia emit four times the emissions; and

Whereas, minerals mined in China are more than twice as carbon intensive as those mined in the United States, the average carbon intensity of Russian oil is at least thirty-three percent higher than United States oil, and Russian natural gas is sixty percent more greenhouse gas intensive than United States natural gas; and

Whereas, many rural Americans are being left behind economically, suffering from severe poverty, poor health care, and few economic opportunities, making them increasingly vulnerable to crime and the opioid crisis; and

Whereas, the average per capita income for rural Americans is only forty-six thousand dollars, compared to roughly sixty thousand dollars for all Americans, and the poverty rate in rural America is fourteen point four percent, compared with eleven point nine percent nationwide; and

Whereas, United States rural communities have lower wages, property taxes, and land prices, which should give them a competitive advantage in attracting investments in manufacturing that provide revenue streams that help fund local schools and infrastructure; and

Whereas, manufacturing jobs pay a more important role in the rural economy than in urban areas, accounting for a greater share of jobs and earnings; and

Whereas, United States' trade policy, which has given foreign polluters an unfair advantage over the past two decades, has encouraged economic restructuring across rural America that has resulted in manufacturing employment falling by close to thirty percent; and

Whereas, China has been the major beneficiary of this poorly designed federal trade policy, with the United States losing roughly five million jobs in the last twenty years, and half of those losses are the result of the United States trade deficit with China; and

Whereas, rewarding United States firms for their environmental performance would bolster domestic manufacturing and generate good paying jobs, particularly in rural areas, and reduce dependence on imports from high emitting producers like Russia and China: Now, therefore, be it

Resolved, That the Senate of the Legislature of Louisiana does hereby memorialize the Congress of the United States to take such actions as are necessary to enact a trade policy that holds high-polluting countries like China and Russia accountable for their pollution and promotes American economic development and the rebuilding of United States supply chains, particularly in rural communities, by rewarding American businesses and workers for their superior environmental performance while penalizing global polluters; and be it further

Resolved, That a copy of this Resolution shall be transmitted to the secretary of the United States Senate and the clerk of the United States House of Representatives and to each member of the Louisiana delegation to the United States Congress.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. PETERS, from the Committee on Homeland Security and Governmental Affairs, with amendments:

S. 1528. A bill to streamline the sharing of information among Federal disaster assistance agencies, to expedite the delivery of life-saving assistance to disaster survivors, to speed the recovery of communities from disasters, to protect the security and privacy of information provided by disaster survivors, and for other purposes (Rept. No. 118–39).

By Mr. PETERS, from the Committee on Homeland Security and Governmental Affairs, without amendment:

S. 1549. A bill to provide the Congressional Budget Office with necessary authorities to expedite the sharing of data from executive branch agencies, and for other purposes (Rept. No. 118–40).

By Mr. MENENDEZ, from the Committee on Foreign Relations, with an amendment in the nature of a substitute and with an amended preamble:

S. Res. 126. A resolution recognizing the vital importance of the Mekong River to Southeast Asia and the role of the Mekong-United States Partnership in supporting the prosperity of the region.

S. Res. 156. A resolution calling on the Government of the Russian Federation to release United States citizen Paul Whelan.

By Mr. MENENDEZ, from the Committee on Foreign Relations, without amendment and with an amended preamble:

S. Res. 158. A resolution condemning the deportation of children from Ukraine to the Russian Federation and the forcible transfer of children within territories of Ukraine that are temporarily occupied by Russian forces.

By Mr. MENENDEZ, from the Committee on Foreign Relations, with an amendment in the nature of a substitute:

S. 308. A bill to end the treatment of the People's Republic of China as a developing nation.

S. 1074. A bill to require a strategy for countering the People's Republic of China.

EXECUTIVE REPORTS OF COMMITTEE

The following executive reports of nominations were submitted:

By Mr. REED for the Committee on Armed Services.

*Army nomination of Maj. Gen. Karl H. Gingrich, to be Lieutenant General.

Navy nominations beginning with Rear Adm. (lh) Kenneth R. Blackmon and ending with Rear Adm. (lh) Robert C. Nowakowski, which nominations were received by the Senate and appeared in the Congressional Record on March 14, 2023.

Navy nominations beginning with Capt. Jeffrey A. Jurgemeyer and ending with Capt. Michael R. Vanpoots, which nominations were received by the Senate and appeared in the Congressional Record on March 14, 2023.

Navy nomination of Capt. John E. Byington, to be Rear Admiral (lower half).

Navy nomination of Capt. John A. Robinson III, to be Rear Admiral (lower half).

Navy nomination of Capt. David E. Ludwa, to be Rear Admiral (lower half).

Navy nomination of Capt. Peter K. Muschinske, to be Rear Admiral (lower half).

Navy nomination of Capt. Marc F. Williams, to be Rear Admiral (lower half).

*Army nomination of Lt. Gen. Andrew M. Rohling, to be Lieutenant General.

*Army nomination of Maj. Gen. John B. Richardson IV, to be Lieutenant General.

*Navy nomination of Vice Adm. Jeffrey W. Hughes, to be Vice Admiral .

*Air Force nomination of Lt. Gen. Timothy D. Haugh, to be General.

*Air Force nomination of Lt. Gen. Gregory M. Guillot, to be General .

*Air Force nomination of Maj. Gen. Heath A. Collins, to be Lieutenant General.

*Air Force nomination of Lt. Gen. Jeffrey A. Kruse, to be Lieutenant General.

*Air Force nomination of Maj. Gen. Michael G. Koscheski, to be Lieutenant General.

*Air Force nomination of Lt. Gen. Donna D. Shipton, to be Lieutenant General.

*Army nomination of Maj. Gen. Anthony R. Hale, to be Lieutenant General.

*Army nomination of Lt. Gen. Laura A. Potter, to be Lieutenant General.

*Army nomination of Maj. Gen. William J. Hartman, to be Lieutenant General.

*Army nomination of Lt. Gen. John S. Kolasheski, to be Lieutenant General.

Army nomination of Col. Matthew N. Gebhard, to be Brigadier General .

Army nomination of Col. Katherine M. Braun, to be Brigadier General .

Mr. REED. Mr. President, for the Committee on Armed Services I report favorably the following nomination lists which were printed in the RECORDS on the dates indicated, and ask unanimous consent, to save the expense of reprinting on the Executive Calendar that these nominations lie at the Secretary's desk for the information of Senators .

The PRESIDING OFFICER. Without objection, it is so ordered.

Air Force nominations beginning with Andrew K. Berkey and ending with Brandon Woods, which nominations were received by the Senate and appeared in the Congressional Record on April 17, 2023.

Air Force nomination of Jacquelyn P. Smith, to be Lieutenant Colonel.

Air Force nominations beginning with David B. Barker and ending with Jocelyn M. Whalen, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Air Force nomination of Daniel J. Wittmer, to be Colonel.

Air Force nomination of Marina F. Perez, to be Major.

Air Force nominations beginning with Stephen David Albert and ending with Jamie Taylor Zimmermann, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Air Force nominations beginning with Robert D. Allen and ending with Nicolas H. Zimmerman, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Air Force nominations beginning with Christopher K. Adams and ending with Raymond P. Zhang, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Air Force nominations beginning with Nicholas F. Aliotta and ending with Jason J. Zummo, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Air Force nominations beginning with Andrew D. Ahn and ending with Oyunchimeg Young, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Air Force nominations beginning with Sarah E. Abel and ending with Michelle E. Wyche, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Air Force nominations beginning with Michael J. Alfaro and ending with Sara M. Wilson, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Air Force nomination of Candice L. Pipes, to be Colonel.

Air Force nominations beginning with Michael A. Growden and ending with Hsienliang R. Tseng, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Air Force nomination of Craig A. Ambrose, to be Lieutenant Colonel.

Air Force nomination of Bibek Joshi, to be Major.

Air Force nomination of Adrian K. Williford, to be Major.

Air Force nominations beginning with Daniel D. Cole and ending with Edward F. Leonard, which nominations were received by the Senate and appeared in the Congressional Record on June 6, 2023.

Army nominations beginning with Kyle D. Aemisegger and ending with D017212, which nominations were received by the Senate and appeared in the Congressional Record on March 27, 2023.

Army nominations beginning with Aileen R. Cabanadalogan and ending with John F. Underwood, which nominations were received by the Senate and appeared in the Congressional Record on March 27, 2023.

Army nominations beginning with Harry T. Aubin and ending with D016621, which nominations were received by the Senate and appeared in the Congressional Record on April 17, 2023.

Army nominations beginning with Joshua A. Akers and ending with Shenice L. Williams, which nominations were received by the Senate and appeared in the Congressional Record on April 17, 2023.

Army nominations beginning with Alexandra M. Adams and ending with D016620, which nominations were received by the Senate and appeared in the Congressional Record on April 17, 2023.

Army nominations beginning with Andrea C. Baeder and ending with Peter S. Yoon, which nominations were received by the Senate and appeared in the Congressional Record on April 17, 2023.

Army nominations beginning with Heather R. Alsupmorton and ending with Judiza L. Zelaya, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Army nominations beginning with Boma O. Afiesimama and ending with D016999, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Army nominations beginning with Jamie D. Bell and ending with Justin Zimmerman, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Army nominations beginning with Rachel A. Acciacca and ending with Laura E. Riddle, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Army nominations beginning with Jamilia M. Adamshenderson and ending with John E. Wilson, Jr., which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Army nominations beginning with Corebrians A. Abraham and ending with Christopher R. Wilson, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Army nominations beginning with Aaron Crombie and ending with Larry A. Wyatt, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Army nominations beginning with Charles E. Bane and ending with Thomas R. Tucker

III, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Army nomination of Thomas A. Summers, to be Colonel.

Army nomination of Nicholas J. Norton, to be Lieutenant Colonel.

Army nomination of Artreese R. Adams, to be Major.

Army nomination of Warren N. Washington, to be Major.

Army nomination of Jacob W. Cavender, to be Major.

Army nomination of Justin M. Fowler, to be Major.

Army nomination of Jason P. Pancoe, to be Major.

Army nomination of Benjamin F. Iverson, to be Colonel.

Army nomination of Mark G. Kappelmann, to be Colonel.

Army nomination of Leah H. Georgieva, to be Lieutenant Colonel.

Army nomination of Nicholas R. Yetman, to be Lieutenant Colonel.

Army nomination of Kevin L. Montgomery, Jr., to be Lieutenant Colonel.

Army nominations beginning with David J. Bedells and ending with Michael D. Zultak, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Army nominations beginning with Molly E. Keith and ending with Dallas D. Mcmullen, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Army nominations beginning with Steven D. Bryant and ending with D011339, which nominations were received by the Senate and appeared in the Congressional Record on June 6, 2023.

Army nomination of Joseph A. St Pierre II, to be Major.

Army nominations beginning with Jeffrey A. Banks and ending with Jeffrey R. Weinstein, which nominations were received by the Senate and appeared in the Congressional Record on June 6, 2023.

Army nomination of Isaac A. Gutierrez, to be Major.

Army nomination of Rick J. Mata, to be Major.

Army nomination of D016094, to be Major.

Marine Corps nomination of Dustin B. Kosar, to be Lieutenant Colonel.

Marine Corps nomination of Steven E. Anderson, to be Major.

Navy nominations beginning with Bryce D. Abbott and ending with Matthew A. Wright, which nominations were received by the Senate and appeared in the Congressional Record on April 25, 2023.

Navy nominations beginning with Edward A. Carlton and ending with Genevieve G. Ubina, which nominations were received by the Senate and appeared in the Congressional Record on April 25, 2023.

Navy nominations beginning with Andrea H. Cameron and ending with Warren W. Tomlinson, which nominations were received by the Senate and appeared in the Congressional Record on April 25, 2023.

Navy nominations beginning with Mylene R. Arvizo and ending with Ashley S. Wright, which nominations were received by the Senate and appeared in the Congressional Record on April 25, 2023.

Navy nominations beginning with Sarah E. Abbott and ending with John A. Walsh, which nominations were received by the Senate and appeared in the Congressional Record on April 25, 2023.

Navy nominations beginning with Curtis Brown and ending with Gary M . Shelley, which nominations were received by the Senate and appeared in the Congressional Record on April 25, 2023.

Navy nominations beginning with Mark K. Corbliss and ending with Antoine D. Thornton, which nominations were received by the Senate and appeared in the Congressional Record on April 25, 2023.

Navy nominations beginning with Hannah L. Bealon and ending with Stanley C. Ware, which nominations were received by the Senate and appeared in the Congressional Record on April 25, 2023.

Navy nominations beginning with Cameron M. Balma and ending with Melinda K. Schryver, which nominations were received by the Senate and appeared in the Congressional Record on April 25, 2023.

Navy nominations beginning with Alan M. Brechbill and ending with David J. Tebbe, which nominations were received by the Senate and appeared in the Congressional Record on April 25, 2023.

Navy nominations beginning with Ross M. Anderson and ending with Roger D. Horne, which nominations were received by the Senate and appeared in the Congressional Record on April 25, 2023.

Navy nominations beginning with Homer F. Hensy and ending with Gregory F. Notaro, which nominations were received by the Senate and appeared in the Congressional Record on April 25, 2023.

Navy nominations beginning with Tommie G. Crawford and ending with Shannon P. Thompson, which nominations were received by the Senate and appeared in the Congressional Record on April 25, 2023.

Navy nominations beginning with John E. Fage and ending with Rebecca L. Rebarich, which nominations were received by the Senate and appeared in the Congressional Record on April 25, 2023.

Navy nominations beginning with Gavin H. Clough and ending with Matthew G. Zublic, which nominations were received by the Senate and appeared in the Congressional Record on April 25, 2023.

Navy nominations beginning with Jennifer J. Landry and ending with Jonathan A. Savage, which nominations were received by the Senate and appeared in the Congressional Record on April 25, 2023.

Navy nominations beginning with Bradley H. Abramowitz and ending with Chelsey L. Zwicker, which nominations were received by the Senate and appeared in the Congressional Record on April 25, 2023.

Navy nominations beginning with Eric J. Adler and ending with Matthew A. Williams, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Navy nominations beginning with Lucas R. Argobright and ending with Sarah E. Turse, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Navy nomination of Patrick C. Lazzaretti, to be Captain.

Navy nominations beginning with Robert A. Paynter, Jr. and ending with Todd C. Winn, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Navy nominations beginning with Stanley J. Benes IV and ending with Michael Sullivan, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Navy nominations beginning with James P. Mcdonnell and ending with Joseph E. Walker, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Navy nomination of Donna M. Chuba, to be Captain.

Navy nomination of Anton B. Allen, to be Captain.

Navy nominations beginning with Adam M. Clampitt and ending with Gustavo Perez, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Navy nominations beginning with Christopher P. Cook and ending with Matthew E. Hobbs, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Navy nominations beginning with Demetrio A. Camua III and ending with Arthur C. Fong, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Navy nomination of Loren C. Hoelscher, to be Captain.

Navy nominations beginning with Matthew T. Chatigny and ending with Kevin C. Lien, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Navy nominations beginning with Joshua C. Gettle and ending with Gerardo Torres, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Navy nominations beginning with John J. Bridges and ending with Mark H. Overstreet, which nominations were received by the Senate and appeared in the Congressional Record on May 4, 2023.

Navy nomination of Ryan H. Metzler, to be Captain.

Navy nominations beginning with Dennis L. Avery and ending with Brian D. Wuestewald, which nominations were received by the Senate and appeared in the Congressional Record on May 15, 2023.

Navy nominations beginning with Khristiannoe C. Caindoy and ending with Dimitry P. Vincent, which nominations were received by the Senate and appeared in the Congressional Record on May 15, 2023.

Navy nominations beginning with Matthew D. Gleason and ending with Emily Y. Royse, which nominations were received by the Senate and appeared in the Congressional Record on May 15, 2023.

Navy nomination of Jacob S. Tharp, to be Lieutenant Commander.

Navy nominations beginning with Christopher E. Barnes and ending with Chadwick Y. Yasuda, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Kenric T. Aban and ending with Jeffrey C. Worthley, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Michael R. Andersen and ending with Christopher L. Young, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Dominic J. Antenucci and ending with Christopher C. Swain, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with William H. Abbitt and ending with Thomas W. Zimmerman, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Joshua M. Anderson and ending with Alexander G. Williams, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with David L. Aguilar and ending with Daniel J. Walker, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Sean A. Brophy and ending with Jesus A. Uranga, Jr., which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Francis G. Coyle and ending with Daniel A. Tantillo, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Rebecca L. Anderson and ending with John L. Vincent, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Nick Avila and ending with Michael P. Wolchko, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Michael K. Beall and ending with Alanna B. Youngblood, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Forrest N. Bush and ending with Nathan J. Richardson, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Scott B. Aaron and ending with Clinton M. Woods, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Jessica L. Alexander and ending with Crystal R. Warrene, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Suzanne T. Alford and ending with Eric R. Wright, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Nicholas D. Chiudioni and ending with Julian G. Wilson III, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Marvin E. Bartholomew and ending with Kirtley N. Yeiser, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Quentin Albea and ending with Edward E. Weekley, Jr., which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Paul M. Allen and ending with Thomas H. Williams, Jr., which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Scott P. Ader and ending with Philip R. Saulnier, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nomination of Erika M. Meszaros, to be Lieutenant Commander.

Navy nominations beginning with Mary R. Anker and ending with Brandon K. Wolf, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with David W. Alexander and ending with John C. Vandyke, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Christopher S. Casne and ending with Justin D. Spinks, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Kevin L. Borkert and ending with Blake A. Whittle, which nominations were received by the Senate and appeared in the Congressional Record on May 30, 2023.

Navy nominations beginning with Theodore G. Cavoores, Jr. and ending with Christy L. Rousseau, which nominations were received by the Senate and appeared in the Congressional Record on June 6, 2023.

Navy nominations beginning with Andrew E. Carmichael and ending with David N. Stock, which nominations were received by the Senate and appeared in the Congressional Record on June 6, 2023.

Navy nominations beginning with Kirsten M. Betak and ending with Suzanne J. Wood, which nominations were received by the Senate and appeared in the Congressional Record on June 6, 2023.

Navy nominations beginning with Sarah E. Davis and ending with Jeffrey J. Rockwood, which nominations were received by the Senate and appeared in the Congressional Record on June 6, 2023.

Navy nominations beginning with Bryan T. Alvarez and ending with Jennifer J. Vogt, which nominations were received by the Senate and appeared in the Congressional Record on June 6, 2023.

Navy nominations beginning with Rodney M. Bonner and ending with Charles C. Thompson, which nominations were received by the Senate and appeared in the Congressional Record on June 6, 2023.

Navy nomination of Julie K. Moss, to be Captain.

Navy nominations beginning with Luis E. Alderman II and ending with Melinda S. L. Zalma, which nominations were received by the Senate and appeared in the Congressional Record on June 6, 2023.

Navy nominations beginning with Timothy W. Gleason and ending with Cory A. Woods, which nominations were received by the Senate and appeared in the Congressional Record on June 6, 2023.

Space Force nomination of Robin J. Glebes, to be Major.

Space Force nominations beginning with Lisa T. Green and ending with Keith D. Van Dyck, which nominations were received by the Senate and appeared in the Congressional Record on June 6, 2023.

Space Force nominations beginning with Phoenix L. Hauser and ending with Dustin L. White, which nominations were received by the Senate and appeared in the Congressional Record on June 6, 2023.

*Nomination was reported with recommendation that it be confirmed subject to the nominee's commitment to respond to requests to appear and testify before any duly constituted committee of the Senate.

(Nominations without an asterisk were reported with the recommendation that they be confirmed.)

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. KAINE (for himself, Mr. RUBIO, Mr. CARDIN, and Mr. HAGERTY):

S. 1931. A bill to direct the United States Government to support extending the mandate of the Independent International Fact-Finding Mission on Venezuela until a resolution of the Venezuelan crisis is achieved; to the Committee on Foreign Relations.

By Mr. CASEY (for himself and Ms. STABENOW):

S. 1932. A bill to require that certain aspects of bridge projects be carried out by certified contractors, and for other purposes; to the Committee on Environment and Public Works.

By Mr. WARNOCK (for himself and Ms. LUMMIS):

S. 1933. A bill to enhance flight options for consumers flying to and from Ronald Reagan Washington National Airport; to the Committee on Commerce, Science, and Transportation.

By Mr. WHITEHOUSE (for himself, Mr. REED, Ms. WARREN, Mr. SANDERS, and Mr. MERKLEY):

S. 1934. A bill to amend the Truth in Lending Act to empower the States to set the maximum annual percentage rates applicable to consumer credit transactions, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. WARNOCK (for himself, Mr. BOOKER, Mr. CARPER, Mr. COONS, Mr. KAINE, Mr. LUJÁN, Mr. OSSOFF, Mr. PADILLA, and Mr. WYDEN):

S. 1935. A bill to direct the Secretary of Transportation to establish a program to provide grants to improve the preparation and representation of certain students in aviation-related fields; to the Committee on Commerce, Science, and Transportation.

By Mr. WELCH (for himself and Mr. VAN HOLLEN):

S. 1936. A bill to promote competition in the area of digital energy management tools, enhance consumer access to electric energy and natural gas information, allow for the development and adoption of innovative products and services to help consumers, organizations, and governments manage their energy usage, reduce greenhouse gas emissions, and improve electric grid reliability, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. PAUL (for himself, Ms. ERNST, Mr. RICKETTS, and Mrs. FISCHER):

S. 1937. A bill to amend the Internal Revenue Code of 1986 to repeal the excise tax on indoor tanning services; to the Committee on Finance.

By Ms. HASSAN (for herself and Mr. TILLIS):

S. 1938. A bill to amend the Internal Revenue Code of 1986 to increase the income cap with respect to the mortgage insurance premium deduction, and to make such deduction permanent; to the Committee on Finance.

By Ms. CANTWELL (for herself, Mr. CRUZ, Ms. DUCKWORTH, and Mr. MORAN):

S. 1939. A bill to amend title 49, United States Code, to authorize appropriations for the Federal Aviation Administration for fiscal years 2024 through 2028, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. MERKLEY (for himself, Mrs. FEINSTEIN, Mr. BOOKER, Mr. WHITEHOUSE, Mr. WYDEN, and Mr. HEINRICH):

S. 1940. A bill to prohibit the use of M–44 devices, commonly known as ''cyanide bombs'', on public land, and for other purposes; to the Committee on Environment and Public Works.

By Ms. SMITH (for herself and Mr. ROUNDS):

S. 1941. A bill to permanently authorize the Native Community Development Financial Institutions lending program of the Department of Agriculture, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. BARRASSO (for himself, Ms. LUMMIS, Mrs. BLACKBURN, Mr. LANKFORD, Mr. RISCH, Mr. LEE, Mr. SCOTT of South Carolina, Mr. HOEVEN, and Mr. THUNE):

S. 1942. A bill to amend the Internal Revenue Code of 1986 to terminate the Hazardous Substance Superfund financing rate; to the Committee on Finance.

By Mr. RUBIO (for himself, Mr. HAGERTY, Mrs. BLACKBURN, Mr. LEE, Mr. BUDD, and Mr. BRAUN):

S. 1943. A bill to establish the Council on Improving Federal Civic Architecture, and for other purposes; to the Committee on Environment and Public Works.

By Mrs. BLACKBURN (for herself, Mr. REED, Ms. COLLINS, Mr. CASEY, Mr. DAINES, and Mrs. SHAHEEN):

S. 1944. A bill to exempt grants received under the Coronavirus Economic Relief for Transportation Services (CERTS) Act from Federal taxation; to the Committee on Finance.

By Mr. HICKENLOOPER (for himself, Mr. SCOTT of South Carolina, Mr. OSSOFF, and Ms. COLLINS):

S. 1945. A bill to establish the John Lewis Civil Rights Fellowship to fund international internships and research placements for early- to mid-career professionals to study nonviolent movements to establish and protect civil rights around the world; to the Committee on Foreign Relations.

By Mrs. BLACKBURN (for herself, Ms. ROSEN, and Mr. WICKER):

S. 1946. A bill to amend title 49, United States Code, to allow the owner or operator of a small hub airport that is reclassified as a medium hub airport to elect to be treated as a small hub airport, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. MERKLEY (for himself, Mr. WHITEHOUSE, Mr. PADILLA, and Mr. HEINRICH):

S. 1947. A bill to direct the Administrator of the Environmental Protection Agency to conduct a measurement-based national methane research pilot study to quantify methane emissions from certain oil and gas infrastructure, and for other purposes; to the Committee on Environment and Public Works.

By Mr. BENNET (for himself, Mr. MERKLEY, Mr. BLUMENTHAL, Mr. WHITEHOUSE, Ms. CORTEZ MASTO, Mr. WYDEN, and Mrs. GILLIBRAND):

S. 1948. A bill to direct the Administrator of the Environmental Protection Agency to provide grants to air pollution control agencies to implement a cleaner air space program, and for other purposes; to the Committee on Environment and Public Works.

By Ms. ERNST:

S. 1949. A bill to prohibit the Internal Revenue Service from providing firearms and ammunition to its employees, and for other purposes; to the Committee on Finance.

By Mr. BOOKER:

S. 1950. A bill to extend the temporary order for fentanyl-related substances; to the Committee on the Judiciary.

By Mr. SANDERS (for himself and Mr. WELCH):

S. 1951. A bill to amend title 38, United States Code, to expand entitlement of veterans to care from the Department of Veterans Affairs and to guarantee health care benefits for veterans enrolled in the patient enrollment system of the Department, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. SANDERS (for himself, Mr. BOOKER, and Mr. WELCH):

S. 1952. A bill to amend title 38, United States Code, to expand eligibility for care from the Department of Veterans Affairs to include members of the reserve components of the Armed Forces, and for other purposes; to the Committee on Veterans' Affairs.

By Mrs. FEINSTEIN (for herself, Mr. PADILLA, Mr. CASSIDY, Mr. TILLIS, Mr. KENNEDY, Mr. HICKENLOOPER, Mr. BENNET, and Mr. MERKLEY):

S. 1953. A bill to amend the Internal Revenue Code of 1986 to exclude from gross income amounts received from State-based catastrophe loss mitigation programs; to the Committee on Finance.

By Mr. SANDERS (for himself, Mr. WHITEHOUSE, Mr. WELCH, Mr. MERKLEY, Mr. WYDEN, Mr. BLUMENTHAL, Mr. BOOKER, Mr. FETTERMAN, Mr. MENENDEZ, Mr. DURBIN, Ms. STABENOW, and Ms. HIRONO):

S. 1954. A bill to improve the provision of health care furnished by the Department of Veterans Affairs for veterans diagnosed with diabetes and heart disease, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. LEE:

S. 1955. A bill to amend the Central Utah Project Completion Act to authorize expenditures for the conduct of certain water conservation measures in the Great Salt Lake basin, and for other purposes; to the Committee on Energy and Natural Resources.

By Ms. BALDWIN (for herself and Mr. VANCE):

S. 1956. A bill to improve the commercialization of Federal research by domestic manufacturers, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. MARSHALL (for himself, Mr. WELCH, Mr. JOHNSON, Mr. FETTERMAN, Mr. RISCH, Ms. COLLINS, Mr. KING, Mrs. GILLIBRAND, Mrs. HYDE-SMITH, Mr. CRAPO, and Mr. GRASSLEY):

S. 1957. A bill to amend the Richard B. Russell National School Lunch Act to allow schools that participate in the school lunch program to serve whole milk, and for other purposes; to the Committee on Agriculture, Nutrition, and Forestry.

By Ms. DUCKWORTH (for herself, Mrs. FISCHER, Ms. ERNST, Ms. KLOBUCHAR, and Mr. GRASSLEY):

S. 1958. A bill to identify the standards required to meet the definition of sustainable aviation fuel at the Federal Aviation Administration; to the Committee on Commerce, Science, and Transportation.

By Mrs. SHAHEEN (for herself, Ms. COLLINS, Mr. WHITEHOUSE, Ms. CORTEZ MASTO, Mr. MARKEY, Ms. BALDWIN, and Ms. CANTWELL):

S. 1959. A bill to amend title 28, United States Code, to prohibit the exclusion of individuals from service on a Federal jury on account of sexual orientation or gender identity; to the Committee on the Judiciary.

By Mrs. SHAHEEN (for herself, Ms. MURKOWSKI, Ms. COLLINS, Mr. MURPHY, Mr. MERKLEY, Mr. BLUMENTHAL, Mr. MARKEY, and Mr. BOOKER):

S. 1960. A bill to impose sanctions with respect to foreign persons responsible for violations of the human rights of lesbian, gay, bisexual, transgender, and intersex (LGBTI) individuals, and for other purposes; to the Committee on Foreign Relations.

By Mr. PETERS (for himself and Ms. ERNST):

S. 1961. A bill to require an interagency risk assessment of the pharmaceutical supply chain to identify and mitigate health and national security risks, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. WARNOCK (for himself, Ms. DUCKWORTH, Mr. OSSOFF, and Mr. BROWN):

S. 1962. A bill to provide increased funding and opportunities to achieve national, long-term production goals for sustainable aviation fuel, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. KENNEDY (for himself, Ms. LUMMIS, Mrs. FISCHER, Mr. CRAMER, Mr. RISCH, Mr. CRAPO, Mr. CASSIDY, Mr. SCOTT of South Carolina, Mr. DAINES, Mr. VANCE, Mr. THUNE, Mrs. HYDE-SMITH, Mr. BARRASSO, Mr. WICKER, Mr. RUBIO, Mr. LEE, Mr. MORAN, Mr. LANKFORD, Mr. SCOTT of Florida, Mr. BUDD, Mr. BOOZMAN, Mr. TILLIS, Mr. MARSHALL, Mrs. BRITT, Mr. HAGERTY, Mr. BRAUN, Mr. CORNYN, Ms. ERNST, and Mrs. CAPITO):

S.J. Res. 32. A joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Bureau of Consumer Financial Protection relating to ''Small Business Lending Under the Equal Credit Opportunity Act (Regulation B)''; to the Committee on Banking, Housing, and Urban Affairs.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. MORAN (for himself and Mrs. SHAHEEN):

S. Res. 246. A resolution honoring the men and women of the Drug Enforcement Administration on the 50th anniversary of the agency; to the Committee on the Judiciary.

By Ms. ROSEN (for herself, Mr. CASSIDY, Mr. KING, and Mr. MANCHIN):

S. Res. 247. A resolution designating June 2023 as National Cybersecurity Education Month; to the Committee on the Judiciary.

By Mr. DAINES (for himself, Mr. PETERS, Mr. KING, Mrs. SHAHEEN, Mr. MARSHALL, Mr. PADILLA, Ms. KLOBUCHAR, Mrs. CAPITO, Mr. BOOKER, Mr. TESTER, Mr. MANCHIN, and Mr. VAN HOLLEN):

S. Res. 248. A resolution designating June 2023 as ''Great Outdoors Month''; considered and agreed to.

By Mr. JOHNSON (for himself and Mr. ROUNDS):

S. Res. 249. A resolution expressing support for the designation of July 2023 as ''National Sarcoma Awareness Month''; considered and agreed to.

By Mr. SCOTT of Florida (for himself, Mr. MARKEY, Mr. RUBIO, Mr. WYDEN, Mr. TILLIS, Ms. CANTWELL, Mr. LANKFORD, Mr. VAN HOLLEN, Mrs. CAPITO, Mr. KELLY, Mr. BLUMENTHAL, and Mr. WARNOCK):

S. Res. 250. A resolution designating June 6, 2023, as National Naloxone Awareness Day; considered and agreed to.

ADDITIONAL COSPONSORS

S. 16

At the request of Mr. DAINES, the name of the Senator from Alabama (Mrs. BRITT) was added as a cosponsor of S. 16, a bill to prohibit the award of Federal funds to an institution of higher education that hosts or is affiliated with a student-based service site that provides abortion drugs or abortions to students of the institution or to employees of the institution or site, and for other purposes.

S. 265

At the request of Ms. COLLINS, the name of the Senator from Alaska (Ms. MURKOWSKI) was added as a cosponsor of S. 265, a bill to reauthorize the rural emergency medical service training and equipment assistance program, and for other purposes.

S. 344

At the request of Mr. TESTER, the name of the Senator from Maryland

(Mr. CARDIN) was added as a cosponsor of S. 344, a bill to amend title 10, United States Code, to provide for concurrent receipt of veterans' disability compensation and retired pay for disability retirees with fewer than 20 years of service and a combat-related disability, and for other purposes.

S. 416

At the request of Mr. WICKER, the name of the Senator from California (Mr. PADILLA) was added as a cosponsor of S. 416, a bill to designate the Russian-based mercenary Wagner Group as a foreign terrorist organization, and for other purposes.

S. 761

At the request of Mr. COTTON, the name of the Senator from North Carolina (Mr. BUDD) was added as a cosponsor of S. 761, a bill to combat forced organ harvesting and trafficking in persons for purposes of the removal of organs, and for other purposes.

S. 789

At the request of Mr. VAN HOLLEN, the names of the Senator from New Mexico (Mr. HEINRICH), the Senator from Minnesota (Ms. KLOBUCHAR), the Senator from Minnesota (Ms. SMITH), the Senator from Nevada (Ms. CORTEZ MASTO) and the Senator from Indiana (Mr. YOUNG) were added as cosponsors of S. 789, a bill to require the Secretary of the Treasury to mint a coin in recognition of the 100th anniversary of the United States Foreign Service and its contribution to United States diplomacy.

S. 866

At the request of Ms. HASSAN, the names of the Senator from Alaska (Mr. SULLIVAN) and the Senator from New Mexico (Mr. HEINRICH) were added as cosponsors of S. 866, a bill to amend the Internal Revenue Code of 1986 to enhance tax benefits for research activities.

S. 954

At the request of Mr. WARNOCK, the names of the Senator from Michigan (Mr. PETERS) and the Senator from Alabama (Mr. TUBERVILLE) were added as cosponsors of S. 954, a bill to provide for appropriate cost-sharing for insulin products covered under private health plans, and to establish a program to support health care providers and pharmacies in providing discounted insulin products to uninsured individuals.

S. 985

At the request of Mr. LANKFORD, the name of the Senator from Wyoming (Ms. LUMMIS) was added as a cosponsor of S. 985, a bill to amend the Higher Education Act of 1965 to ensure campus access at public institutions of higher education for religious groups.

S. 1149

At the request of Mr. HEINRICH, the names of the Senator from Maine (Mr. KING), the Senator from Mississippi (Mr. WICKER), the Senator from Ohio (Mr. BROWN) and the Senator from Mississippi (Mrs. HYDE-SMITH) were added as cosponsors of S. 1149, a bill to amend the Pittman-Robertson Wildlife Restoration Act to make supplemental funds available for management of fish and wildlife species of greatest conservation need as determined by State fish and wildlife agencies, and for other purposes.

S. 1170

At the request of Mr. CORNYN, the names of the Senator from New Jersey (Mr. MENENDEZ) and the Senator from Nebraska (Mr. RICKETTS) were added as cosponsors of S. 1170, a bill to reauthorize and update the Project Safe Childhood program, and for other purposes.

S. 1271

At the request of Mr. SCOTT of South Carolina, the names of the Senator from Michigan (Ms. STABENOW), the Senator from Alaska (Mr. SULLIVAN) and the Senator from Hawaii (Mr. SCHATZ) were added as cosponsors of S. 1271, a bill to impose sanctions with respect to trafficking of illicit fentanyl and its precursors by transnational criminal organizations, including cartels, and for other purposes.

S. 1280

At the request of Mr. CRUZ, the names of the Senator from Tennessee (Mrs. BLACKBURN) and the Senator from Washington (Ms. CANTWELL) were added as cosponsors of S. 1280, a bill to require coordinated National Institute of Standards and Technology science and research activities regarding illicit drugs containing xylazine, novel synthetic opioids, and other substances of concern, and for other purposes.

S. 1367

At the request of Ms. STABENOW, the name of the Senator from Iowa (Mr. GRASSLEY) was added as a cosponsor of S. 1367, a bill to amend XIX of the Social Security Act to cover physician services delivered by podiatric physicians to ensure access by Medicaid beneficiaries to appropriate quality foot and ankle care, to amend title XVIII of such Act to modify the requirements for diabetic shoes to be included under Medicare, and for other purposes.

S. 1409

At the request of Mr. BLUMENTHAL, the name of the Senator from West Virginia (Mr. MANCHIN) was added as a cosponsor of S. 1409, a bill to protect the safety of children on the internet.

S. 1449

At the request of Mrs. CAPITO, the name of the Senator from Iowa (Ms. ERNST) was added as a cosponsor of S. 1449, a bill to improve the environmental review process, and for other purposes.

S. 1535

At the request of Mr. KELLY, the name of the Senator from Colorado (Mr. HICKENLOOPER) was added as a cosponsor of S. 1535, a bill to require the Administrator of the Federal Aviation Administration to promulgate regulations to allow the transport of firefighters on board a covered aircraft operated on a mission to suppress a wildfire, and for other purposes.

S. 1610

At the request of Mrs. SHAHEEN, the name of the Senator from Michigan (Mr. PETERS) was added as a cosponsor of S. 1610, a bill to authorize administrative absences and travel and transportation allowances for members of the Armed Forces to travel and obtain reproductive health care.

S. 1698

At the request of Mrs. MURRAY, the name of the Senator from Pennsylvania (Mr. CASEY) was added as a cosponsor of S. 1698, a bill to require group health plans and group or individual health insurance coverage to provide coverage for over-the-counter contraceptives.

S. 1714

At the request of Mrs. GILLIBRAND, the name of the Senator from Ohio (Mr. BROWN) was added as a cosponsor of S. 1714, a bill to provide paid family leave benefits to certain individuals, and for other purposes.

S. 1753

At the request of Mr. BOOKER, the name of the Senator from Vermont (Mr. WELCH) was added as a cosponsor of S. 1753, a bill to amend the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 to allow individuals with drug offenses to receive benefits under the supplemental nutrition assistance program, and for other purposes.

S. 1774

At the request of Mr. WARNOCK, the name of the Senator from Vermont (Mr. WELCH) was added as a cosponsor of S. 1774, a bill to amend the Social Security Act to provide for an increased Federal medical assistance percentage for State expenditures on certain behavioral health services furnished under the Medicaid program, and for other purposes.

S. 1802

At the request of Mr. PETERS, the name of the Senator from Florida (Mr. SCOTT) was added as a cosponsor of S. 1802, a bill to direct the Secretary of Defense to establish a fund for the conduct of collaborative defense projects between the United States and Israel in emerging technologies, and for other purposes.

S. 1811

At the request of Mr. WICKER, the names of the Senator from North Carolina (Mr. BUDD) and the Senator from Alabama (Mrs. BRITT) were added as cosponsors of S. 1811, a bill to ensure treatment in the military based on merit and performance, and for other purposes.

S. 1829

At the request of Mr. RUBIO, the name of the Senator from Florida (Mr. SCOTT) was added as a cosponsor of S. 1829, a bill to impose sanctions with respect to persons engaged in the import of petroleum from the Islamic Republic of Iran, and for other purposes.

S. 1832

At the request of Mrs. SHAHEEN, the name of the Senator from Michigan

(Mr. PETERS) was added as a cosponsor of S. 1832, a bill to amend title XVIII of the Social Security Act to improve access to diabetes outpatient self-management training services, to require the Center for Medicare and Medicaid Innovation to test the provision of virtual diabetes outpatient self-management training services, and for other purposes.

S. 1856

At the request of Mr. BROWN, the names of the Senator from Alabama (Mrs. BRITT) and the Senator from Massachusetts (Ms. WARREN) were added as cosponsors of S. 1856, a bill to amend the Tariff Act of 1930 to improve the administration of antidumping and countervailing duty laws, and for other purposes.

S. 1858

At the request of Mr. PETERS, the name of the Senator from Kentucky (Mr. PAUL) was added as a cosponsor of S. 1858, a bill to amend the Robert T. Stafford Disaster Relief and Emergency Assistance Act to establish a deadline for applying for disaster unemployment assistance.

S. 1859

At the request of Mr. SULLIVAN, the name of the Senator from Alabama (Mrs. BRITT) was added as a cosponsor of S. 1859, a bill to prohibit the Secretary of Energy from finalizing, implementing, or enforcing the proposed rule entitled ''Energy Conservation Program: Energy Conservation Standards for Consumer Conventional Cooking Products'', and for other purposes.

S. 1867

At the request of Mr. BROWN, the name of the Senator from Pennsylvania (Mr. CASEY) was added as a cosponsor of S. 1867, a bill to authorize the Secretary of Agriculture to carry out an initiative to develop, expand, and improve rural childcare, and for other purposes.

S. 1899

At the request of Mr. OSSOFF, the name of the Senator from Georgia (Mr. WARNOCK) was added as a cosponsor of S. 1899, a bill to encourage the use of hydrogen in the aviation sector, and for other purposes.

S. 1902

At the request of Mr. OSSOFF, the name of the Senator from Georgia (Mr. WARNOCK) was added as a cosponsor of S. 1902, a bill to require the Administrator of the Federal Aviation Administration and the Secretary of Energy to exercise leadership in the creation of Federal and international policies relating to the safe and efficient use of hydrogen to increase aviation decarbonization and reduce air and noise pollution, and for other purposes.

S. 1911

At the request of Mr. CASEY, the name of the Senator from Vermont (Mr. SANDERS) was added as a cosponsor of S. 1911, a bill to amend title 49, United States Code, to improve the accessibility of airline information and entertainment programming provided by air carriers on passenger flights, and for other purposes.

S. 1914

At the request of Mrs. SHAHEEN, the name of the Senator from North Dakota (Mr. HOEVEN) was added as a cosponsor of S. 1914, a bill to amend the air traffic controller staffing report, and for other purposes.

S. 1920

At the request of Mr. WHITEHOUSE, the name of the Senator from New Mexico (Mr. HEINRICH) was added as a cosponsor of S. 1920, a bill to require the Administrator of the Environmental Protection Agency to assess certain fees on shipping and other vessels, and for other purposes.

S. 1924

At the request of Mr. MARKEY, the names of the Senator from New Jersey (Mr. BOOKER), the Senator from Oregon (Mr. WYDEN) and the Senator from Wisconsin (Ms. BALDWIN) were added as cosponsors of S. 1924, a bill to protect human rights and enhance opportunities for LGBTQI people around the world, and for other purposes.

S.J. RES. 31

At the request of Mr. WICKER, the name of the Senator from South Dakota (Mr. THUNE) was added as a cosponsor of S.J. Res. 31, a joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Environmental Protection Agency relating to ''Federal 'Good Neighbor Plan' for the 2015 Ozone National Ambient Air Quality Standards''.

S. CON. RES. 8

At the request of Ms. STABENOW, the names of the Senator from North Carolina (Mr. BUDD) and the Senator from Colorado (Mr. HICKENLOOPER) were added as cosponsors of S. Con. Res. 8, a concurrent resolution expressing the sense of Congress that tax-exempt fraternal benefit societies have historically provided and continue to provide critical benefits to the people and communities of the United States.

S. RES. 144

At the request of Mr. MARKEY, the name of the Senator from New Mexico (Mr. HEINRICH) was added as a cosponsor of S. Res. 144, a resolution recognizing that it is the duty of the Federal Government to develop and implement a Transgender Bill of Rights to protect and codify the rights of transgender and nonbinary people under the law and ensure their access to medical care, shelter, safety, and economic safety.

S. RES. 174

At the request of Mr. COONS, the name of the Senator from Illinois (Mr. DURBIN) was added as a cosponsor of S. Res. 174, a resolution condemning the human rights record of the Government of the Kingdom of Eswatini and the brutal killing of Eswatini activist Thulani Maseko on January 21, 2023.

S. RES. 188

At the request of Mr. MENENDEZ, the name of the Senator from North Carolina (Mr. TILLIS) was added as a cosponsor of S. Res. 188, a resolution celebrating the 75th anniversary of the founding of the State of Israel, and for other purposes.

S. RES. 208

At the request of Mrs. SHAHEEN, the name of the Senator from West Virginia (Mr. MANCHIN) was added as a cosponsor of S. Res. 208, a resolution expressing support for the designation of November 12, 2023, as ''National Warrior Call Day'' and recognizing the important of connecting warriors in the United States to support structures necessary to transition from the battlefield, especially peer-to-peer connection.

S. RES. 243

At the request of Mr. MENENDEZ, the name of the Senator from Minnesota (Ms. KLOBUCHAR) was added as a cosponsor of S. Res. 243, a resolution recognizing the month of June 2023 as ''Immigrant Heritage Month'', a celebration of the accomplishments and contributions of immigrants and their children in making the United States a healthier, safer, more diverse, prosperous country, and acknowledging the importance of immigrants and their children to the future successes of the United States.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 246—HONORING THE MEN AND WOMEN OF THE DRUG ENFORCEMENT ADMINISTRATION ON THE 50TH ANNIVERSARY OF THE AGENCY

Mr. MORAN (for himself and Mrs. SHAHEEN) submitted the following resolution; which was referred to the Committee on the Judiciary:

S. RES. 246

Whereas the Drug Enforcement Administration (referred to in this preamble as the ''DEA'') was—

(1) established on July 1, 1973 by Reorganization Plan Numbered 2 of 1973 (87 Stat. 1091; 5 U.S.C. App.); and

(2) given the responsibility to coordinate the whole of the Federal Government approach related to the enforcement of the Controlled Substances Act (21 U.S.C. 801 et seq.);

Whereas the more than 10,000 men and women of the DEA, including special agents, intelligence research specialists, diversion investigators, program analysts, forensic chemists, attorneys, and administrative support staff, as well as more than 3,000 task force officers, representing hundreds of State and local law enforcement agencies across the country—

(1) serve the United States with courage; and

(2) are committed to serving and protecting public safety, public health, and the national security of the United States from drug trafficking, drug misuse, and related violence;

Whereas, during the 50 years since the establishment of the DEA, the agency has targeted and dismantled transnational drug

trafficking organizations and brought to justice the most dangerous and prolific drug trafficking criminals from around the world;

Whereas, throughout the 50-year history of the DEA, the agency has continually adapted to evolving trends of major transnational drug cartels, targeting the organizations involved in the manufacturing, trafficking, and distribution of drugs, including fentanyl, methamphetamine, cocaine, heroin, controlled prescription drugs, and other synthetic opioids;

Whereas the DEA has deployed enforcement and regulatory tools and strategies to address the threat posed by new synthetic opioid substances, which—

(1) mimic the effects of known licit and illicit controlled substances, including fentanyl;

(2) are largely responsible for driving the opioid epidemic that claimed the lives of more than 107,000 individuals in the United States in 2021; and

(3) present the most significant threat to public health, public safety, and the national security of the United States;

Whereas, with 93 foreign offices located in 69 countries, the DEA has the largest international presence of any Federal law enforcement agency, facilitating—

(1) close collaboration with international partners around the world through information sharing, training, and technology; and

(2) the provision of resources that have resulted in the disruption or dismantling of hundreds of transnational criminal organizations around the world;

Whereas, throughout the history of the DEA, employees and members of task forces of the agency have sacrificed their lives in the line of duty, including Emir Benitez, Gerald Sawyer, Leslie S. Grosso, Nickolas Fragos, Mary M. Keehan, Charles H. Mann, Anna Y. Mounger, Anna J. Pope, Martha D. Skeels, Mary P. Sullivan, Larry D. Wallace, Ralph N. Shaw, James T. Lunn, Octavio Gonzalez, Francis J. Miller, Robert C. Lightfoot, Thomas J. Devine, Larry N. Carwell, Marcellus Ward, Enrique S. Camarena, James A. Avant, Charles M. Bassing, Kevin L. Brosch, Susan M. Hoefler, William Ramos, Raymond J. Stastny, Arthur L. Cash, Terry W. McNett, George M. Montoya, Paul S. Seema, Everett E. Hatcher, Rickie C. Finley, Joseph T. Aversa, Wallie Howard, Jr., Eugene T. McCarthy, Alan H. Winn, George D. Althouse, Becky L. Dwojeski, Stephen J. Strehl, Richard E. Fass, Frank Fernandez, Jr., Jay W. Seale, Meredith Thompson, Juan C. Vars, Frank S. Wallace, Jr., Shelly D. Bland, Rona L. Chafey, Carrol June Fields, Carrie A. Lenz, Kenneth G. McCullough, Shaun E. Curl, Larry Steilen, Royce D. Tramel, Alice Faye Hall-Walton, Elton Lee Armstead, Terry Loftus, Donald C. Ware, Jay Balchunas, Thomas J. Byrne, Jr., Samuel Hicks, Forrest N. Leamon, Chad L. Michael, Michael E. Weston, James Terry Watson, Brent L. Hanger, Jorge R. DelRio, Stephen C. Arnold, Michael G. Garbo, and Jody W. Cash; and

Whereas many other DEA employees and task force officers have been wounded or injured in the line of duty, including 79 individuals who have received the DEA Purple Heart Award: Now, therefore, be it

Resolved, That the Senate—

(1) congratulates the Drug Enforcement Administration on the occasion of its 50th anniversary;

(2) honors the heroic dedication of the employees of the Drug Enforcement Administration who have paid the ultimate price and sacrificed their lives or have been wounded or injured in the service of the United States; and

(3) gives heartfelt thanks to all the men and women of the Drug Enforcement Administration for their past and continued efforts to protect the health and safety of the people of the United States from transnational criminal networks and drugs causing harm, violence, and death in the communities of the United States.

SENATE RESOLUTION 247—DESIGNATING JUNE 2023 AS NATIONAL CYBERSECURITY EDUCATION MONTH

Ms. ROSEN (for herself, Mr. CASSIDY, Mr. KING, and Mr. MANCHIN) submitted the following resolution; which was referred to the Committee on the Judiciary:

S. RES. 247

Whereas recent cyberattacks and vulnerabilities present cybersecurity risks to individuals and organizations and increase the urgency to grow and sustain a knowledgeable and skilled cybersecurity workforce in both the public and private sectors;

Whereas, according to CyberSeek.org, as of June 2023, in the United States, there are 1,129,659 individuals in the cybersecurity workforce and 663,494 open jobs in cybersecurity;

Whereas a 2017 report entitled ''Supporting the Growth and Sustainment of the Nation's Cybersecurity Workforce: Building the Foundation for a More Secure American Future'', transmitted by the Secretary of Commerce and the Secretary of Homeland Security, proposed a vision to ''prepare, grow, and sustain a cybersecurity workforce that safeguards and promotes America's national security and economic prosperity'';

Whereas expanding cybersecurity education opportunities is important in order to address the cybersecurity workforce shortage and prepare the United States for ongoing and future national security threats;

Whereas cybersecurity education can—

(1) provide learning and career opportunities for students across the United States in elementary through postsecondary education; and

(2) bolster the capacity of the domestic workforce to defend the United States and secure the economy of the United States;

Whereas, in 2021, Congress authorized, as part of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283; 134 Stat. 3388), the Cybersecurity Education Training Assistance Program (referred to in this preamble as ''CETAP''), a Department of Homeland Security initiative to provide cybersecurity career awareness, curricular resources, and professional development to elementary and secondary schools;

Whereas CYBER.ORG, a grantee of CETAP, has introduced cybersecurity concepts to more than 4,000,000 students and provided resources to more than 30,000 K–12 educators in all 50 States and 4 territories of the United States;

Whereas the mission of NICE is ''to energize, promote, and coordinate a robust community working together to advance an integrated ecosystem of cybersecurity education, training, and workforce development'';

Whereas cybersecurity education is supported through multiple Federal programs and other related efforts, including—

(1) the Office of the National Cyber Director;

(2) the NICE Community Coordinating Council;

(3) the Advanced Technological Education program administered by the National Science Foundation;

(4) the CyberCorps: Scholarship for Service program administered by the National Science Foundation, in collaboration with the Office of Personnel Management and the Department of Homeland Security;

(5) the Department of Defense Cybersecurity Scholarship Program administered by the Department of Defense;

(6) the Cybersecurity Talent Initiative administered by the Partnership for Public Service;

(7) the National Centers of Academic Excellence in Cybersecurity administered by the National Security Agency;

(8) the Presidential Cybersecurity Education Award;

(9) Career Technical Education (CTE) CyberNet Academies administered by the Office of Career, Technical, and Adult Education of the Department of Education;

(10) the GenCyber program administered by the National Security Agency, in collaboration with the National Science Foundation;

(11) widely used resources, including CareerOneStop, Occupational Outlook Handbook, and O*NET OnLine administered by the Department of Labor; and

(12) the Registered Apprenticeship Program administered by the Office of Apprenticeship of the Department of Labor; and

Whereas ensuring access to cybersecurity education for all students in the United States regardless of race, ethnicity, socioeconomic status, sex, or geographic location will expand opportunities for high-earning jobs in high-demand fields: Now, therefore, be it

Resolved, That the Senate—

(1) designates June 2023 as ''National Cybersecurity Education Month'';

(2) invites individuals and organizations in the United States—

(A) to recognize the essential role of cybersecurity education; and

(B) to support Federal, State, and local educational efforts;

(3) encourages educational and training institutions to increase the understanding and awareness of cybersecurity education at such institutions; and

(4) commits to—

(A) raising awareness about cybersecurity education; and

(B) taking legislative action in support of cybersecurity education to effectively build and sustain a skilled cybersecurity workforce.

SENATE RESOLUTION 248—DESIGNATING JUNE 2023 AS ''GREAT OUTDOORS MONTH''

Mr. DAINES (for himself, Mr. PETERS, Mr. KING, Mrs. SHAHEEN, Mr. MARSHALL, Mr. PADILLA, Ms. KLOBUCHAR, Mrs. CAPITO, Mr. BOOKER, Mr. TESTER, Mr. MANCHIN, and Mr. VAN HOLLEN) submitted the following resolution; which was considered and agreed to:

S. RES. 248

Whereas hundreds of millions of individuals in the United States participate in outdoor recreation annually;

Whereas Congress enacted the Outdoor Recreation Jobs and Economic Impact Act of 2016 (Public Law 114–249; 130 Stat. 999) to assess and analyze the outdoor recreation economy of the United States and the effects attributable to the outdoor recreation economy on the overall economy of the United States;

Whereas the Outdoor Recreation Satellite Account, updated in November 2022 by the Bureau of Economic Analysis of the Department of Commerce, shows that outdoor recreation generated more than

$862,000,000,000 in economic output in 2021, comprising approximately 2 percent of the current-dollar gross domestic product;

Whereas the Outdoor Recreation Satellite Account shows that, in 2021, the outdoor recreation sector grew 3 times faster than the overall economy of the United States, while also providing 4,500,000 jobs across the United States;

Whereas the Great American Outdoors Act (Public Law 116–152; 134 Stat. 682) provides billions of dollars to help eliminate the maintenance backlog on public lands and waters and fully funds the Land and Water Conservation Fund;

Whereas regular outdoor recreation is associated with economic growth, positive health outcomes, and better quality of life;

Whereas outdoor recreation activities at the Federal, State, and local levels have seen a recent surge in participation;

Whereas many outdoor recreation businesses are small businesses that are cornerstones of rural communities, and outdoor recreation is part of the national heritage of the United States;

Whereas it is imperative that the United States ensure that access to outdoor recreation is available to all its people for generations to come; and

Whereas June 2023 is an appropriate month to designate as ''Great Outdoors Month'' to provide an opportunity to celebrate the importance of the great outdoors: Now, therefore, be it

Resolved, That the Senate—

(1) designates June 2023 as ''Great Outdoors Month''; and

(2) encourages all individuals in the United States to responsibly participate in recreation activities in the great outdoors during June 2023 and year-round.

SENATE RESOLUTION 249—EXPRESSING SUPPORT FOR THE DESIGNATION OF JULY 2023 AS ''NATIONAL SARCOMA AWARENESS MONTH''

Mr. JOHNSON (for himself and Mr. ROUNDS) submitted the following resolution; which was considered and agreed to: S. Res. 24

S. RES. 249

Whereas sarcoma is a rare cancer of the bones or connective tissues, such as nerves, muscles, joints, fat, and blood vessels, that can arise nearly anywhere in the body;

Whereas, in the United States—

(1) about 16,000 individuals are diagnosed with sarcoma each year;

(2) approximately 7,200 individuals die from sarcoma each year; and

(3) about 50,000 individuals struggle with sarcoma at any given time;

Whereas, each year, about 1 percent of cancers diagnosed in adults and around 15 percent of cancers diagnosed in children are sarcoma;

Whereas more than 70 types of sarcoma have been identified;

Whereas the potential causes of sarcoma are not well understood;

Whereas treatment for sarcoma can include surgery, radiation therapy, or chemotherapy;

Whereas sarcoma is often misdiagnosed and underreported; and

Whereas July 2023 would be an appropriate month to designate as National Sarcoma Awareness Month—

(1) to raise awareness about sarcoma; and

(2) to encourage more individuals in the United States to get properly diagnosed and treated: Now, therefore, be it

Resolved, That the Senate supports the designation of July 2023 as ''National Sarcoma Awareness Month''.

SENATE RESOLUTION 250—DESIGNATING JUNE 6, 2023, AS NATIONAL NALOXONE AWARENESS DAY

Mr. SCOTT of Florida (for himself, Mr. MARKEY, Mr. RUBIO, Mr. WYDEN, Mr. TILLIS, Ms. CANTWELL, Mr. LANKFORD, Mr. VAN HOLLEN, Mrs. CAPITO, Mr. KELLY, Mr. BLUMENTHAL, and Mr. WARNOCK) submitted the following resolution; which was considered and agreed to:

S. RES. 250

Whereas the opioid epidemic continues to devastate communities across the United States, leading to a significant loss of life and widespread societal impact;

Whereas, as of December 2022, opioid overdoses during the previous 12 months claimed a reported 79,770 lives in the United States;

Whereas fatal overdoses are often witnessed by a bystander;

Whereas, in 2022 alone, the Drug Enforcement Administration seized more than 379,000,000 doses of potentially deadly fentanyl, enough to kill every individual in the United States;

Whereas, according to data from the Centers for Disease Control and Prevention, fentanyl-related poisonings are currently the leading cause of death for individuals in the United States between 18 and 49 years of age;

Whereas naloxone is a safe and effective medication that can reverse opioid overdoses and save lives when administered promptly by rapidly reversing the effects of opioids;

Whereas naloxone plays a vital role in preventing long-term brain damage and reducing the risk of fatality associated with opioid overdoses;

Whereas the Centers for Disease Control and Prevention has declared naloxone to be a key tool in preventing opioid overdose deaths;

Whereas it is imperative to educate individuals, families, healthcare professionals, and first responders about—

(1) the benefits of naloxone, including the potential naloxone has to reduce opioid-related fatalities; and

(2) how to administer naloxone;

Whereas it is imperative to identify current or potential barriers, including cost, for individuals, organizations, and Federal, State, and local governments to obtain and distribute naloxone;

Whereas increasing access to naloxone can ensure that individuals struggling with opioid use disorder have a chance at recovery and a future free from the grip of substance use disorder;

Whereas the Food and Drug Administration took action to authorize the over-the-counter sale of 4 milligram doses of naloxone; and

Whereas recognizing National Naloxone Awareness Day will contribute to the ongoing efforts to educate the public, reduce stigma associated with substance use disorder, and promote access to lifesaving naloxone: Now, therefore, be it

Resolved, That the Senate—

(1) designates June 6, 2023, as National Naloxone Awareness Day;

(2) recognizes the life-saving benefits of naloxone in reversing opioid overdoses and preventing unnecessary deaths;

(3) acknowledges that increased access to naloxone empowers individuals, families, healthcare professionals, and first responders to intervene in emergency situations and provide immediate assistance to those experiencing an opioid overdose;

(4) recognizes that National Naloxone Awareness Day serves as an opportunity to educate members of the public about the importance of recognizing the signs of opioid overdose and equipping themselves with naloxone to save lives;

(5) encourages Federal, State, and local governments, as well as private and nonprofit organizations, to collaborate and allocate resources toward increasing naloxone access, education, and distribution efforts; and

(6) calls upon Federal agencies, including the Substance Abuse and Mental Health Services Administration, the Centers for Disease Control and Prevention, the Office of National Drug Control Policy, the Drug Enforcement Administration, and all other Federal agencies engaged in the National Drug Control Strategy of the President to continue supporting public awareness, harm reduction, and overdose and poisoning prevention.

AMENDMENTS SUBMITTED AND PROPOSED

SA 135. Mr. DURBIN (for Mr. BLUMENTHAL (for himself, Ms. BALDWIN, Mr. BENNET, Mrs. BLACKBURN, Mr. BOOKER, Mr. BOOZMAN, Mr. BRAUN, Mr. BROWN, Mr. BUDD, Mrs. CAPITO, Mr. CARDIN, Mr. CARPER, Mr. CASSIDY, Ms. COLLINS, Mr. COONS, Mr. CORNYN, Ms. CORTEZ MASTO, Mr. COTTON, Mr. CRAMER, Mr. CRUZ, Mr. DAINES, Ms. DUCKWORTH, Mr. DURBIN, Ms. ERNST, Mrs. FEINSTEIN, Mr. FETTERMAN, Mrs. GILLIBRAND, Mr. GRAHAM, Ms. HASSAN, Mr. HEINRICH, Mr. HICKENLOOPER, Ms. HIRONO, Mr. HOEVEN, Mrs. HYDE-SMITH, Mr. JOHNSON, Mr. KAINE, Mr. KELLY, Mr. KENNEDY, Mr. KING, Ms. KLOBUCHAR, Mr. LANKFORD, Mr. LUJÁN, Mr. MANCHIN, Mr. MERKLEY, Mr. MORAN, Ms. MURKOWSKI, Mr. MURPHY, Mrs. MURRAY, Mr. OSSOFF, Mr. PADILLA, Mr. PETERS, Mr. REED, Mr. ROMNEY, Ms. ROSEN, Mr. ROUNDS, Mr. RUBIO, Mr. SCOTT of Florida, Mrs. SHAHEEN, Ms. SINEMA, Ms. SMITH, Ms. STABENOW, Mr. SULLIVAN, Mr. TESTER, Mr. TILLIS, Mr. VANCE, Mr. WARNER, Ms. WARREN, Mr. WELCH, Mr. WHITEHOUSE, Mr. WICKER, Mr. WYDEN, and Mr. YOUNG)) proposed an amendment to the bill S. 305, to require the Secretary of the Treasury to mint coins in commemoration of the 250th anniversary of the United States Marine Corps, and to support programs at the Marine Corps Heritage Center.

TEXT OF AMENDMENTS

SA 135. Mr. DURBIN (for Mr. BLUMENTHAL (for himself, Ms. BALDWIN, Mr. BENNET, Mrs. BLACKBURN, Mr. BOOKER, Mr. BOOZMAN, Mr. BRAUN, Mr. BROWN, Mr. BUDD, Mrs. CAPITO, Mr. CARDIN, Mr. CARPER, Mr. CASSIDY, Ms. COLLINS, Mr. COONS, Mr. CORNYN, Ms. CORTEZ MASTO, Mr. COTTON, Mr. CRAMER, Mr. CRUZ, Mr. DAINES, Ms. DUCKWORTH, Mr. DURBIN, Ms. ERNST, Mrs. FEINSTEIN, Mr. FETTERMAN, Mrs. GILLIBRAND, Mr. GRAHAM, Ms. HASSAN, Mr. HEINRICH, Mr. HICKENLOOPER, Ms. HIRONO, Mr. HOEVEN, Mrs. HYDE-SMITH, Mr. JOHNSON, Mr. KAINE, Mr. KELLY, Mr. KENNEDY, Mr. KING, Ms. KLOBUCHAR, Mr. LANKFORD, Mr. LUJÁN, Mr. MANCHIN, Mr. MERKLEY, Mr. MORAN, Ms. MURKOWSKI, Mr. MURPHY, Mrs. MURRAY, Mr. OSSOFF, Mr. PADILLA, Mr. PETERS, Mr. REED, Mr. ROMNEY, Ms. ROSEN, Mr. ROUNDS, Mr. RUBIO, Mr. SCOTT of Florida, Mrs. SHAHEEN, Ms. SINEMA, Ms. SMITH, Ms. STABENOW, Mr. SULLIVAN, Mr. TESTER, Mr. TILLIS, Mr. VANCE, Mr. WARNER, Ms. WARREN, Mr. WELCH, Mr. WHITEHOUSE, Mr. WICKER, Mr. WYDEN, and Mr. YOUNG)) proposed an amendment to the bill S. 305, to require the Secretary of the Treasury to mint coins in commemoration of the 250th anniversary of the United States Marine Corps, and to support programs at the Marine Corps Heritage Center; as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''250th Anniversary of the United States Marine Corps Commemorative Coin Act''.[S13JN3-358]{S2075}SEC. 2. FI

SEC. 2. FINDINGS.

The Congress finds the following:

(1) November 10, 2025, marks the 250th anniversary of the United States Marine Corps.

(2) The United States Marine Corps has, over the course of its illustrious 250-year history, fought gallantly in defense of the United States.

(3) The United States Marine Corps has established itself as a leading military force, always prepared for tomorrow's challenges and to contend with the future character of war.

(4) The United States Marine Corps continues to exemplify the warrior ethos that has made it a fighting force of international repute.

(5) All Americans should commemorate the legacy of the United States Marine Corps and recognize the significant contributions the values embodied in the Corps have made in protecting the United States against its enemies.

(6) In 2000, Congress authorized the construction of the Marine Corps Heritage Center as a multipurpose facility for historical displays for the public viewing, curation and storage of artifacts, research facilities, classrooms, offices and associated activities consistent with the mission of the Marine Corps.

(7) On November 10, 2006, the Marine Corps Heritage Center opened to the public, with exhibits that share the history of the Marine Corps from 1775 until 1975, and with planned future exhibits on modern day Marine Corps history from the end of the Vietnam War through the wars in Iraq and Afghanistan.

(8) The United States should pay tribute to the 250th anniversary of the United States Marine Corps by minting and issuing a commemorative coin.

(9) The surcharge proceeds from the sale of a commemorative coin, which would have no net costs to the taxpayers, would raise valuable funding for the continuation of educational programs of the Marine Corps Heritage Center.

SEC. 3. COIN SPECIFICATIONS.

(a) DENOMINATIONS.—In commemoration of the 250th anniversary of the United States Marine Corps, the Secretary of the Treasury (hereafter in this Act referred to as the ''Secretary'') shall mint and issue the following coins:

(1) $5 GOLD COINS.—Not more than 50,000 $5 coins, which shall—

(A) weigh 8.359 grams;

(B) have a diameter of 0.850 inches; and

(C) contain not less than 90 percent gold.

(2) $1 SILVER COINS.—Not more than 400,000 $1 coins, which shall—

(A) weigh 26.73 grams;

(B) have a diameter of 1.500 inches; and

(C) contain not less than 90 percent silver.

(3) HALF-DOLLAR CLAD COINS.—Not more than 750,000 half-dollar coins which shall—

(A) weigh 11.34 grams;

(B) have a diameter of 1.205 inches; and

(C) be minted to the specifications for half-dollar coins contained in section 5112(b) of title 31, United States Code.

(b) LEGAL TENDER.—The coins minted under this Act shall be legal tender, as provided in section 5103 of title 31, United States Code.

(c) NUMISMATIC ITEMS.—For purposes of sections 5134 and 5136 of title 31, United States Code, all coins minted under this Act shall be considered to be numismatic items.

SEC. 4. DESIGNS OF COINS.

(a) DESIGN REQUIREMENTS.—The designs of the coins minted under this Act shall be emblematic of the 250th anniversary of the United States Marine Corps.

(b) DESIGNATION AND INSCRIPTIONS.—On each coin minted under this Act there shall be—

(1) a designation of the value of the coin;

(2) an inscription of the year ''2025''; and

(3) inscriptions of the words ''Liberty'', ''In God We Trust'', ''United States of America'', and ''E Pluribus Unum''.

(c) SELECTION.—The designs for the coin minted under this Act shall be—

(1) selected by the Secretary after consultation with the Commission of Fine Arts, the Commandant of the Marine Corps, and the Marine Corps Heritage Foundation; and

(2) reviewed by the Citizens Coinage Advisory Committee.

SEC. 5. ISSUANCE OF COINS.

(a) QUALITY OF COINS.—Coins minted under this Act shall be issued in uncirculated and proof qualities.

(b) PERIOD FOR ISSUANCE.—The Secretary may issue coins minted under this Act only during the 1-year period beginning on January 1, 2025.

SEC. 6. SALE OF COINS.

(a) SALE PRICE.—The coins issued under this Act shall be sold by the Secretary at a price equal to the sum of—

(1) the face value of the coins;

(2) the surcharge provided in section 7(a) with respect to such coins; and

(3) the cost of designing and issuing the coins (including labor, materials, dies, use of machinery, overhead expenses, marketing, and shipping).

(b) BULK SALES.—The Secretary shall make bulk sales of the coins issued under this Act at a reasonable discount.

(c) PREPAID ORDERS.—

(1) IN GENERAL.—The Secretary shall accept prepaid orders for the coins minted under this Act before the issuance of such coins.

(2) DISCOUNT.—Sale prices with respect to prepaid orders under paragraph (1) shall be at a reasonable discount.

SEC. 7. SURCHARGES.

(a) IN GENERAL.—All sales of coins issued under this Act shall include—

(1) a surcharge of $35 per coin for the $5 coin;

(2) a surcharge of $10 per coin for the $1 coin; and

(3) a surcharge of $5 per coin for the half dollar coin.

(b) DISTRIBUTION.—Subject to section 5134(f)(1) of title 31, United States Code, all surcharges received by the Secretary from the sale of coins issued under this Act shall be promptly paid by the Secretary to the Marine Corps Heritage Foundation and shall only be used for the purposes of supporting the mission of the Marine Corps Heritage Center.

(c) AUDITS.—The Marine Corps Heritage Foundation, shall be subject to the audit requirements of section 5134(f)(2) of title 31, United States Code, with regard to the amounts received under subsection (b).

(d) LIMITATION.—Notwithstanding subsection (a), no surcharge may be included with respect to the issuance under this Act of any coin during a calendar year if, as of the time of such issuance, the issuance of such coin would result in the number of commemorative coin programs issued during such year to exceed the annual 2 commemorative coin program issuance limitation under section 5112(m)(1) of title 31, United States Code (as in effect on the date of the enactment of this Act). The Secretary may issue guidance to carry out this subsection.

SEC. 8. FINANCIAL ASSURANCES.

The Secretary shall take such actions as may be necessary to ensure that—

(1) minting and issuing coins under this Act will not result in any net cost to the United States Government; and

(2) no funds, including applicable surcharges, are disbursed to the Marine Corps Heritage Foundation until the total cost of designing and issuing all of the coins authorized by this Act (including labor, materials, dies, use of machinery, overhead expenses, marketing, and shipping) is recovered by the United States Treasury, consistent with sections 5112(m) and 5134(f) of title 31, United States Code.

AUTHORITY FOR COMMITTEES TO MEET

Mr. BROWN. Madam President, I have seven requests for committees to meet during today's session of the Senate. They have the approval of the Majority and Minority Leaders.

Pursuant to rule XXVI, paragraph 5(a), of the Standing Rules of the Senate, the following committees are authorized to meet during today's session of the Senate:

COMMITTEE ON ARMED SERVICES

The Committee on Armed Services is authorized to meet during the session of the Senate on Tuesday, June 13, 2023, at 9:30 a.m., to conduct a hearing on a nomination.

COMMITTEE ON BANKING, HOUSING, AND URBAN AFFAIRS

The Committee on Banking, Housing, and Urban Affairs is authorized to meet during the session of the Senate on Tuesday, June 13, 2023, at 10 a.m., to conduct a hearing.

COMMITTEE ON COMMERCE, SCIENCE, AND TRANSPORTATION

The Committee on Commerce, Science, and Transportation is authorized to meet during the session of the Senate on Tuesday, June 13, 2023, at 2 p.m., to conduct a subcommittee hearing.

COMMITTEE ON FOREIGN RELATIONS

The Committee on Foreign Relations is authorized to meet during the session of the Senate on Tuesday, June 13, 2023, at 2 p.m., to conduct a hearing on nominations.

COMMITTEE ON THE JUDICIARY

The Committee on the Judiciary is authorized to meet during the session of the Senate on Tuesday, June 13, 2023, at 10 a.m., to conduct a hearing.

COMMITTEE ON THE JUDICIARY

The Committee on the Judiciary is authorized to meet during the session of the Senate on Tuesday, June 13, 2023, at 2:30 p.m., to conduct a hearing.

SUBCOMMITTEE ON HOUSING, TRANSPORTATION, AND COMMUNITY DEVELOPMENT

The Subcommittee on Housing, Transportation, and Community Development of the Committee on Banking, Housing, and Urban Affairs is authorized to meet during the session of the Senate on Tuesday, June 13, 2023, at 2:30 p.m., to conduct a hybrid hearing.

RESOLUTIONS SUBMITTED TODAY

Mr. DURBIN. Mr. President, I ask unanimous consent that the Senate proceed to the en bloc consideration of the following Senate resolutions: S. Res. 248, 249, and 250.

There being no objection, the Senate proceeded to consider the resolutions en bloc.

Mr. DURBIN. I ask unanimous consent that the resolutions be agreed to, the preambles be agreed to, and the motions to reconsider be considered made and laid upon the table, all en bloc.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolutions were agreed to.

The preambles were agreed to.

(The resolutions, with their preambles, are printed in today's RECORD under ''Submitted Resolutions.'')

250TH ANNIVERSARY OF THE UNITED STATES MARINE CORPS COMMEMORATIVE COIN ACT

Mr. DURBIN. Mr. President, I ask unanimous consent that the Committee on Banking, Housing, and Urban Affairs be discharged from and the Senate proceed to the immediate consideration of S. 305.

The PRESIDING OFFICER. The clerk will report the bill by title.

The senior assistant legislative clerk read as follows:

A bill (S. 305) to require the Secretary of the Treasury to mint coins in commemoration of the 250th anniversary of the United States Marine Corps, and to support programs at the Marine Corps Heritage Center.

There being no objection, the committee was discharged and the Senate proceeded to consider the bill.

Mr. DURBIN. I further ask unanimous consent that the Blumenthal substitute amendment be considered and agreed to; that the bill, as amended, be considered read a third time and passed; and that the motion to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment (No. 135), in the nature of a substitute, was agreed to as follows:

(Purpose: In the nature of a substitute)

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''250th Anniversary of the United States Marine Corps Commemorative Coin Act''.

SEC. 2. FINDINGS.

The Congress finds the following:

(1) November 10, 2025, marks the 250th anniversary of the United States Marine Corps.

(2) The United States Marine Corps has, over the course of its illustrious 250-year history, fought gallantly in defense of the United States.

(3) The United States Marine Corps has established itself as a leading military force, always prepared for tomorrow's challenges and to contend with the future character of war.

(4) The United States Marine Corps continues to exemplify the warrior ethos that has made it a fighting force of international repute.

(5) All Americans should commemorate the legacy of the United States Marine Corps and recognize the significant contributions the values embodied in the Corps have made in protecting the United States against its enemies.

(6) In 2000, Congress authorized the construction of the Marine Corps Heritage Center as a multipurpose facility for historical displays for the public viewing, curation and storage of artifacts, research facilities, classrooms, offices and associated activities consistent with the mission of the Marine Corps.

(7) On November 10, 2006, the Marine Corps Heritage Center opened to the public, with exhibits that share the history of the Marine Corps from 1775 until 1975, and with planned future exhibits on modern day Marine Corps history from the end of the Vietnam War through the wars in Iraq and Afghanistan.

(8) The United States should pay tribute to the 250th anniversary of the United States Marine Corps by minting and issuing a commemorative coin.

(9) The surcharge proceeds from the sale of a commemorative coin, which would have no net costs to the taxpayers, would raise valuable funding for the continuation of educational programs of the Marine Corps Heritage Center.

SEC. 3. COIN SPECIFICATIONS.

(a) DENOMINATIONS.—In commemoration of the 250th anniversary of the United States Marine Corps, the Secretary of the Treasury (hereafter in this Act referred to as the ''Secretary'') shall mint and issue the following coins:

(1) $5 GOLD COINS.—Not more than 50,000 $5 coins, which shall—

(A) weigh 8.359 grams;

(B) have a diameter of 0.850 inches; and

(C) contain not less than 90 percent gold.

(2) $1 SILVER COINS.—Not more than 400,000 $1 coins, which shall—

(A) weigh 26.73 grams;

(B) have a diameter of 1.500 inches; and

(C) contain not less than 90 percent silver.

(3) HALF-DOLLAR CLAD COINS.—Not more than 750,000 half-dollar coins which shall—

(A) weigh 11.34 grams;

(B) have a diameter of 1.205 inches; and

(C) be minted to the specifications for half-dollar coins contained in section 5112(b) of title 31, United States Code.

(b) LEGAL TENDER.—The coins minted under this Act shall be legal tender, as provided in section 5103 of title 31, United States Code.

(c) NUMISMATIC ITEMS.—For purposes of sections 5134 and 5136 of title 31, United States Code, all coins minted under this Act shall be considered to be numismatic items.

SEC. 4. DESIGNS OF COINS.

(a) DESIGN REQUIREMENTS.—The designs of the coins minted under this Act shall be emblematic of the 250th anniversary of the United States Marine Corps.

(b) DESIGNATION AND INSCRIPTIONS.—On each coin minted under this Act there shall be—

(1) a designation of the value of the coin;

(2) an inscription of the year ''2025''; and

(3) inscriptions of the words ''Liberty'', ''In God We Trust'', ''United States of America'', and ''E Pluribus Unum''.

(c) SELECTION.—The designs for the coin minted under this Act shall be—

(1) selected by the Secretary after consultation with the Commission of Fine Arts, the Commandant of the Marine Corps, and the Marine Corps Heritage Foundation; and

(2) reviewed by the Citizens Coinage Advisory Committee.

SEC. 5. ISSUANCE OF COINS.

(a) QUALITY OF COINS.—Coins minted under this Act shall be issued in uncirculated and proof qualities.

(b) PERIOD FOR ISSUANCE.—The Secretary may issue coins minted under this Act only during the 1-year period beginning on January 1, 2025.

SEC. 6. SALE OF COINS.

(a) SALE PRICE.—The coins issued under this Act shall be sold by the Secretary at a price equal to the sum of—

(1) the face value of the coins;

(2) the surcharge provided in section 7(a) with respect to such coins; and

(3) the cost of designing and issuing the coins (including labor, materials, dies, use of machinery, overhead expenses, marketing, and shipping).

(b) BULK SALES.—The Secretary shall make bulk sales of the coins issued under this Act at a reasonable discount.

(c) PREPAID ORDERS.—

(1) IN GENERAL.—The Secretary shall accept prepaid orders for the coins minted under this Act before the issuance of such coins.

(2) DISCOUNT.—Sale prices with respect to prepaid orders under paragraph (1) shall be at a reasonable discount.

SEC. 7. SURCHARGES.

(a) IN GENERAL.—All sales of coins issued under this Act shall include—

(1) a surcharge of $35 per coin for the $5 coin;

(2) a surcharge of $10 per coin for the $1 coin; and

(3) a surcharge of $5 per coin for the half dollar coin.

(b) DISTRIBUTION.—Subject to section 5134(f)(1) of title 31, United States Code, all surcharges received by the Secretary from the sale of coins issued under this Act shall be promptly paid by the Secretary to the Marine Corps Heritage Foundation and shall only be used for the purposes of supporting the mission of the Marine Corps Heritage Center.

(c) AUDITS.—The Marine Corps Heritage Foundation, shall be subject to the audit requirements of section 5134(f)(2) of title 31, United States Code, with regard to the amounts received under subsection (b).

(d) LIMITATION.—Notwithstanding subsection (a), no surcharge may be included with respect to the issuance under this Act of any coin during a calendar year if, as of the time of such issuance, the issuance of such coin would result in the number of commemorative coin programs issued during such year to exceed the annual 2 commemorative coin program issuance limitation under section 5112(m)(1) of title 31, United States Code (as in effect on the date of the enactment of this Act). The Secretary may issue guidance to carry out this subsection.

SEC. 8. FINANCIAL ASSURANCES.

The Secretary shall take such actions as may be necessary to ensure that—

(1) minting and issuing coins under this Act will not result in any net cost to the United States Government; and

(2) no funds, including applicable surcharges, are disbursed to the Marine Corps Heritage Foundation until the total cost of designing and issuing all of the coins authorized by this Act (including labor, materials, dies, use of machinery, overhead expenses, marketing, and shipping) is recovered by the United States Treasury, consistent with sections 5112(m) and 5134(f) of title 31, United States Code.

The bill (S. 305), as amended, was ordered to be engrossed for a third reading, was read the third time, and passed.

OSWALDO PAYÁ WAY

Mr. DURBIN. Mr. President, I ask unanimous consent that the Committee on Homeland Security and Governmental Affairs be discharged from further consideration of S. 376, and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. The clerk will report the bill by title.

The senior assistant legislative clerk read as follows:

A bill (S. 376) to designate the area between the intersections of 16th Street, Northwest and Fuller Street, Northwest and 16th Street, Northwest and Euclid Street, Northwest in Washington, District of Columbia, as ''Oswaldo Payá Way''.

There being no objection, the committee was discharged and the Senate proceeded to consider the bill.

Mr. DURBIN. I ask unanimous consent that the bill be considered read a third time and passed and that the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (S. 376) was ordered to be engrossed for a third reading, was read the third time, and passed, as follows:

S. 376

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. FINDINGS.

Congress finds that—

(1) the revolution led by Fidel Castro in Cuba in 1959 started 64 years of an ongoing dictatorship, systemic human rights abuses, and a lack of basic freedom of press, religion, assembly, and association that continue to this day under the Communist rule of Raúl Castro and his successor, Miguel Díaz-Canel;

(2) Oswaldo Payá Sardiñas was a Cuban political dissident and activist dedicated to promoting democratic freedoms and human rights in Cuba;

(3) the Communist Party of Cuba has always viewed individuals with a commitment to democracy and freedom as a threat to the existence of the Communist Party of Cuba;

(4) on July 22, 2012, a violent car crash, widely believed to have been carried out by the Castro regime, took the lives of Oswaldo Payá and Harold Cepero, another democratic activist;

(5) the official investigation conducted by the Cuban regime into the crash has been demonstrated to be compromised, and the Cuban regime has blocked all efforts to conduct a credible and independent investigation into the crash, leaving the circumstances of the death of Oswaldo Payá unknown;

(6) opposition by Oswaldo Payá to the Communist Party of Cuba began at a young age, when he refused to become a member of the Young Communist League as a primary school student, and continued through high school, when he publicly criticized the invasion of Czechoslovakia by the Soviet Union;

(7) the Communist Party of Cuba responded to the opposition by Oswaldo Payá to the invasion of Czechoslovakia by the Soviet Union by sending Oswaldo Payá to a labor camp for 3 years;

(8) Oswaldo Payá forewent a chance to escape Cuba in the 1980 Mariel boatlift, deciding instead to continue the fight for democracy in Cuba, saying, ''This is what I am supposed to be, this is what I have to do.'';

(9) by creating the Varela Project in 1998, Oswaldo Payá demonstrated his staunch commitment to peacefully advocating for freedom of speech and freedom of assembly for his fellow Cubans;

(10) in recognition of his determination for political reforms through peaceful protests, Oswaldo Payá was awarded the Sakharov Prize for Freedom of Thought by the European Parliament in 2002 and the W. Averell Harriman Democracy Award from the National Democratic Institute for International Affairs in 2003 and was nominated for the Nobel Peace Prize by former Czech President Václav Havel in 2005;

(11) on April 11, 2018, the Senate unanimously passed S. Res. 224, recognizing the sixth anniversary of the death of Oswaldo Payá Sardiñas, commemorating his legacy and commitment to democratic values and principles, and calling on the Cuban Government to allow an impartial, third-party investigation into the circumstances surrounding his death; and

(12) renaming the street in front of the Embassy of Cuba in the District of Columbia after Oswaldo Payá serves as an expression of solidarity between the people of the United States and the people of Cuba, who are engaged in a long, nonviolent struggle for fundamental human rights.

SEC. 2. DESIGNATION OF OSWALDO PAYÁ WAY.

(a) DESIGNATION OF WAY.—

(1) IN GENERAL.—The area between the intersections of 16th Street, Northwest and Fuller Street, Northwest and 16th Street, Northwest and Euclid Street, Northwest in Washington, District of Columbia, shall be known and designated as ''Oswaldo Payá Way''.

(2) REFERENCES.—Any reference in a law, map, regulation, document, paper, or other record of the United States to the area referred to in paragraph (1) shall be deemed to be a reference to Oswaldo Payá Way.

(b) DESIGNATION OF ADDRESS.—

(1) DESIGNATION.—The address of 2630 16th Street, Northwest, Washington, District of Columbia, shall be redesignated as 2630 Oswaldo Payá Way.

(2) REFERENCES.—Any reference in a law, map, regulation, document, paper, or other record of the United States to the address referred to in paragraph (1) shall be deemed to be a reference to 2630 Oswaldo Payá Way.

(c) SIGNS.—The District of Columbia shall construct 2 street signs that shall—

(1) contain the phrase ''Oswaldo Payá Way'';

(2) be placed immediately above existing signs at the intersections of 16th Street, Northwest and Fuller Street, Northwest and 16th Street, Northwest and Euclid Street, Northwest in Washington, District of Columbia; and

(3) be similar in design to the signs used by the District of Columbia to designate the location of Metro stations.

ORDERS FOR WEDNESDAY, JUNE 14, 2023

Mr. DURBIN. I ask unanimous consent that when the Senate completes its business today, it stand adjourned until 10 a.m. on Wednesday, June 14; that following the prayer and pledge, the Journal of proceedings be approved to date, the morning hour be deemed expired, the time for the two leaders be reserved for their use later in the day and morning business be closed; that following the conclusion of morning business, the Senate proceed to executive session and, notwithstanding rule XXII, resume consideration of the Pitts nomination until 11:30 a.m.; further, that at 11:30 a.m., the Senate vote on the motion to invoke cloture on the Pitts nomination followed by an immediate cloture vote on the Ho nomination; further, that if cloture is invoked on either nomination, all postcloture time be considered expired at 2:30 p.m. and the Senate vote on confirmation of the nominations in the order in which cloture was invoked; further, that the Senate vote on the motion to invoke cloture on the Choudhury nomination at 5:15 p.m., and if any nominations are confirmed during Wednesday's session, the motions to reconsider be considered made and laid upon the table and the President be immediately notified of the Senate's action.

The PRESIDING OFFICER. Without objection, it is so ordered.

ADJOURNMENT UNTIL 10 A.M. TOMORROW

Mr. DURBIN. Mr. President, if there is no further business to come before the Senate, I ask that it stand adjourned under the previous order.

There being no objection, the Senate, at 7:09 p.m., adjourned until Wednesday, June 14, 2023, at 10 a.m.

CONFIRMATIONS

Executive nominations confirmed by the Senate June 13, 2023:

THE JUDICIARY

HERNAN D. VERA, OF CALIFORNIA, TO BE UNITED STATES DISTRICT JUDGE FOR THE CENTRAL DISTRICT OF CALIFORNIA.

DEPARTMENT OF STATE

ELIZABETH ALLEN, OF NEW YORK, TO BE UNDER SECRETARY OF STATE FOR PUBLIC DIPLOMACY.

EXECUTIVE OFFICE OF THE PRESIDENT

JARED BERNSTEIN, OF VIRGINIA, TO BE CHAIRMAN OF THE COUNCIL OF ECONOMIC ADVISERS.

EXTENSIONS OF REMARKS

RECOGNIZING CLOVIS UNIFIED SCHOOL DISTRICT SUPERINTENDENT EIMEAR O'BRIEN

HON. KEVIN McCARTHY

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Mr. MCCARTHY. Mr. Speaker, I rise today to recognize Dr. Eimear O'Brien on her retirement as Superintendent of the Clovis Unified School District. Throughout her 39-year career in the education field, Eimear has demonstrated servant leadership, professionalism, and integrity. Her passion for improving the lives of our youth through education is emblematic of Clovis.

Before serving as the Superintendent of the Clovis Unified School District, Eimear spent nearly 20 years in the classroom from 1983 to 2003. Born and raised in Ireland. Eimear earned her bachelor's degree from the Carysfort College of Education at the National University of Ireland in 1983. After earning her teaching credential in Ireland, she taught for 10 years in Dublin before accepting a teaching opportunity in the United States. She moved to Fresno, California in 1993 and became a first-grade teacher at Our Lady of Victory Catholic School before joining Clovis Unified as a third grade teacher at Maple Creek Elementary School in 1996. In 2010, Eimear graduated with her Doctorate in Educational Leadership from California State University, Fresno. Eimear's pursuit of academic excellence serves as a role model for the students, teachers, staff, and administrators to inspire excellence within Clovis Unified.

Following her two decades as an elementary school teacher in both Ireland and the United States. Eimear served in numerous leadership capacities at Clovis Unified, which speaks volumes about the trust placed in her. She began her pathway in educational leadership as the Guidance Instructional Specialist (GIS) at Valley Oak Elementary School in 2003. From there, she quickly advanced to Learning Director at Clovis West High School, Principal of Valley Oak Elementary School in 2007, Deputy Principal of Clovis West High School in 2009, and Principal of Clovis West High School in 2012. From 2014 to 2017, she served as Assistant Superintendent for the Clovis West Area before her appointment by the Clovis Unified Board of Trustees to the position of Superintendent in 2017.

During her tenure, Clovis Unified earned numerous awards, including, but not limited to, three National Blue Ribbon Awards, 13 California Distinguished School Awards, one Model Continuation School Award, five National Schools to Watch Awards, 28 California Pivotal Practice Awards, 54 Honor Roll School Recognitions, 43 Bonner Character Awards, 51 Positive Behavior Interventions and Support Awards, and 41 Statewide Civil Learning Awards.

While Eimear has an impressive list of accomplishments throughout her career, her greatest legacy is the lasting, positive impact on the lives of students over her nearly four decades of educational service. I know that Eimear is looking forward to this next chapter of her life and spending more time with her two daughters, Sarah and Emma. On behalf of the 20th Congressional District of California, I would like to congratulate Dr. Eimear O'Brien on a well-deserved retirement, a successful career in education, and for her many contributions to our community.

HONORING PRESIDENT ELLEN JUNN'S SERVICE TO CALIFORNIA STATE UNIVERSITY STANISLAUS

HON. JOSH HARDER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Mr. HARDER of California. Mr. Speaker, I rise today to honor the history-making career of Ellen Junn, the President of California State University Stanislaus, and to thank her for her endless contributions to student success. Upon her appointment in 2016, President Junn made history as the first Korean-American woman to be appointed President of a four-year public institution in the United States. President Junn is now retiring after tirelessly leading CSU Stanislaus for 7 years, following her 30 years of service across five other California State University campuses.

During her tenure, President Junn championed and invested in student success, ensuring students from all backgrounds could succeed on campus. She launched the President's Central Valley First-Generation Scholars Initiative, the first in the CSU system to support first-generation college students from a specific geographic area. President Junn also forged a path for students from local community colleges to successfully transfer into Stanislaus State by creating the Warriors on the Way program. The institution's academic success also thrived under President Junn's leadership: MONEY Magazine names Stanislaus State among California's Top 10 colleges.

President Junn's investment in students transcends her ro]e on campus. Throughout her career, President Junn has published peer-reviewed research and journal articles focusing on the needs of underserved students and the role of community engagement at universities. She leads several community organizations, including being the President of the Central Higher Education Consortium and the Board of Directors for the California Partnership for the San Joaquin Valley. President Junn is also a member of the Stanislaus Community Foundation's Cradle to Career Leadership Team, ITHAKA Higher Education Insights, California Association for the Education of Young Children, and the Association for Psychological Science.

I am honored to recognize President Ellen Junn's significant contributions to the California State University community, and I congratulate her on a long, successful career dedicated to the lives of students.

RECOGNIZING WILLIAM GOULD IV

HON. ANNA G. ESHOO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Ms. ESHOO. Mr. Speaker, I rise to include in the RECORD the remarks of my constituent, William B. Gould IV, Professor Emeritus at Stanford Law School, at the unveiling of a statue of his great-grandfather who escaped slavery to serve in the Navy during the Civil War.

UNVEILING OF THE STATUE OF WILLIAM B. GOULD [1837–1923]: THE FLAME KEPT ALIVE

DELIVERED BY WILLIAM B. GOULD IV, GOULD PARK—DEDHAM, MASSACHUSETTS, MAY 28, 2023

On behalf of the entire Gould Family on this 100th commemoration of William B. Gould's death here in Dedham, today I express our thanks to Dedham's citizens who made this day possible. Specifically, Joe Castiglione, Voice of the Boston Red Sox and my friend for nearly forty years, for his kindness in accepting this position as Master of Ceremonies of this event.

And I thank Father Wayne L. Belschner of St. Mary's Roman Catholic Church which William B. Gould helped construct in the 1880s. I shall never forget your eloquent and vivid speech 18 months ago here in Dedham about him and his work and I thank you for it.

And thank you Father Chitral De Mel, Rector of the Church of the Good Shepard here, where we attended the Eucharist this morning and where the first four of the six William Benjamin Goulds were baptized.

Penultimately, thank you Pablo Eduardo for your fine artistry in sculpting this statue of my great-grandfather.

Finally. I thank Brian Keaney, who along with Dan Hart, and so many others here in Dedham discovered William B. Gould three years ago and set in motion a chain of events which have led to this day.

''Bring the good old bugle, boys, we'll sing another song'' writes Henry C. Work when he wrote Marching Through Georgia which my father sang to us so often in our New Jersey household.

''Sing it with a spirit that will start the world along—Sing it as we used to sing it, fifty thousand strong, While we were marching through Georgia.''

These words, sung with gusto by my father, along with the Battle Hymn of the Republic, have been with me since childhood and throughout my three decade long search for my great grandfather, gone from this world thirteen years before my birth.

As we arrived in Boston a few days ago after a visit to Savannah, Georgia, I thought anew about those days, reflecting upon General Sherman's great ''march to the sea'' when ''treason fled before us'' as the United States marched through Georgia and presented a Christmas present of Savannah to President Lincoln.

Two decades ago, when some of the Gould Family traveled to Wilmington, North Carolina, William B. Gould's birthplace and the

site of his audacious escape from slavery to join the United States Navy in the War of the Rebellion, we noted the absence of any statues for the Black veterans of that conflict. Contrarily, we noted the many Confederate statues throughout the country, a phenomenon made graphic today as some have been pulled down, relocated or destroyed. In Wilmington in 2003 I said:

''. . . There is little or no mention or acknowledgment of the black military involvement in this effort, the ''holiest of all causes'' as William B. Gould called it, to obtain the New World's central political and legal achievement.''

Statues cannot be viewed as neutral and they do not exist in a vacuum. They project the memories of the past and the values associated with them. Their oldest confirmed examples of stone and portrait are said to be before recorded history, 35,000 to 45,000 years ago. When the time capsules contained within this statue are opened, one hundred and two hundred years from now, it may be that William B. Gould's values, expressed in war and in peace here in Dedham, will in some way shape or promote the discussions of future generations.

Of course. it was my father. William B. Gould III, raised here on the Boston-Dedham boundary line, who truly lit the spark for this day. It was he who bequeathed the cadence of the Civil War, its' principles. music, literature and knowledge of its military battles as part of our upbringing. It was he who found the diary itself here in Dedham. It was he who manifested an ever courteous reverence toward my great uncles who had fought in France in World War I. It was he who kept the name alive.

On this Memorial Day weekend, we remember the first William B. Gould's service to the United States and his well-written words at sea in 1865. ''We were born under the Flag of the Union and we never will know no other.'' he said in response to ideas which abounded before and during the War about Black colonization in Africa, while pursuing Confederate vessels near Southampton, Great Britain. ''My sentiment is the sentiment of the people of the states'', he said. And for my great grandfather, this flag was the ''Flag of Right'' and ''the Flag of Equality.''

This day marks honor for that commitment and for those previously forgotten. For until my father discovered the diary and the citizens of Dedham took notice of it three years ago, William B. Gould had been forgotten. To be forgotten was illustrative of what I described a number of years ago, i.e., ''. . . the old order against which my parents had struggled. In their day the struggle was against hopeless odds—hopeless because all who possessed African blood were isolated, ridiculed, despised—and thus regarded as unfit for occupations and work that the white man was willing to perform.'' It was the forgotten who, in the words of the Book of Common Prayer, ''travail'' and are ''heavy laden.'' This is what William B. Gould had in mind when, in his diary, he railed against the tearing of ''benighted Africans'' from their ''loved homes on the free plains of Africa's shores'' to be ''transferred to the Wilderness of America so that they would become ''. . . the Hewers of the Wood and Drawers of Water to clear their Land, to Build their Cittys and feed their Mouths?''

I cannot speak for what William B. Gould would say about the current discussion and debate on recompense or reparations and what form, if any, they should take. But today we can experience firsthand the exhilaration of victory at sea as well as on land, the conclusion of what, in his Second Inaugural Address President Lincoln called ''the bondman's two hundred and fifty years of unrequited toil'' and ''every drop of blood drawn with the lash.''

In 2023, these wounds still exist in our country today more than one hundred and sixty years after William B. Gould's service. For his generation of family and war comrades, who were ever devoted to full freedom and equality, surely today he would want us to repair the inequality in our country, as he did through his work, with great care and honesty. As St. Mary's parishioners know today, he was a smart, capable and practical craftsman who worked with his mind as well as his hands. He would be, as he was then, promoting that which is compatible with Lincoln's overriding goal to ''bind up the nation's wounds'' so that we may live with equity in dignity with respect for one another.

Thank you. Dedham, Massachusetts, for this honor to William B. Gould. God bless you in your efforts to reflect upon the past and affect the future.

PERSONAL EXPLANATION

HON. LISA BLUNT ROCHESTER

OF DELAWARE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Ms. BLUNT ROCHESTER. Mr. Speaker, today I rise to address my vote for H. Res. 311.

This resolution will encourage the State of Israel to continue its diplomatic efforts within the Middle East and North African (MENA) region and beyond. In recent years, Israel has succeeded in establishing diplomatic relations with several nations around it. I continue to be supportive of the efforts by the State of Israel to work toward normalization of relations with its neighbors and improve the stability of the region. The resolution also describes several aspects of U.S.-Israel policy, which I continue to support, including the 10-year Memorandum of Understanding and maintenance of our bilateral relationship. It is for these reasons that I voted in favor of this resolution.

However, I am disappointed that the resolution did not include an explicit affirmation of a two-state solution nor the eventual goal of peace with the Palestinians. A similar bipartisan resolution marking the 70th anniversary of the founding of Israel included these affirmations. These statements are long-standing aspects of U.S. policy, including the Biden Administration's current policy, and are core principles for a successful peace process.

I will continue to support a two-state solution and the peace process needed to achieve that goal.

REMEMBERING THE SIKH GENOCIDE OF 1984

HON. JOSH HARDER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Mr. HARDER of California. Mr. Speaker, I rise today to honor and mourn the thousands of innocent Sikh lives that were stolen over the course of the Sikh Genocide. Thirty-nine years after the onset of the Indian government's military operation to decimate the holy city of Amritsar, the scars of genocide remain ever present in the Sikh community across the globe. Yet, even in the face of numerous tribulations and outright hate, the Sikh community continues to rise above and uphold their principles of humility, compassion, and generosity.

The Sikh Genocide began in June of 1984 with Operation Blue Star, a military operation targeting the Harmandir Sahib, also known as The Golden Temple Complex, lasting ten days. For days, innocent worshippers that were celebrating a Sikh religious holiday were trapped inside the gurdwara. Deprived of food and water, deprived of their right to worship, and deprived of their basic human rights. Thousands of innocent Sikh worshippers were murdered in Operation Blue Star. Today, the bullet holes scarring the Golden Temple Complex serve as a heart wrenching visual, forever reminding all who visit of the atrocities that occurred.

Tragically, Operation Blue Star wasn't the end of this genocide, but only the beginning. The horrendous military operation was immediately followed by a sharp uptick in human rights violations targeting innocent Sikhs across India. Over 40 other gurdwaras were attacked across the Punjab province. And the attacks on innocent Sikhs persisted for seven years.

We cannot forget the thousands of innocent people who were persecuted. We follow the lead of the Sikh community, who now commemorate these 10 days by holding special prayer services in honor of the innocent lives which were lost. I offer a moment of silence to honor the innocent people harmed over the course of the Sikh Genocide. May we never forget the atrocities that occurred.

HONORING THE CREW OF UNITED STATES COAST GUARD CUTTER ''JOSEPH DOYLE'' (WPC 1133) COURAGE DANS LA TEMPETE

HON. JENNIFFER GONZÁLEZ-COLÓN

OF PUERTO RICO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Mrs. GONZÁLEZ-COLÓN. Mr. Speaker, I rise today to recognize the crew of the United States Coast Guard Cutter *Joseph Doyle* (WPC 1133), on its 4th year of commissioned service in Puerto Rico.

Commissioned in a patriotic ceremony on June 8, 2019, in San Juan Puerto Rico, Cutter *Joseph Doyle* is the 33rd Fast Response cutter in the USCG's fleet and joined a fleet of seven fast response cutters under the operational control of U.S. Coast Guard Sector San Juan, Puerto Rico. Immediately it began to conduct Coast Guard missions including Counter-Drug, Alien-Migrant Interdiction Operations, and Search and Rescue throughout a 1.2 million square mile area of responsibility spanning Puerto Rico, the U.S. Virgin Islands and much of the Eastern Caribbean.

Cutter WPC 1133 is named after Joseph O. Doyle who started serving as the Keeper of the Charlotte, New York Life Saving Station, in 1878, and became one of the most admired and courageous keepers of the United States Lifesaving Service recognized by awarding him the Gold Life Saving Medal. Inspired by his example and guided by the ship's motto ''Courage Dans La Tempete'' or ''Courage in the Storm'' the crew of the cutter *Joseph Doyle* endeavors to ensure that local and federal laws are upheld on the high seas and all

waters over which the United States has jurisdiction.

From June 2021 to July 2023, Lieutenant Commander Charles ''Chuck'' Wilson served as the Commanding Officer of USCGC *Joseph Doyle*. Under the leadership of LCDR Wilson, his crew executed six search and rescue cases resulting in four lives saved, interdicted six narcotics smuggling ventures, 431 illegal migrants, 22 traffickers and seized or disrupted 2,000 kilograms of cocaine and 1,500 lbs. of marijuana worth a combined street value of $75 million. Notably, *Doyle* rescued 27 migrants from the cliffs of Isla Monito, a small island West of Puerto Rico, after a human smuggler stranded them.

The *Doyle*'s commitment to serve the Nation extended beyond law enforcement by engaging in bolstering International Engagements and Partnerships, by conducting training exercises with foreign naval and law enforcement forces that allowed them to execute surface warfare formations, mock boarding, Law Enforcement exchange to stop dangerous human smuggling and narcotics trafficking ventures at sea. The commitment to serve the *Doyle*'s crew extended to conducting Service Outreach and Recruitment events, which provided excellent support to the Commandant's mission to recruit Coast Guard men and women who represent the diverse communities in the United States Coast Guard.

Please join me in honoring the crew of the United States Coast Guard Cutter *Joseph Doyle* (WPC 1133), on its 4th year of commissioned service in Puerto Rico, and commend them for their contributions to our Nation, deserving of national and congressional recognition.

HONORING THE ALLIANCE FOR THE VISUAL ART (AVA) GALLERY AND ART CENTER

HON. ANN M. KUSTER

OF NEW HAMPSHIRE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Ms. KUSTER. Mr. Speaker, I rise today to recognize the 50th anniversary of the AVA Gallery and Art Center in Lebanon, New Hampshire.

The AVA Gallery and Art Center's tireless dedication to the arts has fostered a love and fascination for the visual arts in New Hampshire and beyond for decades. Through the AVA Gallery and Art Center's programming for artists and patrons of all ages, they have enriched the lives of countless New Englanders and have nurtured our creative spirit.

On behalf of my constituents in New Hampshire's Second Congressional District, I thank the AVA Gallery and Art Center for their continuing efforts to promote the important values of art and culture and for being a part of what makes the Granite State such a wonderful place to live, work, and raise a family. I am honored to recognize and congratulate them on 50 years of incredible work, and I wish them many more.

REINTRODUCTION OF THE BRIDGE CORROSION PREVENTION AND REPAIR ACT OF 2023

HON. JOHN GARAMENDI

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Mr. GARAMENDI. Mr. Speaker, today I reintroduce the ''Bridge Corrosion Prevention and Repair Act'' with Congressman Brian Fitzpatrick (R–PA). I thank U.S. Senators Robert P. Casey, Jr. (D–PA) and Debbie Stabenow (D–MI) for sponsoring the companion legislation.

Our bipartisan, bicameral legislation would require all federally funded bridge projects to use certified contractors for any corrosion control work and employ industry-recognized standards for corrosion mitigation and prevention. Specifically, our legislation would prompt State, county, and municipal transportation departments to employ qualified, trained corrosion control professionals who have completed federally registered apprenticeship programs.

In July 2021, the House passed my ''Bridge Corrosion Prevention and Repair Act'' as Section 1116 of former Chairman Peter A. DeFazio's (D–OR) ''Investing in a New Vision for the Environment and Surface Transportation (INVEST) in America Act,'' of which I was a cosponsor. While it was ultimately not included in the Infrastructure Investment and Jobs Act (Public Law 117–58), I continue working to build upon Chairman DeFazio's work on corrosion prevention policy and promoting apprenticeships.

In the National Defense Authorization Act for Fiscal Year 2022 (Public Law 117–81), I secured Section 813 (Office of Corrosion Policy and Oversight employee training requirements) directing the U.S. Department of Defense to make use of federally registered apprenticeship programs for training military personnel, civilian employees, and military construction contractors on anti-corrosion activities. Under my amendment to the FY2022 NDAA, the DOD's Office of Corrosion Policy and Oversight Employee Training Requirements is charged with coordinating this work.

Under the 2021 Bipartisan Infrastructure Law, Congress and the Biden Administration are making the largest federal investment to modernize our nation's infrastructure since the Interstate Highway System was established in 1956. America's corrosion professionals and union painters are ready, willing, and able to do the job.

Mr. Speaker, I urge all Members of the House to cosponsor the Bridge Corrosion Prevention and Repair Act.

INTRODUCTION OF THE RED HILL HEALTH IMPACT ACT

HON. ED CASE

OF HAWAII

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Mr. CASE. Mr. Speaker, I rise today to introduce the Red Hill Health Impact Act, a crucial piece of legislation to address the health implications of the recent fuel spill at our military's Red Hill Underground Fuel Facility above Pearl Harbor, Hawaii.

My bill, which I jointly introduce with my Hawaii colleagues, Senators BRIAN SCHATZ and MAZIE HIRONO and Congresswoman JILL TOKUDA, aims to protect the health of individuals affected by that inexcusable incident, particularly those who lived or worked in a residence or other building served by the water system at Joint Base Pearl Harbor-Hickam (JBPHH).

Red Hill is unlike any other bulk fuel storage facility in the world. Built during World War II, its twenty underground tanks have the capacity to store up to 250 million gallons of fuel. But it is constructed and was operated at a location immediately above the main aquifer for the City and County of Honolulu that provides water to hundreds of thousands of Hawaii residents, servicemembers and visitors.

Although the community has raised concerns about these tanks for many years, in 2021 an estimated 20,000 gallons of fuel leaked from one of the tanks into the aquifer. The contaminated water was then withdrawn from the aquifer and fed into the JBPHH and distributed to thousands of mostly-but-not-exclusively military homes, offices and businesses. Many became ill as a direct result, and many more fear for longer term health impacts not immediately apparent.

Though the Secretary of Defense has since ordered the defueling and decommissioning of Red Hill, a process now underway, the Red Hill incident has had a profound impact on the lives not only of the directly affected individuals and families, but the Hawaii community at large. The contamination of Oahu's main water aquifer has raised persistent concerns about the potential long-term health implications to exposed individuals.

Our Red Hill Health Impact Act takes essential steps to address these concerns and ensure that impacted individuals receive the support and services they need over time. One of its primary provisions is establishing a registry where concerned individuals can sign up to facilitate outreach and collect comprehensive data on the health implications of exposure to petroleum-contaminated water. This registry will provide invaluable information and allow us to identify additional research needs to better understand the effects of such contamination on our health.

The bill further calls for an epidemiological study that will assess potential health implications for impacted individuals over at least twenty years. This study will provide us with critical insights into the long-term health effects of exposure to petroleum-contaminated water and enable us to develop targeted interventions and support systems to mitigate any adverse health outcomes for those affected.

To ensure transparency and accountability, the Red Hill Health Impact Act requires annual reports on the study and its findings to be provided to the appropriate Congressional committees, enrolled members and the public. Open communication and access to information are paramount in addressing the concerns and needs of the impacted individuals and the broader community.

It is our duty to ensure that those affected by this incident are not left to face their health concerns alone after the immediate crisis passes and Red Hill closes. I therefore urge my colleagues to support the Red Hill Health Impact Act, thus prioritizing the well-being of the impacted individuals and recognizing the lasting impact the Red Hill incident has had and may have on their lives.

Mahalo.

HONORING THE CHRIS ANDERSON CENTER FOR THE ARTS

HON. JOSH HARDER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Mr. HARDER of California. Mr. Speaker, I rise today to recognize Don Riggio Elementary School's rededicating of the music and multipurpose room complex to the Chris Anderson Center for the Arts. Mr. Anderson devoted 34 years teaching the gift of music to generations of students in Stockton. Over the course of his life, Mr. Anderson exemplified what it means to be a dedicated teacher, musician, and to lead a life of service.

Described as the ''heart and soul'' of Don Riggio Elementary School's music program, Mr. Anderson changed the lives of the countless students who had the pleasure of walking into his classroom. His love and passion for music was evident in every lesson he taught. Mr. Anderson is quoted saying, ''most people would consider the sounds students first make on their instruments as cringeworthy. But to me, that is music to my ears, as it is the first time students give a voice to their instruments.''

But Mr. Anderson did more than teach students how to give a voice to their instruments. He taught students how to use their own voices and express themselves creatively. Furthermore, Mr. Anderson fostered an encouraging and collaborative community in his classroom, where students strengthened both their musical voice and their own voice. His compassionate, yet disciplined, style of teaching reached every student, making sure that every child left his classroom with an appreciation for music. Mr. Anderson's teaching ability was recognized far beyond his classroom—in fact, Mr. Anderson was a quarterfinalist for the 2017 Grammy Music Educator Award.

When he wasn't playing ''Lassus Trombone'' with his band students, Mr. Anderson and his trombone were a familiar sight across San Joaquin County. He directed the Valley Concert Band for a decade and was a guest conductor for the Stockton Concert Band when it performed at Carnegie Hall. He also played with several musical groups. including Tropical Nights, the Swingaires, the Lodi Community Band, and he often appeared in Stockton Civic Theatre's orchestra pit.

Mr. Anderson's influence reverberates across San Joaquin County and beyond. He is missed by all who had the pleasure of knowing him.

I am honored to celebrate Mr. Christopher Anderson, his contributions to our community, and his gift of teaching music.

CALLING ON THE GOVERNMENT OF THE RUSSIAN FEDERATION TO IMMEDIATELY RELEASE UNITED STATES CITIZEN PAUL WHELAN

SPEECH OF

HON. TIM WALBERG

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Monday, June 12, 2023

Mr. WALBERG. Mr. Speaker, I rise in support of House Resolution 272, and call on the Russian government to release United States citizen Paul Whelan. I thank my colleague, Congresswoman HALEY STEVENS, for her continued work on this important issue.

It has now been four-and-a-half years since Paul Whelan, a marine veteran and Michigan resident, was imprisoned in Russia.

After a sham trial, he was sentenced to 16 years in prison without proper evidence.

Vladimir Putin is focused on using American hostages as leverage against the United States.

We have seen prisoner swaps bring other Americans home but, tragically, Paul has been left behind in Russia.

As the Whelan family stated, the Russians are using Paul Whelan as an example of how America does not treat our citizens equally.

If there was ever a time for the U.S. Government to move decisively for Paul, it's now.

Congress can send a strong message today by passing this resolution, and we hope the administration will follow suit.

I've met with members of the Whelan family on many occasions.

Despite these long agonizing years, they continue to be pillars of strength.

It's time for Paul Whelan to come home to Michigan and be returned to his family.

HONORING SALVADOR RUIZ ESQUIVEL'S CONTRIBUTIONS TO HIS COMMUNITY

HON. TERESA LEGER FERNANDEZ

OF NEW MEXICO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Ms. LEGER FERNANDEZ. Mr. Speaker, I rise today to celebrate a true artist, community leader, and mentor of young people throughout the beautiful Española Valley in northern New Mexico—Salvador Ruiz Esquivel. Growing up in his native Guadalajara, Jalisco, Mexico, he never dreamed he would become an American citizen, a leader in the arts and in the greater community, nor least of all to be mentioned in the halls of Congress.

Salvador gave up his early years in dance when he came to the U.S. where he became a successful entrepreneur in the field of furniture and design. He returned to his true calling, though, when he and his life partner, former State Legislator Roger Montoya, joined together to found Moving Arts Española. Salvador had returned to dance when Roger asked him to teach Folklorico Dance and Visual Art in the public schools. Seeing that there were no after-school programs for the children, they co-founded Moving Arts Española to fill the void and serve children and families.

Moving Arts Española has served thousands of community members through its regular classes, after school programs, and teaching of all the arts. Numerous young graduates return to be teachers themselves—not as volunteers, but as paid staff. They relate to the students who see the possibilities for themselves in their young mentors. Also, all attendees receive a free hot meal.

The Española Valley is a different place because of Moving Arts Española and Salvador's work. This is an area where many live below the poverty line and too many have experienced the tragedies of addiction. It's a place where grandparents often help care for extended family members. Moving Arts Española has helped students become more engaged in their education. School dropout rates, drug usage, and crime involvement for these young artists are measurably lower than in the broader community.

Salvador's work has changed a generation of lives, and continues to do so. In 2019, Roger was nominated as a CNN Hero, and in 2022 Salvador received the Univisionario Award for his work. Salvador's role as both executive director and shepherd of the Moving Arts Española vision as well as his place in the community has made him one of my Congressional District's most outstanding citizens.

When Salvador was a young boy in Mexico he learned a strong work ethic from his father. Never in search of glory or fame, Salvador has worked hard and brought others along with him through his journey. A gifted dancer in his youth, Salvador gave up his art when the obstacles seemed too great. Now he and Roger work to make sure young people do not face the same obstacles that Salvador encountered in his youth.

Salvador always mentions that the best reward is, ''Seeing the smiles on the children's faces.'' Today, we offer our gratitude to Salvador himself who is the reason for so many of those smiles and who continues to make the community a vibrant place.

RECOGNIZING MAJOR GENERAL TREVOR J. BREDENKAMP

HON. MATT GAETZ

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Mr. GAETZ. Mr. Speaker, today I rise to recognize the outstanding military service of Major General (MG) Trevor J. Bredenkamp of Niceville, Florida, for his tenure as Chief, Legislative Liaison (CLL) from June 9, 2021 to June 8, 2023. He has demonstrated a devotion to America by honorably representing the United States Army and bringing credit to Florida's First District while assigned to Capitol Hill. The job of CLL is a critical one as he is charged with effectively and efficiently bridging two branches of government as an advocate of the United States Army to Congress.

In 1992, MG Bredenkamp received his commission from the United States Military Academy at West Point, graduating with a Bachelor of Science in Automotive Engineering.

MG Bredenkamp's previous command assignments include the United Nations Comand/Eighth Army Honor Guard Company; A Company, 1st Battalion, 506th Infantry; 2nd Battalion, 504th Parachute Infantry Regiment, Fort Bragg North Carolina and deployed as part of OPERATION IRAQI FREEDOM; Deputy Commander, 3rd Brigade Combat Team,

82nd Airborne Division; Commander, 1st Brigade Combat Team, 82nd Airborne Division; Deputy Commander-Support, 3rd Infantry Division at Fort Stewart, Georgia; and Commander of Train, Advise, Assist Command-South and Kandahar Airfield while deployed as part of OPERATION FREEDOM's SENTINEL.

His previous staff and special assignments include Platoon Leader, Scout Platoon Leader, and Battalion S–1 in the 3rd Battalion, 505th Parachute Infantry Regiment, 82nd Airborne Division; Platoon/Company/Battalion Observer/Controller at the Joint Readiness Training Center; C3 Training Officer, 82nd Airborne Division, at Fort Bragg and deployed as part of OPERATION IRAQI FREEDOM; Operations Officer, 2nd Battalion 504th Parachute Infantry Regiment; Operations Officer, 1st Brigade Combat Team, 82nd Airborne Division at Fort Bragg and deployed as part of OPERATION ENDURING FREEDOM; Aide-de-Camp to the Commander, U.S. Army Forces Command and subsequently the Commander, International Security Assistance Force, North Atlantic Treaty Organization; Deputy Director, Soldier for Life, Executive Officer to the Secretary of the Army; and the Chief, Programs Division, Office of the Chief, Legislative Liaison, Office of the Secretary of the Army.

MG Bredenkamp's awards and decorations include the Defense Superior Service Medal, four Legions of Merit, four Bronze Stars, six Meritorious Service Medals, five Army Commendations, and five Army Achievement Medals. He is authorized to wear the Combat Infantrymen Badge, the Combat Action Badge, the Expert Infantryman Badge, Master Parachutist Badge, Air Assault Badge, Pathfinder Badge, Ranger Tab, and the Army Staff Identification Badge.

He holds a Master of Liberal Arts from Louisiana State University and a Master of National Security and Strategic Studies from the National War College. He has been happily married to MG Michele Bredenkamp for more than 26 years, and they are proud parents of two children.

PERSONAL EXPLANATION

HON. JIM JORDAN

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Mr. JORDAN. Mr Speaker, I was absent from the Floor during today's roll call vote (No. 251) on H.R, 3099, the Special Envoy for the Abraham Accords Act. I strongly support this legislation, which builds upon President Trump's important work toward greater stability between the State of Israel and other countries in the region, and would have voted in support of it had I been present,

CELEBRATING STOCKTON EAST WATER DISTRICT'S 75TH ANNIVERSARY

HON. JOSH HARDER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Mr. HARDER of California. Mr. Speaker, I rise today to honor and celebrate the 75th anniversary of the creation of the Stockton East Water District. Over the past 75 years, the Stockton East Water District has played an integral role in supporting our region's agricultural industry and providing San Joaquin families with clean drinking water. On the 75th anniversary of the District's establishment, I'm honored to recognize its incredible level of commitment to our community.

The Stockton East Water District was formed in 1948 under the 1931 Water Conservation Act of the State of California. From 1948 to 1963, the District focused on water resource planning by evaluating groundwater conditions and determining requirements for supplemental water, but have since expanded their focus. In 1971, District boundaries were expanded to include the entire Stockton urban area. Stockton East Water District supplies not only surface water, but also develops sustainable groundwater for both urban and agriculture usage in San Joaquin County. The Central Valley's reputation of being the ''food basket of the world'' likely would not be without the Stockton East Water District's pivotal role in supporting our community's agricultural industry.

For decades, Stockton East Water District has also worked to protect and develop local habitats. The District partnered with the United States Army Corps of Engineers in 2001 to complete the Farmington Groundwater Recharge and Seasonal Habitat Study. The study was awarded the American Society of Civil Engineers Water/Environmental Project of the Year in 2003 and the San Joaquin Council of Government Regional Excellence award in 2004 for the establishment of 60 acres of recharge ponds and fields adjacent to The Dr. Joe Waidhofer drinking water treatment plant.

As we've seen over the past year, flooding has become a major issue in our community. Yet, in the face of this challenge, the Stockton East Water District has continuously worked day and night with local agencies and constituencies to redirect flood flows from the Calaveras and Stanislaus Rivers. Their constant perseverance in the face of new challenges reiterates the fundamental role that Stockton East Water District fulfills in San Joaquin County.

I am honored to recognize the Stockton East Water District for their service and commitment to San Joaquin County's water supply and congratulate the District for a successful 75 years.

CELEBRATING MRS. DESSIE RADU'S 100TH BIRTHDAY

HON. BETH VAN DUYNE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Ms. VAN DUYNE. Mr. Speaker, I rise today to recognize Mrs. Dessie Radu of Bedford, Texas in celebration of her 100th Birthday.

Mrs. Dessie Radu is a valued member of the Bedford community who has bettered the lives of countless people throughout North Texas. Whether she is spending time with her large family, catching up with lifelong friends, or talking with someone she doesn't know yet, there is no doubt that she leaves a lasting impression on everyone she meets. Dessie spent years traveling the world with her husband, Major (Ret) John Radu II, as he served our Nation for 24 years in the United States Air Force. Following in his father's footsteps, Dessie's son John Radu II served 4 years in the United States Air Force and was a Vietnam veteran. Today, we come together to recognize the 100 years Dessie has spent with us, and the impact that she has and continues to make on our lives.

Mr. Speaker, please join me—and Dessie's many family, friends, and loved ones—in recognizing Dessie and wishing her a happy 100th birthday.

VOTE AGAINST H.R. 3099, THE SPECIAL ENVOY FOR ABRAHAM ACCORDS ACT

HON. BETTY McCOLLUM

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Ms. MCCOLLUM. Mr. Speaker, I rise to address my vote against H.R. 3099, the Special Envoy for Abraham Accords Act.

The Abraham Accords fails to address the plight of millions of Palestinians who are working to build a peaceful future and who have been abandoned by Congress and the broader international community. Peace in the region can only be achieved by respecting human rights, especially the rights of children. By turning a blind eye to the ongoing mistreatment of Palestinian children living under Israeli occupation, Congress only contributes to the continuation of in Justice.

I include in the RECORD my June 2016 letter to then-President Obama urging him to appoint a Special Envoy for Palestinian Youth to encourage diplomatic engagement with the Government of Israel, the Palestinian Authority, and human rights groups in the region to address the serious human rights abuses that have been well documented against Palestinian children who are living under Israeli military occupation.

I believe no U.S. military aid to Israel should be used to enable or support the military detention and torture of Palestinian children. the demolition of Palestinian homes, or the annexation of Palestinian lands. The American people expect that all children, including Palestinian children, are treated with dignity and have their human rights respected. If the United States is to play a role in ending the Israeli-Palestinian conflict, we must end human rights abuses against Palestinian children.

My calls for a Special Envoy for Palestinian Youth have gone unanswered.

Enabling an ambassadorial level of U.S. representation for a Special Envoy for the Trump-era Abraham Accords, while ignoring the need for a Special Envoy for Palestinian Youth, is an affront to all those seeking to end the human rights abuses of Palestinian young people living under military occupation. Peace in the region will only be possible if we build a brighter future for Israelis and Palestinials alike.

Therefore, I voted no on H.R. 3099.

CONGRESS OF THE UNITED STATES,
Washington, DC, June 20, 2016.

President BARACK OBAMA,
The White House,
Washington, DC.

DEAR PRESIDENT OBAMA: We are deeply appreciative of your administration's efforts in

pursuit of a negotiated peace to end the violence and settlement expansion that are the hallmarks of the Israeli-Palestinian conflict. While diplomatic efforts to resolve the conflict will certainly continue to require American leadership, for the foreseeable future any move to advance the peace process is in the hands of Prime Minister Netanyahu, President Abbas, and their respective governments.

Regardless of the manner in which Israeli and Palestinian political leaders decide to act upon their common future, a reality that must be acknowledged is that forty-six percent of the 4.68 million Palestinians living in the Occupied Palestinian Territories are under 18 years of age. These children deserve to grow up with dignity, human rights, and a future free of repression.

This enormous youth cohort represents another generation of Palestinian children growing up under military occupation with very few opportunities to improve their lives. These children live under the constant fear of arrest, detention, and violence at the hands of the Israeli military, as well as the threat of recruitment or conscription into armed groups. We view this as an unimaginably difficult and at times hopeless environment for children that only fuels the conflict.

The recent attacks against Israelis, including those perpetrated by Palestinian youth, are profoundly disturbing and must be condemned. These attackers are often using crude weapons knowing they will likely be killed by Israeli security forces. Appropriate measures must be taken by security forces to defend themselves and innocent civilians. At the same time, the root cause of such violent acts must be examined and understood within the context in which they are taking place. Does a life of utter hopelessness and the collective psychological trauma associated with the Palestinian people living for decades under Israeli military occupation directly contribute to the violence?

The people of Israel have a right to security and we support U.S. policies which advance Israel's security. We also strongly believe that human rights—including the human rights of Palestinian children—must be protected and promoted, never ignored. As far as U.S. policy is concerned, we should expect an Israeli child and a Palestinian child to receive equal treatment from the authorities and the legal system. If in fact we are truly seeking security for Israel then it is in the interest of the American people to advance the cause of security, human rights, equality, dignity, justice, and opportunity for Palestinians, just as we do for Israelis.

We must raise our profound concern regarding a longstanding policy of detaining, interrogating, and imprisoning Palestinian children as young as 12 and 13 for up to a year, sometimes longer, without a trial and in violation of international standards. Recently, the Associated Press reported that a 12-year-old Palestinian girl was imprisoned by Israel's military justice system. UNICEF, Human Rights Watch, B'Tselem, and other international NGOs have documented these human rights abuses against Palestinian youth. A report released in April by Defense for Children International-Palestine, based on the testimony of 429 Palestinian children detained by the Israeli military or police, found that three-quarters endured some form of physical violence following arrest. Israeli interrogators used position abuse, threats, and even solitary confinement to coerce confessions from some of these children. Such blatant abuses are unacceptable and contrary to U.S. interests and values.

The situation on the ground is rapidly deteriorating and we must act now. At the end of February, there were 440 Palestinian children in Israeli military prisons. This is the highest number since data became available from Israel Prison Service in 2008. For the first time in nearly four years, Israel has reintroduced the use of administrative detention against children. This is a procedure whereby a child can be detained without charge or trial, often renewable indefinitely. According to the most recent data from the Israeli Prison Service (February 2016), there were seven Palestinian children being held under administrative detention orders.

Mr. President, we believe the U.S. has a critical role to play in shaping the environment for peace between the people of Israel and the Palestinian people. Palestinian youth is one of the most critical demographic groups to building a secure future. We must act now to send a clear signal that we value their lives and well-being.

Therefore, we urge you to appoint a ''Special Envoy for Palestinian Youth'' to travel to the West Bank, East Jerusalem, and Israel to hear directly from Palestinian youth, human rights and legal experts, NGOs, Palestinian and Israeli officials, including police and military leaders. Such a fact finding mission will provide the Obama Administration with vital information necessary to actively promote human rights, but also establish a framework for the next U.S. administration. Both Israel and the Palestinian Authority have obligations under universal human rights norms and international human rights instruments for which they are accountable and a ''Special Envoy for Palestinian Youth'' will serve the important role of highlighting their respective successes and the shortcomings that demand action.

We are also calling on the Department of State to elevate the human rights of Palestinian children to a priority status in our bilateral relations with Israel and our ongoing engagement with the Palestinian Authority. The immediate appointment of a ''Special Envoy for Palestinian Youth'' will send a strong signal that truly reflects the spirit of your administration's tenure in the White House. Conversely, ignoring the trauma being inflicted on millions of Palestinian children undermines our American values and will ensure the perpetuation of a conflict and occupation we all want to see ended peacefully.

Sincerely,

Betty McCollum, Eddie Bernice Johnson, Andre Carson, John Conyers, Earl Blumenauer, Donald Beyer, Barbara Lee, Keith Ellison, Henry ''Hank'' Johnson, Bobby Rush, Marcy Kaptur, Chellie Pingree, Danny Davis, Peter DeFazio, Raul Grijalva, Sam Farr, Luis V. Gutierrez, Jim McDermott, Yvette Clarke, Mark Pacon, Members of Congress.

REPORT (H. REPT. 118–108) TO ACCOMPANY H. RES. 495 AND REPORT (H. REPT. 118–102) TO ACCOMPANY H. RES. 463

HON. TOM COLE

OF OKLAHOMA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Mr. COLE. Mr. Speaker, the Rules Committee report (H. Rept. 118–108) to accompany House Resolution 495 should have included in its waivers of all points of order against consideration of H.R. 277 and H.R. 288 a disclosure of the following violation:

Clause 2(h) of rule XI, requiring a majority of the committee to be present to report a measure or recommendation.

Further, the Rules Committee report (H. Rept. 118–102) to accompany House Resolution 463 should have included in its waivers of all points of order against consideration of H.R. 277 and H.R. 288 a disclosure of the following violation:

Clause 2(h) of rule XI, requiring a majority of the committee to be present to report a measure or recommendation.

HONORING JOHN DAVIS HIBBARD AND WILLIAM ROBERT HIBBARD

HON. JOSH HARDER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Mr. HARDER of California. Mr. Speaker, I rise today to recognize John Davis Hibbard, a special young man who has exemplified the finest qualities of citizenship by taking an active part in the Boy Scouts of America, Troop 48, and earning the most prestigious award of Eagle Scout.

John has been very active with his troop, participating in many scout activities. Over the many years, John has earned numerous merit badges and served in several leadership roles, including as Senior Patrol Leader of his Troop. Through his Eagle Project, John has made a significant contribution to the community in building a garden for the Marin City Senior Center.

Mr. Speaker, I also rise today to recognize the efforts of John's older brother, William Robert Hibbard, a very special young man who has exemplified the finest qualities of citizenship by taking an active part in the Boy Scouts of America, Troop 48, and earning in 2021, the most prestigious award of Eagle Scout.

Wi]liam was very active with his troop. Over the many years that William has been involved, he has earned numerous merit badges, and served in several leadership roles, including as Senior Patrol Leader of his Troop. Through his Eagle Project, William made a significant contribution to his community in building seating and storage boxes for Westminster Presbyterian Church of Tiburon.

I am honored to recognize both John Davis Hibbard and William Robert Hibbard for their accomplishments with the Boy Scouts of America and for their efforts put forth in achieving the highest distinctions of Eagle Scout.

HONORING THE LIFE OF RONALD F. ''RON'' RICHARD OF JOPLIN, MISSOURI

HON. ERIC BURLISON

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Mr. BURLISON. Mr. Speaker, I rise today to celebrate the life and legacy of former State Senator Ronald F. Richard of Joplin, Missouri, also known as Ron, or Ronnie, to his closest friends. Sadly, Mr. Richard passed away this past Friday morning.

Senator Richard was born in Parsons, Kansas, on Independence Day in 1947. He moved to Joplin as a child and subsequently graduated from McAuley High School in 1965. He

went on to earn Bachelor of Arts degrees in history and political science from Joplin's Missouri Southern State University in 1969, and a Master of Arts degree in recent American history from Missouri State University in Springfield in 1971.

Senator Richard's first foray into politics began in 1990 when he was elected to the Joplin City Council. He was named mayor of Joplin in 1994, a position he held until 1997. In 2002, Senator Richard was elected to represent the 129th District in the Missouri House of Representatives. While serving in the House, he was elected by his colleagues in 2009 to serve as Speaker of the House.

In 2010, he ran to represent Missouri's 32nd Senatorial District, which at the time consisted of Newton, Jasper and Dade counties. He held that position from 2010 to 2018, when he termed out under Missouri's term limits law. While there, he was elected by his peers as President Pro Tempore, a leadership position he held from 2015 to 2018. Senator Richard is the first legislator in Missouri history to serve as the top leader in both chambers of the Missouri State Legislature.

Senator Richard's life of service did not end with his retirement from the legislature. He was appointed by Missouri Governor Mike Parson to the Missouri Southern State University Board of Governors, a position he held at the time of his death. He also served on the board of the Missouri Higher Education Savings Program and continued to be active in local and state politics.

In December 2022, he was honored as a Missouri Squire, a non-profit organization that honors Missourians for their accomplishments at the community, state, or national level, that was founded by Gov. James T. Blair in 1960. He also was named an outstanding alumnus by Missouri Southern State University, received an RCGA Statesman Award, and also received the St. Louis Business Journal Legislative Award.

Senator Richard owned C & N Bowling Corporation. He and his wife, Patty, have two children, Kara and Chad, and several grandchildren.

It is an honor and a privilege to have known Senator Richard and to have had him as a constituent. He exhibited a life of service, and we mourn his untimely death. Our prayers are with his wife, Patty, and the rest of his family and friends.

HONORING THE 2023 NBA CHAMPION DENVER NUGGETS

HON. DIANA DeGETTE

OF COLORDAO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Ms. DEGETTE. Mr. Speaker, I rise today, along with my colleagues, Congressman DOUG LAMBORN, Congressman KEN BUCK, Congressman JOE NEGUSE, Congressman JASON CROW, Congresswoman LAUREN BOEBERT, Congresswoman BRITTANY PETTERSEN and Congresswoman YADIRA CARAVEO, to congratulate the Denver Nuggets on their first-ever NBA championship.

After an impressive 53 wins in the regular season and a historic run through this year's NBA playoffs, the Nuggets—led by five-time NBA All Star Nikola Jokic—defeated the Miami Heat on Monday night in Denver to clinch the team's first-ever NBA championship.

It's a moment that Nuggets fans, including myself, have been dreaming about since the franchise started in 1967, and I couldn't be more proud of everyone associated with this historic team on achieving what many thought was impossible.

For more than 56 seasons, Nuggets fans have been cheering our team to victory. While we've had no shortage of talent and victories over the years, this is the first time that Denver can now officially call itself home to the NBA champs.

After a spectacular regular season, the Nuggets were able to clinch the top seed in the NBA's Western Conference for the first time in franchise history. The team then went on an incredible run, beating the Minnesota Timberwolves in the first round of the playoffs 4 games to 1; eliminating the Phoenix Suns in the second round 4 games to 2; and then sweeping the Los Angeles Lakers 4 games to none to win its first-ever Western Conference championship.

It was the first time the Nuggets had ever beaten the Lakers in a playoff series, the first time they had ever swept another team in the playoffs, the first time they'd ever won the Western Conference Championship, and the first time they'd ever have a chance at hoisting the coveted Larry O'Brien trophy in the Mile High City.

Led by Nikola Jokic and Jamal Murray, that's exactly what the Nuggets did this week. After a hard-fought series against the Miami Heat, the Nuggets clinched the franchise's first-ever championship trophy on Monday.

It was a fitting finale to a historic championship run. Just days earlier, Nikola Jokic and Jamal Murray made history of their own in Game 3 when the pair became the first NBA teammates ever to record 30-point triple-doubles in the same game during an NBA Finals. They were also the first pair of teammates to ever record a combined 300 assists during the playoffs, and the first pair to score a combined 1,000 points in a single postseason.

Nikola Jokic, who was named MVP of the final series, recorded more triple-doubles in this year's postseason than any other player in NBA history. He's the first player to lead the league in all three major statistical categories during the playoffs: points, rebounds and assists; the first center, since Shaquille O'Neal, to lead his team in scoring while winning a championship; and only the second player in NBA history to average more than 30 points and 8 assists while winning an NBA title, a feat that, before now, had been accomplished by only one other player in NBA history—and that was Michael Jordan.

Like so many Denverites, I couldn't be more proud of what our Nuggets have accomplished this year—and how, under the leadership of their visionary coach Mike Malone, they were able to put teamwork over personal gain to bring one of the Nation's most coveted prizes to the Mile High City.

As Coach Malone said right after Monday night's historic victory, ''I got news for everybody out there. We're not satisfied with one, we want more!''

We couldn't agree more—and we can't wait to see what this incredible team does next.

RECOGNITION OF EUNICE BRINSON

HON. EMILIA STRONG SYKES

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 13, 2023

Mrs. SYKES. Mr. Speaker, I proudly represent Ohio's 13th District, the birthplace of champions.

I was deeply saddened to learn of the passing of Eunice Brinson and extend my deepest and sincerest condolences to the friends and family who knew and loved her.

Eunice was a hardworking and caring individual, who dedicated her life to the Lord. Born to Samuel and Minnie (Warthen) Fort in 1919 in Davisboro, Georgia, Eunice was also the child of Joseph Johnson. She first attended the Little Pine Hill Methodist Church in Georgia, where she sang in the choir. Eunice then went on to be a member of the United Baptist Church for over 70 years, during which time, she served on many committees, including Senior Usher Board, Mission Society, and repast Committee. At her death, she was the oldest living member at United Baptist Church.

Eunice worked for 25 years at Mechanical Industries as a Welder and Trainer until her retirement. She then decided to go back to work as a housekeeper for several families. Eunice lived a full life and in her 103 years on this earth, she enjoyed activities such as fishing, cooking, gardening, and bowling.

Eunice is preceded in death by her loving husband, JK Sr.; brothers Walter, Will, Cleveland, Remus, and Pierce; sisters Gozilla, Daisy, Annie Mae, Carrie Mae, Elizabeth, Sally, Mattie, and Susie; and several other nieces, nephews, cousins, daughters-in-law and brothers-in-law. She leaves to cherish her memory her children, JK Jr., Gregory, Anthony (Clara), William Sr. (Mike), and Connie; 22 grandchildren, 25 great-grandchildren, and one great-great-grandchild, as well as many friends.

Though her presence is truly missed, her memory will live on through the people she influenced and the family she deeply loved. Thus, with deepest sympathy, I mourn the loss and pay tribute to a truly phenomenal individual, Eunice Brinson. May her memory be a blessing.

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S2055–S2078

Measures Introduced: Thirty-two bills and six resolutions were introduced, as follows: S. 1931–1962, S.J. Res. 32, and S. Res. 246–250. **Pages S2070–71**

Measures Reported:

S. 1528, to streamline the sharing of information among Federal disaster assistance agencies, to expedite the delivery of life-saving assistance to disaster survivors, to speed the recovery of communities from disasters, to protect the security and privacy of information provided by disaster survivors, with amendments. (S. Rept. No. 118–39)

S. 1549, to provide the Congressional Budget Office with necessary authorities to expedite the sharing of data from executive branch agencies. (S. Rept. No. 118–40)

S. Res. 126, recognizing the vital importance of the Mekong River to Southeast Asia and the role of the Mekong-United States Partnership in supporting the prosperity of the region, with an amendment in the nature of a substitute and with an amended preamble.

S. Res. 156, calling on the Government of the Russian Federation to release United States citizen Paul Whelan, with an amendment in the nature of a substitute and with an amended preamble.

S. Res. 158, condemning the deportation of children from Ukraine to the Russian Federation and the forcible transfer of children within territories of Ukraine that are temporarily occupied by Russian forces, and with an amended preamble.

S. 308, to end the treatment of the People's Republic of China as a developing nation, with an amendment in the nature of a substitute.

S. 1074, to require a strategy for countering the People's Republic of China, with an amendment in the nature of a substitute. **Page S2068**

Measures Passed:

Great Outdoors Month: Senate agreed to S. Res. 248, designating June 2023 as "Great Outdoors Month". **Page S2071**

National Sarcoma Awareness Month: Senate agreed to S. Res. 249, expressing support for the designation of July 2023 as "National Sarcoma Awareness Month". **Page S2071**

National Naloxone Awareness Day: Senate agreed to S. Res. 250, designating June 6, 2023, as National Naloxone Awareness Day. **Page S2071**

250th Anniversary of the United States Marine Corps Commemorative Coin Act: Committee on Banking, Housing, and Urban Affairs was discharged from further consideration of S. 305, to require the Secretary of the Treasury to mint coins in commemoration of the 250th anniversary of the United States Marine Corps, and to support programs at the Marine Corps Heritage Center, and the bill was then passed, after agreeing to the following amendment proposed thereto: **Pages S2076–77**

Durbin (for Blumenthal) Amendment No. 135, in the nature of a substitute. **Pages S2076–77**

Oswaldo Payá Way: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of S. 376, to designate the area between the intersections of 16th Street, Northwest and Fuller Street, Northwest and 16th Street, Northwest and Euclid Street, Northwest in Washington, District of Columbia, as "Oswaldo Payá Way", and the bill was then passed. **Pages S2077–78**

Pitts, Ho, and Choudhury Nominations—Agreement: A unanimous-consent agreement was reached providing that at 10 a.m., on Wednesday, June 14, 2023, notwithstanding Rule XXII, Senate resume consideration of the nomination of P. Casey Pitts, of California, to be United States District Judge for the Northern District of California, until 11:30 a.m.; that at 11:30 a.m., Senate vote on the motion to invoke cloture on the nomination, followed by an immediate vote on the motion to invoke cloture on the nomination of Dale E. Ho, of New York, to be United States District Judge for the Southern District of New York; that if cloture is invoked on either nomination, all post-cloture time be considered

expired at 2:30 p.m., and Senate vote on confirmation of the nominations in the order in which cloture was invoked; and that Senate vote on the motion to invoke cloture on the nomination of Nusrat Jahan Choudhury, of New York, to be United States District Judge for the Eastern District of New York, at 5:15 p.m. **Page S2078**

Nominations Confirmed: Senate confirmed the following nominations:

By 66 yeas to 33 nays (Vote No. EX. 154), Elizabeth Allen, of New York, to be Under Secretary of State for Public Diplomacy. **Pages S2055–58**

By 51 yeas to 48 nays (Vote No. EX. 157), Hernan D. Vera, of California, to be United States District Judge for the Central District of California. **Pages S2058, S2062**

During consideration of this nomination today, Senate also took the following action:

By 51 yeas to 48 nays (Vote No. EX. 155), Senate agreed to the motion to close further debate on the nomination. **Page S2058**

By 50 yeas to 49 nays (Vote No. EX. 158), Jared Bernstein, of Virginia, to be Chairman of the Council of Economic Advisers. **Pages S2058–62**

During consideration of this nomination today, Senate also took the following action:

By 50 yeas to 49 nays (Vote No. EX. 156), Senate agreed to the motion to close further debate on the nomination. **Pages S2058–59**

Messages from the House: **Page S2066**

Measures Referred: **Page S2066**

Measures Placed on the Calendar: **Page S2066**

Executive Communications: **Pages S2066–67**

Petitions and Memorials: **Page S2067**

Executive Reports of Committees: **Pages S2068–70**

Additional Cosponsors: **Pages S2071–73**

Statements on Introduced Bills/Resolutions: **Pages S2073–75**

Additional Statements: **Pages S2065–66**

Amendments Submitted: **Page S2075**

Authorities for Committees to Meet: **Page S2076**

Record Votes: Five record votes were taken today. (Total—158) **Pages S2058–59, S2062**

Adjournment: Senate convened at 10 a.m. and adjourned at 7:09 p.m., until 10 a.m. on Wednesday, June 14, 2023. (For Senate's program, see the remarks of the Acting Majority Leader in today's Record on page S2078.)

Committee Meetings

(Committees not listed did not meet)

APPROPRIATIONS: SPACE CAPABILITIES

Committee on Appropriations: Subcommittee on Defense received a closed briefing on proposed budget estimates and justification for fiscal 2024 for space capabilities of the Department of Defense and intelligence community from Frank Calvelli, Assistant Secretary of the Air Force for Space Acquisitions and Integration, and General David D. Thompson, Vice Chief of Space Operations, both of the Department of Defense; and Troy Meink, Principal Deputy Director, National Reconnaissance Office.

NOMINATION

Committee on Armed Services: Committee concluded a hearing to examine the nomination of General Eric M. Smith, USMC, for reappointment to the grade of general, after the nominee testified and answered questions in his own behalf.

BUSINESS MEETING

Committee on Armed Services: Committee ordered favorably reported 4,194 nominations in the Army, Navy, Air Force, Marine Corps, and Space Force.

CFPB SEMI-ANNUAL REPORT TO CONGRESS

Committee on Banking, Housing, and Urban Affairs: Committee concluded a hearing to examine the Consumer Financial Protection Bureau's Semi-Annual Report to Congress, after receiving testimony from Rohit Chopra, Director, Consumer Financial Protection Bureau.

NATIVE AMERICAN HOUSING

Committee on Banking, Housing, and Urban Affairs: Subcommittee on Housing, Transportation, and Community Development concluded a hearing to examine the state of Native American housing, including S.70, to require the Bureau of Indian Affairs to process and complete all mortgage packages associated with residential and business mortgages on Indian land by certain deadlines, after receiving testimony from Chelsea E. Fish, National American Indian Housing Council, Washington, D.C.; Tammy Moreland, Minnesota Tribal Collaborative to Prevent and End Homelessness, The Leech Lake Reservation, Minnesota; W. Patrick Goggles, Northern Arapaho Tribal Housing, Ethete, Wyoming; and Pete Upton, Native CDFI Network and Native360 Loan Fund, Grand Island, Nebraska.

TRAVEL AND TOURISM LEGISLATION OVERSIGHT

Committee on Commerce, Science, and Transportation: Subcommittee on Tourism, Trade, and Export Promotion concluded an oversight hearing to examine implementation of travel and tourism legislation, after receiving testimony from Brian Beall, Acting Deputy Assistant Secretary of Commerce for Travel and Tourism; Carol A. Petsonk, Assistant Secretary of Transportation for Aviation and International Affairs; and Christopher L. Thompson, Brand USA, Washington, D.C.

NOMINATIONS

Committee on Foreign Relations: Committee concluded a hearing to examine the nominations of Nisha Desai Biswal, of Virginia, to be Deputy Chief Executive Officer of the United States International Development Finance Corporation, who was introduced by Senator Warner, Edgard D. Kagan, of Virginia, to be Ambassador to Malaysia, who was introduced by Senator Kaine, Mark W. Libby, of Massachusetts, to be Ambassador to the Republic of Azerbaijan, Joel Ehrendreich, of New York, to be Ambassador to the Republic of Palau, who was introduced by Senator Hagerty, and Cynthia Kierscht, of Minnesota, to be Ambassador to the Republic of Djibouti, all of the Department of State, after the nominees testified and answered questions in their own behalf.

FISA SECTION 702 OVERSIGHT

Committee on the Judiciary: Committee concluded an oversight hearing to examine Section 702 of the Foreign Intelligence Surveillance Act and related surveillance authorities, after receiving testimony from Chris Fonzone, General Counsel, Office of the Director of National Intelligence; George Barnes, Deputy Director, National Security Agency; David Cohen, Deputy Director, Central Intelligence Agency; and Paul Abbate, Deputy Director, Federal Bureau of Investigation, and Matt Olsen, Assistant Attorney General, National Security Division, both of the Department of Justice.

ARTIFICIAL INTELLIGENCE

Committee on the Judiciary: Subcommittee on Human Rights and the Law concluded a hearing to examine artificial intelligence and human rights, after receiving testimony from Geoffrey Cain, Foundation for American Innovation, Chicago, Illinois; Alexandra Reeve Givens, Center for Democracy and Technology, Washington, D.C.; Aleksander Madry, Massachusetts Institute of Technology, Cambridge; and Jennifer DeStefano, Scottsdale, Arizona.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 36 public bills, H.R. 4052–4087; and 9 resolutions, H. Con. Res. 52; and H. Res. 501–508, were introduced. **Pages H2883–84**

Additional Cosponsors: **Pages H2886–87**

Reports Filed: Reports were filed today as follows:

H.R. 1843, to amend the Internal Revenue Code of 1986 to permanently extend the exemption for telehealth services from certain high deductible health plan rules, with an amendment (H. Rept. 118–109);

H.R. 3797, to amend the Internal Revenue Code of 1986 to provide an alternative manner of furnishing certain health insurance coverage statements to individuals, with an amendment (H. Rept. 118–110); and

H.R. 3801, to amend the Internal Revenue Code of 1986 to streamline and improve the employer reporting process relating to health insurance coverage and to protect dependent privacy, with an amendment (H. Rept. 118–111). **Page H2883**

Speaker: Read a letter from the Speaker wherein he appointed Representative Houchin to act as Speaker pro tempore for today. **Page H2815**

Recess: The House recessed at 10:29 a.m. and reconvened at 12 p.m. **Page H2818**

Committee Election: The House agreed to H. Res. 502, electing a Member to a certain standing committee of the House of Representatives. **Page H2821**

Privileged Resolution—Intent to Offer: Representative Luna announced her intent to offer a privileged resolution (H. Res. 489) censuring and condemning Adam Schiff, Representative of California's 30th Congressional District. **Pages H2821–22**

Suspensions—Proceedings Resumed: The House agreed to suspend the rules and pass the following measures. Consideration began Monday, June 12th.

Special Envoy for the Abraham Accords Act: H.R. 3099, amended, to establish in the Department

of State the position of Special Envoy for the Abraham Accords, by a ⅔ yea-and-nay vote of 413 yeas to 13 nays, Roll No. 251; and **Pages H2834–35**

Calling for the immediate release of Evan Gershkovich, a United States citizen and journalist, who was wrongfully detained by the Government of the Russian Federation in March 2023: H. Res. 377, amended, calling for the immediate release of Evan Gershkovich, a United States citizen and journalist, who was wrongfully detained by the Government of the Russian Federation in March 2023, by a ⅔ yea-and-nay vote of 422 yeas with none voting ''nay'', Roll No. 256.

Pages H2855–56

Providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Bureau of Alcohol, Tobacco, Firearms, and Explosives relating to ''Factoring Criteria for Firearms with Attached 'stabilizing braces' '': The House passed H.J. Res. 44, providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Bureau of Alcohol, Tobacco, Firearms, and Explosives relating to ''Factoring Criteria for Firearms with Attached 'stabilizing braces' '', by a yea-and-nay vote of 219 yeas to 210 nays, Roll No. 252. **Pages H2822–34, H2835–42, H2852–53**

H. Res. 495, the rule providing for consideration of the joint resolution (H.J. Res. 44), providing for consideration of the bills (H.R. 277), (H.R. 288), (H.R. 1615), and (H.R. 1640) was agreed to by a recorded vote of 218 ayes to 209 noes, Roll No. 250, after the previous question was ordered by a yea-and-nay vote of 216 yeas to 209 nays, Roll No. 249. **Pages H2822–34**

Disapproving the action of the District of Columbia Council in approving the Comprehensive Policing and Justice Reform Amendment Act of 2022—Presidential Veto: The House voted to sustain the President's veto of H.J. Res. 42, disapproving the action of the District of Columbia Council in approving the Comprehensive Policing and Justice Reform Amendment Act of 2022, by a yea-and-nay vote of 233 yeas to 197 nays, Roll No. 253, (two-thirds of those present not voting to override). **Pages H2842–44, H2853**

Subsequently, the veto message (H. Doc. 118–45) and the joint resolution were referred to the Committee on Oversight and Accountability. **Page H2853**

Gas Stove Protection and Freedom Act: The House passed H.R. 1615, to prohibit the use of Federal funds to ban gas stoves, by a yea-and-nay vote of 248 yeas to 180 nays, Roll No. 255.

Pages H2844–52, H2853–55

Agreed to:

Boebert amendment (No. 1 printed in part C of H. Rept. 118–108) that expands the prohibition on federal funding to include regulations that would result in the unavailability in the United States of a type (or class) of product based on the type of fuel the product consumes (by a recorded vote of 222 ayes to 210 noes, Roll No. 254). **Page H2854**

H. Res. 495, the rule providing for consideration of the joint resolution (H.J. Res. 44), providing for consideration of the bills (H.R. 277), (H.R. 288), (H.R. 1615), and (H.R. 1640) was agreed to by a recorded vote of 218 ayes to 209 noes, Roll No. 250, after the previous question was ordered by a yea-and-nay vote of 216 yeas to 209 nays, Roll No. 249. **Pages H2822–34**

Save Our Gas Stoves Act: The House considered H.R. 1640, to prohibit the Secretary of Energy from finalizing, implementing, or enforcing the proposed rule titled ''Energy Conservation Program: Energy Conservation Standards for Consumer Conventional Cooking Products''. Consideration is expected to resume tomorrow, June 14th. **Pages H2856–65**

Agreed to:

Huizenga amendment (No. 1 printed in part D of H. Rept. 118–108) that requires the Secretary of Energy to disclose stakeholder meetings with entities that have ties to China, produced studies regarding or advocated for policy that limit, restrict, or ban the use of any type of energy, and have applied for or received Federal funds. **Pages H2862–63**

Proceedings Postponed:

McGovern amendment (No. 2 printed in part D of H. Rept. 118–108) that seeks to prohibit Section 3 of the bill from taking effect unless and until the Secretary of Energy certifies that the provisions of the section would not adversely affect the energy security of the United States; and **Pages H2863–64**

Pallone amendment (No. 3 printed in part D of H. Rept. 118–108) that seeks to strike provisions in the bill that would significantly limit future DOE rulemaking authority. **Pages H2864–65**

H. Res. 495, the rule providing for consideration of the joint resolution (H.J. Res. 44), providing for consideration of the bills (H.R. 277), (H.R. 288), (H.R. 1615), and (H.R. 1640) was agreed to by a recorded vote of 218 ayes to 209 noes, Roll No. 250, after the previous question was ordered by a yea-and-nay vote of 216 yeas to 209 nays, Roll No. 249. **Pages H2822–34**

Regulations from the Executive in Need of Scrutiny Act of 2023: The House considered H.R. 277, to amend chapter 8 of title 5, United States Code, to provide that major rules of the executive branch shall have no force or effect unless a joint resolution

of approval is enacted into law. Consideration is expected to resume tomorrow, June 14th.

Pages H2822–34, H2865–72

H. Res. 495, the rule providing for consideration of the joint resolution (H.J. Res. 44), providing for consideration of the bills (H.R. 277), (H.R. 288), (H.R. 1615), and (H.R. 1640) was agreed to by a recorded vote of 218 ayes to 209 noes, Roll No. 250, after the previous question was ordered by a yea-and-nay vote of 216 yeas to 209 nays, Roll No. 249. **Pages H2822–34**

Congressional Award Board—Appointment: The Chair announced the Speaker's appointment of the following Member on the part of the House to the Congressional Award Board: Representative Hudson. And in addition: Dr. Vipul Dev of Bakersfield, California. **Page H2872**

Discharge Petitions: Representative McBath presented to the clerk a motion to discharge the Committee on Rules from the consideration of the resolution (H. Res. 452) entitled, a resolution providing for consideration of the bill (H.R. 698) to regulate assault weapons, to ensure that the right to keep and bear arms is not unlimited (Discharge Petition No. 2).

Representative Clyburn presented to the clerk a motion to discharge the Committee on Rules from the consideration of the resolution (H. Res. 453) entitled, a resolution providing for consideration of the bill (H.R. 2403) to amend chapter 44 of title 18, United States Code, to strengthen the background check procedures to be followed before a Federal firearms licensee may transfer a firearm to a person who is not such a licensee (Discharge Petition No. 3).

Page H2817

Representative Thompson (CA) presented to the clerk a motion to discharge the Committee on Rules from the consideration of the resolution (H. Res. 454) entitled, a resolution providing for consideration of the bill (H.R. 715) to require a background check for every firearm sale (Discharge Petition No. 4).

Quorum Calls—Votes: Six yea-and-nay votes and two recorded votes developed during the proceedings of today and appear on pages H2833–34, H2834, H2834–35, H2852–53, H2853 and H2854.

Adjournment: The House met at 10 a.m. and adjourned at 9:57 p.m.

Committee Meetings

STAKEHOLDER PERSPECTIVES ON USDA'S RURAL DEVELOPMENT PROGRAMS

Committee on Agriculture: Subcommittee on Commodity Markets, Digital Assets, and Rural Development held a hearing entitled "Stakeholder Perspectives on USDA's Rural Development Programs". Testimony was heard from public witnesses.

MISCELLANEOUS MEASURE

Committee on Appropriations: Full Committee held a markup on the Military Construction, Veterans Affairs, and Related Agencies FY 2024 Appropriations Bill. The Military Construction, Veterans Affairs, and Related Agencies FY 2024 Appropriations Bill was ordered reported, as amended.

MISCELLANEOUS MEASURE

Committee on Armed Services: Subcommittee on Strategic Forces held a markup on H.R. 2670, the "National Defense Authorization Act for Fiscal Year 2024". H.R. 2670 was forwarded to the full Committee, without amendment.

MISCELLANEOUS MEASURE

Committee on Armed Services: Subcommittee on Cyber, Information Technology and Innovation held a markup on H.R. 2670, the "National Defense Authorization Act for Fiscal Year 2024". H.R. 2670 was forwarded to the full Committee, without amendment.

MISCELLANEOUS MEASURE

Committee on Armed Services: Subcommittee on Seapower and Projection Forces held a markup on H.R. 2670, the "National Defense Authorization Act for Fiscal Year 2024". H.R. 2670 was forwarded to the full Committee, without amendment.

MISCELLANEOUS MEASURE

Committee on Armed Services: Subcommittee on Military Personnel held a markup on H.R. 2670, the "National Defense Authorization Act for Fiscal Year 2024". H.R. 2670 was forwarded to the full Committee, without amendment.

MISCELLANEOUS MEASURE

Committee on Armed Services: Subcommittee on Tactical Air and Land Forces held a markup on H.R. 2670, the "National Defense Authorization Act for Fiscal Year 2024". H.R. 2670 was forwarded to the full Committee, without amendment.

MISCELLANEOUS MEASURE

Committee on Armed Services: Subcommittee on Intelligence and Special Operations held a markup on H.R. 2670, the "National Defense Authorization Act for Fiscal Year 2024". H.R. 2670 was forwarded to the full Committee, without amendment.

EXAMINING THE POLICIES AND PRIORITIES OF THE DEPARTMENT OF HEALTH AND HUMAN SERVICES

Committee on Education and Workforce: Full Committee held a hearing entitled ''Examining the Policies and Priorities of the Department of Health and Human Services''. Testimony was heard from Xavier Becerra, Secretary, Department of Health and Human Services.

MISCELLANEOUS MEASURES

Committee on Education and Workforce: Full Committee held a markup on H.R. 824, the ''Telehealth Benefit Expansion for Workers Act of 2023''; and H.R. 3941, the ''Schools not Shelters Act''. H.R. 824 and H.R. 3941 were ordered reported, as amended.

OVERSIGHT OF FERC: ADHERING TO A MISSION OF AFFORDABLE AND RELIABLE ENERGY FOR AMERICA

Committee on Energy and Commerce: Subcommittee on Energy, Climate, and Grid Security held a hearing entitled ''Oversight of FERC: Adhering to a Mission of Affordable and Reliable Energy for America''. Testimony was heard from the following Department of Energy officials: Mark C. Christie, Commissioner, Federal Energy Regulatory Commission; Allison Clements, Commissioner, Federal Energy Regulatory Commission; James P. Danly, Commissioner, Federal Energy Regulatory Commission; and Willie L. Phillips, Chairman, Federal Energy Regulatory Commission.

LEGISLATIVE SOLUTIONS TO BOLSTER PREPAREDNESS AND RESPONSE FOR ALL HAZARDS AND PUBLIC HEALTH SECURITY THREATS

Committee on Energy and Commerce: Subcommittee on Health held a hearing entitled ''Legislative Solutions to Bolster Preparedness and Response for All Hazards and Public Health Security Threats''. Testimony was heard from Raynard Washington, Director, Public Health Department, County Health and Human Services Agency, Mecklenburg County, North Carolina; and public witnesses.

THE ANNUAL TESTIMONY OF THE SECRETARY OF THE TREASURY ON THE STATE OF THE INTERNATIONAL FINANCIAL SYSTEM

Committee on Financial Services: Full Committee held a hearing entitled ''The Annual Testimony of the Secretary of the Treasury on the State of the International Financial System''. Testimony was heard from Janet Yellen, Secretary, Department of the Treasury.

THE FUTURE OF DIGITAL ASSETS: PROVIDING CLARITY FOR THE DIGITAL ASSET ECOSYSTEM

Committee on Financial Services: Full Committee held a hearing entitled ''The Future of Digital Assets: Providing Clarity for the Digital Asset Ecosystem''. Testimony was heard from public witnesses.

EXAMINING THE FISCAL YEAR 24 STATE DEPARTMENT DIVERSITY EQUITY INCLUSION AND ACCESSIBILITY BUDGET

Committee on Foreign Affairs: Subcommittee on Oversight and Accountability held a hearing entitled ''Examining the Fiscal Year 24 State Department Diversity Equity Inclusion and Accessibility Budget''. Testimony was heard from Gina Abercrombie-Winstanley, Chief Diversity and Inclusion Officer, Office of Diversity and Inclusion, Department of State.

FISCAL YEAR 2024 BUDGET REQUEST FOR NEAR EASTERN AFFAIRS

Committee on Foreign Affairs: Subcommittee on the Middle East, North Africa, and Central Asia held a hearing entitled ''Fiscal Year 2024 Budget Request for Near Eastern Affairs''. Testimony was heard from Barbara A. Leaf, Assistant Secretary, Bureau of Near Eastern Affairs, Department of State; and Jeanne Pryor, Deputy Assistant Administrator, Middle East Bureau, U.S. Agency for International Development.

OVERSIGHT OF THE OFFICE OF CONGRESSIONAL ETHICS

Committee on House Administration: Subcommittee on Oversight held a hearing entitled ''Oversight of the Office of Congressional Ethics''. Testimony was heard from Omar Ashmawy, Staff Director and Chief Counsel, Office of Congressional Ethics; Michael Barnes, Co-Chairman, Office of Congressional Ethics; and Paul Vinovich, Chairman, Office of Congressional Ethics.

WHERE'S THE BEEF? REGULATORY BARRIERS TO ENTRY AND COMPETITION IN MEAT PROCESSING

Committee on the Judiciary: Subcommittee on the Administrative State, Regulatory Reform, and Antitrust held a hearing entitled ''Where's the Beef? Regulatory Barriers to Entry and Competition in Meat Processing''. Testimony was heard from public witnesses.

THE RISE IN ORGANIZED RETAIL CRIME AND THE THREAT TO PUBLIC SAFETY

Committee on the Judiciary: Subcommittee on Crime and Federal Government Surveillance held a hearing entitled ''The Rise in Organized Retail Crime and

the Threat to Public Safety''. Testimony was heard from Kris Kobach, Attorney General, Kansas; and public witnesses.

MISCELLANEOUS MEASURES

Committee on Natural Resources: Full Committee held a markup on H.R. 188, the ''Proven Forest Management Act''; H.R. 630, the ''Urban Indian Health Confer Act''; H.R. 1240, the ''Winnebago Land Transfer Act of 2023''; H.R. 1314, the ''LODGE Act''; H.R. 1450, the ''Treating Tribes and Counties as Good Neighbors Act''; H.R. 3371, the ''Wounded Knee Massacre Memorial and Sacred Site Act''; H.R. 3389, the ''Emergency Wildfire Fighting Technology Act of 2023''; H.R. 3562, the ''Forest Service Flexible Housing Partnerships Act of 2023''; and a Committee Resolution Authorizing the Indo-Pacific Task Force in the Committee on Natural Resources. The Committee Resolution Authorizing the Indo-Pacific Task Force was adopted. H.R. 1450, H.R. 188, H.R. 1240, H.R. 3389, and H.R. 3562 were ordered reported, as amended. H.R. 1314 and H.R. 3371 were ordered reported, without amendment.

OVERSIGHT OF CDC POLICIES AND DECISIONS DURING THE COVID–19 PANDEMIC

Committee on Oversight and Accountability: Select Subcommittee on the Coronavirus Pandemic held a hearing entitled ''Oversight of CDC Policies and Decisions During the COVID–19 Pandemic''. Testimony was heard from Rochelle Walensky, M.D., Director, U.S. Centers for Disease Control and Prevention, Department of Health and Human Services.

FROM THEORY TO REALITY: THE LIMITLESS POTENTIAL OF FUSION ENERGY

Committee on Science, Space, and Technology: Subcommittee on Energy held a hearing entitled ''From Theory to Reality: The Limitless Potential of Fusion Energy''. Testimony was heard from Scott Hsu, Senior Advisor and Lead Fusion Coordinator, Department of Energy; and public witnesses.

ASSISTING ENTREPRENEURS: EXAMINING PRIVATE AND PUBLIC RESOURCES HELPING SMALL BUSINESSES

Committee on Small Business: Full Committee held a hearing entitled ''Assisting Entrepreneurs: Examining Private and Public Resources Helping Small Businesses''. Testimony was heard from public witnesses.

MISCELLANEOUS MEASURE

Committee on Transportation and Infrastructure: Full Committee began a markup on H.R. 3935, the ''Securing Growth and Robust Leadership in American Aviation Act''.

CARE COORDINATION: ASSESSING VETERAN NEEDS AND IMPROVING OUTCOMES

Committee on Veterans' Affairs: Subcommittee on Health held a hearing entitled ''Care Coordination: Assessing Veteran Needs and Improving Outcomes''. Testimony was heard from M. Christopher Saslo, Assistant Under Secretary for Health and Chief Nursing Officer, Office of Patient Care Services, Veterans Health Administration, Department of Veterans Affairs; Julie Kroviak, M.D., Principal Deputy Assistant Inspector General, Healthcare Inspections, Office of the Inspector General, Department of Veterans Affairs; and public witnesses.

MISCELLANEOUS MEASURES

Committee on Ways and Means: Full Committee held a markup on H.R. 4004, the ''United States-Taiwan Initiative on the 21st-Century Trade First Agreement Implementation Act''; H.R. 3936, the ''Tax Cuts for Working Families Act''; H.R. 3937, the ''Small Business Jobs Act''; and H.R. 3938, the ''Build It in America Act''. H.R. 4004, H.R. 3937, H.R. 3938, and H.R. 3936 were ordered reported, as amended.

MISCELLANEOUS MEASURE

Permanent Select Committee on Intelligence: Subcommittee on Defense Intelligence and Overhead Architecture held a business meeting on the Subcommittee Chairman's mark on legislation related to the FY24 Intelligence Authorization Act. The Subcommittee Chairman's mark on legislation related to the FY24 Intelligence Authorization Act was agreed to. This meeting was closed.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR WEDNESDAY, JUNE 14, 2023

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Appropriations: Subcommittee on State, Foreign Operations, and Related Programs, to hold hearings to examine enhancing American competitiveness through the U.S. International Development Finance Corporation, 10 a.m., SD–138.

Committee on Energy and Natural Resources: to receive a closed briefing on the national security implications of the Compacts of Free Association, 10:30 a.m., SVC–217.

Committee on Environment and Public Works: business meeting to consider the nomination of Jeffery Martin

Baran, of Virginia, to be a Member of the Nuclear Regulatory Commission; to be immediately followed by a hearing to examine implementation of the Infrastructure Investment and Jobs Act and the Inflation Reduction Act by the Federal Highway Administration, 10 a.m., SD–406.

Committee on Finance: to hold hearings to examine anti-poverty and family support provisions in the tax code, 10 a.m., SD–215.

Committee on Foreign Relations: to receive a closed briefing on the current dynamics in U.S.-China relations, 3:15 p.m., SVC–217.

Committee on Homeland Security and Governmental Affairs: business meeting to consider S. 1868, to require an interagency study to produce a security assessment process on adjacent space to high-security leased space to accommodate a Federal agency, S. 1560, to require the development of a comprehensive rural hospital cybersecurity workforce development strategy, S. 820, to add the Consumer Product Safety Commission to the list of agencies required to be represented on the PFAS interagency working group, S. 1886, to establish a Federal Clearinghouse on Safety and Best Practices for Nonprofit Organizations, Faith-based Organizations, and Houses of Worship within the Department of Homeland Security, S. 1871, to create intergovernmental coordination between State, local, Tribal, and territorial jurisdictions, and the Federal Government to combat United States reliance on the People's Republic of China and other covered countries for critical minerals and rare earth metals, S. 1858, to amend the Robert T. Stafford Disaster Relief and Emergency Assistance Act to establish a deadline for applying for disaster unemployment assistance, S. 1798, to establish a Countering Weapons of Mass Destruction Office and an Office of Health Security in the Department of Homeland Security, S. 1822, to require U.S. Customs and Border Protection to expand the use of non-intrusive inspection systems at land ports of entry, S. 1253, to increase the number of U.S. Customs and Border Protection Customs and Border Protection officers and support staff and to require reports that identify staffing, infrastructure, and equipment needed to enhance security at ports of entry, S. 1444, to increase the pay and enhance the training of United States Border Patrol agents, S. 1865, to direct agencies to be transparent when using automated and augmented systems to interact with the public or make critical decisions, S. 1862, to amend the Homeland Security Act of 2002 to provide explicit authority for the Secretary of Homeland Security and the Director of the Cybersecurity and Infrastructure Security Agency to work with international partners on cybersecurity, S. 61, to require the Secretary of Homeland Security to implement a strategy to combat the efforts of transnational criminal organizations to recruit individuals in the United States via social media platforms and other online services and assess their use of such platforms and services for illicit activities, and S. 1835, to require the Cybersecurity and Infrastructure Security Agency of the Department of Homeland Security to develop a campaign program to raise awareness regarding the importance of cybersecurity in the United States, 10:30 a.m., SD–562.

Subcommittee on Emerging Threats and Spending Oversight, to hold hearings to examine the findings and recommendations of the GAO's 2023 report on opportunities to reduce fragmentation, overlap, and duplication and achieve financial benefits, 2:30 p.m., SD–562.

Committee on the Judiciary: to hold hearings to examine ensuring the safety and well-being of unaccompanied children, 10 a.m., SD–106.

Subcommittee on Federal Courts, Oversight, Agency Action, and Federal Rights, to hold hearings to examine S. 359, to amend title 28, United States Code, to provide for a code of conduct for justices of the Supreme Court of the United States, 2 p.m., SD–226.

Committee on Veterans' Affairs: to hold hearings to examine improving substance use disorder care for veterans in rural America and beyond, 3 p.m., SR–418.

Select Committee on Intelligence: closed business meeting to consider pending intelligence matters, 2:30 p.m., SH–219.

House

Committee on Agriculture, Subcommittee on Conservation, Research, and Biotechnology, hearing entitled ''A Review of Title VII: University Perspectives on Research and Extension Programs'', 10 a.m., 1300 Longworth.

Committee on Appropriations, Full Committee, markup on the Agriculture, Rural Development, Food and Drug Administration, and Related Agencies FY 2024 Appropriations Bill; and the Report on the Interim Suballocation of the Budget Allocations for FY 2024, 10 a.m., 2359 Rayburn.

Committee on Armed Services, Subcommittee on Readiness, markup on H.R. 2670, the ''National Defense Authorization Act for Fiscal Year 2024'', 10 a.m., 2118 Rayburn.

Committee on Education and Workforce, Subcommittee on Higher Education and Workforce, hearing entitled ''Postsecondary Innovation: Preparing Today's Students for Tomorrow's Opportunities'', 10:15 a.m., 2175 Rayburn.

Committee on Energy and Commerce, Subcommittee on Energy, Climate, and Grid Security, hearing entitled ''Oversight of NRC: Ensuring Efficient and Predictable Nuclear Safety Regulation for a Prosperous America'', 10 a.m., 2123 Rayburn.

Subcommittee on Health, hearing entitled ''Examining Proposals that Provide Access to Care for Patients and Support Research for Rare Diseases'', 10:30 a.m., 2322 Rayburn.

Committee on Financial Services, Full Committee, hearing entitled ''The Semi-Annual Report of the Bureau of Consumer Financial Protection'', 10 a.m., 2128 Rayburn.

Committee on Foreign Affairs, Full Committee, hearing entitled ''Assessing U.S. Efforts to Counter China's Coercive Belt and Road Diplomacy'', 2 p.m., HVC–210.

Committee on Homeland Security, Full Committee, hearing entitled ''Open Borders, Closed Case: Secretary Mayorkas' Dereliction of Duty on the Border Crisis'', 10 a.m., 310 Cannon.

Committee on House Administration, Full Committee, hearing entitled ''American Confidence in Elections: The

Role of the Election Assistance Commission in Free, Fair, and Secure Elections", 10:15 a.m., 1310 Longworth.

Committee on the Judiciary, Full Committee, markup on H.R. 788, the "Stop Settlement Slush Funds Act of 2023"; H.R. 1525, the "FAIR Act of 2023"; H.R. 3446, the "Sunshine for Regulatory Decrees and Settlements Act of 2023"; and ratification of subcommittee assignments, 10 a.m., 2141 Rayburn.

Committee on Natural Resources, Indo-Pacific Task Force, hearing entitled "How the Compacts of Free Association Support U.S. Interests and Counter the PRC's Influence", 10 a.m., 1324 Longworth.

Subcommittee on Water, Wildlife and Fisheries, hearing on H.R. 1607, to clarify jurisdiction with respect to certain Bureau of Reclamation pumped storage development, and for other purposes; H.R. 3027, the "Reclamation Climate Change and Water Program Reauthorization Act of 2023"; and H.R. 3675, to amend the Water Infrastructure Improvements for the Nation Act to extend certain contract prepayment authority, 2 p.m., 1324 Longworth.

Subcommittee on Energy and Mineral Resources, hearing on H.R. 2685, the "Mining Schools Act of 2023"; H.R. 3883, to nullify Public Land Order No. 7921, withdrawing certain land in the Railroad Valley of Nye County, Nevada, from mineral entry; and legislation on the Community Reclamation Partnerships Act, 2:15 p.m., 1334 Longworth.

Committee on Oversight and Accountability, Full Committee, hearing entitled "Death by a Thousand Regulations: The Biden Administration's Campaign to Bury America in Red Tape", 10 a.m., 2154 Rayburn.

Committee on Science, Space, and Technology, Full Committee, begin markup on H.R. 2980, the "DOE and NSF Interagency Research Act"; H.R. 2988, the "DOE and NASA Interagency Research Coordination Act"; and H.R. 3559, the "FAA Research and Development Act of 2023", 10 a.m., 2318 Rayburn.

Committee on Transportation and Infrastructure, Full Committee, continue markup on H.R. 3935, the "Securing Growth and Robust Leadership in American Aviation Act", 10 a.m., 2167 Rayburn.

Committee on Veterans' Affairs, Subcommittee on Economic Opportunity, hearing on H.R. 491, the "Return Home to Housing Act"; H.R. 3874, the "Veterans Education Assistance Improvement Act"; H.R. 3848, the "Housing our Military Veterans Effectively Act"; legislation on the TAP Promotion Act; legislation on the Transcript Assurance for Heroes Act; legislation on the Isakson-Roe Education Oversight Expansion Act; legislation on the Servicemember Employment Protection Act of 2023; and legislation to amend title 38, to establish certain employment and reemployment rights for spouses of members of the uniformed services, 3 p.m., 360 Cannon.

Permanent Select Committee on Intelligence, Subcommittee on Central Intelligence Agency, markup on H.R. 3932, the "Intelligence Authorization Act for Fiscal Year 2024", 9 a.m., HVC–304. This markup is closed.

Subcommittee on National Security Agency and Cyber, markup on H.R. 3932, the "Intelligence Authorization Act for Fiscal Year 2024", 1 p.m., HVC–304. This markup is closed.

Next Meeting of the **SENATE**

10 a.m., Wednesday, June 14

Senate Chamber

Program for Wednesday: Senate will resume consideration of the nomination of P. Casey Pitts, of California, to be United States District Judge for the Northern District of California, and vote on the motion to invoke cloture thereon at 11:30 a.m.

Following the vote on the motion to invoke cloture on the nomination of P. Casey Pitts, Senate will vote on the motion to invoke cloture on the nomination of Dale E. Ho, of New York, to be United States District Judge for the Southern District of New York. If cloture is invoked on either nomination, Senate will vote on confirmation of the nominations at 2:30 p.m.

At 5:15 p.m., Senate will vote on the motion to invoke cloture on the nomination of Nusrat Jahan Choudhury, of New York, to be United States District Judge for the Eastern District of New York.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Wednesday, June 14

House Chamber

Program for Wednesday: Complete consideration of H.R. 1640—Save Our Gas Stoves Act. Complete consideration of H.R. 277—REINS Act of 2023.

Extensions of Remarks, as inserted in this issue

HOUSE

Blunt Rochester, Lisa, Del., E552
Burlison, Eric, Mo., E556
Case, Ed, Hawaii, E553
Cole, Tom, Okla., E556
DeGette, Diana, Colo., E557
Eshoo, Anna G., Calif., E551
Gaetz, Matt, Fla., E554
Garamendi, John, Calif., E553
González-Colón, Jenniffer, Puerto Rico, E552
Harder, Josh, Calif., E551, E552, E554, E555, E556
Jordan, Jim, Ohio, E555
Kuster, Ann M., N.H., E553
Leger Fernandez, Teresa, N.M., E554
McCarthy, Kevin, Calif., E551
McCollum, Betty, Minn., E555
Sykes, Emilia Strong, Ohio, E557
Van Duyne, Beth, Tex., E555
Walberg, Tim, Mich., E554

Congressional Record

The *Congressional Record* (USPS 087–390). The Periodicals postage is paid at Washington, D.C. The public proceedings of each House of Congress, as reported by the Official Reporters thereof, are printed pursuant to directions of the Joint Committee on Printing as authorized by appropriate provisions of Title 44, United States Code, and published for each day that one or both Houses are in session, excepting very infrequent instances when two or more unusually small consecutive issues are printed one time. ¶Public access to the *Congressional Record* is available online through the U.S. Government Publishing Office, at *www.govinfo.gov*, free of charge to the user. The information is updated online each day the *Congressional Record* is published. For more information, contact the GPO Customer Contact Center, U.S. Government Publishing Office. Phone 202–512–1800, or 866–512–1800 (toll-free). E-Mail, *contactcenter@gpo.gov*. ¶To place an order for any of these products, visit the U.S. Government Online Bookstore at: bookstore.gpo.gov. Mail orders to: Superintendent of Documents, P.O. Box 979050, St. Louis, MO 63197–9000, or phone orders to 866–512–1800 (toll-free), 202–512–1800 (D.C. area), or fax to 202–512–2104. Remit check or money order, made payable to the Superintendent of Documents, or use VISA, MasterCard, Discover, American Express, or GPO Deposit Account. ¶Following each session of Congress, the daily *Congressional Record* is revised, printed, permanently bound and sold by the Superintendent of Documents in individual parts or by sets. ¶With the exception of copyrighted articles, there are no restrictions on the republication of material from the *Congressional Record*.

POSTMASTER: Send address changes to the Superintendent of Documents, *Congressional Record*, U.S. Government Publishing Office, Washington, D.C. 20402, along with the entire mailing label from the last issue received.